

The New Lost Cause

The New Lost Cause

How White Animus and the Myth of Voter Fraud Threaten American Elections

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Dedication

The true problem is not the negro, but the nation. Not the law-abiding blacks of the South, but the white men of that section, who by fraud, violence, and persecution, are breaking the law, trampling on the Constitution, corrupting the ballot-box, and defeating the ends of justice. The true problem is whether these white ruffians shall be allowed by the nation to go on in their lawless and nefarious career, dishonoring the Government and making its very name a mockery. It is whether this nation has in itself sufficient moral stamina to maintain its own honor and integrity by vindicating its own Constitution and fulfilling its own pledges, or whether it has already touched that dry rot of moral depravity by which nations decline and fall, and governments fade and vanish.

– Frederick Douglass, “The Race Problem” (address delivered before the Bethel Literary and Historical Association, Metropolitan A.M.E. Church, Washington, D.C., October 21, 1890).

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Acknowledgments

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Chapter 1

Now a Political Myth: A Lost Cause for the Twenty-First Century

“We reorganized the Democratic party with one plank, and only one plank, namely, that this is a white man’s country and white men must govern it. Under that banner we went to battle...It was then that we shot them. It was then that we killed them. It was then that we stuffed ballot boxes.”

-Ben Tillman of South Carolina, remarks on the floor of the United States Senate, 1907.¹

The sky was close and gray as the mob surrounded the Capitol building.² The officers tasked with protecting the legislators watched with unease as the crowd “surged and swayed like a huge monster.”³ Some carried visible weapons, and the officers were badly outnumbered. Fears of a stolen election brought the protesters to the Capitol building that day, but this was no spontaneous action. These fears had been deliberately stoked by their political leaders who refused to accept the election results, and many in the crowd sported the movement’s bright red color. Earlier that very morning, the protesters had gathered to listen intently as their leaders detailed their grievances: the certification of the election was nothing short of a “barefaced usurpation.”⁴ A partisan media infrastructure had been all too

¹41 Cong. Rec. 1440 (1907) (statement of Sen. Benjamin Tillman).

²Much of this discussion comes from Zuczek (2021).

³*Bayonet Against Ballot* (1876).

⁴Quoted in *Despatches [sic] to the daily papers report that great excitement has been occasioned at Columbia, S. C.* (1876, pg. 193).

happy to repeat the party's talking points, further convincing the electorate that theft was afoot. As the threat of violence loomed on the steps of the Capitol Building, it marked the culmination of one of the most contentious elections in American history.

This mob protest, decrying as theft an election it itself was trying to steal, heralded the death of Reconstruction in South Carolina. It was echoed, a century and a half later, on the national stage. On January 6, 2021, supporters of then-president Donald Trump stormed the U.S. Capitol in an attempt to stop Congress from certifying Joe Biden as the 46th President of the United States. While South Carolina's Red Shirts were armed with rifles in 1876, the mob in 2021 carried zip ties for legislators and erected a gallows on the lawn for Vice President Mike Pence, viewed as a turncoat by the agitators. Like their 19th century predecessors, the insurrectionists on January 6 did not come to their belief that the 2020 election had been stolen on their own. Instead, Donald Trump and his allies had worked to convince the nation — in the face of all available evidence — that fraud had irredeemably tainted the results of the election. When the protesters breached the Capitol Building that cold January morning, it was the first time the building had been invaded in more than two centuries.

Yet the *project* motivating the mob on the steps of the South Carolina Capitol Building in 1876 proved successful in ways that Donald Trump's assault on the 2020 presidential election was not — or, at least, was not successful in the short term. In 1876 in South Carolina, Black voters and their allies were robbed of their political power. Throughout the state that fall, supporters of Democratic gubernatorial candidate Wade Hampton III (including a young Benjamin Tillman) took drastic measures to ensure their candidate's victory. During the Civil War, it was the Democratic Party that mobilized in defense of the

system of chattel slavery, and after the war they would shift their focus to subverting the new constitutional amendments at the heart of the Second Founding that guaranteed equal citizenship and access to the ballot for Black Americans. No tool was quite so central to Democrats' efforts in South Carolina that fall as widespread violence against Black voters. In one episode, Red Shirts (the paramilitary arm of the White supremacist Democratic Party) killed at least 7 Black South Carolinians in Hamburg;⁵ the massacre was shortly followed by another, in Ellenton, in which as many as 100 Black people were murdered.⁶ Throughout the fall, Hampton and his allies made "cold-blooded murder a campaign tactic."⁷

Violence was not the only tool of the Democrats that fall; indeed, as even one Democratic observer put it, the election "was one of the grandest farces ever seen."⁸ The violence against Black men was supplemented by widespread intimidation, and fraud ran rampant. In some counties, the number of votes cast for Hampton exceeded the *total* number of registered voters,⁹ and a contemporaneous book noted that "there are reputable white men living in South Carolina who boast of having voted 18 or 20 times in the election."¹⁰ From the stuffing of ballot boxes to the use of violence and intimidation, the election was an exercise in "redeeming" the state in the name of a brutal White supremacy. Nevertheless, the Republican incumbent Daniel Chamberlain polled nearly even with Hampton; the continued occupation of the state capitol by him and other Republicans prompted the later standoff on the building's steps. For months, the outcome of the gubernatorial election remained unsettled in South Carolina.

⁵Kantrowitz (2000, pgs. 69, 74).

⁶Smith (1994).

⁷Kantrowitz (2000, pg. 41).

⁸Quoted in Foner (2014, pg. 574).

⁹Zuczek (2021).

¹⁰Simkins and Woody ([1932] 2014, pg. 515).

The 1876 presidential election, however, carried consequences far beyond the capitol building in Columbia. The year marks, in the eyes of many historians, the end of Reconstruction.¹¹ Following the contested presidential election, Republican Rutherford B. Hayes agreed to remove federal troops from Southern states in exchange for his certification as president. A Republican may have been in the White House, but the protesters in South Carolina were the ultimate victors. As federal troops withdrew, Democrats took governors' mansions throughout the South by force. Among them would be Wade Hampton, a man who had taken up arms against the United States as a Lieutenant General in the Confederate Army. He would serve as South Carolina's 77th governor before being elected to the United States Senate.

Hampton was hardly alone. During the years following the Civil War, over 100 Confederate veterans would serve in Congress.¹² The presence of these men who had taken up arms against the United States in the halls of power served as a visceral reminder that White racism was alive and well in the states from which they hailed. This included the South, yes, but also states as far-flung as New York and Colorado. They would stymie the nation's progress on racial issues for generations.¹³

Even so: It was not until January 6, 2021, that the Confederate battle flag — the flag of Hampton and of scores of other Confederates — would fly inside the United States Capitol.



¹¹E.g., Foner (2014).

¹²See the appendix to Hood (2020).

¹³Bateman et al. (2018).

By 1901, Reconstruction was dead. Its death was not foreordained. On December 6, 1865 — less than a year after the Confederate Army surrendered at Appomattox — the 13th Amendment was ratified, formally abolishing slavery in the United States.¹⁴ It was followed three years later by the 14th Amendment’s promises of birthright citizenship and equal protection under the law, and in 1870 by the Fifteenth Amendment’s prohibition on racial discrimination in voting. The 1860s and 1870s saw huge numbers of Black Americans — many of whom were formerly enslaved — elected to public office, ranging from county councils to the United States Senate. Throughout the region, multiracial state legislatures set up public school systems, progressive taxation programs, and agricultural reforms intended to improve the quality of life for Black and White residents alike.¹⁵

But the Constitution is not self-enforcing, and the advancement of Black interests in the South was conditional on federal enforcement. During the early years of Reconstruction, Congress and the White House served as able partners, passing muscular Enforcement Acts into law and sending federal troops south to protect the freedmen’s civil rights. But within a generation, this help had dried up. The Supreme Court had narrowed Congress’s power to enforce the amendments;¹⁶ Northern Republicans no longer considered fighting for Black voting rights politically expedient;¹⁷ and thousands of would-be Black voters were murdered in violent episodes like those from the 1876 South Carolina election. When White

¹⁴Slavery or involuntary servitude remains permissible under the 13th Amendment “as a punishment for crime whereof the party shall have been duly convicted.”

¹⁵Du Bois ([1935] 2021); Foner (2014). Throughout this volume, I capitalize “White” when referring to Caucasians. In current practice, most scholars capitalize “Black” when referring to people of African descent. This treatment of Black as a proper noun shifts the marker from being a description of skin color to a broader recognition of the Black experience in America and elsewhere. As we will see, to be White also carries specific connotations that extend well beyond skin color; I therefore capitalize “White” alongside “Black.” See also Appiah (2020).

¹⁶See Chapter 7.

¹⁷Wang (1997).

supremacist Charles Brantley Aycock was inaugurated governor of North Carolina in 1901,¹⁸ each state in the former Confederacy was ruled by a Democratic governor.

But a peculiar *memory* project was underway as well. The White leaders of these Redeemer movements were not content to simply assert their belief in the biological inferiority of Black Americans (though they were certainly not shy about making such pronouncements). While they did not avoid openly admitting the violence they committed, the violence was always cast as in service to a noble goal: the restoration of order, good governance, and a natural racial hierarchy. They sought, in other words, to justify their own actions, and they did so by constructing a set of potent myths about the criminality and corruption of the Black politicians who had briefly gained power during Reconstruction.¹⁹

Ben Tillman — one of the Red Shirts orchestrating the massacres in 1876 in South Carolina — was elected to the United States Senate in 1895, where he would serve until his death 23 years later.²⁰ Throughout his time in the Senate, he would name the project plainly on multiple occasions, invoking what would become known as the Lost Cause narrative. “The people of South Carolina had been living under negro rule for eight years” by the time of the 1876 election, he explained on the floor of the Senate in 1907. “There was a condition bordering upon anarchy. Misrule, robbery, and murder were holding high carnival...Our legislature was composed of a majority of negroes, most of whom could neither read nor write. They were the easy dupes and tools of as dirty a band of vampires and robbers as ever preyed upon a prostrate people.”

This formed the bedrock of the Lost Cause mythology: That Southern Whites were

¹⁸Zucchino (2021).

¹⁹Du Bois ([1935] 2021).

²⁰Kantrowitz (2000).

the real victims of an over-zealous federal government. In the words of historian Adam Domby, “The Lost Cause narrative of Reconstruction was crucial to justifying disenfranchisement and stoking fears of ‘Negro Domination.’”²¹ Black Americans were not ready for emancipation nor, surely, for self-government. Interference by Northerners wreaked untold havoc on the South. Southern elites were duty-bound to roll back voting rights for Black Southerners to root out corruption and fraud, and to restore good governance. The Lost Cause, in other words, undermined democratic systems in the name of protecting them.

His 1907 speech was not the first time Tillman had spoken so openly of the 1876 campaign. A decade earlier, as South Carolina lawmakers convened to draft and enact their Jim Crow Constitution, he had similarly reminisced. “How did we recover our liberty?” he asked. “By fraud and violence,” was his answer. “We tried to overcome the thirty thousand majority by honest methods, which was a mathematical impossibility...In 1878 we had to resort to more fraud and violence, and so again in 1880. Then the Registration Law and eight-box system was evolved from the superior intelligence of the white man to check and control this surging, muddy stream of ignorance.”²²

These narratives were always contested by the Black Americans they targeted. Thomas Miller was one of the Black men who had won election to Congress from South Carolina dur-

²¹Domby (2020, pg. 30). There is a rich and growing body of historical scholarship on the Lost Cause. Broadly understood, the Lost Cause was a memory project that involved everything from the erection of statues to the writing of history books, and historians sometimes disagree about what precise period is invoked by the Lost Cause. Some date it to the twentieth century and the consolidation of Jim Crow, though many include the post-Reconstruction period of retrenchment. There is, however, general agreement that it was characterized by a “devastating interplay of white supremacy and false memories of the past” (Domby, 2020, pg. 3). I invoke the broader understanding of the Lost Cause as a project that involved (intentional) myths about Black criminality and mis-remembering of the Civil War and Reconstruction Eras to justify evasion of the 15th Amendment. See also Blight (2003) on the political fight over the memory of the Civil War, Wilson (2009) on the Lost Cause as a “civil religion,” and Gallagher and Nolan (2010)’s edited volume from multiple historians on the meaning of the Lost Cause.

²²Constitutional Convention of the State of South Carolina (1895, pg. 463).

ing Reconstruction, and he served as a delegate at the 1895 Constitutional Convention. There, he directly countered Tillman’s characterization of Reconstruction: Tillman had not “found voice eloquent enough, nor pen exact enough to mention those imperishable gifts bestowed upon South Carolina between 1873 and 1876 by Negro legislators — the laws relative to finance, the building of penal and charitable institutions, and, greatest of all, the establishment of the public school system.”²³ He went on to itemize the financial reforms Black legislators had passed: capping municipal interest rates at 5%, identifying \$6 million in fraudulent bonds, and saving the state some \$13 million.

Nevertheless, it was Tillman’s vision of Reconstruction that would win broad acceptance in the years that followed. The powerful Dunning School of thought, named after William Archibald Dunning of Columbia University, would prove the dominant interpretation of Reconstruction for much of the 20th century and lend scholarly credibility to the Tillman account.²⁴ Black enfranchisement, they argued, was a tragic mistake. Bestowing political power on newly-freed Black Americans was a project doomed from the start.

Even before the Lost Cause narrative had fully consolidated, the direction in which it was headed was clear: As the Black educator and American Negro Academy member John L. Love wrote in 1899, “The accepted history of that period has been written by those who rode into power by murder and intimidation and to whose interest it is to paint the history of reconstruction so dark as to hide their own flagrant crimes. Their method of history writing has been that of suppression and distortion of facts.”²⁵ This distortion of facts would be repeated at constitutional conventions in state capitols throughout the south,

²³Quoted in Love (1899, pg. 11).

²⁴Smith and Lowery (2013).

²⁵Love (1899, pg. 10).

where Black voters from Mississippi to Florida to Virginia were stripped of their political rights.²⁶ Though Congress would fight back at first, a hostile Supreme Court undermined its efforts at enforcing the 15th Amendment. Black voters would find succor from neither Court nor Congress as the new century dawned.

“The Southern Confederacy,” wrote Love, “is now a political myth.”²⁷ So it would remain for generations.



The political myth has reappeared. Today, as in the years following Reconstruction, a broad-based effort to roll back the political power of Black (and other minority) Americans is finding widespread support among the nation’s institutions. Today, like then, the project rests in large part on a myth of Black criminality. While the vocabulary of the myth has shifted (today we hear less of the explicitly racist language used by Ben Tillman and his allies, though it is not entirely gone), the underpinnings are similar. By casting White Americans as the real victims — whether of the misrule and corruption of Black leaders in the nineteenth century, or of voter fraud concentrated in the nation’s most heavily African American cities in the twenty-first — the myth colors the political power of racial minorities as inherently suspect or even illegitimate. Broad-based fears of the exercise of illegitimate power then justify undermining the democratic system itself. The effects fall largely on the groups whose power had caused the original backlash. In the nineteenth century, this intentional effort helped undermine the 15th Amendment within years of its ratification.

²⁶Kousser (1974).

²⁷Love (1899, pg. 5).

Today, the Roberts Court has served as accessory in the murder of the Voting Rights Act.

Writing in 1944, Swedish economist Gunnar Myrdal penned a foundational analysis of American race relations. In *An American Dilemma*, Myrdal recognized a central paradox for White Southerners: They resented Black voting rights, even as they revered the Constitution protecting those rights — at least on paper. In Myrdal’s estimation, “The myth of the horrors of Reconstruction” offered a way out of this predicament. They were, in a word, “false beliefs with a purpose.”²⁸

So it is with the New Lost Cause. While it includes the Big Lie, the elite-manufactured and persistent belief among Republican voters that the 2020 election was stolen, the New Lost Cause is also a larger ideological project. Many observers of American politics have in recent years detailed the role of partisanship in the development of the Big Lie and the attempt of Donald Trump and his allies to overturn the 2020 election.²⁹ Partisan actors, beyond a shadow of a doubt, sought to retain power and control of the presidency.

But to look at partisanship alone is to misdiagnose the ailment. Party machinery, after all, is a tool for delivering policy goals. And the New Lost Cause delivers racial ones. In the years following Barack Obama’s presidency and the rise of a highly visible Movement for Black Lives, Trump and his allies saw that White Americans looked at their position in the American racial hierarchy with unease.³⁰ The Big Lie tapped into this sense of threat; its very lifeblood was a series of lies about voter fraud *committed by Black Americans*. And, built on a bed of lies about racial minorities, the Big Lie did not fall to one side after Joe Biden was inaugurated on January 20, 2021. Instead, it unleashed powerful antidemocratic forces in

²⁸Myrdal ([1944] 2017, pg. 572).

²⁹Bowler and Donovan (2024); Adair (2024).

³⁰See Jardina (2019).

statehouses around the nation. This led to a virtually unprecedented wave of restrictions on the franchise which has fallen hardest on voters of color. The New Lost Cause encompasses this all, recognizing that partisan machinery was used to achieve racial aims.

While January 6, 2021, marked the most visible instantiation of the contemporary myth as insurrectionists swarmed the seat of government, it was not born on that cold winter's day and it has not ceased to operate in American politics. Nor, even, is it simply an outgrowth of the lies spread in the aftermath of the 2020 election that Joe Biden had stolen the presidency. Instead, this New Lost Cause runs on a racial hostility echoing that which animated the reaction against the first Reconstruction: A belief in the political illegitimacy of Black Americans, and the use of myth — whether grounded in biological racism, claims of Black criminality, or racially-coded accusations of voter fraud — to justify erecting a moat around the ballot box.

The Big Lie failed. The 2020 election was not overturned; instead, Democrats controlled both houses of Congress and the White House during the 117th Congress.

But the New Lost Cause has won. Dozens of new voting restrictions have been passed around the country since the 2020 election. These were justified by appealing to voters' lack of confidence in the electoral system — the same lack of confidence elites had deliberately stoked using racialized lies during the 2020 election and beyond. These restrictions have fallen hardest on Americans of color, and their turnout increasingly lags that of White voters. Even as these laws have come for nonwhite voters, the legal system built on the 15th Amendment to protect them has come undone: Between 2013 and 2026, the Voting Rights Act has been rendered a dead letter, incapable of preventing or striking down discriminatory voting laws.



To say that the myth reappeared — that the Lost Cause has risen again — is perhaps not quite right. Better, maybe, to recognize that it never fully disappeared.³¹ The myth of Black criminality, in service to strengthening White political power, has been present since at least the end of the Civil War, and has always been used to justify curtailing Black political power in the United States. During the early years of the twentieth century, it operated through the consolidated original Lost Cause: It justified the Jim Crow regime characterized by poll taxes, literacy tests, and other facially-neutral policies that drove Black turnout rates down into the single digits throughout the South.³² When Black voters did organize to exercise collective power — such as with the nascent NAACP in Ocoee, Florida, in 1920 — they were met with a brutal and unrelenting violence.³³

The Civil Rights Movement of the mid-twentieth century, one of the most successful movements in the history of the country, threatened to upend the racial hierarchy in a way unlike anything since Reconstruction. Like the first Reconstruction, its successes prompted immediate backlash; many Southern jurisdictions sought to narrow the scope of democratic institutions, and to disenfranchise Black voters where they could.³⁴ Throughout the post-Civil Rights Movement Era, myths of Black criminality continued to be strategically used in order to undermine the political claims of Black Americans.³⁵ Nevertheless, despite this retrenchment, the Second Reconstruction fundamentally reshaped the nation — and forced

³¹See Sen, Blackwell and Acharya (2018) for discussion of how, especially, chattel slavery has continually shaped Southern politics.

³²Keyssar (2009, pg. 92).

³³Ortiz (2005).

³⁴Komisarchik (2026); Eubank and Fresh (2022).

³⁵Beckett (2023); Weaver (2007); Morris and Shapiro (2025).

the defenders of White supremacy to retreat to less-explicit ground.

“By 1968 you can’t say ‘n—,’” said Lee Atwater, adviser to presidents Ronald Reagan and George H. W. Bush and Republican National Committee Chair. “That hurts you, backfires. So you say stuff like, uh, forced busing, states’ rights, and all that stuff, and you’re getting so abstract. Now, you’re talking about cutting taxes, and all these things you’re talking about are totally economic things and a byproduct of them is, blacks get hurt worse than whites.”³⁶ This “Southern Strategy” led to a White exodus from the Democratic Party and into the Republican Party. Republican politicians relied on these racial code words for generations.³⁷

Atwater, along with others, laid bare how the *vocabulary* of the Lost Cause shifted even as its targets did not. No longer could politicians get away with openly stating their intent to discriminate against Black voters, as they had for generations; such tools were now off-limits from both a social and legal perspective. What they *could* do, however, was attach an entire set of moral evaluations to African Americans, and use these implicit associations to indirectly attack the Black community.³⁸ Casting Black Americans as cheaters and as freeloaders allows White elites to draw them outside the bounds of “real” Americans — and for the legitimacy of their political participation to be questioned.³⁹

These associations catch everyone from impoverished Black women in public housing to the president in their snares. Reagan campaigned waving the image of a Black woman cheating welfare in 1976,⁴⁰ and it was this tradition that former Speaker of the House Newt

³⁶Quoted in Lamis (1999, pg. 23) and Perlstein (2012).

³⁷Maxwell and Shields (2019).

³⁸Mendelberg (2001); Haney-López (2015).

³⁹Kinder and Sears (1981); Kinder and Sanders (1996); Davis and Wilson (2021).

⁴⁰Gilens (1999).

Gingrich invoked when running against Barack Obama four decades later in 2012. “Over here you have a policy which, with Reagan and me as speaker, created millions of jobs — it’s called paychecks,” Gingrich explained. But “over here you have the most successful food stamp president in American history, Barack Obama.”⁴¹ Obama may have led the nation out of the Great Recession, but no matter: He was Black, and that Blackness could be contrasted for White audiences with paychecks.

Far from abating, then, race increasingly drove partisan identity among White voters; by the time Donald Trump ran for president in 2016, racial attitudes were more tightly linked with partisan identities than at any other point in the Second Reconstruction.⁴² Today, like during Redemption, race and partisanship cannot be easily separated. Take, again, Ben Tillman. Was it a racial or a partisan statement when he said, on the floor of the U.S. Senate, that “We reorganized the Democratic party with one plank, and only one plank, namely, that this is a white man’s country and white men must govern it”?⁴³ When Lee Atwater articulated the Southern Strategy, was he detailing a partisan or a racial strategy? In both cases, it was a racial disposition *operating through* partisan machinery. Parties are vehicles for a set of policy preferences, whether expressed as specific policy demands from organized groups or from individual voters seeking to have their identity affirmed.⁴⁴ These preferences are not always racialized, but they can convey racialized preferences as cleanly as any other political preferences. When it comes to democratic retrenchment, racial animus is in the driver’s seat. As we will see, the New Lost Cause is not simply a story of Republican Party politics, but instead the story of an influential faction within that coalition.

⁴¹Quoted in Elliott (2012).

⁴²Tesler and Sears (2010); Tesler (2016); Enders and Scott (2018).

⁴³41 Cong. Rec. 1440 (1907) (statement of Sen. Benjamin Tillman).

⁴⁴Bawn et al. (2012); Mason (2018).

Nowhere is the role of racism in contemporary American politics clearer than in the story of the 2020 presidential election and its aftermath. In 2008, a minority was elected president for the first time in American history. As political scientist Michael Tesler has shown, the role of racial animus in American political life spread, shaping previously-untouched policy domains during the Obama presidency. The myth of the illegitimacy of Black political power grew louder: A Black man occupying the Oval Office was a visible manifestation of power being taken away from White Americans, and predictions of a nation in which White residents made up a minority of the population threatened more such usurpation on the way.⁴⁵ Donald Trump harnessed this during his first campaign for president in 2016, though his success that fall blunted any need to undermine democratic institutions.

But then came 2020.



As the 2020 election drew to a close on the night of November 3, some 60 Republicans began gathering at the TCF Center in Detroit, Michigan.⁴⁶ Inside, election workers were processing absentee ballots cast throughout the city. The Republican poll watchers, concerned about the theft of the election, were there to challenge them. By the next morning, the call had grown: “EMERGENCY HELP IS NEEDED AT TCF PROTECTING THE REPUBLICAN LEADER RIGHT NOW!!” wrote Wayne 11th Republican Committee on Facebook at 7:15 on the morning of November 4;⁴⁷ within the hour, similar calls would go out

⁴⁵Craig and Richeson (2014).

⁴⁶Much of this discussion comes from Daniels (2021).

⁴⁷<https://www.facebook.com/100064276976232/posts/3723145394404577/>.

from Macomb and Livingston County Republican groups.⁴⁸ Throughout the day, hundreds of Democratic and Republican challengers would descend on the TCF Center — far more than the legal limit of 134 per party.⁴⁹ When an election official tried to enforce the limit, Republicans began to chant about the theft of the election. The images are striking: Dozens of White suburban Republicans begin to bang, violently, on the glass partition separating them from the largely-Black election workers counting ballots. The racial undertones were clear to Black women in the TCF Center such as Brandy Robinson: “I have never, in my 43 years, experienced what I’m going to call the angry white mob that you see in the history books,” she told *Bridge Detroit*.⁵⁰ “This was my first taste of it.” The historical stakes were clear, too, as the man overseeing Detroit’s absentee ballot counting made plain. Daniel Baxter, a Black Detroiter, recalled a woman pulling him aside in the midst of the chaos. “Mr. Baxter,” she told him, “I just want to let you know that we are with you. We are not in Selma, Alabama. It is not 1958. Nobody’s going to steal this election.”⁵¹

But these protesters were not acting alone, and the Republican county parties on Facebook were not the only organizers. Instead, the coordinated attack on the TCF Center reached all the way to Donald Trump’s presidential campaign. By November 5, Trump himself gave a press conference in the East Room. “Detroit and Philadelphia — known as two of the most corrupt political places anywhere in our country, easily — cannot be responsible for engineering the outcome of a presidential race.”⁵² Later documents would reveal the role they played on the ground in Detroit. One campaign official knew that

⁴⁸<https://www.facebook.com/2482147715247662/posts/3299316746864084>; <https://www.facebook.com/LivingstonGOP/posts/2789597161254573>.

⁴⁹Noble and Mauger (2020).

⁵⁰Lewis (2020).

⁵¹Quoted in Reilly and Timm (2024).

⁵²Trump (2020a).

sending White Republicans to protest vote counts in a heavily-Black city would redound to their benefit. His directive was simple: “Make them riot.”⁵³

The counting of absentee ballots in Detroit provides clear insight into the *system* that structured the 2020 election. For months before November, Donald Trump and his allies worked to undermine confidence in the election. By the time the widely-anticipated “blue shift” occurred on election night — mail and absentee ballots are generally counted *after* in-person ones, and were far more popular in 2020 among Democratic voters — the die had been cast. Elites in the Republican Party could reap the mistrust among White voters they had sowed. The anger would only build through January 6, 2021, and beyond, when Trump and his supporters sought to prevent the peaceful transfer of power for the first time in American history.

Detroit also shows a further piece of the story: Racism formed the beating-heart of the election denialism movement in 2020 and the years that followed. This was not simply a Republican president weaponizing fears of fraud to retain power. Instead, the so-called Stop the Steal movement created a set of myths that drew on deep wells of racial resentment and activated an urgent racial threat among White Americans, drawing on centuries’ worth of skepticism about the legitimacy of Black political power. Indeed, I draw on more than a dozen data sources to show how race colors *every moment* of the Big Lie and its aftermath. Race shaped where the Trump campaign filed lawsuits in its efforts to overturn the election. It predicts which Republicans in Congress voted against certifying the 2020 election, and it flows — ceaselessly — through the media echo-chambers in which the Big Lie was first developed. Racial animus predicts which Trump supporters bought into the Big Lie, and

⁵³Quoted in Office of the Special Counsel (2024).

which Republicans find accusations of Black voter fraud credible. Across the board, Trump’s supporters were the most supportive of this project. But at every stage, racial considerations explain variation even within this group. In other words, it is an identifiable subset within the Republican coalition — those highest in racial animus — that takes the starring role in the New Lost Cause. Race wields a powerful explanatory force that cannot be attributed to ideology, to partisanship, or to economic considerations within the coalition.

Race and racism shaped the uptake of the Big Lie. But that was not all. While the efforts to overturn the 2020 election failed in the *short-term*, the movement nonetheless reshaped American democracy in deep ways — and not for the better. Following 2020, state legislatures passed a virtually unprecedented wave of laws restricting access to the ballot box. The quantity was likely surpassed only by the end of the First Reconstruction, when Benjamin Tillman and his allies went about their project of systematic disenfranchisement. Here, too, race plays a starring role; constituents’ racial animus was a major predictor of which state lawmakers took most aggressive action on the issue. And the wave has had devastating effects, disproportionately pushing Black and other minority voters out of the voting booth. At the same time, the federal judiciary has cleared the path for these laws to burn through American elections. In 2026, during Donald Trump’s second administration, the Supreme Court nullified the Voting Rights Act and narrowed the guarantees of the 15th Amendment. The Second Reconstruction lasted considerably longer than the First, due in no small part to a stronger set of political institutions protecting it.⁵⁴ With this protection gone, the Second Reconstruction has been killed.

This, then, is the New Lost Cause. Far more than a single movement focused on

⁵⁴Valelly (2004).

overturning a given election, it is a whole way of understanding the political world. The New Lost Cause is a myth: One rooted in an inherent skepticism of the political power of Black and other minority Americans. This myth seeks to overturn democratic outcomes and institutions, but it does so in a particular way: By weaponizing lies about minority Americans, claiming that it is nonwhite voters who are the *real* criminals threatening democracy. The New Lost Cause is a perverse ideology, running roughshod over democratic norms in the name of protecting them. It is not so different, after all, from Tillman's self-professed violence against Black South Carolinians in the name of preserving democratic rule in the 19th century. The vocabulary has changed; the aims have not.



How, exactly, can we be so sure that this New Lost Cause is really a racial project? What distinguishes it from an especially egregious example of a sore loser seeking to retain power? And what elevates it to the level of a *system* — not simply a set of coordinated lies, but instead a self-reinforcing loop that systematically undermines the political power of racial and ethnic minorities? Answering these questions marks the task of this book. As we will see, it is no accident. Instead, at each link in the development, uptake, and consequence of the Big Lie, it is shot-through with racial animus.

In Chapter 2, I show that the Big Lie was racialized from the very beginning, starting with elites in the Trump Campaign and Administration. Starting on election night — before the race had been called — Trump and his allies began crying foul. These accusations of voter fraud took on a clear racial valence. This was evident in Trump's public remarks,

but also in his legal strategy. As I show using the complaints from each of the “Big Lie” lawsuits filed in the aftermath of the election, these lawsuits accused heavily *minority* — and not Democratic — counties of voter fraud. In fact, net of other characteristics, the share of the vote that Biden won was not associated with the likelihood of being named as a hotbed of fraud in a Big Lie lawsuit. Although Republican elites initially resisted Trump’s narrative, they had largely capitulated by January 6, 2021. After the Capitol had been stormed, a majority of Republicans in the House voted against certification. But here, too, race played a dominant role: Republicans representing racially-resentful Congressional districts were considerably more likely to vote against certification than other Republicans. This reshaping of Republican elites had lasting consequences. In 2022, Republicans running in racially-resentful districts were more likely to deny that Joe Biden had rightfully won the 2020 election than Republicans running elsewhere.

The Trump Campaign had willing allies in the right-wing media ecosystem. The use of Alex Jones and Nick Fuentes was no accident, but instead appeared part of the strategy early on; Trump’s close adviser Roger Stone was on the *Alex Jones Show* on election night itself, already spreading racialized election lies. In Chapter 3, I analyze months’ worth of episodes from the *Alex Jones Show* and Nick Fuentes’s *America First* podcasts. These podcast hosts and their guests served a specific function in the development of the Big Lie. Long known for being deeply racist, they served as the stalwart allies in taking the racialized Big Lie to the masses. Jones and Fuentes activated racial threat and leveraged racial resentment to take the lies about voter fraud to the broader public. A mixture of outright racism and veiled threats built a narrative of a White America under siege. So, too, did these hosts’ use of Christian nationalism; a concept deeply linked to negative views about Black political

power net of other characteristics, as I show using survey data. That was not all. As more and more Trump supporters bought into these lies, the right wing put immense pressure on the more mainstream Fox News. Fox — like other elites in the Republican coalition — initially resisted the Big Lie, seeing it for what it was. But they eventually capitulated to market forces, platforming Stop-the-Steal activists. By this time, the racial narratives had calcified in the right-wing echo chamber championed by Jones and Fuentes. It would carry this racialization with it into mainstream media platforms — and would shape when, exactly, different members of the Trump coalition bought into the Big Lie.

In Chapter 4, I turn my attention to the mass White public, focusing especially on White *Trump* supporters. The massive Nationscape data lets me track, specifically, when different voters bought into the Big Lie. The answer is clear: Racially resentful White Trump supporters started believing the Big Lie considerably earlier than other White Trump supporters. Characteristics like ideology, partisanship, and education, meanwhile, do *not* map onto differences in timing. The early spike was a racial spike. Among Trump supporters, racial resentment is also tightly linked with how much voters' confidence deteriorated over the election period. Using within-respondent designs, I show that racially resentful White Trump supporters were about as confident that the election *would* be run fairly as other White Trump supporters before the election; by the time these respondents were re-surveyed in November and December, however, they were far more convinced that the election had been stolen. A survey experiment confirms the racial connection here: White Republicans, and especially racially resentful White Republicans, found accusations of voter fraud especially credible when levied against Black cities. And, while I argue that much of Whites' support for restricting the franchise for Black Americans is laundered through a belief in voter fraud, that

is not the only pathway. Instead, I show that an overwhelming majority of racially resentful White Americans support voter identification laws — *even when they do not believe that such laws prevent voter fraud*. These racialized preferences would find expression in legislation in statehouses around the nation following the 2020 election.

Chapters 2 – 4 focus on the *development* of the election denialism movement, tracing how elites and the media turned it into a set of racialized lies that were then received by the mass White public along exactly those lines. Lower confidence in American elections would be a bad enough outcome if that were the only effect of the Big Lie; it would be doubly so given the focus of the lies on racial and ethnic minorities. But the effects did not stop with the mass public. Instead, as Chapters 5 – 7 show, the Big Lie fed back into the electoral system itself, changing the rules of the game in ways that fell hardest on those who had been targeted by the Big Lie: nonwhite Americans.

As state legislatures reconvened in 2021, the electoral system was top-of-mind for many; the lies spread about the 2020 election had shaken (White) voters’ confidence tremendously. Chapter 5 shows that Republican state legislators largely took advantage of this lack of confidence, passing a virtually unprecedented number of restrictive voting laws that year. My analysis of what legislators actually said in public and during floor debates while considering these bills demonstrates that, by-and-large, they justified their legislative activity as necessary because of the lack of confidence caused by Trump and others’ lies. Sometimes they went further, stoking the very lack of confidence they would reap.

Chapter 5 also looks systematically at racial threat, racial resentment, and the sponsorship of voting laws in 2021. In an update to V.O. Key’s foundational *Southern Politics in*

State and Nation,⁵⁵ I show that Whites’ racial animus is no longer concentrated in the areas with the most Black residents; instead, it collects in the Whitest parts of the least-White states, where White voters have little daily interaction with nonwhite Americans but compete with them at the state-level for things like U.S. Senate seats and Governors’ mansions. This “geographically-mediated racial threat” provides key insight into where legislative activity on voting issues is concentrated: Lawmakers from the Whitest districts of the least-White states sponsored restrictive voting bills at the highest rate. I also use multilevel regression and poststratification to estimate White voters’ racial resentment in each legislative district; state representatives from districts with the most racially-resentful White residents were the most active sponsors of laws restricting the franchise. These results hold when looking only at districts represented by Republicans; in other words, resentment predicts differences in behavior *between* Republican state lawmakers, other things being equal. But racial animus does not predict the sponsorship of *all* voting bills: Lawmakers from resentful districts were generally no more likely to sponsor neutral or expansive laws than other lawmakers, other things being equal. Chapter 5 shows that racial animus plays a central role in the production of new barriers to the ballot box.

Yet when the Big Lie was unleashed, the litigation tools in the Second Reconstruction’s Voting Rights Act still stood as good law.⁵⁶ Would it protect voters? Chapter 6 answers that question in the negative. The three major omnibus voting bills from 2021 — Florida’s SB 90, Georgia’s SB 202, and Texas’s SB 1 — had clear, racially-disparate effects on the electorate. But my analysis of the litigation of these laws shows that, despite three

⁵⁵Key ([1949] 1996).

⁵⁶But see Miller and Morris (2026).

distinct litigation approaches, federal courts failed to strike *any* of them down. By 2026, the legal framework for protecting voters of color had entirely broken down. What is more, this breakdown came at the worst possible time for voters of color. Leveraging 1.7 billion voter file records going back to 2008, I show that the gap in turnout between White and minority Americans has grown faster in the post-Big Lie years, amid these discriminatory laws, than at any other moment in the past two decades — *including* the period after Obama’s departure from the top of the ticket. By the 2024 election, the Big Lie — erected on a bedrock of racialized lies about voter fraud — had helped to push voters of color out of the electorate. The myth had met its mark.

The work of the New Lost Cause was not yet complete. As Chapter 7 shows, the myth would reach to the very top of the federal judiciary. In the post-2020 era, Roberts’s Supreme Court has fully killed the remainder of the Voting Rights Act and dramatically narrowed the scope of the 15th Amendment. It has done so using reasoning remarkably reminiscent of how the Waite Court invalidated the tools Congress used to enforce the First Reconstruction in the 1870s. The Supreme Court has argued, in the very face of the forces unleashed by the Big Lie, that race discrimination in American elections is a thing of the past. The New Lost Cause found its apogee in this reasoning: The imagined harms of voter fraud and discrimination against *White* Americans demand more legal attention than the documented harms the 15th Amendment seeks to address. The aftermath of the period examined in this book puts the lie to this conclusion, as lawmakers have rushed to undermine the political achievements of Black Americans and to target new racial outgroups with lies of voter fraud to undermine their political power. The Lost Cause rides still.



On August 1, 2023, Donald J. Trump became the first former president of the United States to be indicted on federal charges.⁵⁷ Of the four charges, three dealt directly with his actions on January 6, 2021. He was charged with a conspiracy to defraud the United States; a conspiracy to obstruct an official proceeding; and the obstruction of and attempt to obstruct an official proceeding. Each of these charges targeted his role in inciting the insurrection that would descend on the Capitol Building and to pressure Congress into rejecting the presidential results.

The fourth charge was different.

The fourth charge brought against Donald Trump by the Special Counsel Jack Smith was an alleged violation of 18 U.S.C. §241 for a “conspiracy against the right to vote and to have one’s vote counted.” Such an allegation might not be particularly surprising on its face. After all, Trump evidently sought to invalidate Americans’ legally-cast votes. But Section 241 of Title 18 of the U.S. criminal code has a very particular history. It is one that proves just how intertwined the end of the First and the Second Reconstructions really are.

Section 241 was added to the federal statute books in 1870. Enacted as part of the Enforcement Act of 1870 (sometimes called the First Klan Act), it was Congress’s first attempt to enforce the 15th Amendment with federal power, passed fewer than four months after the amendment’s ratification.⁵⁸ Over the course of the early 1870s, Congress passed three of these “Klan” or “Force” acts in response to widespread terror campaigns against Black voters. Republicans in the South knew just how necessary Congressional intervention

⁵⁷United States Department of Justice, Office of the Special Counsel (2023).

⁵⁸Wang (1997).

would be. In the aftermath of a bloody 1870 election, South Carolina Governor Robert K. Scott (a Reconstruction Republican and veteran of the Union Army) sent President Ulysses S. Grant a desperate letter. He described the Klan in his home state, perpetrated “for the sole reason that [Black men] dared to exercise their own opinions upon political subjects.” The Klan would not, he warned, “submit to any election which does not place them in power.”⁵⁹ The Force Acts had real teeth: Between 1871 and 1873, nearly 2,500 cases were brought by federal prosecutors under these acts.⁶⁰ Though the Supreme Court would weaken the Force Acts substantially within a decade, Section 241’s prohibition on conspiracies to deprive citizens of their voting rights remained good law.

In 1912, Blaine County, Oklahoma, had 3 Board Members: two Democrats, and a Republican.⁶¹ Unbeknownst to the Republican member, the Democrats Tom Mosley and Dan Hogan intentionally omitted the ballots from 11 precincts. These 11 precincts were not chosen at random but were instead home to a large Black community where the grandfather clause had not been “zealously enforced.”⁶² The omission of these 11 precincts resulted in the trashing of hundreds of ballots cast by Black and Native voters — enough ballots, it seems, to have cost the Republican Congressional candidate the election.

Mosley and Hogan were convicted under the KKK Act, and appealed their conviction to the Supreme Court. The Democratic Board members argued that the KKK Act was tailored specifically to the actions of the Klan; the text of the law read that it was illegal to “injure, oppress, threaten, or intimidate any citizen with intent to prevent or hinder his

⁵⁹Quoted in Trickey (2021).

⁶⁰Foner (2019, pg. 121).

⁶¹The discussion of the *United States v. Mosley*, 238 U.S. 383 (1915), case draws on Schmidt (1982) and Goldstein (2017).

⁶²Schmidt (1982, pg. 870).

free exercise and enjoyment of any right or privilege granted or secured by the Constitution or law.” Mosley and Hogan conceded that this clearly covered actions taken to *prevent* the casting of a ballot, but argued it did not touch official government acts. The Supreme Court was unconvinced. In a 7–1 opinion, the majority in *United States v. Mosley*⁶³ held that the throwing away of ballots violated federal law. The Enforcement Acts prevented even nonviolent attempts to deprive U.S. citizens of their federally protected right to cast ballots that count.

The Court went further, even to the point of protecting voting rights that Congress did *not* want to see protected. In 1894, Congress had *removed* much of the language in the enforcement acts specifically relating to voting rights, including the language making criminal anyone who “refuses or omits to receive, count, certify, register, report, or give effect to the vote.”⁶⁴ Nevertheless, the Court decided that such activity was unconstitutional. Writing for the majority, Associate Justice Oliver Wendell Holmes, Jr., noted that “we cannot allow the past so far to affect the present as to deprive citizens of the United States of the general protection” — regardless of the intention behind Congress’s deletion of this passage.

What is perhaps most notable about the majority’s opinion in *Mosley* is the complete lack of language referring to the political rights of minority voters. The case was obviously racialized (it was, after all, Black and Native voters targeted by the conspiracy) but the opinion makes no note of that fact. The Court required proof of neither racially discriminatory *intent* nor *effect* in upholding the validity of a law originally crafted to undermine the country’s most notorious group of racial terrorists.

⁶³238 U.S. 383 (1915)

⁶⁴See Schmidt (1982).

The relationship between the Supreme Court and the 15th Amendment has never been simple. During the 1870s, they took a hostile view, severely limiting Congress’s ability to enforce the Amendment. While the Court liberalized in the 20th century, the Court of the 21st Century has taken a uniformly hostile view. As of 2026, it has rendered the tools of enforcement “all but a dead letter,” in the words of a recent Supreme Court dissent.⁶⁵

The Smith indictment ultimately failed. After the Supreme Court ruled in *Trump v. United States*⁶⁶ it was narrowed, and ultimately dropped following Trump’s re-election that fall. The stakes are real and success in enforcing the 15th Amendment is not guaranteed. Yet the very re-emergence of the Reconstruction Era tools makes plain that the fight is not over. The New Lost Cause is the direct descendant of the original one; today, like in the 1870s, White supremacy presents a mortal threat to American democratic institutions. No longer do Klan members burn ballot boxes or kill Black Americans for voting, though the threat of racial violence is never far from the surface in places like Detroit, and lies are marshaled still to undermine minorities’ political claims. But just as surely as the Lost Cause remains alive in today’s politics, so too does the fight for a democracy in which all Americans have a say in their government. The Second Reconstruction was built by an unprecedented multiracial movement in the middle of the twentieth century. The building of the next demands nothing less.

⁶⁵ *Louisiana v. Callais*, 608 U.S. ____ (2026).

⁶⁶ 603 U.S. 593 (2024).

Chapter 2

Stand Back and Stand By: Building the Racialized Big Lie

“Are you willing, tonight, to condemn white supremacists and militia groups and to say that they need to stand down?”...

-Chris Wallace.

“Proud Boys, stand back and stand by.”

-Donald Trump. 2020 Presidential Debate, September 29, 2020.¹

Donald Trump and Joseph Biden took the stage at Case Western University for 2020’s first presidential debate with the nation in turmoil. The Covid-19 pandemic was still taking the lives of thousands of Americans a day; President Trump himself would be hospitalized with a serious case of Covid just three days later.²

But Covid was not the only flash-point facing the nation in the fall of 2020. In the months before the election, the nation had been gripped by protests for racial justice in the aftermath of the murder of George Floyd. While the protests were overwhelmingly peaceful, they were considerably more likely to become violent when right-wing militias were involved as counter-protesters.³ Throughout the summer, in places like Portland, Oregon, and Kenosha, Wisconsin, far-right agitators traveled to cities where the Black Lives Matter

¹Trump and Biden (2020).

²Weiland et al. (2021).

³Kishi et al. (2021) reports that 6% of Black Lives Matter protests involved “violence, clashes with police, vandalism, looting, or other destructive activity” in 2020, but that this number rose to 14% when “right-wing militias or militant social movements” were involved.

protesters were most active.

Not all far-right militias had the same footprint, however, and none were quite as active as a group called the Proud Boys.⁴ According to ACLED, a group monitoring conflicts around the world, the Proud Boys participated in some 50 demonstrations against BLM actions — and more than a third of them turned violent or destructive. The group describes themselves as “Western chauvinists” dedicated to defending “the West;” founder Gavin McInnes has stated that the group would regularly read aloud from Pat Buchanan’s racist *Death of the West*.⁵ In 2021, they were formally listed as a terrorist group by the Canadian government for, in part, their “white supremacist and antisemitic ideology.”⁶ Three days before the presidential debate, hundreds of Proud Boys rallied in Portland, waving American, Trump, and Confederate flags.⁷

It was in this context, then, that Chris Wallace directed a question to President Trump. Pointing out that Trump had criticized Biden for failing to condemn left-wing violence, Wallace asked Trump whether he would himself condemn “white supremacists and militia groups.”⁸ Trump prevaricated: “Sure, I’m willing to do that, but I would say that almost everything I see is from the left wing.” When pushed to offer an explicit condemnation, Trump asked “What do you want to call them? Give me a name, give me a name, go ahead who would you like me to condemn.”

“White supremacists and racists. White supremacists and white militias,” offered Wallace, while Biden named the Proud Boys.

⁴Ibid.

⁵Institute for Strategic Dialogue (2025).

⁶Public Safety Canada (n.d.).

⁷Haas, Olmos and Levinson (2020).

⁸Trump and Biden (2020).

What came next was hardly a condemnation. “Proud Boys, stand back and stand by,” Trump offered. “But I’ll tell you what, I’ll tell you what: Somebody’s got to do something about Antifa and the left because this is not a right wing problem. This is a left-wing problem.”

The Proud Boys reacted immediately, with Chairman Enrique Tarrio posting on social media that he was “Standing by sir.” The group began to sell “Stand Back and Stand By” merchandise that day, and one Proud Boy told the Select January 6 Committee tasked with investigating the attack on the Capitol that Trump’s comments in the debate caused the group’s membership to increase “exponentially...tripled, probably.”⁹ The Proud Boys heard no admonition from the President of the United States in response to a request to condemn White supremacy that September evening.

When Trump told the Proud Boys to “stand by,” he offered some insight into what would become a much broader effort to rely on non-institutional means to prosecute his eventual attack on the validity of the 2020 election. As we have seen, the 2020 election took place amid a real racial reckoning in the United States, one that eventually activated feelings of racial threat among many White Americans. This chapter documents the efforts of Donald Trump and his allies to capitalize on the racial unrest to peddle lies about the 2020 election that echoed those from the end of Reconstruction: namely, that the political participation and ensuing power of Black Americans is inherently suspect and illegitimate. While not as explicit as his 19th century forebears, Trump would rely on racial code words and associations to drive this point home.

At first, the institutional guardrails held. In the weeks following the 2020 election,

⁹United States House Select Committee on the January 6 Attack (2022).

elites in the Republican Party largely refused to endorse the Big Lie. This did not stop the Trump campaign, who turned to other avenues — including the Proud Boys — to develop the Big Lie. Whether it was via lawsuits (that disproportionately targeted nonwhite counties as epicenters of fraud), his massive Twitter following (where he consistently levied accusations of voter fraud against largely Black cities), or, perhaps most important of all, the reliance on a racist far-right media ecosystem (see Chapter 3), these non-institutional pathways turned the Big Lie into a *racialized* Big Lie.

And, by January 6, the institutional resistance had largely folded. When Congress voted to formally certify the results of the 2020 election, they did so hours later than originally planned. The ceremony had been interrupted when the mob, incited by Trump’s speech at the Ellipse, breached the Capitol Building. That violence notwithstanding, two-thirds of the House Republican Caucus voted against certification and, in so doing, cast a vote in support of Trump’s contention that the election had been stolen. Here, constituents’ racial attitudes clearly predicted which Republican lawmakers were most likely to capitulate: those representing electorates where White residents were highly racially resentful were far more likely to vote against certification than other Republicans. But the institutional capitulation was not a one off. Instead, White constituents’ racial resentment scores predicted where Republicans would run as election deniers two years later, in the 2022 midterms. In other words, at each step, race and racism structured how elites in the Republican Party built the Big Lie in the aftermath of the 2020 election — and where they eventually accepted it.



No one seriously contested that Donald Trump lost the presidential election in 2016. Although he did lose the popular vote by nearly 3 million votes, the US Constitution is clear: The president is elected not by the popular vote, but instead by the Electoral College. By this metric, the results were clear. Donald Trump received 306 Electoral College votes to Hillary Clinton’s 232.

The 2016 election heightened concerns among many on the political left in the United States. It was the second time in two decades that the Electoral College winner lost the popular vote, raising questions about whether the American system of electing presidents was quietly undermining democratic representation. But there was also a prominent right-wing individual who also voiced serious concerns about the popular vote that year: The 45th president of the United States, Donald J. Trump.

“I won the popular vote,” Trump tweeted at the end of November, “if you deduct the millions of people who voted illegally.”¹⁰ It was a perplexing claim: His authority as president did not rely on his having won the popular vote, and there was no evidence to substantiate his position.¹¹ Nevertheless, he would publicly maintain the position, claiming in private and in public in the years that followed that fraud had cost him the popular vote in 2016.¹²

It was not just presidential rhetoric that undergirded this position. In May of 2017, Trump announced the formation of the Presidential Advisory Commission on Election Integrity, more commonly known as the Pence-Kobach Commission.¹³ Chaired by vice president Mike Pence and driven by Kansas Secretary of State Kris Kobach, the commission was

¹⁰<https://x.com/realDonaldTrump/status/802972944532209664>.

¹¹Struyk and Pearle (2017).

¹²Werner, Werner and Press (2017), Solis (2017), Dale (2019).

¹³See Miller and Morris (2026) for a more detailed discussion of the Pence-Kobach Commission.

tasked with uncovering “evidence” that the 2016 election really had been tainted by massive voter fraud. Though the commission was quietly disbanded after failing to accomplish its goals, it nevertheless laid the groundwork for what would come in the following years. Run by Kobach (whose voter registration program had been struck down by a federal court) and focusing especially on the possibility that voter fraud had been committed by Latino noncitizens in places like Texas, the commission breathed new life into an age-old myth: Racial and ethnic minorities, they seemed to argue, were likely perpetrators of voter fraud.

While the *contemporary* lies about Trump’s popular vote loss to Hillary Clinton were focused largely on the specter of noncitizen voting, the retrospective theory of the case had shifted by the time Trump was running for re-election in 2020. The summer of 2020 marked a period of deep racial unrest in the United States. On May 25, 2020, George Floyd was murdered by a police officer in Minneapolis, Minnesota. His murder sparked some of the largest and most sustained protests in the nation’s history as Americans of all races took to the streets to draw attention to the disproportionate police violence enacted against Black Americans. While the Black Lives Matter coalition was genuinely interracial and included millions of White Americans, it also unsurprisingly prompted widespread backlash. By late summer, many conservative and moderate White Americans had turned against the protests, viewing Black Americans as demanding more from the government than they deserved and arguing that Black criminality, not police discrimination, was the real problem.¹⁴

Thus, as White America dismissed concern about disproportionate violence against Black Americans, Trump and his allies began to argue — sometimes subtly, other times not — that African Americans were the real perpetrators of voter fraud. Philadelphia, in

¹⁴Riley and Peterson (2020), Drakulich and Denver (2022).

particular, became a favorite target: “How do you get zero votes in a city?,” wondered Trump while inaccurately representing Mitt Romney’s performance there in 2012.¹⁵ Before the first ballot was even cast, Trump was already undermining confidence in the forthcoming election, refusing to say he would accept the results of the election and routinely claiming that the emergency measures put in place to counteract the Covid-19 pandemic would lead to widespread electoral rigging.¹⁶

This pivot was likely strategic. The visibility of these protests brought issues of racial justice to the forefront in 2020 in ways unlike anything in recent memory — just the sort of cultural moment that also prompts racial backlash.¹⁷ And such feelings of fear around the power of Black Americans are closely linked to just the sort of authoritarianism Trump was offering in response to the protests that summer as he threatened to use the National Guard to put down “riots.”¹⁸ But it was not just that Trump’s authoritarianism made him more attractive; it also increased the electoral benefits of him stoking such concerns. As political scientist LaFleur Stephens-Dougan shows, American politicians regularly make coded references to Black criminality to subconsciously appeal to White conservatives and moderates.¹⁹ Given the widespread unease about the deep criticisms Black Americans were levying against the nation that summer — to say nothing of the elevation of the first Black woman as a vice presidential candidate on the Democratic line — the electoral incentive to leverage such approaches might well have been stronger than ever. By the time of the September 29 debate discussed above, the implicitness of the appeals had largely fallen away.

¹⁵Quoted in Dale (2020).

¹⁶Blitzer (2020).

¹⁷Horowitz et al. (2020); Craig and Richeson (2014); Wilkins and Kaiser (2014); Fisher and Rouse (2022).

¹⁸Jardina and Mickey (2022); Enders and Thornton (2022); Danbold, Serrano-Careaga and Huo (2023); Bai and Federico (2021).

¹⁹Stephens-Dougan (2020).

The Proud Boys, among the most visible enforcers *against* the Black Lives Matter movement, were not disavowed but instead praised.

As Americans cast their ballots on November 3, then, the national political mood was thoroughly racialized. Not only was the threat of Black political power in the back of many White Americans' minds; the president himself was leveraging this climate to sow the seeds of a strategy to eventually contest an electoral loss. Starting on the day after the election, these racialized seeds would bloom into the first real attempt to prevent the peaceful transfer of power in American presidential history.



It did not take long for Trump to put his plan into action. At 2:30 AM on the night of the election he delivered a speech from the East Room of the White House: “This is a fraud on the American public,” he says, almost in disbelief. “This is an embarrassment to our country. We were getting ready to win this election. Frankly, we did win this election.”²⁰ By 10 AM that morning, he was complaining on Twitter about “surprise ballot dumps” in “Democrat run & controlled” states.²¹ And by November 5 — just two days after the election, and before *any major network* had even called the race for Joe Biden — the narrative had sharpened: “This is a case where they’re trying to steal an election, they’re trying to rig an election, and we can’t let that happen,” Trump claimed, once again from the White House press room’s podium. “Detroit and Philadelphia — known as two of the most corrupt political places anywhere in our country, easily — cannot be responsible for engineering the

²⁰Trump (2020b).

²¹<https://x.com/realDonaldTrump/status/1324004491612618752>.

outcome of a presidential race.”²² The claims were no longer non-specific, about a “major fraud,” or even about “Democrat run” jurisdictions. The focus had narrowed to two of the cities most synonymous with Black political power in America. By focusing on them, and labeling them as “two of the most corrupt political places anywhere in our country,” Trump was tapping into a long-standing American tradition of hinting at Black criminality going back, as we saw in Chapter 1, to South Carolina in 1876 and beyond.²³

Those seeking to overturn the election were not ensconced only in the apparatus of the Trump campaign. By November 5, Republican US Senator Lindsey Graham had donated a half-million dollars to Trump’s legal campaign to prove the existence of voter fraud, and he would soon pressure the Republican governor of Georgia — a state Biden narrowly won — to throw out legally-cast mail ballots.²⁴ Others, like the House minority leader Kevin McCarthy and Texas Senator Ted Cruz were similarly early endorsers of the Big Lie.²⁵

But the adoption of the Big Lie among Republican elites was far from unanimous. In fact, in the days and weeks after the election, many leaders of the Republican Party were unwilling to endorse Trump’s rhetoric. By November 8, Mitt Romney — the party’s presidential candidate eight short years earlier — was on CNN saying it was “destructive to the cause of democracy to suggest widespread fraud or corruption.”²⁶ Although Republican Senate Majority Leader Mitch McConnell initially said — correctly — that Trump had the right to challenge the results in court, he congratulated Joe Biden as the president elect after the Electoral College formally voted.²⁷ As late as December 15, only two Republican

²²Trump (2020a).

²³Musgrove (2012).

²⁴Morton (2020); Gardner (2020).

²⁵Shepherd (2020).

²⁶Stracqualursi (2020).

²⁷Zaslav, Raju and Barrett (2020).

members of Congress were publicly arguing that Donald Trump had actually won the election (though many more supported Trump’s continued efforts to claim victory).²⁸

Even elites within Trump’s own administration pushed back. On November 12, the Cybersecurity and Infrastructure Security Agency (an agency within the Department of Homeland Security tasked with helping states and localities ensure the integrity of their elections) called the 2020 election “the most secure in American history;” days later, Trump fired the agency’s director.²⁹ On December 1, Attorney General Bill Barr would echo this conclusion, maintaining that there existed no evidence of voter fraud rampant enough to have changed the outcome of the election.³⁰ Three weeks later, he would be pushed out of the cabinet.

The legal system similarly failed to provide Trump with the relief he sought. Following the election, the Trump campaign filed 62 lawsuits in state and federal courts.³¹ They won just one, affecting a small number of ballots rejected in Pennsylvania. These losses came from federal judges appointed by Democratic and Republican presidents alike — and including judges appointed by Trump himself.



But what can the content of the lawsuits tell us? Was the Trump campaign going after counties where Biden did disproportionately well in swing states, or did the legal strategy follow the rhetorical one of targeting racial and ethnic minorities? To answer these

²⁸Washington Post Staff (2020).

²⁹Sanger and Perlroth (2020).

³⁰Lucas (2020).

³¹Cummings, Garrison and Sargent (2021).

questions, I looked at all the counties that were either named in the caption of a lawsuit filed by proponents of the Big Lie;³² that were named in one of these lawsuits in a federal complaint as hotbeds of fraud; or that my Brennan Center colleagues identified in the review of lawsuits filed in state courts. All told, 57 counties across eight states were named in a Big Lie lawsuit.

Figure 2.1 shows clearly that in most of the states where Trump allies filed lawsuits, the share of the state’s nonwhite population that lived in a county named in a lawsuit was *considerably* higher than those living in counties that were not targeted. Across the 8 states, 51% of White residents lived in a named county, but 67% of nonwhite residents did. That said, we know that racial and ethnic minorities also live in counties that supported Biden; is this just a partisanship story?

To answer that question, I run a linear probability model accounting for other county-level characteristics — including the share of the vote that Biden won in 2020. I present the results of that exercise in Figure 2.2 (More information on these regressions, along with other specifications, can be found in the Methods Appendix). In order to make the relative importance of each characteristic for being named in a lawsuit comparable, I standardize the independent variables relative to their standard deviations. In the figure, the dots indicate my best estimate of the relationship between a given characteristic and the likelihood of being named in a lawsuit, while the lines indicate a 95% “confidence interval.” Where these do not cross zero, that means we can be roughly 95% sure that there is a relationship between that characteristic and being named in a lawsuit, *after* accounting for the other variables.

³²This includes lawsuits filed by individuals like Sidney Powell or the organization True the Vote. The full set of cases I examined is cross-validated against the January 6 Select Committee Final Report, the Brookings Trump Lawsuits Tracker, and others pages. Interested readers can find more on this in the Methodological Appendix, where the full list of cases and counties are named.

Figure 2.1: Racial Composition of Counties Targeted with a Big Lie Lawsuit

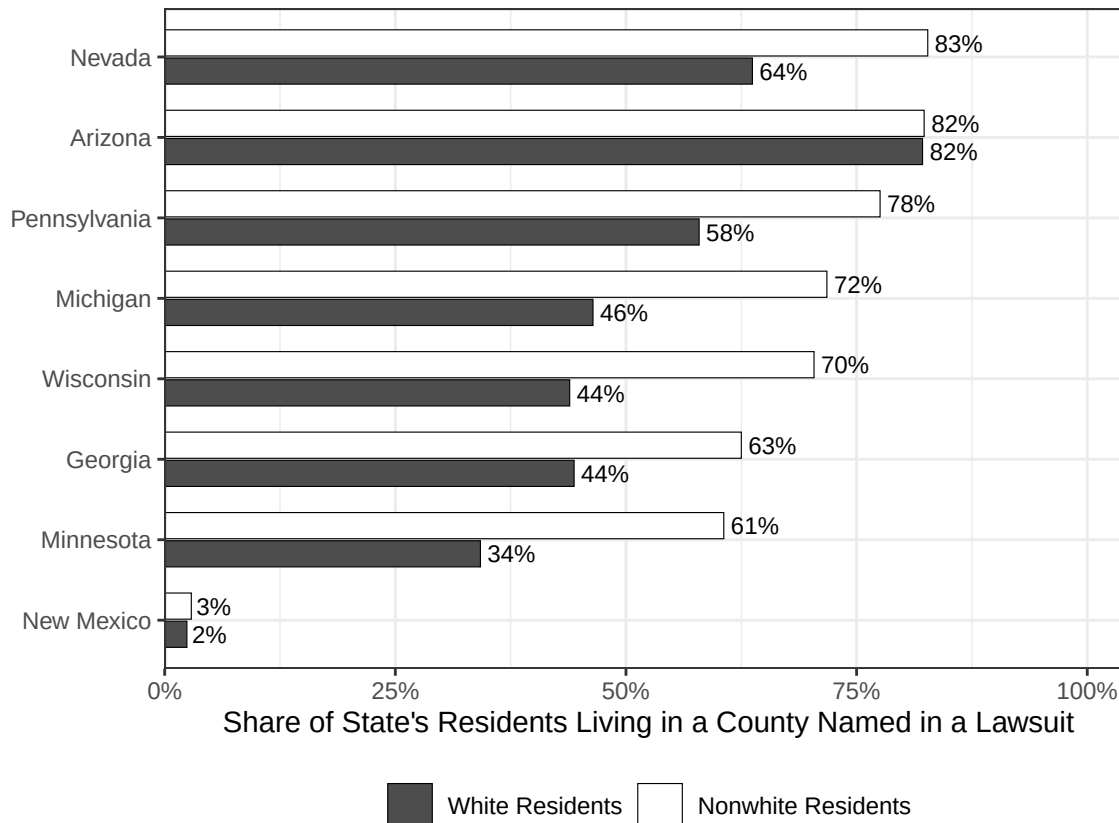
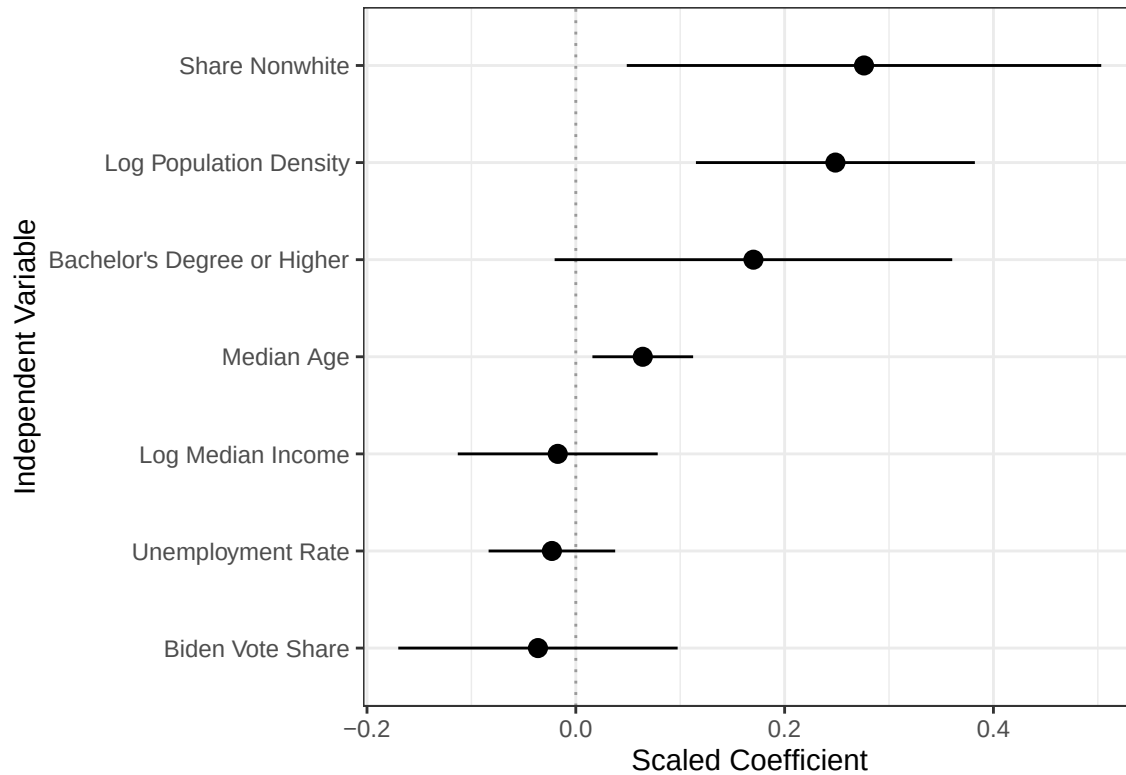


Figure 2.2 makes clear that this was *not* just a story of partisanship. In fact, net of the other characteristics, there was *no relationship* between how well Biden performed in a given county and whether that county was named in a lawsuit as being home to voter fraud. And while urban areas with higher population density were targeted, nothing was quite so associated with the likelihood of being named in a Big Lie lawsuit as was the share of the population in a given county that was non-White. In other words, Trump and his allies targeted urban and minority counties — not the ones that really cost him the election. And the magnitudes here are large: Other things being equal, a county at the 75th percentile of nonwhite share was 20 percentage points more likely to be named in a lawsuit than a county at the 25th percentile.

Figure 2.2: Relationship Between County Characteristics and Likelihood of Being Named in a Big Lie Lawsuit



Variables scaled following Gelman (2008). State fixed effects included. Robust standard errors clustered by state. Intercept not shown.

These lawsuits followed the strategic playbook that Trump had already been laying out. We cannot, of course, understand what the *motivation* for targeting these places was, but the result is clear: Counties in swing states were named as home to concentrated voter fraud not when they racked up major wins for Biden, but when they were home to racial and ethnic minorities — just the sorts of Americans against whom lies of criminality are most believable to White Americans.

✱

But as we saw, these lawsuits — targeted as they were — roundly failed. As Trump

sought to overturn the election in the weeks following November 3, the *institutional* path through political elites was hardly a promising one. Republican and conservative leaders in all three branches of government were refusing to go along, to say nothing of conservative pushback within states like Georgia. Nevertheless, the elite-led pathway was not the only one available to him. In fact, he had been cultivating alternatives from the jump. On election night itself, for instance, his longest-serving political advisor Roger Stone was on the *Alex Jones Show*. Long before ballots were done being counted, Stone was already claiming that Black Americans would violently riot in DC if Biden lost the election.³³ Chapter 3 shows just how important this alternative far-right media ecosystem would become as the legal and elite-driven path narrowed in the weeks after the election.

Donald Trump also immediately activated a set of Republican elites over whom he had total control: Those in his campaign, overseeing both the unsuccessful legal campaign and a broader public relations effort. None played a more central role than Rudy Giuliani, the former federal prosecutor and mayor of New York City. Giuliani was a constant presence in the Trump campaign in the aftermath of the election. In the days after the election Trump effectively replaced his ordinary campaign team — “Team Normal,” as campaign manager Bill Stepien described them — with a Giuliani-led team dedicated to overturning the election.³⁴ Between November 3 and January 6, Giuliani and his allies would convene a series of “hearings” purporting to prove voter fraud. Tellingly, those testifying at these hearings were *not* sworn to tell the truth; any lies, therefore, could not be construed as perjury. The hearings were replete with references to these same Black-led cities against

³³Jones (2020a, at 2:08:10).

³⁴United States House Select Committee on the January 6 Attack (2022).

which Trump had been campaigning since November 4.

During one of these hearings Giuliani would upend the lives of two Black female pollworkers in Georgia, Shaye Moss and her mother Ruby Freeman (see Chapter 4 for more on their story). Giuliani presented a video purporting to prove the women were engaged in fraudulent behavior; in reality, they were performing ordinary pollworker tasks. At one point, Giuliani accused them of “surreptitiously passing around USB ports as if they’re vials of heroin or cocaine.”³⁵ Tying Black women in Atlanta to illegal drug use was anything but subtle.

And, as we saw above, Trump also took full advantage of his massive Twitter following to further spread false claims about voter fraud in the weeks following the election. It was not just the November 4 “surprise ballot dumps” tweet we saw above. Between election day on November 3 and the inauguration of President Biden on January 20, President Trump posted about voter fraud and the theft of the election dozens of times.³⁶ As the institutional avenues closed off, Twitter offered a way to communicate directly with the American public. While his posts were often focused on balloting procedures and the swing states in which he lost, he also consistently posted accusations about very specific places within these states.

A November 27 tweet provides a clear example. As usual, Trump focused on mail voting, fake signatures, dead voters, and other complaints. In the final tweet in the thread, however, he singled out a number of cities in these swing states as particularly troublesome: Detroit, Philadelphia, Atlanta, and Milwaukee (see Figure 2.3³⁷); echoing his rhetoric from the East Room on November 5, he characterized these cities as “long known for being

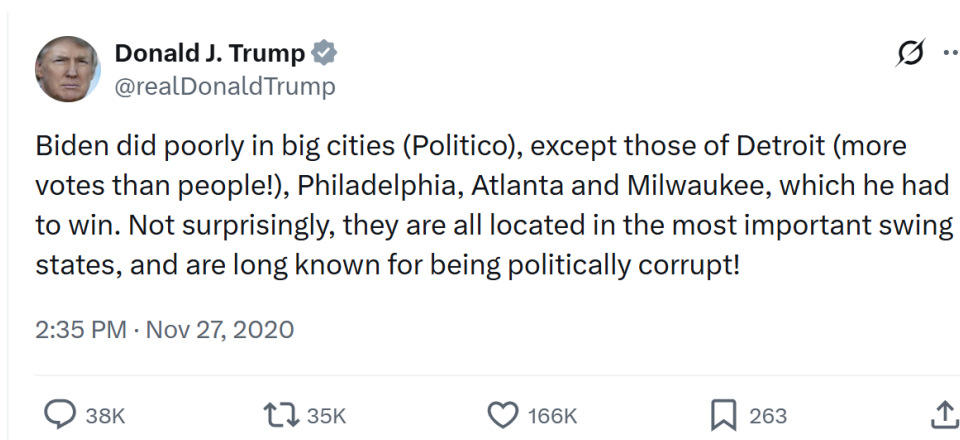
³⁵United States House Select Committee on the January 6 Attack (2022).

³⁶United States House Select Committee on the January 6 Attack (2022).

³⁷<https://twitter.com/realdonaldtrump/status/1332407714304110597>.

politically corrupt.” President Trump would revisit this list of cities on Twitter over and over in the post-election period.³⁸ The president posted specifically about Detroit³⁹ and Philadelphia⁴⁰ more than a half-dozen times *each* on Twitter.

Figure 2.3: Donald Trump tweets



Trump was not the only political actor turning to Twitter to sell the Big Lie in the aftermath of the election; far from it. By now, a large pile of research has documented just how central social media was to the formation and spread of the myth of the stolen election.⁴¹ Much of this was elite driven: As we have seen, Donald Trump posted near-constantly about voter fraud, and he was joined by a coterie of others. Partisan outlets like the *Gateway Pundit* and other online influencers “transformed one-off stories, sometimes based on honest

³⁸<https://twitter.com/realdonaldtrump/status/1332352538855747584>; <https://twitter.com/realdonaldtrump/status/1338254787675041802>.

³⁹See, in addition to above, <https://twitter.com/realDonaldTrump/status/1325432476215500800>; <https://twitter.com/realDonaldTrump/status/1328885313729687553>; <https://twitter.com/realDonaldTrump/status/1329087255168708608>; <https://twitter.com/realDonaldTrump/status/1329405682706247683>; <https://twitter.com/realDonaldTrump/status/1333207778643628032>; <https://twitter.com/realDonaldTrump/status/1334606278388277253>; <https://twitter.com/realDonaldTrump/status/1342974373632876545>.

⁴⁰See <https://twitter.com/realDonaldTrump/status/1326348976531136513>; <https://twitter.com/realDonaldTrump/status/1326525851752656898>; <https://twitter.com/realDonaldTrump/status/1327407964404260870>; <https://twitter.com/realDonaldTrump/status/1333207778643628032>; <https://twitter.com/realDonaldTrump/status/1342974373632876545>.

⁴¹Stanford Internet Observatory et al. (2025); LaPlant, Lee and LaPlant (2024); Kennedy et al. (2022); Abilov et al. (2021).

voter concerns or genuine misunderstandings, into cohesive narratives of systemic election fraud.”⁴² This was almost exclusively a right-wing effort: 98 of the top 100 repeat spreaders of misinformation were identified as partisan Trump supporters.⁴³

But the mass public played an important role, too. As researchers Starbird, DiResta and DeButts explain, the spread of election misinformation in the wake of the 2020 election was a “participatory” process.⁴⁴ The process involved a dynamic interplay between true elites, conservative accounts with medium-sized followings, and a mass public eager for narratives explaining why their candidate lost — who then offered their own “evidence” in support of the Big Lie. Hundreds of misinformation stories were tweeted, retweeted, and liked millions of times on the social media platform.⁴⁵

While this research has all been tremendously helpful for understanding the role of social media — and, especially, Twitter — in spreading the Big Lie before and after the 2020 election, it has not asked the core question posed by this chapter: Was *race* a central part of the Big Lie? There is real reason to think so, given the relentlessly racially-coded tweets issued by the president in the weeks following the election. But did such racial consideration undergird the broader public conversation?

The answer, it seems, is yes. This conclusion is based on my analysis of millions of tweets I collected in the weeks following January 6. The dataset includes every tweet from 2020 that was publicly visible in January 2021 that included the phrase “voter fraud.” This is a large list: the phrase was tweeted some 2.7 million times in 2020, and if we include re-tweets, the number explodes to more than 13 million. And this just includes one very

⁴²Stanford Internet Observatory et al. (2025, pg. vii).

⁴³Kennedy et al. (2022).

⁴⁴Starbird, DiResta and DeButts (2023).

⁴⁵Kennedy et al. (2022).

specific phrase, missing others like “election fraud” or “stolen election.” Clearly, Americans had a lot to say on Twitter about the 2020 election.⁴⁶

Unsurprisingly, many of these tweets focused on balloting procedures and eligibility, reflecting the Trump Campaign’s rhetoric on things like mail voting (mentioned in 220,000 tweets) and dead voters (47,000 tweets). Although many of the tweets were focused on abstract claims about — and rebuttals of — voter fraud, we can see clear evidence of racialization when different groups are explicitly referenced in the tweets: Black Americans, for instance, come up about 75% more frequently than White Americans (14,221 occurrences versus 8,090) despite making up a much smaller share of the population. Separate from Black Americans specifically, thousands more reference Black Lives Matter. Still, the number of tweets that references a specific racial group (or BLM) represents just over one percent of all tweets from 2020 that included the phrase “voter fraud.”⁴⁷

Yet as we have seen, other concepts can and often do fill in for explicit racial references in American political life. In the case of the 2020 election, it seems that *place* often stood in for *race* when it came to voter fraud allegations, at least from elites. The rhetoric of elites makes this clear, as does the analysis of the counties named in Stop the Steal lawsuits. But did the mass tweeting public pick up what Trump and other leaders of the Stop the Steal movement were putting down?

⁴⁶To be sure, not all of these tweets endorsed the myth of the stolen election; the single-most liked tweet that mentioned voter fraud in 2020 read, “It’s wild Trump supporters believe there’s voter fraud with 0 evidence but couldn’t believe he sexually assaulted any women with 26 allegations” (https://twitter.com/Al_Sanchino/status/1324357146088267777). Nevertheless, the tweets give us unparalleled insight into how voter fraud was discussed on the platform where both sides of the fight over the legitimacy of the 2020 election were active.

⁴⁷Tweets referencing Black Americans include those including “black*,” “african*,” or “afro*” but excluding “black lives matter” or “blm.” References to White Americans calculated by looking at those tweets referencing “white*” or “caucasian*” but excluding “white house” and “whitehouse.” Other racial or racialized groups are identified using “latino*,” “latina*,” “hispanic*,” “asian*,” “chinese*,” “korean*,” “japanese*,” “muslim*,” “islam*,” and “jew*.”

The four cities that formed the backbone of the conspiracy theories were collectively mentioned more than 25,000 times in tweets about voter fraud in 2020. More generally, roughly 95,000 tweets mentioned a large American city with a population of at least 100,000.⁴⁸ All told, about 3.5% of tweets mentioning voter fraud referenced a major American city. They might have a lot to tell us about the role of place as a signal for racialized rhetoric.

In Table 2.1 I show the 10 municipalities most frequently named in 2020 in tweets with “voter fraud,” along with the count of pre- and post-election mentions. The list includes some of the municipalities most associated with Blackness and Black political power: Detroit, Philadelphia, and Atlanta all make the list, as do Montgomery and Milwaukee. The average Black share of these ten cities is about 36% — far larger than the Black share of municipalities nationwide (6.8%) and even the set of large cities included in this analysis (16%).

Table 2.1: Most Frequently Mentioned Municipalities
Mentions per Thousand Residents

City	State	Total Mentions	Pre-Election Mentions	Post-Election Mentions	Share Black
Detroit	Michigan	14.3	0.8	13.5	76.57%
Philadelphia	Pennsylvania	6.6	1.5	5.1	40.10%
Atlanta	Georgia	4.3	0.3	4.0	49.25%
Montgomery	Alabama	3.9	0.2	3.8	60.61%
Durham	North Carolina	4.7	1.0	3.7	37.05%
Milwaukee	Wisconsin	3.9	0.3	3.6	38.27%
Erie	Pennsylvania	3.8	0.3	3.5	14.99%
Lansing	Michigan	2.5	0.1	2.5	22.35%
Louisville	Kentucky	2.2	0.3	1.8	23.70%
Marysville	Washington	1.6	0.0	1.6	1.42%

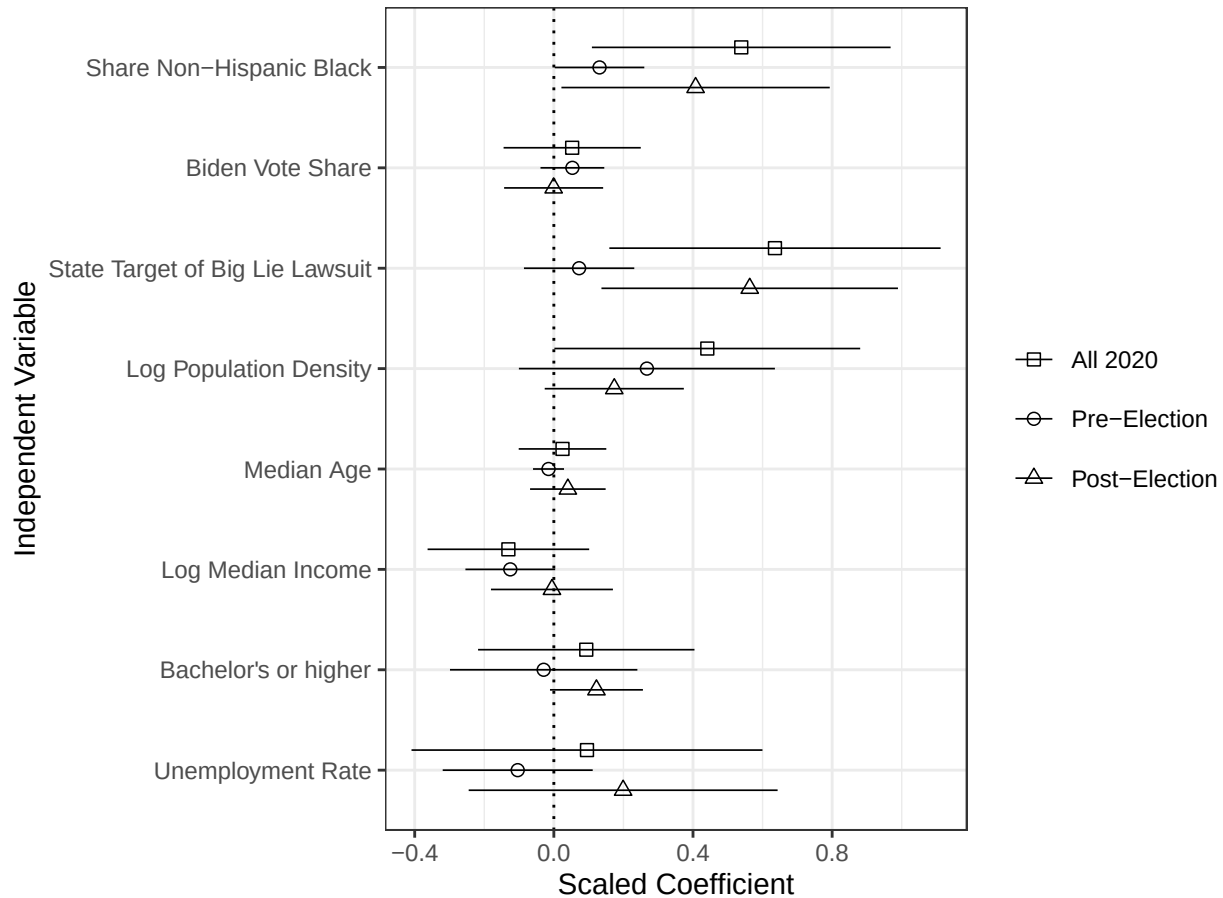
⁴⁸For more information on how I cleaned and identified these records, please see the Methodological Appendix.

As we know, however, places with large Black populations also have many Democratic voters, and the Twitter rhetoric might simply have focused on places where many votes were cast for Biden. To tease this possible relationship apart, I use regression analysis similar to that discussed above in the litigation models. Figure 2.4 presents the output of these models, where the independent variables have been scaled so that we can directly compare the magnitude of the relationship of each variable with Twitter mentions. I estimate the relationship between these characteristics for all of 2020, as well as for the pre- and post-election periods in isolation. I also include a fixed effect measuring whether a city was in a state where a lawsuit was filed trying to overturn the election (one of the states included in the lawsuit analysis, above), under the assumption that fraud allegations are likely to be more pervasive in those states.

What do the regressions tell us? That race played an unambiguous role in structuring where the voter fraud narrative was centered. In fact — just as in the litigation analysis above — Biden’s vote share was not statistically related to how often a city came up on Twitter in the voter fraud discussion once we account for other characteristics. The Black share of the population, and whether a city was in a contested state, are the *only* characteristics associated with how often a city was mentioned in these tweets.

Perhaps most important of all, this relationship showed up only in the *post*-election period. For the 11 months leading up to the election, there was no relationship at all between how Black a city was and the frequency with which it was named on Twitter alongside “voter fraud.” Instead, before Trump began relentlessly focusing on Black cities, Biden’s eventual vote share (likely proxying expected Democratic-lean in the coming election) played a bigger role (though was not statistically significant). Put differently, the models themselves

Figure 2.4: Relationship Between Municipal Characteristics and Frequency of Being Named in a “Voter Fraud” Tweet



Variables scaled following Gelman (2008). Modelled using robust standard errors. Intercept not shown.

demonstrate a real shift in the public discourse that maps cleanly onto the period in which Trump and his allies began circulating myths about these largely-Black municipalities.

We will return to the question of how the mass public responded to the Big Lie in Chapter 4; here, we have looked at the Twitter dialogue as a whole, without isolating elites and the mass public. But the analysis of these data from 2020 makes plain that the racialized language used by Donald Trump and his allies, focused on Black cities, was echoed across Twitter. The elite targeting had found its mark, and spurred a sustained focus in the weeks that followed.



It did not take long for the machine Trump and his allies built to be turned against the members of his own party who refused to accept the Big Lie. By December, immense pressure was building on Republicans at the state and federal level to support the effort to overturn the election by submitting slates of fake electors to the Electoral College.

Much of the effort was led by Trump himself. The Congressional “January 6 Report”⁴⁹ is full of examples of Trump seeking to bully elected officials and appointees alike into supporting the Big Lie. On December 1, Attorney General Bill Barr informed Trump that the conspiracy theories about Detroit were “nonsense;” when Trump grew angry, Barr offered his resignation. The president slammed his fist on the table, telling Barr that he accepted. While Trump would walk back his acceptance of Barr’s resignation, he would continue to attack him in the following weeks prior to the attorney general’s departure from the administration later that month.⁵⁰ Barr was not Trump’s only target: He maintained that “Mitch & the Republicans do NOTHING, just want to let it pass. NO FIGHT!”⁵¹ and he promised that Senator John Thune of South Dakota — “Mitch’s boy” — “will be primaried in 2022, political career over!!!”⁵² Perhaps nowhere was Trump’s involvement clearer, however, than in the campaign he brought to bear against Republican Georgia Secretary of State Brad Raffensperger. In a now-infamous phone call on January 3, well after the Electoral College had cast their votes, Trump spent an hour pushing Raffensperger “to find 11,780 votes” for him. Trump told the secretary that his failure to continue investigating fraud constituted

⁴⁹United States House Select Committee on the January 6 Attack (2022).

⁵⁰U.S. House Select Committee to Investigate the January 6th Attack on the United States Capitol (2022).

⁵¹<https://x.com/realDonaldTrump/status/1342817496924086278>.

⁵²<https://x.com/realDonaldTrump/status/1341547750710800385>.

“a criminal offense.”⁵³

The pressure campaign was also directed by right-wing media actors like Alex Jones and Nick Fuentes to whom the Trump Campaign turned to sell the Big Lie (see Chapter 3). They served as the vanguard, staging rallies and focusing public outrage on individual Republican actors. Mitch McConnell, for instance, was a favorite target. Early in the post-election period, the far right was celebrating him for agreeing that Trump had the right to pursue legal options: “Here’s Mitch McConnell, the leader of the Senate, knocking it out of the park when he talks about the Democrats saying, ‘how dare you contest an election.’”⁵⁴ But support soon wobbled as McConnell and others refused to actively endorse Trump, and by December 16 Jones was “declaring war on Mitch McConnell” on his program.⁵⁵ Others came under scrutiny, too: “Marco Rubio knows that it [fraud] happened,” explained Nick Fuentes on the *Alex Jones Show* on November 18, “and he said nothing. In fact, he said that if the President doesn’t concede, this is somehow an affront to democracy. Mitch McConnell has said nothing. Nikki Haley has said nothing. Dan Crenshaw, Madison Cawthorn, all the people hailed as the future of the GOP have remained silent.”⁵⁶

When elites *did* resist, they were roundly targeted. Fuentes and Jones also led a rally outside the home of Georgia Governor Brian Kemp on November 19, where they aired a live episode of the *Alex Jones Show*.⁵⁷ Following a *60 Minutes* interview in which he maintained the security of the election, Chris Krebs — head of U.S cybersecurity for the 2020 election — became a target of the right-wing: “He should be drawn and quartered. Taken out at dawn

⁵³Shear and Saul (2021).

⁵⁴Jones (2020*b*, at 49:05).

⁵⁵Jones (2020*c*, at 50:00)

⁵⁶Jones (2020*d*, at 1:54:57).

⁵⁷Jones (2020*e*).

and shot,” said Trump campaign lawyer Joe DiGenova in an interview with Newsmax.⁵⁸

The campaign to pressure elites to accept the Big Lie went beyond rhetoric. Mitt Romney faced chants of “traitor” on a plane ride to DC.⁵⁹ Kim Ward, the Republican majority leader of the Pennsylvania Senate, told the *New York Times* that if she refused to go along with Trump’s scheme, “I’d get my house bombed tonight.”⁶⁰ Georgia Governor Brian Kemp faced threats of violence. Georgia Secretary of State Raffensperger and his wife, meanwhile, went into hiding for a week as the paramilitary organization known as the Oath Keepers threatened his family. Threats continued for months: “You and your family will be killed very slowly,” read an anonymous text message they received in April, 2021.⁶¹

So what did this look like by the time Joe Biden was inaugurated? Did the crush of intimidation produce results? Recall that on December 15, just two Republican members of Congress were publicly accepting the Big Lie. Did more fold amid this pressure campaign, or did they hold their ground? And did the racial views of their constituents shape this?

The vote in the House of Representatives on the evening of January 6, 2021, saw broad — if not universal — capitulation of elite members of the Republican Party to the Big Lie. Congress met on the morning of January 6 to certify the votes cast by the electoral college. The counting process was interrupted when, following Trump’s speech at the Ellipse, the Capitol Building was stormed by insurrectionists. But when Congress reconvened that evening, an outright majority — two-thirds of the Republicans in the House — objected to the election results from either Arizona or Pennsylvania. An analysis of the votes against certification makes this clear.

⁵⁸Quoted in Choi (2020).

⁵⁹Peiser (2021).

⁶⁰Quoted in Gabriel (2020).

⁶¹So (2021).

And, once again, race apparently played a major role in the structuring of elite capitulation — *within* the Republican coalition. As the *New York Times* reported in 2022, lawmakers from districts where the White share of the population was shrinking were especially likely to vote against certification, indicative of “how white fear of losing status shaped the movement to keep him [Trump] in power.”⁶² But it was not just a shrinking White share of the population that structured these votes; White constituents’ views about Black Americans did, too. The members of Congress who legislatively endorsed the Big Lie were elected by constituents with an important shared psychological trait: racial resentment. Regression analysis bears this out, as I show in Figure 2.5. In this regression model, I use data from a survey called Nationscape to estimate the racial resentment of White Americans in each Congressional district in the nation; the survey is massive, with more than 300,000 White respondents.⁶³ I also use the survey to identify White Americans’ self-reported ideology in each district.

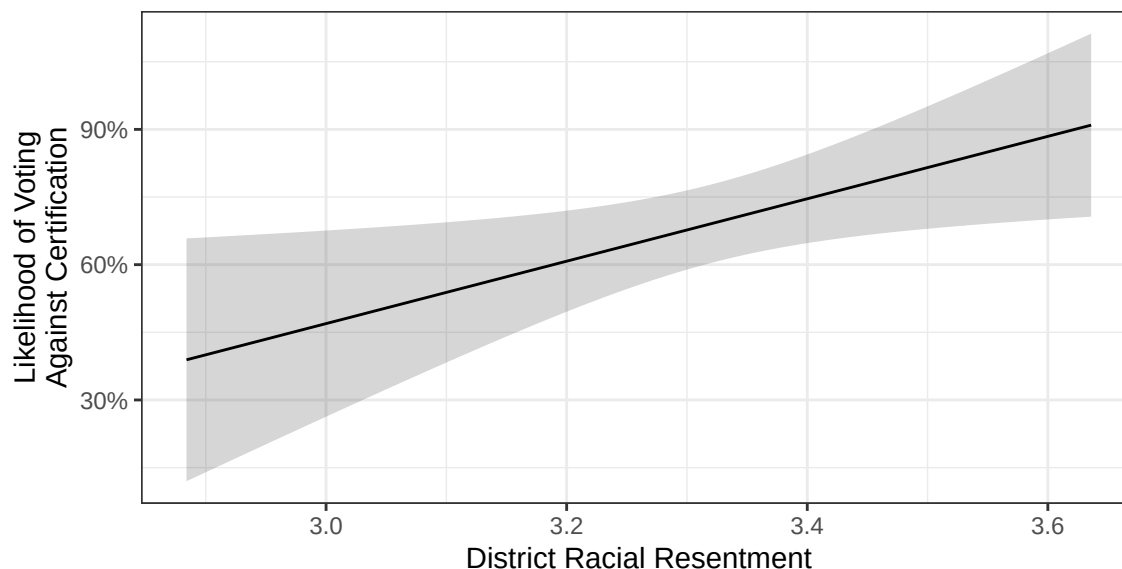
Given how racialized the post-election discourse around the Big Lie was, it is not surprising that the racial views of constituents were a component of members’ votes against certification on January 6. But other key characteristics might have mattered, too, like Trump vote share, constituents’ education and age, and more. These are all accounted for in the model. Most important of all, of course, was the lawmakers’ partisan identities; only Republicans, after all, voted against certification. For that reason, the regression model includes *only* Republican members of Congress.

The results are striking: Republican members of Congress representing districts where

⁶²Keller and Kirkpatrick (2022).

⁶³Racial resentment scores and ideology in these data are rake-weighted to the Congressional district level. See the methodological appendix for more.

Figure 2.5: Likelihood of Congressional Representative Voting Against Certification on January 6, 2021



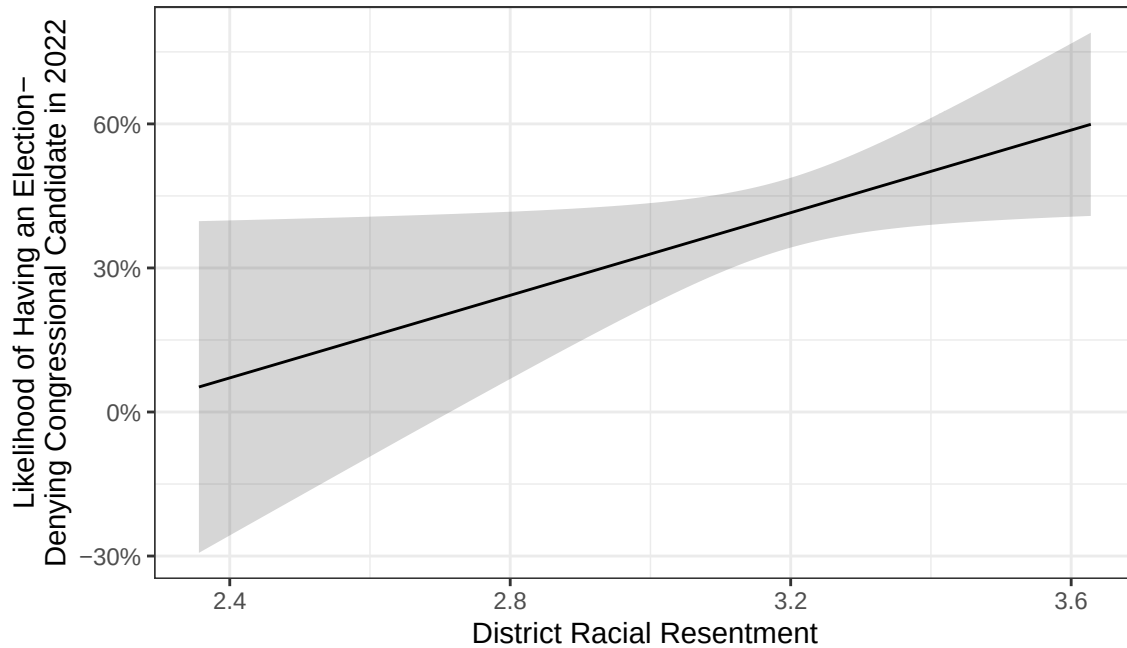
Note: Limited to Republican members of Congress. Covariates: ideology, Trump vote share, log median income, median age, share White, share with bachelor's degree, unemployment, and log population density. Modelled using robust standard errors. Racial resentment and ideology calculated from non-Hispanic White Nationscape respondents, rake-weighted to mirror Congressional district demographics of White residents.

White residents were the most racially resentful were nearly 60 percentage points more likely to vote against certification than the Republicans representing the least-resentful districts.

By January 6, the Republican House caucus had capitulated to Trump's Big Lie. Hours after the Capitol Building had been stormed for the first time in centuries, two-thirds of Republican members of the House legislatively endorsed the insurrectionists' project. And the capitulation happened along the same lines as which the Big Lie had been developed: Lawmakers from parts of the country where White Americans express more racial animus were the most likely to express concerns about voter fraud in the 2020 election.

The moment would mark not the capstone of the Republican Party's commitment to the Big Lie, but rather the beginning. As Chapter 5 shows, it would work its way through state legislatures around the country in the following months and years, spawning the biggest

Figure 2.6: Likelihood of Congressional Candidate in 2022 Running as an Election Denier



Covariates: ideology, Trump 2020 vote share, log median income, median age, share White, unemployment rate, share with bachelor's degree, log population density, and share of district represented by Republican in the 117th Congress, and incumbency status. Limited to districts in which a Republican ran for Congress in 2022. Modelled using robust standard errors. Racial resentment and ideology calculated from non-Hispanic White Nationscape respondents, rake-weighted to mirror Congressional district demographics of White residents. District racial resentment and ideology in 2022 calculated from 2020 Nationscape data using a non-Hispanic White population-weighted crosswalk. See the Methodological Appendix for more. Election denial data from FiveThirtyEight ("Fully Denied").

wave of restrictive voting legislation since the end of Reconstruction. But the upper echelons of the Republican Party would also be reshaped. When the newly-Democratically controlled Congress voted to impeach Donald Trump for his role in January 6, 10 Republicans in the House and 7 in the Senate supported the effort. By 2026, most would no longer serve in Congress. Many were beaten in primaries or chose to retire, often after facing formal censures or rebukes from their home state Republican Parties in North Carolina, Louisiana, Alaska, Pennsylvania, Nebraska, Ohio, South Carolina, Wyoming, and Washington.

The Big Lie shaped not only who *left* Congress in the subsequent years, but also who sought to enter Congress. As ABC News / FiveThirtyEight reported heading into the 2022

election, three out of every five American voters would see an election denier running for office on their ballots.⁶⁴ From city council to Congress, more than 200 Republican candidates that year expressed reservations about the legitimacy of Joe Biden’s win in 2020. While the evidence about how well election denialism served their campaigns is mixed,⁶⁵ the prevalence of Big Lie support among the cohort was striking. And, as with capitulation on January 6, the same psychological disposition — racial resentment — structured where election-denying candidates ran for Congress.

As Figure 2.6 shows, districts where White residents were more racially-resentful were considerably more likely to have a Congressional candidate on their ballot who fully denied the 2020 election according to the FiveThirtyEight tracker.⁶⁶ Because Republicans were far more likely to run as election deniers, the models include only the Congressional districts where a Republican actually ran for Congress that year. As the figure makes clear, the most resentful districts were almost 50 percentage points more likely to see an election-denying Republican Congressional candidate on their ballot in the fall of 2022 than the least resentful ones — *even after* accounting for things like constituents’ ideology and Trump’s vote share in the 2020 election.

In short, White constituents’ racial dispositions shaped which members of Congress capitulated to the Big Lie in the immediate aftermath of the 2020 election. Threats ran hot in that moment, and members of Congress who represented racially-resentful districts might

⁶⁴Bruggeman (2022).

⁶⁵Malzahn and Hall (2023).

⁶⁶District ideology and racial resentment come from the 2019–2021 Nationscape data. That data reports constituents’ Congressional district for the 116th Congress, prior to the 2020 redistricting cycle. These responses are allocated to districts for the 118th Congress using a population-weighted crosswalk. All other covariates come from the 2018–2022 ACS estimates reported at the correct Congressional district level. See the methodological appendix for more.

have been concerned that their constituents would be especially incensed if they voted to certify the election. Of course, it is also very possible that racially-resentful Congressional districts sent racially-resentful representatives to Washington, DC, who were operating in response to their own personal belief in the Big Lie. But racial attitudes did not only predict how Republican party elites operated in January, 2021. Instead, they would shape the adoption of the Big Lie in the Republican coalition for years to come.



Trump might have given away more than he meant when he told the Proud Boys to stand back and stand by in September. Other strategies were standing by as well. Prior to the election, Trump had mapped the plan to contest the election in broad strokes. The increased access to mail voting in the Covid Era offered one avenue to cry foul; casting aspersions on past vote tallies in Philadelphia offered another. Two of Trump's chief political allies were more explicit. Less than a week before the election, the podcast host Steve Bannon laid it out plainly: "And what Trump's gonna do is just declare victory, right? He's gonna declare victory. But that doesn't mean he's a winner. He's just gonna say he's a winner."⁶⁷ And two days before the election, Roger Stone explained the strategy for winning a contested election: "I really do suspect it will still be up in the air," he acknowledged. "When that happens, the key thing to do is to claim victory. Possession is 9/10s of the law. No, we won. Fuck you, Sorry. Over. We won. You're wrong. Fuck you."⁶⁸

But what started as a diffuse attempt to discredit the election ahead of time quickly

⁶⁷Quoted in United States House Select Committee on the January 6 Attack (2022, pg. 196).

⁶⁸Quoted in Ibid, pg. 197.

sharpened into a much more targeted attack after the polls closed on November 3. Post-election, lies about voter fraud became lies about Black Americans. While we cannot know whether or at what point the Trump campaign explicitly decided to rely on race to peddle the Big Lie, by mid-November anti-Black racism was clearly playing a central role in the fight to overturn the election. In the aftermath of the racial justice protests in the summer of 2020, many White Americans were feeling threatened by a widespread, Black-led political movement demanding an end to police violence.⁶⁹ In this environment, Trump and his allies leveraged racially-coded — and often, as in the case of Giuliani’s remarks, not even coded — lies in such a way that they would be taken up by White America along similar lines.

As all three branches of the federal government blocked the institutional pathways to contesting the election, the Trump campaign increasingly turned to alternative methods. We see this in the racial targeting of the Stop the Steal lawsuits, presumably intended to gin up public outrage over voter fraud as much as to succeed in the courts. So, too, is the approach visible in the racially-coded, elite-led Twitter discussions of voter fraud that clearly found their target and shaped the national conversation. But they could not do this work alone: As Chapter 3 discusses at length, they turned also — starting from election night itself — to a broad and racially-loaded right-wing ecosystem to advance the Big Lie. It was through actors like Alex Jones and Nick Fuentes that the Trump campaign would find its loudest bullhorn to amplify the Big Lie. Through them, they would also influence street-level activists. Among these would be the Proud Boys.

By the time Congress formally voted to certify the election, the guardrails were overrun: A supermajority of Republicans in the House, along with 8 of the Senate’s 51 Repub-

⁶⁹Drakulich and Denver (2022).

licans, voted against accepting the lawfully-cast votes of the Electoral College. Not since Reconstruction had there been such a challenge to transfer of power in the American system. It was not a uniform capitulation, however: House Republicans from racially-resentful Congressional districts were especially likely to endorse the Big Lie than other Republicans. And race would shape the party's adoption of the Big Lie at the Congressional level for years to come, as election deniers ran more frequently in 2022 in those same racially-resentful districts.

As the following chapters will show, such racialization would not remain inside the halls of Congress. The same mechanism Trump and his allies relied on — the right-wing media ecosystem — would infuse the Big Lie with more racism than Trump could have ever done on his own. The eventual adoption of the Big Lie by mainstream outlets like Fox News would thus receive a Big Lie already built on myths of Black criminality and undeservingness. It would enter the White mass public with such contours, too, and ultimately shape the legislative response.

Racism was the seed of Trump's initial push to overturn the 2020 election. That same racism would flower throughout the political system for years to come.

Chapter 3

Entering the Season of War: Shaping the Public Discourse

“We are now entering the season of war.
Our country is at war for its very life.
You are under attack.
You are being conquered.
You are being taken over.”
-Alex Jones. *Alex Jones Show*, November 5, 2020.¹

On November 20, 2020, Nick Fuentes was leading a protest outside of the Georgia state capitol building. He recounted a litany of conspiracy theories about the presidential election in Georgia: Signatures on mail ballots were not verified. Double-votes were counted. Ballots cast for Trump were instead counted for Biden. Stashes of thousands of ballots were being uncovered in counties all around the state, most of which were cast for Trump. The list went on, before he admitted that camping out in front of the capitol building was not working. “Clearly, it seems like the politicians don’t fear us,” he told the assembled crowd. “The secretary of state does not fear these demonstrations.” He gets angrier. “Maybe we should start showing up to their houses now!,” he shouts.² The next evening he would heed his own advice and participate in a march on the governor’s mansion to demand that Brian

¹Jones (2020*f*, at 15:41).

²Aquarium Groyper, “Nick Fuentes Georgia State Capitol 11/20/2020,” YouTube video, 25:10, November 20, 2020, <https://www.youtube.com/watch?v=0S1f--Tkn1M>.

Kemp certify Donald Trump as the winner of the 2020 election in Georgia.

For four days in November 2020 a constellation of far-right actors descended on Atlanta to stage a series of demonstrations intended to intimidate the Republican-controlled legislature into refusing to certify the results of the election. The January 6th Committee described the period as one of “nonstop events, including armed protests,”³ and hundreds of individuals entered the state capitol building in an attempt to disrupt the official certification of the election on November 18.⁴ Although there was no widespread violence, the events of Atlanta that week nevertheless foreshadowed what would occur seven weeks later in Washington, DC, when many of the same actors would use similar tactics in an attempt to intimidate lawmakers into refusing to certify the election. January 6, of course, would turn bloody. And the protesters came closer to achieving their aims when the majority of Republican members of the House voted against the election’s certification.

Who were these individuals and groups that came together in the weeks between November 3, 2020, and January 6, 2021? And why does it matter that Trump found his most willing partners here, rather than in the halls of Congress or the studios of mainstream conservative media? The answer has everything to do with race. As Chapter 2 shows, the party apparatus Trump would normally have relied on was not available immediately after November 3, when most of the party’s elites refused to endorse his claims of the stolen election. Forced to look elsewhere, the Trump campaign turned to a constellation of fringe actors whose core appeal was explicitly racial, and who stoked racial threat and racial resentment: White supremacists, Christian nationalists, and paramilitary groups whose grievances cen-

³United States House Select Committee on the January 6 Attack (2022, pg. 504).

⁴Fuentes (2020*b*, at 8:02).

tered on the threatened status of White America. This detour through the racist fringe was not incidental to how the Big Lie was developed; it was the mechanism. Indeed, beginning on election night itself, Trump allies were sowing uncertainty about the election on the *Alex Jones Show*.

Because the lie was first incubated and amplified in spaces defined by anti-Black animus, it would remain thoroughly racialized as it moved into the mainstream. As cities like Detroit and individuals like Ruby Freeman found themselves at the center of a storm much wider than the fringe right, theories that started as explicitly racist did not lose their racial character by virtue of becoming implicit. In this way, the fringe actors had two functions in this period: They fed the flames of a hard-core, racially-threatened group of listeners, and also imbued the broader election denialism movement with race. When their pressure eventually forced mainstream actors to platform the Big Lie, then, they platformed a lie that came loaded with racial connotations. Chapter 4 shows the predictable consequence: Racial resentment, not ideology or partisanship, determined who bought in first.



Many individuals and organizations participated in the scores of rallies at state capitols following the November election,⁵ though perhaps none played quite as large an organizing role as Alex Jones, whose name appears over and over again in Select Congressional Committee that investigated the January 6 insurrection.⁶ Jones was the owner of the *In-*

⁵The January 6 Committee identified “at least 68 instances” of such demonstrations. United States House Select Committee on the January 6 Attack (2022, pg. 503).

⁶United States House Select Committee on the January 6 Attack (2022).

foWars website which he had launched in 1999 and used to promote various conspiracy theories over the years. Early on, Jones claimed there was a “98 percent chance” that 9/11 was orchestrated by the US government,⁷ and he gained notoriety in the years leading up to the 2020 presidential election for pushing unfounded lies about the tragic Sandy Hook massacre from 2012. On December 14th of that year, 20-year-old Adam Lanza entered Sandy Hook Elementary School in Newtown, Connecticut, and killed 26 people. It was and remains the largest grade-school mass shooting in American history. Jones, however, used it as an opportunity to spread lies about the so-called Deep State and maintained that the tragedy had been faked; he would ultimately be ordered to pay some \$1.4 billion in damages to the relatives of those who were killed in the shooting, one of the largest awards of civil damages in American history.⁸ He was banned from most internet and social media platforms (including YouTube, Apple, Facebook, and Spotify) in 2018 after threatening to shoot Robert Mueller, the Special Counsel tasked with investigating the Trump Campaign’s ties to Russia in 2016.⁹

From White supremacists to Christian nationalists to Trump campaign spokespeople, the *Alex Jones Show* platformed many individuals and ideologies in its effort to legitimize the Big Lie and convince Americans that the election had been stolen. Understanding how the election was spoken about on his show, then, offers insights into how the broader Stop-the-Steal movement approached the post-election period, and took its views to the mass public. Despite the extreme views he took on his show, he had a tremendous amount of influence during this period, with the January 6 Committee identifying him as a key platform through

⁷Marcotte (2016).

⁸Dwyer (2025).

⁹Hagen (2022).

which Stop the Steal activists spoke to the mass public.¹⁰

To immerse yourself in the post-election episodes of the *Alex Jones Show* is to be overwhelmed by conspiracy theories about everything ranging from the Deep State (it controls everything) to the Covid-19 virus (it does not exist), from to the mystical healing properties of turmeric and biotrichoselenium and fish oil (helpful for avoiding the degenerative mental condition that plagues leftists) to the dangers posed by 5G cellular networks (they allow the “technocratic elites to read your thoughts and influence your behavior”¹¹). And — endlessly — claims about the theft of the election and encouragements to Republican lawmakers to certify Trump as the rightful winner.¹² It started early: At the very beginning of his election day episode, hours before the polls had even closed, he was already casting aspersions on vote counts in the swing states: “The deep state is in absolute, total panic mode,” he told his listeners, “and there is clear, rock-hard evidence of systemic election fraud and voter fraud in Michigan. In Pennsylvania. In Ohio. In Iowa. In Georgia. In North Carolina. In Florida. It’s pouring in.”¹³

Jones would use racial tropes in order to drive home the threat of a stolen election over the coming weeks to his millions of daily listeners. On Election Day, he worried about Democrats “going and blowing up a black church or something” to create civil unrest.¹⁴ Three days later (the day before most networks called the race for Joe Biden), he laid out

¹⁰United States House Select Committee on the January 6 Attack (2022).

¹¹Jones (2020*a*, at 2:37:53).

¹²My analysis of the *Alex Jones Show* is based on a qualitative analysis of the show. I listened to the first three hours of each of the episodes from the week following the election (November 3, 4, 5, 6, 8, and 9). The fourth hour was generally hosted by a guest host, and I read these transcripts. Analysis of these episodes provided direction for dozens of keywords to use to search through transcripts of the full set of 71 episodes that aired between Election Day and Inauguration Day. I also listed to each of the full interviews with Roger Stone, Enrique Tarrio, Stewart Rhodes, and Nick Fuentes. Where video was available, I include Jones’s speeches from the Georgia protests, the December 12 Jericho March, and January 5.

¹³Jones (2020*a*, at 6:01).

¹⁴Jones (2020*a*, at 31:55).

his expectation for how the following days would proceed. First, he said, communications would be cut off. “They’re going to then probably stage a shooting of some Black people,” he continued. “It’ll be the next move. And then hype up a race war.”¹⁵ He repeatedly referred to Michelle Obama as “Big Mike” (a reference to a conspiracy theory that she is a transgender woman who was assigned male at birth) and mentioned Black-on-Black crime. Day after day, he complained about Black Lives Matter and Antifa criminals. Jones often invoked the Great Replacement theory (conspiracy about Democratic elites allowing mass in-migration to dilute the White share of the population), and warned listeners on a near-daily basis that their White kids were being taught to hate themselves in school. These are all the sorts of racial code words that have been long linked to the activation of racial threat and anti-Black attitudes.¹⁶ “Globalist” and “New World Order” (well-established antisemitic terms¹⁷), meanwhile, were used an average of thirty times per episode; “ChiComs” (Chinese Communists) were referenced hundreds of times over the period.

This rhetoric notwithstanding, Jones himself did not offer the most overtly racist language used in connection with the 2020 election; that was a task left to his guests. Such a maneuver presumably served to create some space between himself and these views. Jones, after all, claimed to “love Black people”¹⁸ and seemed to revel in pointing out that there were some Black Trump supporters in 2020. On December 2, he laid out his own theory of why the conspiracy theories seemed to center on places with many nonwhite voters: “[T]he Democrats

¹⁵Jones (2020*h*, 1:20:35).

¹⁶Bennett and Walker (2018); Christiani (2021); Dowling, Johnson and Ekdale (2022); Allchorn (2024); Pfeiffer and Hu (2024); Saul (2024); Valentino, Hutchings and White (2002).

¹⁷American Jewish Committee, “Globalist,” in *#TranslateHate Glossary: Antisemitic Terms, Tropes, Themes, and Memes*, AJC.org, accessed February 19, 2026, <https://www.ajc.org/translatehate/globalist>.

¹⁸Jones (2020*i*, 1:33:48).

go, oh, ‘the Republicans are saying the Mexicans and the Black people are illegally voting or voting twice.’ Nobody said that but you. But they go into those underfunded minority districts. And they steal it and they stuff it [ballot boxes] there because then, when it comes out that it’s a minority district, they can hide behind the Black people like they always do.”¹⁹ Jones may have picked up this narrative that Democrats specifically cheated in minority areas in order to later advance charges of racism from Patrick M. Byrne, the former CEO of Overstock.com, who made a similar argument on November 24 on Jones’s show. (Byrne, who would appear multiple times on Jones’s show in the aftermath of the election, apparently felt the need to tell Jones that he had “nothing whatsoever to do with anything White-identitarian” on both November 24 and December 16.²⁰)

But Jones’s apparent reluctance to blame individual Black Americans for the theft of the election himself did not extend to stopping his guests (and guest hosts) from doing so. Tom Pappert was one such guest. Pappert is the editor of a website called *National File*, which Jones set up in 2019 to get around Facebook’s de-platforming of his InfoWars website.²¹ On December 4, 2020, Pappert attempted to discredit election workers on the *Alex Jones Show*: “These women in Georgia are very clear Black Lives Matter supporters. In Michigan you had a similar dynamic. They’re wearing Black Lives Matter shirts themselves. It’s the same type of political thug that committed this fraud in each and every battleground state...,” he continued. “America knows about the thug-like tactics that they’re using on Election Day.”²² Paul Joseph Watson, a guest host on Jones’s show on November 9, used similar language as he excoriated conservatives unwilling to endorse Trump’s election lies

¹⁹Jones (2020j, at 1:32:25).

²⁰Jones (2020k, at 1:02:41); Jones (2020c, at 2:00:57).

²¹Squire and Hayden (2023).

²²Jones (2020l, at 32:45).

for “[h]anding political capital and influence to the same thugs who’ve been burning down American cities for the past six months.”²³ And Nick Fuentes, who appeared on the show multiple times in the post-election period, was even clearer about the stakes for White listeners: “They don’t want White people and Black people to be equal,” he said. “They want White people to be put in the same position that they perceive Black people as being put in a couple of generations ago. And they brag about it and they talk about it openly.”²⁴

Matt Bracken, meanwhile, warned listeners that a Biden victory posed an existential threat: “They don’t give you another chance. That’s where we are now. When they get these 20 or 30 million illegals voting, they’ll hardly need to cheat. Why would they need to cheat? They’re going to have 20 million new votes spread across the states and the Democrats will be saying, make sure to vote Democrat so that you can bring your entire family in and make them citizens too. Who do you think they’re going to vote for? This is it, folks. This is the chair is against the wall. There’s no more fallback position from this.”²⁵ This is a near-textbook definition of the Great Replacement theory, discussed above, whose simple invocation “consistently leads to increased support for political violence, increasing racial resentment, and expressed antiBlack views.”²⁶ Day in and day out, listeners heard implicitly and explicitly racialized language that activated Whites’ threats of Black political power and cast Black Americans as criminals.

What, exactly, was this racialized rhetoric accomplishing? A close listen reveals that it had two distinct but related functions: the activation of racial threat and of racial resentment.

²³Jones (2020*m*, at 2:17:27).

²⁴Jones (2020*n*, at 1:31:09).

²⁵Jones (2020*o*, at 2:36:54).

²⁶Thompson et al. (2025, pg. 196).

Social scientists have long known that humans understand their own status via the status of groups to which they belong — and that they will jealously protect their group’s status.²⁷ In the American context, of course, few groups carry as much social meaning as race and ethnicity. In the case of White Americans, protecting the racial hierarchy is a powerful motivator of social behavior.²⁸ “Racial threat” captures sense that one’s status is coming under attack — and, specifically, under attack at the hands of other racial groups.²⁹ In the American context, racial threat has been a major driver of White political action in recent decades. In the middle decades of the 20th century, the civil rights movement undermined pieces of the racial hierarchy that had historically benefited White Americans. As programs like affirmative action and school integration offered minority Americans opportunities that were previously foreclosed to them, some White Americans interpreted this as a direct attack on their privileges.³⁰ In more recent years, Barack Obama’s presidency and the possibility of a United States in which Whites no longer make up a numerical majority have been linked to reactionary political strains seeking to maintain White social dominance.³¹ Importantly, racial threat is conditional — it is a visceral emotion, runs hot when activated, and can be directed toward strategic ends by elites. When listeners of the *Alex Jones Show* heard that White children were being taught to hate themselves, or that immigrants were replacing White Americans, their sense of being threatened by racial outsiders was likely activated. This raised the stakes on the election: If Biden were allowed to take office, the result would be more than just policy disagreement. Instead, his administration could end their way of life.

²⁷Tajfel (1978); Tajfel and Turner (1979).

²⁸Bonilla-Silva (2010).

²⁹Blumer (1958); Blalock (1967); Bobo (1999).

³⁰Bobo (1983); Bobo and Kluegel (1993).

³¹Tesler (2016); Parker and Barreto (2013).

By activating intense racial threat, Jones and his allies provided a psychological incentive for White listeners to reject the outcome of the election.

Racial resentment is closely linked to racial threat, but a considerably more stable psychological disposition. Following the civil rights movement in the middle of the 20th century, explicit or “old fashioned” racism became socially unacceptable. But that did not mean, of course, that racism was no longer active in American political life. Instead, it shifted toward being expressed in subtler ways. Today, these attitudes are referred to by scholars as racial resentment. Racial resentment is a measure of racial attitudes that maps onto beliefs about which racial groups deserve government help, are hardworking, and conform to idealized visions of American identity,³² and it explains a great deal of American political behavior.³³ Like racial threat, racial resentment can be activated by elites. As Bennett and Walker show, conservative elites rely less on *manufacturing* racial resentment whole cloth than on implicitly activating pre-existing stereotypes and linking them to policy goals to either support or undermine them. In this case, elites linked the security of the 2020 election to anti-Black stereotypes, leading White Americans to find the accusations more credible.

Just as Jones’s activation of *racial threat* increased the stakes of the election and provided an incentive to believe the election was stolen, his leveraging of *racial resentment* made the accusations more believable by tying them into beliefs about Black Americans standing outside the mainstream of America. And, as the following chapters will show, both racial threat and racial resentment predict when, where, and by whom the Big Lie was transformed into political action.

³²Kinder and Sears (1981); Kinder and Sanders (1996); Davis and Wilson (2021).

³³Jardina (2019); Cramer (2020).



Alex Jones and his guests relied on more than just explicit discussion of racialized tropes in their promotion of the Big Lie. Christian nationalism also played an important role in how Jones (and others on his show) characterized the fight over the 2020 election. Indeed, Christian nationalism was a major part of the rhetoric around the Stop the Steal movement broadly. But what, exactly, is Christian nationalism? And how does it relate to the racialized Big Lie?

In recent years, a number of researchers have dug into what (White) Christian nationalism is — and, to borrow from the subtitle of religion scholar Matthew D. Taylor’s book, how it “is threatening our democracy.”³⁴ Sociologists Philip Gorski and Samuel Perry define White Christian Nationalism as “the ethno-traditionalism among many white Americans that conflates racial, religious, and national identity...and pines for cultural and political power that demographic and cultural shifts have increasingly threatened.”³⁵ The “Christianity” of Christian nationalism is at least as much a commitment to a set of cultural signifiers as to any specific theological propositions.³⁶ It is thoroughly suffused with a sense of nostalgia for an imagined past, when America’s social hierarchies went unquestioned, and is informed by the sense that the United States is God’s “chosen country.”

Importantly, Christian nationalism is also inextricably linked with how White Americans think about Black political power, Black individuals, and democracy. White Christian nationalists excuse police violence against Black Americans, disapprove of inter-racial mar-

³⁴Taylor (2024).

³⁵Gorski and Perry (2022, pg. 44).

³⁶See Du Mez (2021, pg. 246) where she wonders whether “by the early 2000s, was it even possible to separate ‘cultural Christianity’ from a purer, more authentic form of American evangelicalism?”

riages, and are generally less perturbed by racists.³⁷ They do not think that voter suppression is a problem, support making voting more difficult, and believed that the January 6 insurrection was justified.³⁸ Indeed, Christian nationalist iconography, such as the Appeal to Heaven flag, made up a large part of the visual landscape of the January 6 insurrection.³⁹ None of this is especially surprising: As Kristin Kobes Du Mez explains in her excellent history of White evangelicalism in the United States, evangelical leaders spent the second half of the 20th century inculcating a sense of threat among White American Christians that echoes (and, in fact, is a major source of) the broader sense of racial threat that Chapter 2 discusses.

To further draw these relationships out, I turn to a major social science survey called the Collaborative Multi-racial Post-election Survey (CMPS). The 2020 CMPS was fielded over the course of 2021, and asked respondents a series of questions on their beliefs about politics, race, religion, the 2020 election, and much more. For the study at hand, I look only at White individuals; these, after all, are the folks that Gorski and Perry indicate form the backbone of Christian nationalism as a potent political force. On the 2020 CMPS, there were two questions that come from the Christian nationalism literature that try to measure how much an individual subscribes to the Christian nationalist worldview; I average respondents' answers to these questions to estimate their Christian nationalism.⁴⁰

Roughly 14% of White Americans scored at the highest end possible on the two-

³⁷Perry, Whitehead and Davis (2019); Perry and Whitehead (2015); Davis and Perry (2021).

³⁸Gorski and Perry (2022); Perry, Whitehead and Grubbs (2022); Armaly, Buckley and Enders (2022).

³⁹Taylor (2024).

⁴⁰In the 2020 CMPS, respondents were asked to indicate how much they agree with the following statements: *The federal government should advocate Christian values*, and *America must protect and preserve its Christian heritage*. I code these such that 1 indicates a strong disagreement (and, thus, low Christian nationalism) while 4 corresponds to a strong agreement. The weighted correlation coefficient among White respondents to these questions was 0.72.

question Christian nationalism scale; 12% scored at the lowest end. And these differences map onto important cleavages in how White Americans think about politics — and, specifically, Black political power. Take, for instance, how respondents to the CMPS thought about the Voting Rights Act of 1965. The survey informed respondents that “the Voting Rights Act was passed in the 1965s to prevent state and local governments from using rules and procedures which prevented many Black people from voting.” It then asked, “Do you think the Voting Rights Act is necessary today to make sure that Blacks are allowed to vote, or do you think the Voting Rights Act is no longer necessary?” While 83% of White Americans who entirely reject Christian nationalism reported believing that the VRA is still necessary, just 37% of those at the highest end said the same. Those at the high end were also more than five-and-a-half times to say that BLM protests were “only about vandalism and looting” than those at the lowest end. Perhaps most concerning, 26% of the highly Christian nationalist White Americans reported believing that Black people were either less supportive of, or more threatening to, their “vision of American society” than White nationalists, and 25% believe White Americans face more discrimination than Black Americans.⁴¹ Indeed, 42% of White Christian nationalists said that White nationalists support their vision of the US at least a little, and 43% “strongly” agreed with a central tenet of White nationalism themselves (that “the federal government should advocate the values of Whites”).

At first blush, then, it seems that Christian nationalism is bound up in toxic views about Black Americans and their political power. But there are other forces at play: Those who scored high on the Christian nationalism score, for instance, supported Donald Trump

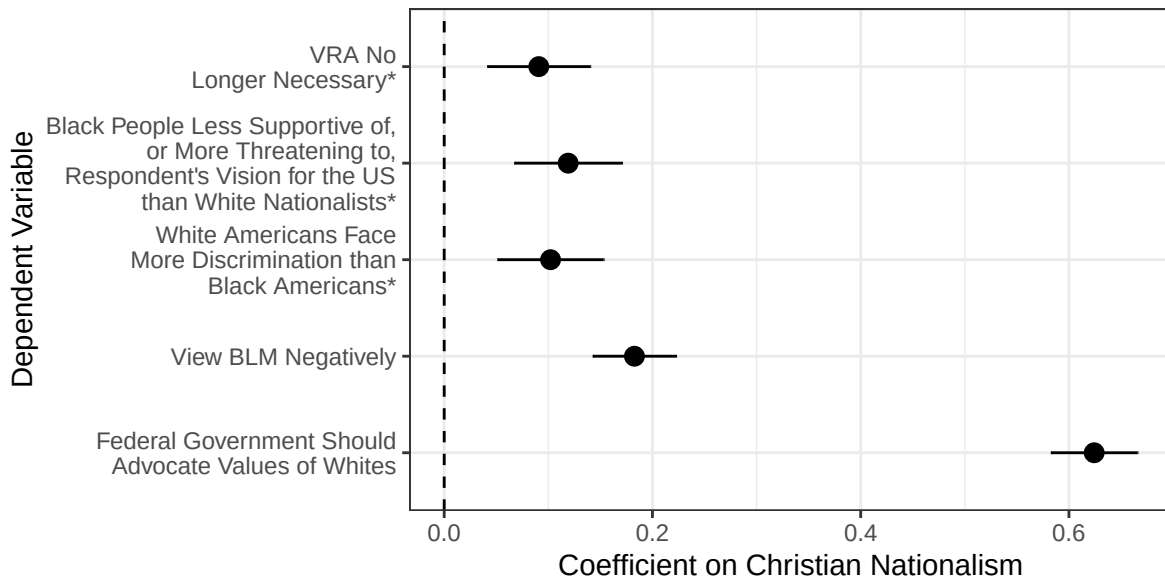
⁴¹ Respondents were asked to provide a number between 1 and 7 for both “Black people” and “White nationalists.” On this range, 1 indicated that the respondent believed the group “strongly supported” their vision of the US, while 7 indicated that the group “strongly threatened” it.

at much higher rates, and were considerably more conservative. To tease these characteristics apart, I use regression analysis that allows me to control for individuals' characteristics aside from their Christian nationalism score. While I include the full regression models in the appendix to this chapter, Figure 3.1 plots the relationship between Christian nationalism and different views on Black politics. The figure makes clear that, even after accounting for things like age, education, and how frequently a respondent attends church, Christian nationalism is a potent predictor of views on the VRA, the threats posed by Black people and White nationalists, relative racial discrimination, and the BLM protests from 2020. The higher a White individual scored on the Christian nationalist scale, the more likely they were to think the VRA is no longer necessary; to view Black people as at least as threatening to their vision of American society as White nationalists; to believe the BLM protests were more about vandalism and looting than about protesting injustice; and to express White nationalist beliefs themselves.

Christian nationalism was clearly linked to views about Black political power in the aftermath of the 2020 election. Considering Christian nationalist rhetoric as separate from racialized language would be a mistake. Instead, it seems highly likely that discourses about threats to a Christian way of life, or the invocation of battles between Christians and non-believers served, in part, as racial dog whistles. When Christian nationalists imagine an ideal national community, it seems that it is not just composed of Christians but rather of *White* Christians. The dangers of a Biden administration that were framed as threats to Christians, then, were likely understood by listeners as threats to White Americans.

And, unsurprisingly, we see Christian nationalist language all throughout Alex Jones's characterization of the 2020 election. "The party's over until we get right with God and

Figure 3.1: Christian Nationalism and Views on Race and Politics



* Binary dependent variable.

Christian nationalism scaled following Gelman (2008). Models control for age, gender, education, household income, 5-point ideology, 7-point party identification, 2020 candidate preferences, church attendance, and religiosity. Modelled using robust standard errors. Respondents removed from regressions in which they did not answer the dependent variable or marked "Don't Know."

repent," he told listeners on November 6, just 3 minutes after predicting the staging of the killing of Black men to incite a race war (see above). "So pray to Jesus for an awakening and then get out there and take legal, lawful, political action. Get to DC. Surround the White House."⁴² Earlier that day, at a rally in Arizona, he had celebrated that "Nationalism and patriotism and love of God and family and country is exploding,"⁴³ while on December 3 he decried "slave camps for Christians."⁴⁴

Others would regularly take the mic on his show to tell listeners that the US was "designed by God through the framers to be a Christian constitutional republic,"⁴⁵ that "we need good Christian men and women" running the nation,⁴⁶ or that "Christianity was the

⁴²Jones (2020*h*, 1:23:42).

⁴³Played in Ibid. at 51:23.

⁴⁴Jones (2020*p*, at 39:21).

⁴⁵Jones (2020*g*, at 2:28:06).

⁴⁶Ibid. at 45:17.

magic potion that stabilized Western civilization.”⁴⁷ While hosting the show on November 20, Owen Shroyer explained: “if they get their way and they get Biden in within a year, wearing anything with Jesus on it or a crucifix will be considered hate speech,” he predicted. “Mark my words. It’ll be considered hate speech.”⁴⁸

As the post-election period wore on, Jones’s own Christian nationalist rhetoric moved from centering threats to Christians to highlighting the affirmatively positive, spiritual dimension of the Stop the Steal enterprise. Take, for instance, the so-called Jericho March on December 12 (this was the same event described above at which Dominic Pezzola was photographed for a *Washington Post* article, at after which the Proud Boys would vandalize a Christian church). In the Hebrew Bible, Jericho was the first city that the Israelites came upon after entering the Promised Land; the Israelites, with God’s blessing, conquered the wicked city and killed every man, woman, and child (with the exception of Rahab and her family). In his speech at the Jericho March, Carlo Maria Viganò (a Catholic archbishop who would be excommunicated in 2024 for the crime of schism after denying the legitimacy of Pope Francis and rejecting the authority of the liberalizing Second Vatican Council⁴⁹) invoked this history as he foretold that “the walls of the Deep State, behind which evil is barricaded, will come crashing down.”⁵⁰ Jones also did not shy away from invoking a spiritual aspect to the fight:

So never forget, we worship the true God that created the universe and all of us. And the satanic globalists trying to take control of us and trying to play God are fallen and are failed. And we need to just keep our eyes on Christ and never back down and never surrender. At four o’clock today, we’re going to march back to the Supreme Court....Remember this: God ordained this republic

⁴⁷Jones (2020*g*, at 50:37).

⁴⁸Jones (2020*r*, at 1:22:08).

⁴⁹Aikman (2024).

⁵⁰Quoted in LifeSite (2020).

to stand against the satanic empires, the Nazis, and the communists, and others. And so, 1776 is God's number of victory over the satanic 1984.⁵¹

He would do so again on his show on December 15 ("We're on the winning side because of Providence and our love of God and our connection to that. And this is a fight against good versus evil. This is a fight versus God and Satan."⁵²). During his January 5, 2021, speech the night before the insurrection he warned his followers that "Not everybody is going to make it. But that's okay because in the end God will fulfill his destiny and will reward the righteous." He went on to call Biden "that slave of Satan," and to affirm that he and his supporters "embrace God, and family, and justice, and strength. Just as we see in the Bible, and just as we see in history, God rises up men who are real."⁵³ This language of spiritual warfare, of threats to Christians, and of God's blessing on endeavors to overthrow the government comes directly out of the Christian nationalist playbook.

Christian nationalism is much more than an indirect way of talking about racial and ethnic minorities. Its rhetorics go far beyond serving as a coded way to speak about race in an era when explicit racism is no longer socially acceptable. Bound up in Christian nationalism are ideologies about patriarchy, authoritarianism, and a commitment to maintaining traditional hierarchies.⁵⁴ All of these also played an important role in the Stop-the-Steal movement and what came after. Nevertheless, Christian nationalism and racial animus are

⁵¹Replayed during Jones (2020s, at 7:00).

⁵²Jones (2020t, at 26:08).

⁵³Infowars.com (2021).

⁵⁴For instance, regression analysis using the same CMPS data described earlier shows that White respondents high in Christian nationalism were also more likely to report believing that men are better political leaders; that discrimination against women is no longer a problem in the US; and less likely to agree that half of leaders would be women in an ideal political system. The Christian nationalism scale does not, meanwhile, map onto the likelihood that respondents say economic issues like improving wages, reducing government spending, or improving K-12 schools are among the top 3 issues they want the incoming Congress and president to address.

clearly two expressions of an overlapping impulse. Rather than presenting as distinct mechanisms for encouraging the mass White public to believe in the Big Lie, they are better understood as both capitalizing on racial threats of a nation being taken away from its rightful owners. Given how tied to racist ideologies Christian nationalism is in the contemporary United States — and, as Figure 3.1 makes clear, how little Black people fit into its adherents’ vision for the country — make no mistake: When Jones and his allies spoke of the need to defend their Christian nation, they were talking about their *White* Christian nation. After all, as Gorski and Perry note, “Whiteness is the hidden link that transforms...Christian nationalism into a political vision.”⁵⁵

But it wasn’t just the language that was used by Jones, co-hosts, and guests on the *Alex Jones Show* that sent messages to listeners about the 2020 election. Between November and December, 2020, the leaders of two of the most notorious White nationalist militias in the nation each appeared on the show multiple times in the post-election period. Both Stewart Rhodes of the Oath Keepers and Enrique Tarrio of the Proud Boys, as well as the organizations they led, would be charged under the 1871 Ku Klux Klan Act for their involvement in the January 6 insurrection.⁵⁶ Their rhetoric was relatively tame, compared to other guests’. Their behavior in the weeks leading up to January 6 was anything but.



“Victory smoke in the Capitol, boys!”⁵⁷ The bearded man, cigar hanging from his

⁵⁵Gorski and Perry (2022, pg. 22).

⁵⁶Hsu (2022).

⁵⁷*Evidence against Dominic Pezzola, Part 2*, YouTube short video, 0:15, posted by YouTube, accessed February 12, 2026, <https://www.youtube.com/shorts/eP9jNWbSW0w>.

lips, slowly spins while filming himself, showing the inside of the United States Capitol on January 6. “This is fucking awesome. I knew we could take this motherfucker if we just tried hard enough. Proud of you motherfucking boys.”

In May of 2020, Black Lives Matter protesters in Rochester, New York, set fire to a construction vehicle owned by a company that had hired Dominic Pezzola. According to Lisa Magee (his partner of 22 years), Pezzola “started drinking very heavily and would inundate himself with Fox News day and night” after the job was temporarily suspended.⁵⁸ Events spiraled from there: after Magee encouraged him “to find some friends and get a hobby,” he applied for formal membership in the Proud Boys in November.

In December he would find his picture atop an article running on the *Washington Post*’s online homepage whose headline read, “Multiple people stabbed after thousands gather for pro-Trump demonstrations in Washington.”⁵⁹ The protest was organized in conjunction with the US Supreme Court’s ruling on Texas’s (unsuccessful) challenge to the election results in Georgia, Michigan, Pennsylvania and Wisconsin;⁶⁰ a separate headline on the *Washington Post*’s homepage quoted Trump saying that, the ruling notwithstanding, his efforts to overturn the election were “not over.”⁶¹ A third article — also on the homepage — explained that later that evening, Proud Boys had “attacked” historically Black churches, setting fire to their “Black Lives Matter” flags.⁶² In videos of the vandalism, Proud Boys can be seen posing for photographs of themselves holding the church’s stolen BLM flag while making the “White Power” hand gesture.⁶³ They then light it on fire. In 2023, after finding

⁵⁸Quoted in Parloff (1/24/2023 10:08:13 PM).

⁵⁹Davies et al. (2020).

⁶⁰*Texas v. Pennsylvania*, 592 U.S. ____ (2020).

⁶¹Sonmez (2020).

⁶²Klein (2020).

⁶³<https://x.com/FordFischer/status/1338003883713564672>.

that the Proud Boys had engaged in “hateful and overtly racist conduct,” DC Superior Court Judge Neal E. Kravitz ordered the Proud Boys to pay more than \$1 million in damages to Metropolitan African Methodist Episcopal Church.

But Pezzola’s moment of fame was far over. Now a full-fledged member of the Proud Boys, Pezzola literally led the charge. After gaining control of an Capitol Police officer’s riot shield, at 2:13 pm he used it to smash through a window in the Capitol’s Senate wing. Though the dubious honor of being the first to enter the Capitol would belong to Michael Sparks, he would do so by climbing through the hole created by Pezzola — the building’s first breach in an organized attack in over two centuries.⁶⁴ On Trump’s first day back in office in 2025, when he pardoned the overwhelming majority of individuals convicted of their offenses related to January 6, Pezzola would be one of the 14 individuals whose sentences were instead commuted to time served.⁶⁵

Pezzola was just one of many Proud Boys who took part in the January 6 insurrection; 85 of them would eventually be charged with offenses related to the day’s events, along with 35 Oath Keepers.⁶⁶ After the president had instructed the Proud Boys to “stand back and stand by” during the presidential debate (see Chapter 2), they clearly understood their role in the efforts to overturn the election. They participated in nearly 70 demonstrations at state capitols around the nation in November and December, often providing security to speakers and other attendees.⁶⁷ One Proud Boy said the president’s remarks about Proud Boys in the

⁶⁴United States House Select Committee on the January 6 Attack (2022, pg. 653); Sherman (2021).

⁶⁵The White House, *Granting Pardons and Commutation of Sentences for Certain Offenses Relating to the Events at or Near the United States Capitol on January 6, 2021*, January 20, 2025, accessed February 12, 2026, <https://www.whitehouse.gov/presidential-actions/2025/01/granting-pardons-and-commutation-of-sentences-for-certain-offenses-relating-to-the-events-at-or-near-the-united-states-capitol-on-january-6-2021/>.

⁶⁶Chicago Project on Security and Threats (2025).

⁶⁷United States House Select Committee on the January 6 Attack (2022, pg. 503).

debate led to the group growing “exponentially” .⁶⁸ As the January 6th Committee report makes clear, the Oath Keepers and Three Percenters were similarly energized by the threat of a stolen election; in fact, rallying to stop the steal served to bring together these groups that had not historically cooperated.

Members of these groups came to Washington, DC, with a clear idea of what needed to be done. One Proud Boy explained that the “objective in Washington, D.C., on January 6, 2021, was to obstruct, impede, or interfere with the certification of the Electoral College vote, including by force if necessary.”⁶⁹ Another made it plainer: the Proud Boys “would accomplish this through the use of force and violence, which could include storming the Capitol through police lines and barricades if necessary.”⁷⁰

Although the Proud Boys, Oath Keepers, and Three Percenters deny being White supremacist groups, they have been designated as such by some law enforcement agencies and the Southern Policy Law Center has designated them a hate group whose “leaders regularly spout white nationalist memes.”⁷¹ And, as we saw above, Proud Boys seemed to revel in flashing White Power signs while burning a Black church’s BLM flag on December 12, 2020. Ultimately, whether they explicitly adopt the moniker of “White supremacist” might not matter much: As Mike German, a former FBI agent who spent considerable time undercover with White supremacist groups in the 1990s puts it, “when the Proud Boys were fighting in

⁶⁸U.S. House of Representatives, Select Committee to Investigate the January 6th Attack on the United States Capitol, *Deposition of Jeremy Bertino*, April 26, 2022 (Washington, DC: U.S. Government Publishing Office), 38, <https://www.govinfo.gov/content/pkg/GPO-J6-TRANSCRIPT-CTRL0000082294/pdf/GPO-J6-TRANSCRIPT-CTRL0000082294.pdf> .

⁶⁹United States House Select Committee on the January 6 Attack (2022, pg. 161).

⁷⁰Ibid.

⁷¹Wilson (2020); Southern Poverty Law Center, *Proud Boys*, accessed February 12, 2026, <https://www.splcenter.org/resources/extremist-files/proud-boys/>.

the streets, it was often side by side with white supremacist groups.”⁷²

And regardless of how these groups describe themselves publicly, they are evidently motivated by a deep sense of racial threat. Many scholars in recent years have noted that the “existential threat” of White Americans moving to a minority status is a strong predictor of membership in, and sympathy for, these groups.⁷³ Of course, these groups take considerably more extreme steps than the garden-variety White American who fears losing his place at the top of the racial hierarchy. They are also enthralled with violence, incorporating it into both their initiation rituals as well as their public actions.⁷⁴

Given the heady brew of nationalism, racial threat, conspiracism, and violence that lies at the heart of these right-wing militias, it is hardly surprising that leaders of these groups would serve as the vanguard for the violence that erupted on January 6. Members of these groups were convinced, by Alex Jones and others, that a great theft had occurred. Such a belief was likely driven, in no small part, by the racial and cultural changes that a potential Biden administration augured, and taking violent action against it came naturally to these men (and they are, overwhelmingly, men). In the early days following the 2020 election, Republican elites were reluctant to endorse the Big Lie. Upon realizing that any path to success would likely lie outside of formal channels, Trump and his allies messaged to these groups, and stoked the flames of election denialism in spaces where they frequented. They would become his foot-soldiers throughout the post-election period and, especially, on January 6.

⁷²German (2025, pg. 56).

⁷³Bai and Federico (2021); Grindal and Haltinner (2023); Mills et al. (2025).

⁷⁴Jackson (2020); Kitts (2021).



We’ve seen how the *Alex Jones Show* served as something of a clearing house for the views of far-right extremists seeking to overturn the election. From the Christian nationalists to the White supremacists to the paramilitary organizations, a toxic brew of antidemocratic ideology was swirling on *InfoWars* in the aftermath of the election. But the *Alex Jones Show* was not merely a platform for fringe actors opining on the 2020 election. Throughout the post-election period, Jones would brag about getting “a lot of desperate calls from the White House” as he was “one of the few people that has the deep knowledge of the whole overall globalist attack.”⁷⁵ While it is unclear whether this was true or mere posturing before his audience, what is undeniable is that the *Alex Jones Show* was the preferred platform for Trump-ally Roger Stone to broadcast the campaign’s lies about the election to a broader public.

Roger Stone got his start in politics working on Richard Nixon’s 1972 re-election campaign; during that election, he served as a self-described “dirty trickster” and hired an operative to spy on rival candidates’ campaigns (though he maintains he broke no laws).⁷⁶ Since then, he has been a regular fixture in conservative America, working closely with the Reagan and George H.W. Bush administrations. His relationship with Donald Trump dates back decades, and he remains the president’s longest-serving political advisor. It was Stone who set up Donald Trump’s single appearance on the *Alex Jones Show* in 2015, and he has played a key role in each of Trump’s presidential runs. In 2019, he was convicted of obstructing Congress’s investigation into Russian interference in the 2016 election; during

⁷⁵Jones (2020*u*, at 14:08).

⁷⁶Paschal and Carlisle (2019); Graff (2022).

the 2020 hearing in which she sentenced Stone to 40 months in prison, Judge Amy Berman Jackson made clear that he was “not prosecuted, as some have complained, for standing up for the president,” but rather “for covering up for the president.”⁷⁷ Donald Trump commuted Stone’s sentence in July of 2020, before formally pardoning him that December.⁷⁸

As Chapter 2 discussed, most Republicans with a national platform declined to support President Trump’s attempts to overturn the election. Given this lack of support, the Trump campaign had to look elsewhere — and in figures like Alex Jones, they found willing allies. Indeed, on election night itself, Stone was a guest on the *Alex Jones Show*. As Chapter 2 discusses, Stone was already mapping a strategy to claim that Trump won the election before the polls had even opened on November 3. True to this plan, he spent his election night interview arguing that Trump was in good shape to win. Nevertheless, he leaned into heavily racialized rhetoric to spread fears of what would happen should Biden prevail. “The Democrats’ game plan, I think, is absolutely clear,” he told Jones. “If they do not get the result they want tonight...Black Lives Matter has said they will burn Washington to the ground, they will burn the White House to the ground, and they will put as many effing police officers in their graves as possible.”⁷⁹ On November 10, he mentioned an unspecified “they” who, “after they burn their own neighborhoods, they’ve already said they intend to move to the suburbs” where they will be “waiting for the moment to start the looting and the throwing of bricks and the beating of senior citizens.”⁸⁰ The use of “suburbs,” as well as the reference to “burning down their own neighborhoods,” are both clear euphemisms for Black Americans.

⁷⁷Quoted in Samuelsohn and Gerstein (2020).

⁷⁸Kelly, Lucas and Romo (2020).

⁷⁹Jones (2020a, at 2:08:10).

⁸⁰Jones (2020b, at 1:19:07).

Roger Stone would call into the *Alex Jones Show* repeatedly in the weeks between the election and Biden's inauguration. He was a guest on November 4 and 10, on December 2, and January 1 and 9, repeating lies about the election over and over to Jones's listeners. Sprinkled in among the repeated claims of fraud were repeated references to communists, to Chinese agents, and asides that could not help but activate racialized thinking. BLM was a favorite gripe of his, in addition to the election night claim that they would burn down the White House should Biden lose.

Like Jones's, Stone's comments were also laden with Christian nationalist rhetoric. On election day, shortly after his prediction about BLM protesters killing police officers, he invoked his Christian God: "The single most important thing we can do is pray," he exhorted Jones's listeners. "Pray to Jesus Christ, the only begotten Son of God. Pray to our Almighty Creator for justice, for an honest election, and to save the Republic and the United States, never mind Western civilization."⁸¹ At other times, he would use non-sequitur to bring up both Christianity and racial dog-whistles ("in American politics, the South and the Deep South have been a bedrock of support for Christian conservative values"⁸²). Alongside Jones, Stone addressed hundreds of attendees at a rally in Washington, DC's, Freedom Plaza on January 5, 2021, during which he riled up the crowd in advance of the following day's events. And Stone promised to stand with Jones on January 6 itself. "We are in an epic, epic struggle here," he told Jones on New Year's Day. "It's not Republicans versus Democrats. It's not

⁸¹Jones (2020a, at 2:22:56).

⁸²Jones (2020b, at 56:55). See also Du Mez (2021, pg. 37): "In the aftermath of the Civil War, the Lost Cause of the Confederate South had blended with Christian theology to produce a distinctly souther variation of civil religion, one that upheld Robert E. Lee as its patron saint;" and Gorski and Perry (2022, pgs. 63–64): "The Lost Cause myth...foretold that the Old South would 'rise again' one day, like the crucified Christ, its suffering transfigured into glory. This, too, was a form of white Christian nationalism derived from Christian scripture."

conservatives versus liberals. This is about the insiders and an outsider, Donald J. Trump. This is about a struggle between dark and light, between evil and good, between the godly and the godless, and we dare not fail, Alex. That’s why I will be with you shoulder to shoulder in Washington, D.C. on January 6th.”⁸³

This, then, was the milieu in which close Trump allies chose to publicly litigate their charge of a stolen election. While they were effective at centering the public narrative of voter fraud around majority-Black cities on Twitter, they turned to one of the principal peddlers of White racial threat to reach a group of supporters who would serve as boots-on-the ground to help overturn the election. While it is difficult to estimate exactly how many listeners the *Alex Jones Show* had during this period, there is reason to think the number was substantial. On November 5, 8, and 11, Jones claimed that millions of new listeners had tuned in in recent days,⁸⁴ and one point on January 12, 2021, he noted that he had two million people actively streaming at that moment. It is more than possible that Jones was exaggerating the number of listeners who were tuning into his show each day, but it is clear that he, Roger Stone, and others were speaking to a large audience in the episodes which aired six days a week. Jones leveraged this platform to become, in the words of the Congressional Committee investigating the January 6th insurrection, “one of the loudest supporters of the ‘Stop the Steal’ movement”⁸⁵ and a key fundraiser for the events on January 6. He was richly rewarded for his efforts: He was seated in the VIP section during President Trump’s speech at the Ellipse, and has claimed that the White House asked him to lead the march from from down Pennsylvania Avenue to the Capitol building that afternoon.⁸⁶ In short,

⁸³Jones (2021, at 53:35).

⁸⁴Jones (2020*g*, at 2:21:51); Jones (2020*f*, at 2:05:39); Jones (2020*u*, at 54:57).

⁸⁵United States House Select Committee on the January 6 Attack (2022, pg. 531).

⁸⁶*Ibid.*, pg 648.

Jones's role as a principal developer of the Big Lie is difficult to overstate.

Jones also, as we have seen, platformed other less-well-known individuals on his show. One of these individuals would help organize stop-the-steal rallies in Georgia and elsewhere, and used his own platform to deliver much harder-edged comments about the purported theft of the election.



“BLM is you,” explained Nick Fuentes the day after the insurrection on his *America First* podcast, “and Trump supporters are us. And our moral framework is, ‘We are righteous, and you’re not. When we get pushed back or hurt, it’s bad. When you get pushed back or hurt, it’s good’...We are engaged in an existential battle for control over this country, and the inheritance of Western civilization.”⁸⁷

We met Fuentes at the opening of this chapter, with his “wink-and-nod hints at intimidation and violence” against Georgia legislators, as the January 6 Committee report put it.⁸⁸ It would not be the only time. “The reason Republicans politicians don’t do the things that we want them to do is because we have no leverage over them,” he told his listeners on January 4. “Republicans just screwed us every day for two months straight, and we had no recourse. Why? Because we had no leverage. What are we going to do to them? What can you and I do to a state legislator, besides kill them?”⁸⁹

Nicholas J. Fuentes was just 22 years old at the time of the 2020 election. In 2017,

⁸⁷Fuentes (2021*a*, at 1:13:04).

⁸⁸United States House Select Committee on the January 6 Attack (2022, pg. 504).

⁸⁹Fuentes (2021*b*, at 1:09:55).

he attended the Unite the Right rally in Charlottesville, Virginia, a gathering of right-wing actors featuring neo-Nazis, White supremacists, and members of the Ku Klux Klan.⁹⁰ A counter-protester, Heather Heyer, was murdered by one of these self-proclaimed neo-Nazis.⁹¹ Shortly after attending the rally — one featuring, in President Trump’s memorable phrase, “very fine people, on both sides”⁹² — Fuentes dropped out of Boston University to focus on his new *America First* podcast. By the time his YouTube channel was suspended in early 2020, his episodes had accumulated more than 3 million views, and in mid-2020 *TIME Magazine* reported that Fuentes was the most popular account on the DLive platform and that his concurrent viewer counts rivaled those of ABC News and NBC News on YouTube.⁹³

If Alex Jones was reluctant to use explicitly racist language on his podcast, Fuentes shared no such compunction.⁹⁴ The day Biden was inaugurated, he stated his role in the movement plainly: “I uphold the White race.”⁹⁵ He referred to Black Lives Matter activists as “animals,” giggled when he “almost just said the N-word right there,” and mocked Black poet-laureate Amanda Gorman with references to her unwed parents.⁹⁶ His discussion of voter fraud was also much more racialized than that of Jones. Speaking about the election he complained, “They’ll just take my vote and outnumber it with 100 fake mail-in ballots from Milwaukee. They’ll just come in and outnumber it with 1,000 fake duplicate ballots

⁹⁰Heim et al. (2017).

⁹¹Ingber (2019).

⁹²Holan (2019).

⁹³Parker (2020); Bergengruen (2020).

⁹⁴Episodes of *America First* from the post-2020 election are no longer online in a centralized repository; most platforms had removed Nick Fuentes by early 2026 when I conducted this analysis. Similarly, transcripts are not available. However, many episodes available from the Internet Archive. My analysis is based on watching more than a dozen episodes of *America First* that aired between November 3, 2020, and January 20, 2021. As I did with Alex Jones, I also include videos (where available) of speeches from the Georgia protests.

⁹⁵Fuentes (2021*c*, at 2:35)

⁹⁶Fuentes (2021*a*, at 1:20:47); Fuentes (2020*b*, at 33:20); Fuentes (2021*c*, at 27:32).

from Detroit.”⁹⁷ At another point he told his listeners that “Black peoples’ vote counts for ten times as much as ours do.”⁹⁸ Like many of the others we have seen in this chapter, he regularly deployed Christian nationalist rhetoric: “Never forget that this is not a political battle. This is a spiritual battle. It is about us, the people of Christ and the people of God, against those evil liars in Washington, DC, and all over the great cities of the world.”⁹⁹ Ultimately, in Fuentes’s view, the United States “is an occupied country...These occupiers are not ‘we the people.’ They are something else. They are something different. They are something foreign, they are something hostile, they are something deeply un-American. And they are usurpers that don’t belong.”¹⁰⁰

Fuentes did not just frame voter fraud accusations in racialized way; he also very specifically raised the stakes of a Biden administration for his listeners in a manner sure to evoke racial threat. In between a November 23 episode about efforts to overturn the election in Georgia and a November 25 episode about the same in Pennsylvania, Fuentes dedicated an entire episode to something non-election related to illustrate the dangers Biden posed to his listeners.¹⁰¹ Titled “Dems Pursue Total White Genocide,” the episode dug into the Justice for Black Farmers Act of 2020,¹⁰² a bill intended to help address past systemic racism in America’s farm policy. The bill, sponsored by Senator Cory Booker, would expand access to credit, land, and technical assistance for Black farmers and funded farming research at historically Black colleges and universities. By empowering the USDA to buy land on

⁹⁷Fuentes (2021c, at 36:10).

⁹⁸Fuentes (2021a, at 1:22:22).

⁹⁹Nick Fuentes, *Speech outside the Georgia State Capitol*, November 20, 2020, at 10:40, https://www.youtube.com/watch?v=54_GVVoPiC0.

¹⁰⁰*Ibid.* at 49:00.

¹⁰¹Fuentes (2020a).

¹⁰²U.S. Congress, Senate, *Justice for Black Farmers Act of 2020*, S. 4929, 116th Cong. (2020), available at Congress.gov, <https://www.congress.gov/bill/116th-congress/senate-bill/4929>.

the open market and grant it to new and existing Black farmers, it had the potential to transfer millions of acres to a group against whom federal farm policy had discriminated for generations.¹⁰³

“I want to lay out these stories tonight because this is just a little sample of what we’re going to see if we don’t succeed,” explained Fuentes at the top of the episode. “The stakes could never be higher, and we’re going to show just a little bit of why that’s the case tonight, talking specifically about censorship and some of the anti-White, redistribution policies”¹⁰⁴ After spending a good deal of time explaining the program, he summed up what he understood to be the vision of America at the heart of the Justice for Black Farmers Act — and, more broadly, the vision of a potential Biden administration. It is worth quoting him at length:

The Democrats represent and advance the interests of Blacks, Hispanics, Asians, homosexuals, Jewish people, women, Muslims. And the Republican party...the interests of White, Christian people in the interior of the country, the so-called real Americans, the traditional American nation, against that. That’s what really this is about. A tug of war between those two parties representing and executing and expressing the interests of those constituencies. The Republicans representing the interests of generational Americans, what you would consider traditional Americans, who are mostly White, but not all White...And they’re up against this sort of revolutionary idea of America, represented by spiritual or actual outsiders and foreigners, which are Blacks (alienated from the traditional American nation because of their history of discrimination and slavery in this country); Hispanic immigrants (alienated from the traditional American nation because they’ve been living outside of it for generations and only recently immigrated to it); and then various categories which are much smaller like I said, maybe Jewish people, homosexuals, extreme liberals, who are alienated for their own reasons.¹⁰⁵

They are taking what is ours. And they are going to make our lives worse because

¹⁰³Philpott (2020). It is worth noting that the bill was introduced in the 116th and 118th Congresses, but not during the 117th when Democrats had unified control in Washington, DC.

¹⁰⁴Fuentes (2020*a*, at 1:00).

¹⁰⁵Ibid. at 1:23:24.

of it. They are going to take from us and they are going to use what we have to make our lives worse. To take away our ability to dictate how this country is supposed to go. Take away our ability to dictate what kind of country our children will inherit and live in. That’s what this is about. That’s what this is all about. The stakes could not be higher, because the Biden transition represents the, possibly, the final nail in the coffin of that traditional American nation and their power.¹⁰⁶

Fuentes used this episode of *America First* to say the quiet part out loud. If Biden were to be allowed to take the White House, White people — the “real Americans” — would lose out to racial and ethnic minorities — the “outsiders and foreigners.” Fuentes very clearly explains the thinking that so often passes implicitly behind this coded rhetoric. Airing this episode in the very midst of the Stop the Steal campaign, Fuentes is all but acknowledging to his listeners that his intent is to use the language of racial threat to spur them to action, to attend protests against the election around the nation, and to fight to keep President Trump in office.

To be sure, Fuentes was not yet a major player in conservative American politics. Such renown would come later, when Donald Trump dined with him (along with Kanye West and two others) at Mar-a-Lago in November 2022,¹⁰⁷ and in the aftermath of the killing of Charlie Kirk in 2025.¹⁰⁸ Nevertheless, we should take his influence in the aftermath of the 2020 election very seriously. He was platformed multiple times by Alex Jones, and he was platformed alongside other, more “mainstream” voices at many of the protests in Georgia and elsewhere throughout November and December 2020. Indeed, the January 6th Committee report calls him a “key voice for ‘Stop the Steal’ conspiracy theories,” and mentions him

¹⁰⁶Ibid. at 1:26:50.

¹⁰⁷Scott and Dawsey (2022).

¹⁰⁸Wheatley (2025).

more than 50 times throughout.¹⁰⁹ Even if Alex Jones and others were reluctant to use such explicitly racist language to stir up their followers, they had no problem platforming individuals like Fuentes. It would be a mistake not to consider the ideologies espoused by this self-avowed racist central to the genesis of the stop the steal movement.¹¹⁰



From Alex Jones to Nick Fuentes, from the Proud Boys to the Oath Keepers: It is clear that there was a coordinated effort among fringe actors surrounding Donald Trump to sow distrust about the 2020 election in the aftermath of November 3. In many cases, the rhetoric used by these actors belied an underlying ideology of White supremacy, Christian nationalism, and anti-Black racism. Yet despite their central role in the development of the Big Lie, they nevertheless remained at the fringe of American political life. Alex Jones, after all, had been banned from all of the major social media platforms by the time of the 2020 election, while Nick Fuentes still had only a modest following on sites like Twitter. How, then, did these conspiracies make the leap to the mainstream? How, by the week following the January 6 insurrection, did some 69% of Republicans believe that Joe Biden did not legitimately win the 2020 election?¹¹¹

A growing body of scholarship offers some clues. Writing about the unique dynamics governing the conservative media ecosystem in America, Benkler, Faris and Roberts describe a “competitive dynamic among right-wing media [that] increases the shrill, conspiracy-

¹⁰⁹United States House Select Committee on the January 6 Attack (2022, pg. 520).

¹¹⁰Reyes (2025).

¹¹¹Post (2021).

tainted tone and content of coverage and makes right-wing audiences ever more susceptible to manipulation.”¹¹² They describe a process in which fringe actors on the right can “hack” their way into more mainstream coverage, so long as they have the “willing and active complicity of outlets higher up the chain.”¹¹³ Other scholars have similarly documented the processes through which right-wing actors can influence the agenda of more mainstream conservative outlets, especially during high-salience periods like elections.¹¹⁴ In short, there was a well-established pipeline through which these conspiracy theories could reach a massive audience.

In one of the great ironies of the 2020 election, the spread of the Big Lie can be traced in part in the very high quality of the Fox News’s Decision Desk team. On election night, the nonpartisan Fox Decision Desk was the first major network to call Arizona for Joe Biden.¹¹⁵ This caused, to borrow from a headline in the *Washington Post*, a “political earthquake.”¹¹⁶ Immediately, commentators on the far right began to attack Fox for the call. The day after the election, Jones accused Fox of “playing the part of Judas Iscariot” for calling Arizona and Nevada for Biden;¹¹⁷ he would be unrelenting in his criticism of the network in the months to come and celebrated the shift of listeners to platforms like Newsmax and One America Network. During his November 10 appearance on the show, Stone encouraged listeners to attend a protest outside Fox’s headquarters the following day.¹¹⁸ Fuentes, too, would dedicate considerable airtime to his critiques of Fox News and the Republican party

¹¹²Benkler, Faris and Roberts (2018, pg. 268).

¹¹³Ibid., pg 233.

¹¹⁴Vargo, Guo and Amazeen (2018); Guo and Vargo (2020); Kaiser, Rauchfleisch and Bourassa (2020).

¹¹⁵Barr (2020).

¹¹⁶Barr (2024).

¹¹⁷Jones (2020*a*, at 55:52).

¹¹⁸Jones (2020*b*, at 1:15:24).

for their failure to immediately endorse the myth of the stolen election. The criticisms would only increase after the network formally called the national race for Biden on November 7, but it was not just the podcasters who were angry: President Trump himself would call Fox News “virtually unwatchable” and promote right-wing news sources in the aftermath of the election.¹¹⁹ It worked. Over a one week period Newsmax increased its viewership by a factor of 10, and by December Newsmax’s Greg Kelly would rival Fox’s viewership during his 7 pm show.¹²⁰ These channels were suddenly major players in the right-wing media ecosystem. In late 2021, a third of White Americans who were convinced the election was stolen (and 21% of *all* White Trump supporters) named them as their most-trusted source for television news; these racialized conspiracies about the election were reaching a massive audience.¹²¹

The pressure on Fox was immediate: Fox host Tucker Carlson wondered in a text message to his producer whether the Fox “executives understand how much credibility and trust we’ve lost with our audience” because of the Arizona call, and warned that competition from Newsmax posed a potentially “devastating” risk.¹²² They did. By November 11, Fox’s senior vice president Raj Shah was projecting that “on our current course, if not already then by the weekend, opinions of Fox from our core viewers will be underwater.”¹²³ To win back their viewers, Fox News would platform guests in the subsequent weeks who spread conspiracy theories. The network knew these theories were untrue. As Fox News Politics

¹¹⁹Folkenflik (2020).

¹²⁰Bauder (2023); Barr (2020).

¹²¹ Author calculations from Public Religion Research Institute (2021). Sample restricted to non-Hispanic White respondents who said they watched television news.

¹²² *US Dominion, Inc., Dominion Voting Systems, Inc., and Dominion Voting Systems Corporation v. Fox News Network, LLC and Fox Corporation*, Dominion’s Brief in Support of Motion for Summary Judgment on Liability (Delaware Superior Court, filed February 16, 2023), public redacted version.

¹²³ *US Dominion, Inc. v. Fox News Network, LLC*, C.A. No. N21C-03-257 EMD; C.A. No. N21C-11-082 EMD (Del. Super. Ct. Mar. 31, 2023), Order on Summary Judgment Motions, Delaware Superior Court (Eric M. Davis, J.).

Editor Chris Stirewalt put it, “there was no way anybody could think that Donald Trump had really won the election,”¹²⁴ but he was hardly alone.

Following the election, Dominion Voting Systems sued Fox for spreading lies that the company’s voting machines flipped votes to Biden. As part of the lawsuit, Dominion uncovered evidence during discovery of many Fox hosts, reporters, and executives explicitly saying that the theories were “ludicrous,” “complete bs,” and “MIND BLOWINGLY NUTS.”¹²⁵ Carlson texted his producer on November 16 that Sidney Powell (the principal architect of the Dominion conspiracy theory) was lying, and the next day told Powell herself that her claims were “cruel and reckless.”¹²⁶ That did not stop Powell from making multiple appearances on Fox during the rest of November and December. Business was business: As Senior Vice President of Primetime Programming and Analytics Ron Mitchell explained on November 18, “This type of conspiratorial reporting might be exactly what the disgruntled FNC [Fox News Channel] viewer is looking for.”¹²⁷ Ultimately, Fox settled with Dominion in 2023 and agreed to pay them nearly \$800 million for their role in spreading lies about the company.¹²⁸

Fox News’s contribution to the Big Lie did not, however, rest only on theories about Dominion’s voting machines. On November 9, Fox anchor Neil Cavuto cut away from a White House Press Conference in which Kayleigh McEnany, the press secretary, lied about irregularities in the election. “Unless she has more details to back that up,” Cavuto said, “I can’t in good countenance continue to show you this.”¹²⁹ But by December 17, she was a

¹²⁴ *Dominion v. Fox News*, Dominion’s Summary Judgment Brief (Del. Super. Ct., Feb. 16, 2023).

¹²⁵ *Ibid.*

¹²⁶ *Ibid.*

¹²⁷ *Ibid.*

¹²⁸ Bauder, Chase and Mulvihill (2023).

¹²⁹ *Dominion v. Fox News*, Dominion’s Summary Judgment Brief (Del. Super. Ct., Feb. 16, 2023).

guest on the network and freely espousing these theories. Trump himself was invited onto the network on November 29 and used the opportunity to similarly spread misinformation about the election. He would face no pushback from host Maria Bartiromo. She would, instead, agree with him: “This is disgusting. And we cannot allow America’s election to be corrupted. We cannot.”¹³⁰ Fox News was all in.

Fox News did not itself use the explicitly racialized language around voter fraud that saturated the *Alex Jones Show* or *America First*. Its hosts did not invoke the Great Replacement, platform the Proud Boys, or conjure visions of what a Black-led Democratic coalition would mean for White America. But none of that was necessary. By the time Fox’s executives made the commercial calculation to platform the Big Lie, the racial priming had already been done. Lies forged in the furnace of White nationalist grievance, made credible through relentless appeals to anti-Black animus and Christian nationalist threat, arrived at Fox’s doorstep pre-packaged for an audience that had already been prepared to receive them.

The Big Lie had gone mainstream — but it carried its racial origins with it. After mainstream Republican elites initially refused to endorse Trump’s claims about the stolen election, the president and his allies turned to alternative spaces to manufacture belief in the conspiracy. By turning to individuals like Jones and Fuentes, backers of the Big Lie accomplished two discrete goals. On the one hand, they developed their theories for audiences uniquely susceptible to the racial threat and racial resentment with which they were imbued. But broadcasting to the public was not the whole game: They also leveraged anger with Fox and other mainstream actors to pressure the center-right into allowing space for claims of electoral theft.

¹³⁰Trump and Bartiromo (2020, at 29:22).

It is important to note, too, that the Big Lie went mainstream with a real life of its own. By the time Fox News was platforming it, the myth no longer relied on “true believers” to propagate it. It now issued forth with an internal logic all of its own: voter fraud *did* occur; even if the specific cases did not survive scrutiny, there was enough smoke emanating from Black cities to make a fire seem likely. And even if Fox News hosts knew that specific accusations were “MIND BLOWINGLY NUTS,” they had received an official imprimatur. The combination of Jones’s large platform, alongside the capitulation of the center, lent the myth a credibility that could make it attractive to an enormous population of White Americans skeptical of Black political power.

As Chapter 4 shows, the adoption of the Big Lie occurred along the lines we would expect given what our analyses of elites in the aftermath of the 2020 election would predict. Racially resentful White Trump supporters adopted the Big Lie early in the first two weeks after the election, before Fox had capitulated and when it was mostly owned by Jones and allied actors. It was only later — after Fox began broadcasting these lies — that it was taken up more broadly by less-racially-resentful White Trump supporters. As the Big Lie moved into the mainstream, the particular features of its development ensured it would resonate massively with the racially-resentful White public.

Chapter 4

Voter Fraud is Not a “White Thing:” The Mass White Public’s Response

“Voter fraud is not a ‘white thing.’ It’s usually a crime committed by lower income blacks and Latinos. They often believe that white society owes them big time---and this justifies their corrupting the system.”

-Twitter user, November 18, 2020.¹

“Don’t be nervous,” US Representative Bennie Thompson told Wandrea “Shaye” Moss as she began her testimony before the January 6 Committee on June 21, 2022. She flashed a self-deprecating smile; how could she help but be nervous, having been summoned to the nation’s capital to address the United States Congress?² But her nerves might well have been caused by more than just the opportunity to address members of Congress. She was there that day to recount how the actions of Trump and his associates had turned her life upside down, and to shine the bright light of Congress’s attention on individuals who wished her real harm.

Chapter 2 introduced Shaye Moss and her mother, “Lady” Ruby Freeman, who became the targets of conspiracy theories surrounding ballot counting in Fulton County, Geor-

¹ Anonymized to protect small account. Tweet on file with author.

² U.S. House Select Committee to Investigate the January 6th Attack on the United States Capitol, *Fourth Public Hearing*, June 21, 2022, video, YouTube, <https://www.youtube.com/watch?v=YZPBWZcr-vw>. The following descriptions come directly from Moss’s testimony on the 4th day of the public hearings of the House Select Committee on the January 6 Attack. Interspersed throughout Moss’s testimony, the Committee played pre-recorded video from her mother’s previous testimony.

gia, following the 2020 election. The president’s lawyer, Rudy Giuliani, baselessly accused these two Black women of passing around USB ports “as if they were vials of heroin or cocaine.”³ This was just one part of a much larger campaign to cast aspersions on the ballot totals reported out of largely Black municipalities in swing states led by elites in the Trump campaign. This elite-led project had real consequences for Ms. Moss and Ms. Freeman. But it was not the elites who carried out the harassment: It was ordinary White Americans with access to cell phones and to Facebook accounts.

Moss opened her testimony by invoking her ancestors. When asked by Representative Adam Schiff why she enjoyed being an election worker, she shared that her grandmother and others in her family had taught her that earlier generations of African American voters had not had the right to vote. It was helping older voters, in fact, that was Moss’s favorite part of the job.

During her testimony before the Committee, Moss explained the threats she found in Facebook messages moments after she learned of the conspiracy theory. One told her to “be glad it’s 2020 and not 1920,” an apparent reference to Georgia’s vile history of lynchings.⁴ These threats included pictures of burning flags, accusations of treason, and “racist terms over — like literally over and over and over and over.”⁵ While watching her mother explain how the attacks from the Trump campaign had turned her life upside down, Moss began to quietly cry. Moss then explains to Schiff that being targeted had “affected [her] life in a

³Ibid. at 3:10:09.

⁴Ibid. at 3:13:51.

⁵U.S. House Select Committee to Investigate the January 6th Attack on the United States Capitol, *Interview of Wandrea ArShaye Moss*, June 1, 2022, Washington, DC, transcript, Government Publishing Office, 39, <https://www.govinfo.gov/content/pkg/GPO-J6-TRANSCRIPT-CTRL0000087794/pdf/GPO-J6-TRANSCRIPT-CTRL0000087794.pdf>.

— in a major way.” She pauses. “In every way. All because of lies.”⁶ Moss and Freeman explained how a mob of individuals pushed their way inside of Moss’s grandmother’s home, attempting to make a “citizen’s arrest” of the two women. Freeman detailed the pain of the FBI explaining the need to leave home for two months as the number of death threats against her increased. She was called by the n-word repeatedly,⁷ and reported receiving hundreds of racist calls and messages — “messages that I do not even feel comfortable describing here.”⁸ Those terrorizing Freeman and Moss were acting on the lies of Trump, Stone, Jones, and others — but they were not themselves elites. The rhetoric had found its intended audience, and that audience had acted on it.

“There is nowhere I feel safe,” Freeman told her interviewers. “Nowhere.” Her voice cracks. “Do you know how it feels to have the President of the United States to target you?”⁹



We have seen how political actors structured the Big Lie in the aftermath of the 2020 election. Chapter 2 detailed the Trump campaign’s own racialized rhetoric, and showed that Republican members of Congress representing the most racially resentful White Americans were the most likely to ultimately vote against certification. But Chapter 3 revealed something theoretically important about the pathway through which the Big Lie reached the mass public. When mainstream Republican elites initially refused to endorse lies they knew

⁶Select Committee on the January 6th Attack, *Fourth Public Hearing* at 3:19:24.

⁷U.S. House Select Committee to Investigate the January 6th Attack on the United States Capitol, *Interview of Ruby Freeman*, May 31, 2022, Washington, DC, transcript, Government Publishing Office, 27, <https://www.govinfo.gov/content/pkg/GPO-J6-TRANSCRIPT-CTRL0000087794/pdf/GPO-J6-TRANSCRIPT-CTRL0000087794.pdf>.

⁸*Ibid.*, pg. 7.

⁹*Ibid.*, 8.

to be false, Trump and his allies turned to fringe actors — Alex Jones, Nick Fuentes, the Proud Boys and Oath Keepers — whose appeal was built on explicit anti-Black racism, Great Replacement anxiety, and Christian nationalist threat. This was not an unfortunate detour. It was the transmission mechanism. The Big Lie did not arrive at Fox News and the broader conservative public as a generic partisan grievance, but rather pre-saturated with racial content, having been shaped and amplified in spaces defined by White racial animus. The question, then, is whether ordinary White Americans received it that way.

Were ordinary White Americans buying what the Trump campaign and others were selling? Put differently: Although we know that the Big Lie found purchase among a wide swath of the Republican electorate, we do not yet know whether it was absorbed into the mass White public in a specifically racialized way. We have some reason to think it may have been: As Chapter 2 shows, Trump and his allies were successful at centering the national Twitter conversation about voter fraud on the largely-Black municipalities at the center of their conspiracy theories. We have also seen that individual Black women like Ruby Freeman and Shaye Moss were on the receiving end of racist attacks from many individual actors, and not just from elites. Some White Americans, like the Twitter user whose post opened this chapter, said the quiet part out loud, providing a near-textbook definition of the racial resentment Chapter 3 showed Jones and others worked to activate. But other White Americans might well have expressed their racial animus through more coded language and implicit racial biases. It is now time to turn to evidence of how ordinary White Americans thought about the election as these lies were taking root.

Using multiple different data sources we will see that the Big Lie was bought along the same lines that it was sold. White racism was firmly at the center of the story. White

Trump supporters who were racially resentful were the earliest to buy into the Big Lie; their confidence deteriorated the most during the post-election period, relative to the pre-election period; and, in a survey experiment I ran with my colleague Ian Shapiro, we show that White Republicans and White Americans with high levels of racial animus found accusations of voter fraud especially compelling when they were levied against Black municipalities. Make no mistake: By the time of the insurrection, White Republicans of all stripes had bought into the Big Lie. But those with the highest levels of racial animus bought in earlier, and bought in for more.



Although equal access to the ballot box has never characterized American democracy White Americans profess a deep connection to it as a pillar of democratic society. According to the 2017–2022 World Values Survey, more than half of White American participants called democracy “Absolutely important,” a 10-out-of-10 on the available scale. For Black Americans, just 1 in 3 considered democratic governance so important — perhaps because, for them, it has often been used to explain away the uneven distribution of resources and power in the United States. The just world theory and system justification theory can help to make sense of these different attitudes toward democratic rule.¹⁰ As Chapter 3 discussed, humans are social creatures who interpret their own social standing through that of the groups to which they belong.¹¹ And yet, those who find themselves at the top of social hierarchies — be they racial, economic, or otherwise — often express discomfort when that

¹⁰Lerner (1980); Jost and Banaji (1994); Jost (2019); See also Sidanius and Pratto (1999).

¹¹Tajfel (1978); Tajfel and Turner (1979).

positionality is based not in merit or hard work, but rather in systemic and human-produced power imbalances. People within dominant groups seek to render these outcomes natural and inevitable, the result of a “just world” and not of unfairness. System justification aids in this process: If the system that creates these imbalances can itself be characterized as good and fair, the outcomes it produces must be, too.

It is not hard to see how elections, and democratic systems more generally, have an important role to play in this process. As the World Values Survey shows, White Americans demonstrate deep attachment to democracy — a system that has long accrued disproportionate benefits to their racial group. Electoral politics are historically cast as a virtuous way of allocating political power despite the fact that the playing field has always been tipped toward White Americans. Until at least 1965, these regularly scheduled contests reinforced the standing racial hierarchy and did so under a veneer of legitimacy.

But just world theory also suggests White Americans will become more skeptical of democracy should it no longer reliably produce disproportionate benefits for in-group members. After 2008, in which the nation’s first Black president was elected, White Americans were forced to face the reality that electoral politics might no longer place them at the very top of the racial hierarchy. This heightened the stakes of racial competition at the ballot box, and by now we know how many White Americans responded: Racially antipathetic White Americans are only *conditionally* committed to democratic governance. They are supportive when it reliably produces outcomes favorable to them, and they are prone to walk away from it when it does not. Researchers in recent years have shown this in a variety of ways: Jardina and Mickey show that White Americans high in White racial consciousness seek to protect group privileges, and are more supportive of authoritarian leadership

that would limit the gains of multiracial democracy.¹² Enders and Thornton, meanwhile, use measures of racial resentment similar to those employed throughout this book.¹³ They show that racially-resentful White Republicans are more dissatisfied when their candidate loses than other Republicans, and that resentful Democrats are less satisfied when their candidate wins. Similarly, Miller and Davis show that socially-prejudiced White Americans ascribe less importance to democratic principles, and Rush et al. shows that White Americans high in racial antipathy were more sympathetic towards the January 6th insurrection.¹⁴ More generally, researchers show that when members of dominant groups feel that they no longer represent the nation, they are more likely to endorse people and policies that reinforce their dominant position.¹⁵ In short, antidemocratic thinking in the United States cannot be divided from race and considerations about group position.¹⁶

White Americans thus face a real democratic dilemma: Do they continue to defend electoral democracy, which has historically accrued benefits to them in a “just” manner, or do they abandon it as it becomes a tool that minority Americans can use to gain power? And are there mechanisms they can leverage to maintain a rhetorical commitment to democracy even as they undermine it? Gunnar Myrdal observed this tension at play in 1944, prior to the Second Reconstruction. “The Southerner,” he wrote, “is forced to circumvent the Constitution if he is to keep the Negroes from voting. But the Constitution and its principles have a grip on the Southerner’s own soul. He therefore needs to believe that when the Negro voted, life was unbearable. The myth of the horrors of Reconstruction thus permits the

¹²Jardina and Mickey (2022).

¹³Enders and Thornton (2022).

¹⁴Miller and Davis (2021); Rush et al. (2025).

¹⁵Bai and Federico (2021); Danbold, Serrano-Careaga and Huo (2023).

¹⁶Blumer (1958); Bobo (1999).

Southerner to reconcile the two conflicting desires within himself.”¹⁷

One avenue through which White Americans might do so is by casting contemporary elections as corrupted by the criminality of Black Americans, a longstanding stereotype in White America. As Chapters 1, 2, and 3 showed, there is no shortage of elites who help re-inscribe this relationship. From the “corruption” that Whites said characterized Reconstruction Era governments, to the use of the War on Drugs to claw back gains from the Civil Rights Movement, to the constant derogation of Black Lives Matter “thugs,” links between criminality and race have always grown directly out of fears of political power being wielded by African Americans. As a result, racially resentful Whites are more likely to believe Black Americans do not follow the “rules of the game;” or that they are “line cutters;” and they receive benefits they do not deserve.¹⁸ Such pejorative perceptions inform beliefs about who is capable of fraud in modern elections.¹⁹ After all, White Americans have been primed for decades to believe in the plausibility of accusations of crime levied against Black Americans — a link that was born out of struggles surrounding access to the franchise and that is re-ignited by strategic politicians when it suits their needs. The association of many Whites between Black criminality and elections helps to resolve the tension between commitments to democracy and the status threat of a politically powerful Black America.

While all conservatives would have reason to dislike the results of the 2020 election,²⁰ the *democratic tension* between legitimizing democratic systems and preserving power should be most acute for racially antipathetic White Americans: They are the most motivated to justify and support democracy, as it has historically benefited them; they are also the

¹⁷Myrdal ([1944] 2017, pg. 572).

¹⁸Hochschild (2016); Davis and Wilson (2021).

¹⁹Wilson, Brewer and Rosenbluth (2014).

²⁰Anderson and LoTempio (see 2002, for a discussion of the “sore loser” effect).

most threatened by the prospect of multiracial democracy. If a poor electoral showing is rationalized as the result of fraud, they do not need to consider whether their stated commitment to democratic systems is in tension with their fears of a racially-progressive state.

Rather, individuals dissatisfied with outcomes they dislike can rely on old tropes casting Black Americans as cheaters and criminals. In this scenario, White people can continue telling themselves they are committed to democracy, and that they reject the 2020 election because it was not itself a legitimate democratic outcome. Given the extent to which Trump and other elites purposefully activated racial resentment and relied on tropes of Black criminality during the 2020 election, racial resentment should provide clear explanatory power for which White Americans bought into the Big Lie, and when they did so.



The concept of racial resentment is key to how social scientists study White racial animus in the United States today. But it is not without its critics — some scholars (though by no means all) argue that the construct captures general conservatism more than specific racial attitudes.²¹ To avoid conflation between conservatism and racial resentment, this chapter often breaks White *Trump* supporters out to mechanically account for partisanship and to focus on the population for whom the Big Lie should have been most activating. At other times, however, I include the full White population (while controlling for self-identified partisanship and ideology) to show that racial resentment *consistently* predicts racialized

²¹See Sniderman and Tetlock (1986) for critiques, and Henry and Sears (2002); Tesler (2012) for defenses of the measure.

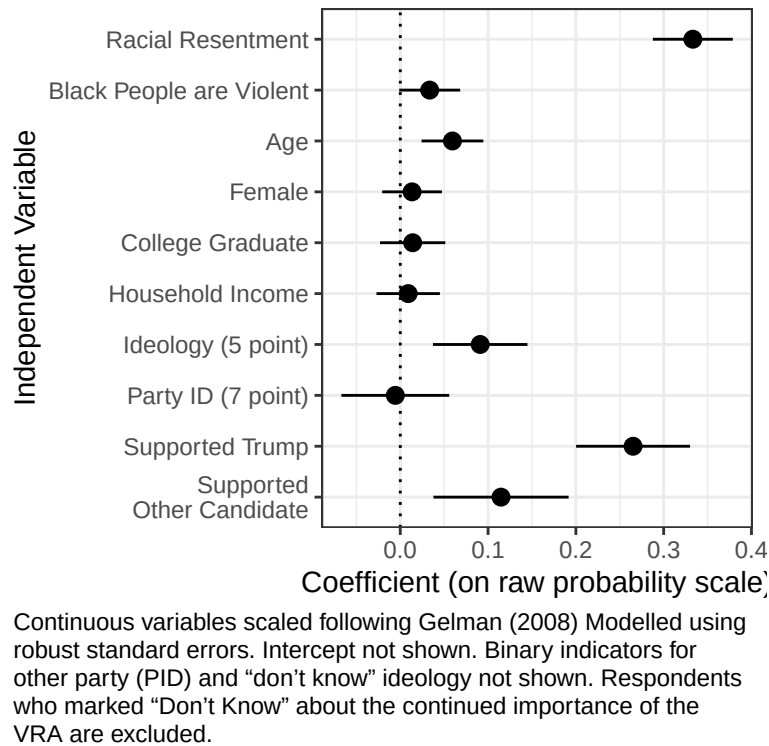
political attitudes. But before using it to predict other characteristics throughout this book, I establish that it really does map onto how White Americans think about the political power wielded by Black (and other minority) Americans. To do so, I turn back to the CMPS data discussed in Chapter 3 in relation to Christian nationalism. The CMPS asks all four of the questions used in the traditional racial resentment battery. However, Nationscape and the Cooperative Election Study ask only two of these.²² For the sake of consistency across the surveys I use only those two questions in the CMPS analyses. Nevertheless, the results are almost indistinguishable when I use the four-item battery.

Chapter 3 showed that Christian nationalism was a potent predictor of whether a White respondent believed that the Voting Rights Act was still necessary, net of other characteristics. Figure 4.1 shows that racial resentment is also strongly linked to White Americans' thoughts about the VRA. As in other places in this book, I show "scaled" coefficient plots, which make the magnitude of different coefficients directly comparable even though they use different units. The figure makes clear that racial resentment was the *most important* predictor of whether a White American surveyed in the aftermath of the 2020 election believed that the VRA was no longer necessary. Clearly, racial resentment was an important predictor of White Americans' attitudes about racial politics in the aftermath of the 2020 election. I also note, and show in the Appendix to this chapter, that using an alternative question about the perceived discrimination against Black Americans directly instead of racial resentment returns substantively similar results.²³

²²*Irish, Italians, Jewish and many other minorities overcame prejudice and worked their way up. Blacks should do the same without any special favors and Generations of slavery and discrimination have created conditions that make it difficult for blacks to work their way out of the lower class.*

²³The discrimination question reads as follows: *How much discrimination, if any, do you think exists against each of the following groups in the U.S. today? Blacks.*

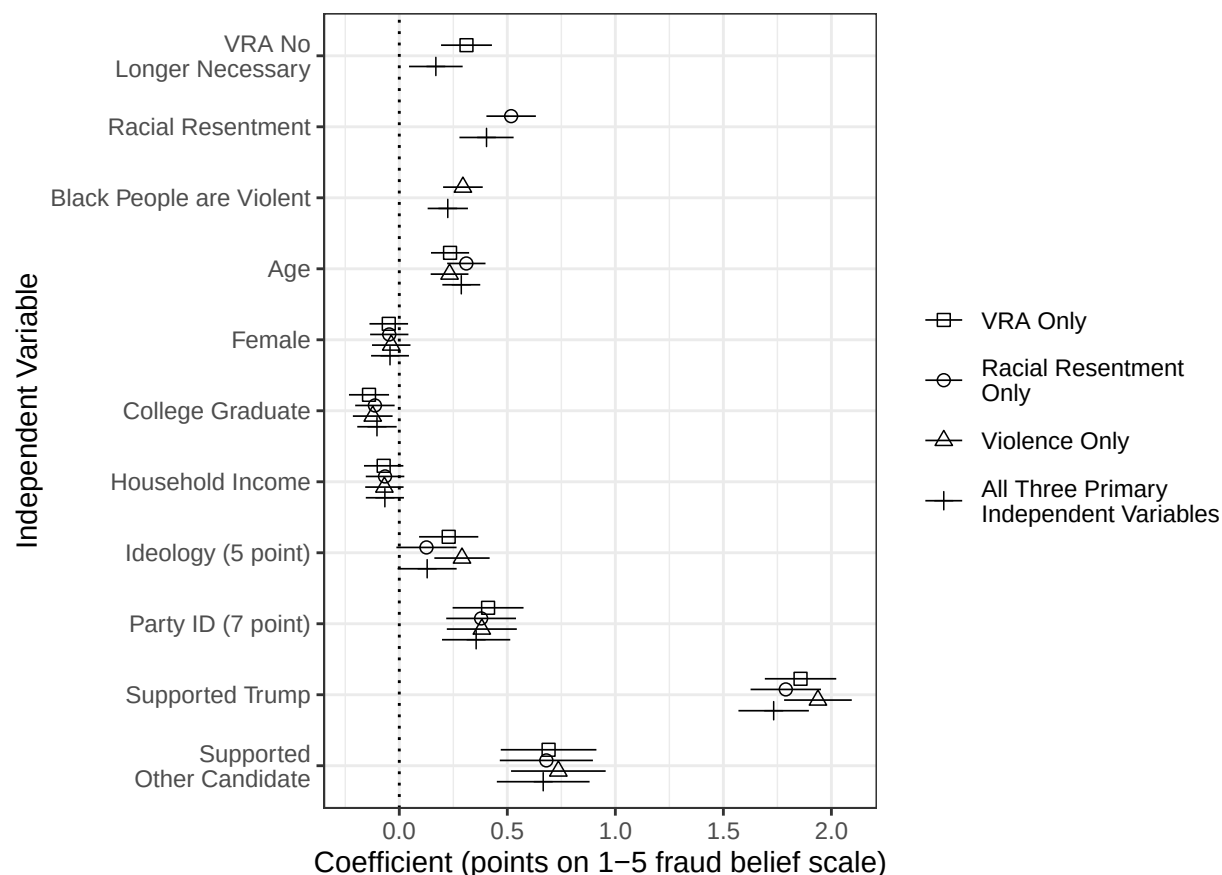
Figure 4.1: Racial Resentment and Whites’ Feelings on the Importance of the VRA



Racial resentment and negative feelings about the Voting Rights Act also both strongly predict the extent to which White respondents to the CMPS believed fraud occurred, as Figure 4.2 makes clear.²⁴ A measure of perceived Black criminality is also associated with belief in fraud. These variables are each statistically significant and substantively large, whether included in isolation or in a single model. While, unsurprisingly, Trump support was the most important predictor of whether a White respondent believed in the Big Lie, racial resentment was more important than any of the other characteristics. Income, age, and education mattered less for belief in fraud than the respondents’ racial resentment.

²⁴The fraud question was split-sample. Respondents were asked the following questions: “Do you believe there was voter fraud in the presidential election which impacted the results?”; “Do you believe there was voter fraud in the presidential election at the level which would have changed the results and made Donald Trump the winner?”; and “Do you believe there was voter fraud in the presidential election at the level which would have changed the results and made Donald Trump the winner? This means overturning over 75,000 votes in four states which voted for Biden.” Because respondents were randomly assigned to these conditions, I combine the responses.

Figure 4.2: Racial Resentment, Support for VRA, and Beliefs about Black Violence Predict White Americans' Belief in Fraud



Continuous variables scaled following Gelman (2008) Modelled using robust standard errors. Intercept not shown. Binary indicators for other party (PID) and “don’t know” ideology not shown.

That support for the Voting Rights Act is so strongly associated with beliefs in voter fraud offers insight into how the myth of fraud is produced and racialized. Most Americans could not explain how Section 5 of the VRA works, the implications of *Brnovich v. DNC* for Section 2 litigation, or the distinction between racial and partisan gerrymandering. The question, then, likely reflects a disposition toward Black political power far more than it reflects any substantive policy understanding. The myth of voter fraud was weaponized in 2020 in response to Black political power; here, we see that internal logic laid bare.

Given everything we have seen so far, it is unsurprising that White Americans’ animus

toward Black voters is among the very strongest predictors of whether they bought into the Big Lie. These survey results, however, were collected in 2021, and therefore cannot tell us much about the patterns in *when* the Big Lie was taken up by the mass White public. Recall from Chapter 3 that the Big Lie was first incubated in explicitly racist and Christian nationalist corners of the right-wing ecosystem. More mainstream parts of the conservative media world, like Fox News, initially resisted giving credence to these conspiracy theories, since they knew that they were false. Eventually, however, the furor from places like Newsmax, One America News (OAN), and Alex Jones’s InfoWars became too intense to ignore. It was then that the Big Lie was really brought to the broader conservative public. If the explanation of how the Big Lie developed in the aftermath of the 2020 election is correct, it carries with it some clear implications. Specifically, if the Big Lie really was first developed by racists like Alex Jones and Nick Fuentes, we should see that belief that the election was stolen appeared among White Americans with higher levels of racial animus before it appeared in the broader White population. Is that the case?

To answer this question, I turn to a massive survey conducted in partnership between UCLA and the Democracy Fund leading up to, and following, the 2020 election. Between mid-2019 and early 2021, the Nationscape survey contacted nearly 500,000 Americans, making it among the largest public opinion surveys ever run.²⁵ Chapter 2 used these data when showing that lawmakers representing racially-resentful Congressional districts voted against certification of the 2020 presidential election on January 6 at higher rates. For the case at hand, I focus on the 15,000 White Trump supporters who responded to the survey between

²⁵Democracy Fund Voter Study Group. “Nationscape: A Comprehensive View of the American Electorate.” Accessed February 26, 2026. <https://www.voterstudygroup.org/nationscape>.

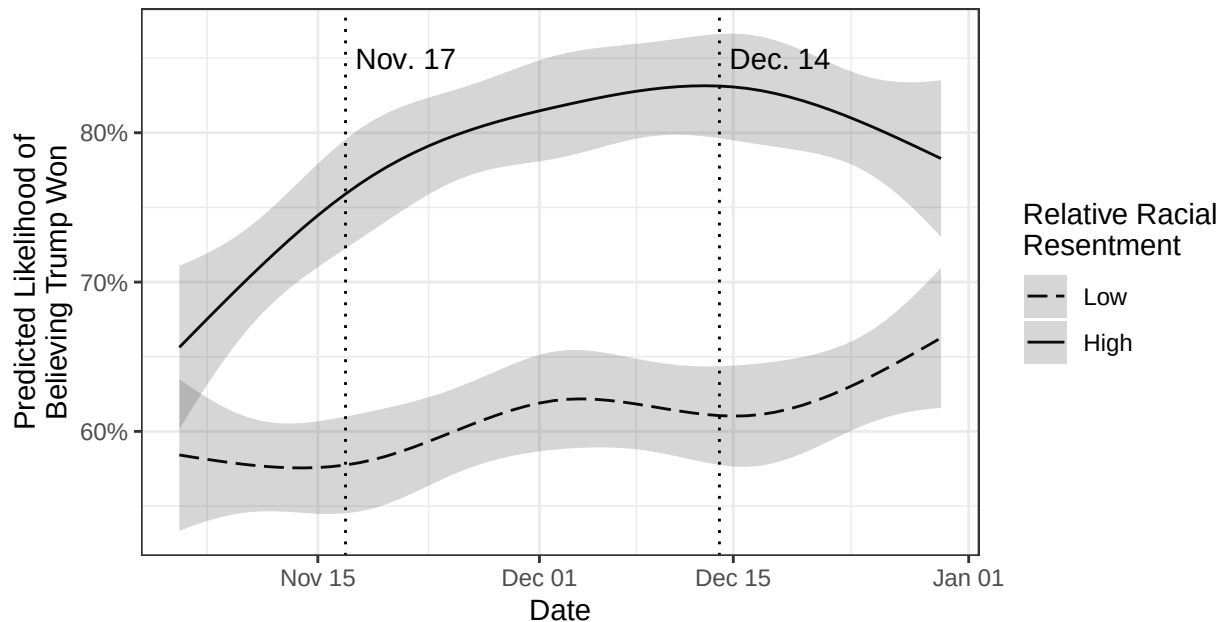
the election and the end of 2020; this, after all, was the population in which the election conspiracies were centered.²⁶ Critically, the Nationscape survey collected respondents' racial resentment (along with a host of other information), and also asked them who they believed won the 2020 election.

The survey collected responses from an average of 271 White Trump supporters *every single day* during the post-election period, letting me precisely track how belief that Donald Trump won the election evolved after the election. Specifically, I am interested in whether belief in the Big Lie increased more quickly among White Americans high in racial animus. To test this, I estimate a semi-parametric model allowing for the possibility that the belief that Trump won the election shifted at different rates and times for respondents with different levels of racial resentment. This model also accounts for other characteristics that might influence the extent to which a voter believed the Big Lie like age, income, education, and others (see the note to Figure 4.3). It also allows ideology and party identification to have non-linear relationships with belief in fraud.

Figure 4.3 makes clear that the Big Lie was taken up more quickly by the White Trump supporters with the highest levels of racial resentment. These respondents were already skeptical of the results immediately after the election: 60% of the 188 White Trump supporters with the highest level of racial resentment surveyed between November 5 and November 7 reported believing that Trump won the election (net of covariates, the predicted likelihood of believing that Trump won was 65.8% on the first day of the survey for these respondents). This increased dramatically, and quickly: Within just 2 weeks of the election,

²⁶Nationscape surveyed 49,774 Americans between November 5 and December 30, 2020. Of these, 34,320 were non-Hispanic White, 15,210 of whom I code as Trump supporters. An individual is considered a Trump supporter if they reported voting for him or, if they did not vote, if they reported a higher favorability rating for him than for Biden.

Figure 4.3: White Trump Supporters’ Racial Resentment and Timing of Belief in Big Lie



Model controls for age, gender, education, household income, Fox News viewership, right-wing media consumption, and social media news consumption. Ideology and party identification enter as penalized regression splines, allowing for flexible nonlinear relationships. “Low” racial resentment is 3 out of 5, and “high” is 5 out of 5. About 30% of this population scored at or below 3, while 25% scored 5.

their predicted rate of believing that Trump won increased to 76.0%. While belief in the Big Lie would continue to trend upwards for these individuals into December, most of the increase (58.8%) occurred in those first two weeks. For Trump supporters lower in racial resentment, however, the adoption of the Big Lie happened much later. It did not increase at all in the two weeks following the election (the predicted share believing that Trump won actually *decreased* slightly, by 0.6 points, though this is probably statistical noise).

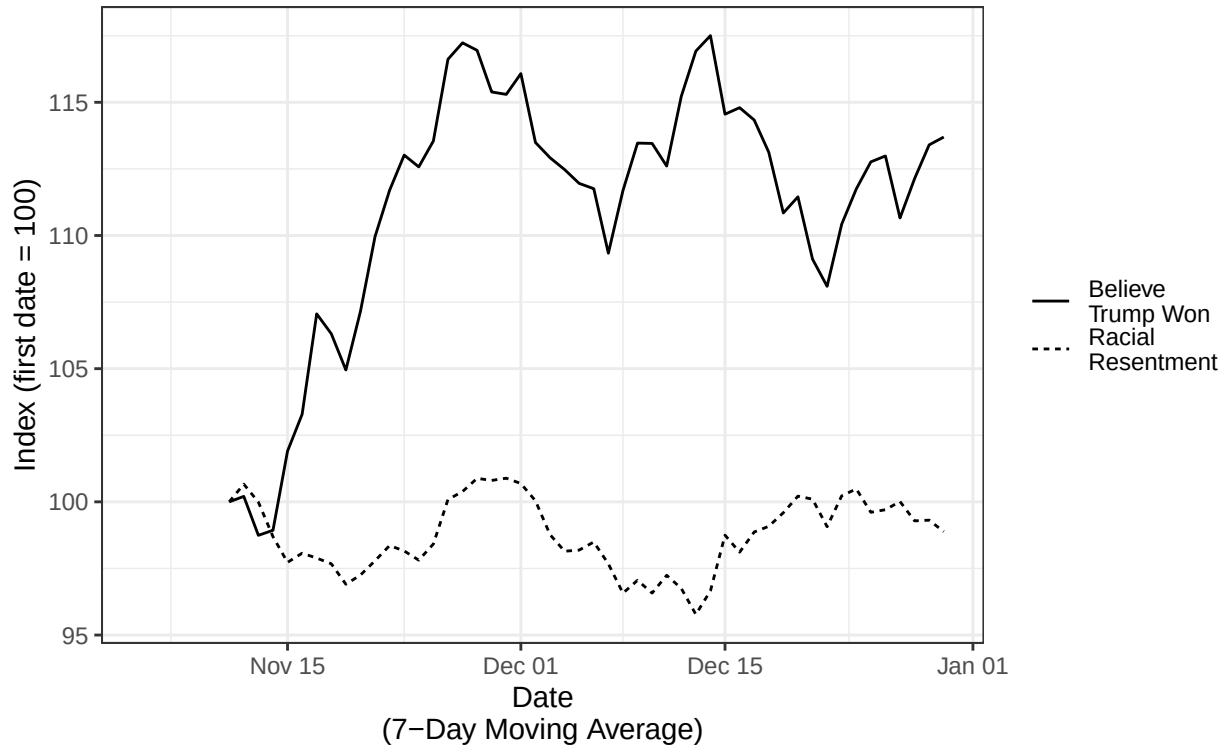
Over the course of December the predicted share of White Trump supporters high in racial resentment who believed that Trump won actually declined slightly; it seems possible that, once the Electoral College elected Biden as the winner on December 14, some accepted the result. The predicted share of low-resentment Trump supporters, meanwhile, increased by over 5 percentage points during the second half of December. Among the low-resentment

group, two-thirds of the total increase came *after* the Electoral College voted. To be sure, by the end of the period, an alarming share of White Trump supporters low in racial resentment had bought into the Big Lie (more than two-thirds). Nevertheless, Figure 4.3 makes clear that it was taken up first by those high in racial resentment, exactly as we would expect if it were first developed by racist White Americans before escaping containment.

While racial resentment clearly picks up on differences in when the Big Lie was taken up by White Trump supporters, the same is not true of other characteristics. As I show in the Appendix to this chapter, net of covariates, neither ideology, partisanship, age, nor education levels predict differences in when people believed the Big Lie. The Big Lie did not spread among more conservative Trump supporters first, nor among more committed Republicans. It was not taken up by older Americans before younger ones, or less-educated ones before more educated ones. But racial considerations do explain the spread of the Big Lie, consistent with its incubation among racist parts of the fringe-right described in Chapter 3.

The evidence indicates that racial resentment structures belief in the Big Lie, rather than the reverse: Figure 4.4 shows that even as White Trump voters as a whole became much more convinced that Trump was the rightful winner, their racial resentment hardly budged. If becoming convinced of the Big Lie was making White Americans more racially resentful, we would see resentment rise alongside (or shortly following) the increase in the share that believed Trump won the election. Racial resentment was instead an underlying characteristic that made the Big Lie more believable to some Trump supporters. This makes sense, given how thoroughly racialized the rhetoric of Trump, Jones, and others about fraud was during the period. It is worth noting that when either “old fashioned” racism or a direct measure

Figure 4.4: White Trump Supporters’ Racial Resentment and Belief in Big Lie



of perceived discrimination against Black Americans are used instead of racial resentment, the results are largely consistent.²⁷

While the Nationscape data give us tremendous insight into how different individuals were thinking about the election as the post-election period went on, it cannot tell us how individual Americans changed their own perceptions of the election after November 3. Another major survey from the social sciences (the Cooperative Election Study, or CES) interviews Americans twice: Once before the election, and once afterwards. Because individuals answer some questions twice, we can use the survey to determine whether their views on political

²⁷Old fashioned racism is measured as respondents’ agreement with the following statements: *I prefer that my close relatives marry spouses from their same race*, and *I think it’s alright for blacks and whites to date each other*. The second question is reverse-ordered to ensure comparability. Note that this is different from the peaceful / violent question available in the CMPS to measure old-fashioned racism; these are the closest available analogues. Perceived discrimination against Black Americans measured using: *How much discrimination is there in the United States today against each of the following groups? - Blacks*.

issues shifted once their preferred candidate won or lost the election. The CES is a massive survey in its own right, regularly surveying around 60,000 Americans each federal election season. For our purposes, however, we will focus on a smaller set of roughly 1,700 White Trump supporters who were asked how confident they were the election *would be* run fairly before the election, and then were asked how confident they were that it *had been* run fairly after the election. Although not all respondents were asked these questions in the pre- and post-election waves, this sample allows us to observe how real Americans' confidence in the election shifted in response to the Big Lie.²⁸ Pre-election interviews occurred in September and October of 2020; post-election interviews were fielded in November and December. Respondents' racial resentment in the CES is estimated using the same questions as in the Nationscape data, allowing for a clean comparison across these datasets. While the racial resentment questions were asked in the post-election wave, the Nationscape respondents indicate that White Americans' resentment was probably not being driven up by the Big Lie (see Figure 4.4).

The key question in this analysis is whether confidence deteriorated more for White Americans who were higher in racial resentment than for others. To test whether resentment was associated with post-election changes in confidence I use a statistical approach that allows me to specifically look at changes *within* individuals over time, called a two-way fixed effects model (with fixed effects for individuals, and for the survey wave). Of course, factors

²⁸The CES is a modular survey, which means that different teams of researchers field their own sets of questions from 1,000 respondents apiece. In 2020, 7 different teams asked respondents both before and after the election about their confidence in the election (the wording of these questions varied from team to team. The precise language used can be found in the Appendix to this chapter). The different question wordings allow for different levels of granularity (depending on the instrument, respondents have 3, 4, or 5 possible levels of confidence to choose from). I recode each such that 0 represents the least possible confidence on a set of questions and 1 the most confident.

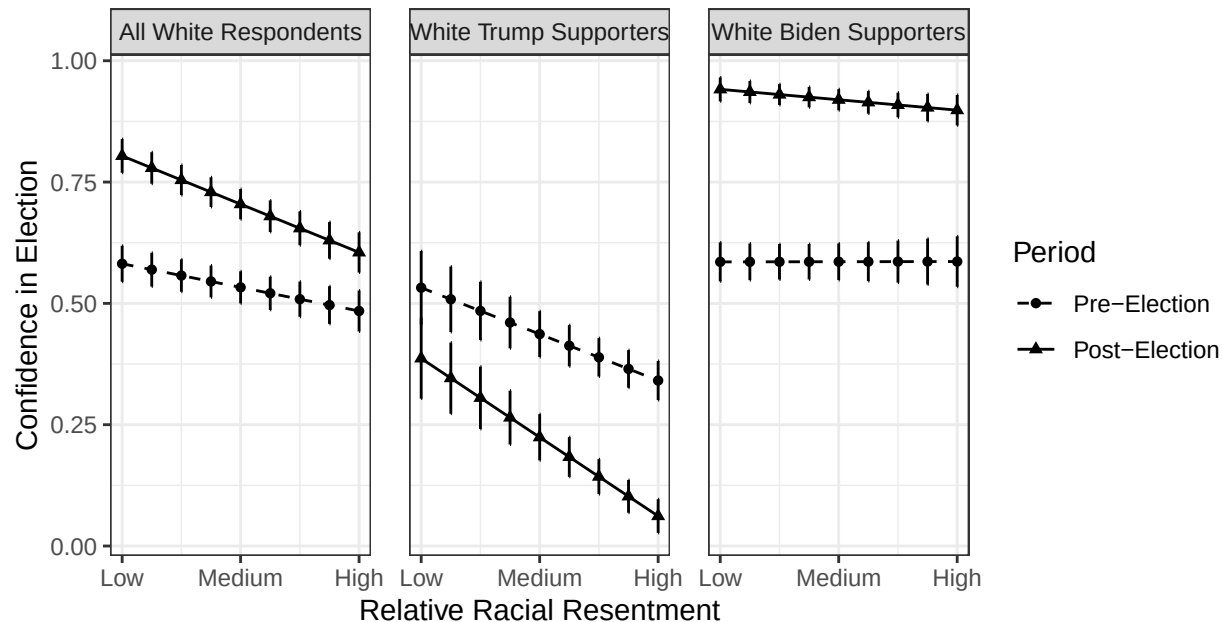
other than racial resentment might have driven changes in confidence. More conservative respondents, for instance, might have suffered from the “sore loser” effect because their preferred candidate lost. We also know from Figure 4.3 that the *timing* of a post-election survey matters for how people felt about the election. To account for these characteristics and others, I also interact the post-treatment variable with a number of other characteristics.

Figure 4.5 presents the marginal effects plot of this model, which I run on all White respondents, and separately for Trump and Biden supporters. Racially-resentful respondents were less confident the election would be run fairly even before November 3. This is important: The fact that racially-resentful Trump supporters were less confident in September and October is consistent with prior research showing that racially-resentful White Americans are only conditionally committed to democratic norms;²⁹ pre-election rhetoric centering Black cities likely compounded this underlying skepticism. While I cannot directly test the relative importance of these mechanisms, the relationship offers insight into why this population was so receptive to the Big Lie after the election. This relationship between confidence and resentment, however, is considerably stronger in the post-election period. Other things being equal, the confidence of White Trump supporters low in racial resentment hardly dropped at all between the pre- and post-election period. But racially resentful White Trump supporters saw their confidence bottom out in November and December after widespread racialized rhetoric about voter fraud.

Figure 4.5 further shows that racial resentment was not substantively related to confidence in the election for Biden supporters in either period. In other words, for Biden supporters — who did not need to construct an explanation for why their candidate had lost

²⁹Jardina and Mickey (2022); Enders and Thornton (2022); Miller and Davis (2021).

Figure 4.5: Racial Resentment and Confidence in the 2020 Election



Model controls for interaction of ideology, party identification, Fox News consumption, income, sex, education, age, and post-election survey date with a post-election indicator. All voters includes interaction between Trump voter and post-election indicator. Team fixed effects included. Robust standard errors clustered by individual. "Low" racial resentment is 1 out of 5. "High" racial resentment is 5 out of 5.

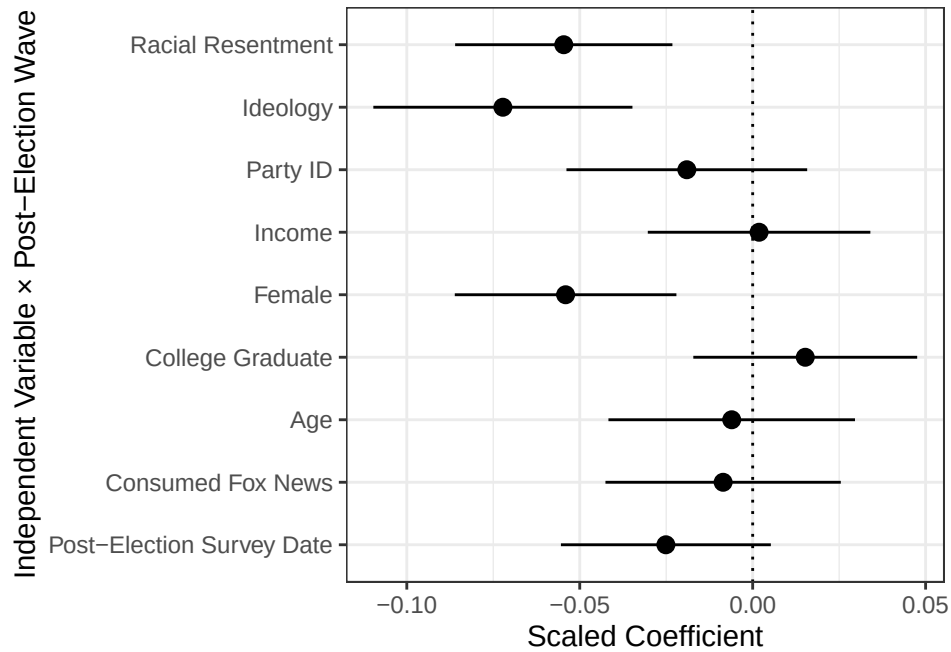
— race did not enter into considerations of confidence. As we have seen, racialized explanations were close at hand for those looking to reject the results; that they map onto confidence only for Trump supporters is therefore a key validation of the underlying mechanism.³⁰

Across the board, confidence among White Trump supporters dropped by about 20 percentage points (recall that confidence ranges from 0 to 1). And, while racial resentment was a major predictor of drops in Trump supporters' confidence, the regression analysis makes clear that most other characteristics were *not* related to drops in confidence (see Figure 4.6).³¹ Stronger Republicans did not see their confidence decrease more than weaker ones; nor did older or better-educated White Trump supporters. In fact, only two other

³⁰While the coefficient on post $\times$ racial resentment is significant and negative, it is worth noting that the relationship was positive in the pre-election period. Thus, this likely reflects a reversion to the mean. As the figure makes clear, there is not a strong substantive relationship here.

³¹The wide confidence bars in the figure are a relic of a model with relatively low statistical power, given the respondent fixed-effects. The adjusted R^2 is 0.57.

Figure 4.6: Predictors of Post-Election Drops in Confidence Among White Trump Supporters



Variables scaled following Gelman (2008). Intercept not shown. Model includes respondent and team fixed effects, as well as team $\times$ post-election wave fixed effects. Robust standard errors clustered by respondent.

characteristics meaningfully predict changes in confidence: Women’s confidence decreased by more than men’s, as did that of those who identified as more conservative.

All told, racial resentment clearly had an important relationship to changes in electoral confidence for Trump supporters. While the Nationscape data showed that White Trump supporters who were more resentful were more likely to believe Trump won immediately after the election, those data did not allow us to track individuals over time. The CES data, meanwhile, allow us to account for a wide range of demographic differences between these voters and the rest of the electorate, and to be confident that racial resentment really was a salient predictor of how susceptible to the Big Lie an individual White Trump supporter was in the aftermath of the 2020 election.

The panel nature of the CES data provides a clean test of how perceptions about

election integrity shifted in the real world in the fall of 2020. By re-interviewing the same individuals two or three months apart, the surveys allow us to examine broad shifts in the public. Nevertheless, the CES does not precisely measure exposure to the Big Lie. If racially resentful individuals were exposed to more fraud rhetoric in the real world, we cannot tell whether the racialized nature of the accusations (rather than their volume) drove the effect. I turn now to a survey experiment that allows me to precisely control who sees accusations of voter fraud — and, crucially, whether or not the accusations are racialized. If the voter fraud myth carries more weight when it is leveraged against Black Americans, that will be powerful evidence that it exists in service to undermining Black political power.

To directly test the causal effects of racialized fraud accusations, my colleague Ian Shapiro and I fielded a survey experiment between July 9–10, 2024.³² That the experiment was run more than 3 years after the 2020 election presents a strong test of the durability of any racialization of voter fraud allegations that year. Our study included 1,500 self-identified White American adults.³³ Participants were randomly assigned to read one of three vignettes made to look like a local news report. The two “treatment” arms featured accusations of corruption and election malfeasance in the fictional city of Lancaster, Michigan, similar to the sorts of conspiracies that arose in 2020. The headline reported that “Election Officials Prepare for Audit as Accusations of Election Fraud Mount,” explaining that some critics were concerned about voter impersonation and the mishandling of ballots.

³²This survey experiment was pre-registered. For more on this study, including the pre-registration document and full survey instrument, please see Morris and Shapiro (2025). The survey took participants an average of 6 minutes and 20 seconds. Participants were paid \$1.25 for completed surveys. Following the experiment, respondents were debriefed about the nature of the study, that Lancaster was a fictional city, and that election fraud is rare. Our study was deemed exempt by the Advarra Institutional Review Board.

³³Following Berinsky et al. (2021) we used two attention screeners prior to randomization. These removed low attention respondents from our study near the start of the survey. 1,500 respondents passed the attention checks and completed the survey.

In the vignettes, the treated respondents were primed to see the city as a predominately White or Black city. The treatments included textual clues (when presented as a majority-Black city, Lancaster was described as “inner-city,” while the majority-White version was “suburban”).³⁴ Alongside the text, respondents saw pictures of the inside of a polling place, where voters and poll workers matched the treatment arm. Respondents also saw a picture of a local election official; the official was always named Morgan Johnson, and Johnson’s race matched the treatment condition. To ensure that responses to the treatment were not driven by subtle differences in the officials’ appearance aside from their race, there were four potential Black officials, and four potential White ones. The sets of White and Black officials each included two younger pictures (one male presenting, the other female) and two older pictures (again balancing on apparent gender). Control respondents, meanwhile, read a non-political story about a local restaurant.³⁵

After reading the story, respondents answered questions about their belief that fraud took place in Lancaster. The dependent variable captures the extent to which respondents believe fraud occurred in Lancaster, Michigan, in the 2020 presidential election. To measure this attitude, I use the 11-item index from the Survey of the Performance of American Elections, scaled to fall between 0 and 1.³⁶

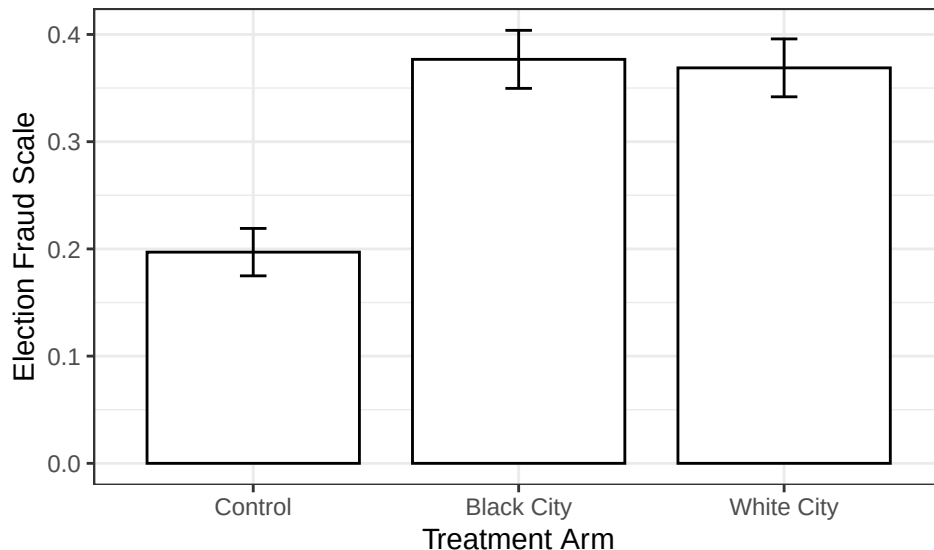
Unsurprisingly, respondents assigned to the control group (in which they were pre-

³⁴This language is consistent with other experimental studies attempting to prime racial considerations (e.g., Mendelberg, 2001; Valentino, Neuner and Vandenbroek, 2018).

³⁵The full set of treatment images is available in Morris and Shapiro (2025).

³⁶To the best of my knowledge, this scale has not yet been used in peer-reviewed work aside from the paper this chapter draws from (Morris and Shapiro, 2025). A factor analysis of this battery uncovered a single factor using principle-component-factor method, and a Cronbach’s alpha of .92 suggesting a high level of internal consistency and inter-item correlation. This index includes 11 items on a 4-point scale ranging from, “It almost never occurs” to “It is very common,” regarding a series of election related activities that are against the law. For example, respondents were asked how often, “People voting more than once in an election” or “Officials changing the reported vote count in a way that is not a true reflection of the ballots that were actually counted” occurred.

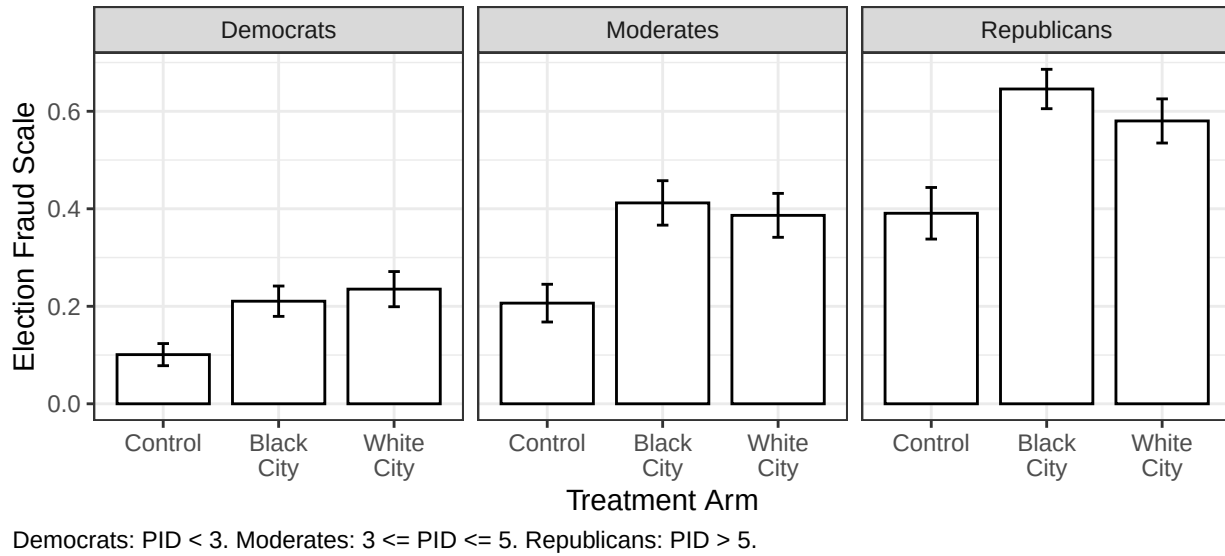
Figure 4.7: Reported Beliefs in Election Fraud



sented with no accusations of fraud) were the least likely to believe fraud had occurred. As Figure 4.7 shows, White respondents who saw the vignette were about twice as concerned about fraud as those who saw the story about the newly-opened local restaurant. White respondents were not more concerned about fraud when exposed to accusations against a Black city relative to a White city. Information about fraud moved attitudes, but it did so equally whether the city was presented as White or Black.

But that is only part of the story. As we have seen throughout this chapter, it was White *Republicans* who bought into the Big Lie. It was White Trump supporters for whom this was a racialized phenomenon. We should therefore expect that these accusations would land differently for White Republicans. They do: Accusations against Black cities moved Republicans more. The treatment effects for White respondents who align with Democrats or Republicans (or no party) are shown in Figure 4.8. The figure makes plain just how central concerns of voter fraud are for White Republicans: White Republicans in the control group (that is, who saw no accusations of fraud) were more suspicious that fraud occurred than

Figure 4.8: Reported Beliefs in Election Fraud by Party IDs



the Democrats who *were* exposed to the treatment. Fraud accusations were also racialized for White Republicans: While Democrats and moderates were no more likely to believe accusations against a White or a Black city, Republicans were statistically significantly more likely to register concern about fraud when they saw accusations made against a Black city. While the election fraud concern scale was about 0.58 for Republicans in the “White city” treatment arm, it was 0.65 for those in the “Black city” treatment, about 12% higher.

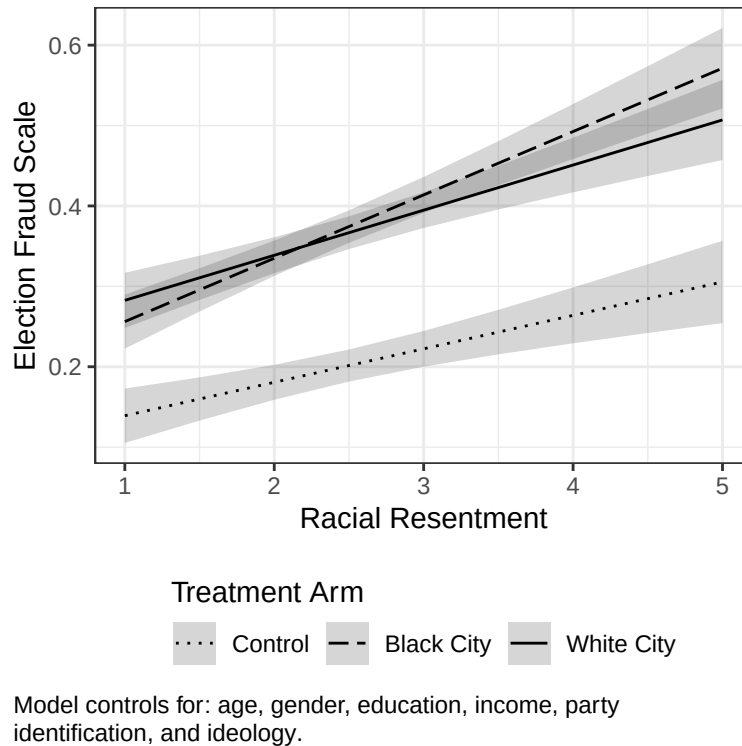
But how does underlying racial animus factor into this?³⁷ As we have seen, White Trump supporters high in racial resentment were early movers on the Big Lie, and had their confidence deteriorate more than other Trump supporters in 2020. We know that racially-resentful White Americans believe the Big Lie at higher rates than other Americans, but that does not necessarily mean that they are uniquely responsive to *new* accusations of fraud.

³⁷In this section of the chapter I present racial resentment measured using the same two questions available in the Nationscape and the CES survey for the sake of consistency. Our survey, however, also captured Davis and Wilson (2021)’s White Resentment Toward African Americans scale, as well as Jardina (2019)’s White Consciousness scale. In Morris and Shapiro (2025), we show that the other two indices (and, especially, the Davis and Wilson scale) have similar properties to those described here for “classical” racial resentment.

Figure 4.9 presents these interactions and makes a number of things clear. First, the upward slope among those in the control group makes perfect sense: This indicates that respondents who were not exposed to accusations of fraud were nonetheless more likely to suspect fraud in Lancaster if they were higher in racial resentment, other things being equal. This is in line with much of what we have seen in the rest of this chapter, from the CMPS data to the Nationscape and CES data. But the slope of this control line, relative to the slope of the other two lines, is also interesting. That the lines for “Control” and “White City” are roughly parallel indicates that relationship between racial resentment and belief in fraud was the same in the two groups. In other words, being exposed to accusations against a White city increased electoral distrust for racially resentful and non-racially resentful White respondents alike. Racially resentful White respondents, then, are not more likely to buy accusations against White cities than other respondents. The same is not true when it comes to accusations against Black cities. The relationship between racial resentment and electoral distrust is considerably (and statistically significantly) steeper among those who were exposed to accusations against Black cities. Put differently, White Americans high in racial resentment are more likely to buy accusations of voter fraud made against Black cities than are those lower in racial resentment.

So far, this chapter has shown that racial resentment strongly and consistently predicts belief in voter fraud. Given that the Big Lie was racialized by the elites in the Trump campaign and the far-right fringe media used to push it, this should come as no surprise. But belief in voter fraud does not imply a desire for stricter voter identification laws by definition. This chapter thus ends by asking whether higher resentment is in fact linked with a desire to restrict access to the franchise among ordinary White Americans. To test

Figure 4.9: Treatment Effect on Reported Beliefs in Election Fraud, Moderated by Racial Resentment



this, I turn back to the Cooperative Election Study, in which a team from the University of Missouri asked 1,000 respondents a series of questions about voter identification in both 2020 and 2022. Two questions are particularly important for the case at hand. The researchers asked respondents the extent to which they believed that photo identification laws reduced voter fraud, as well as their support for photo identification laws.³⁸

Figure 4.10 asks whether the relationship between support for photo identification laws for voting is different for White Americans high in racial resentment versus those lower in racial resentment.³⁹ The figure makes clear that those high in racial resentment, by and large, support photo voter ID laws at higher rates than those White respondents lower in racial

³⁸In order to maintain a sufficient sample size, I retain all White respondents to this module, and include a control for whether the respondent preferred Trump or Biden.

³⁹For the sake of consistency with the rest of this chapter, “high” and “low” racial resentment are defined here as 3 and 5 out of 5, respectively.

resentment. Unsurprisingly, all respondents who strongly believe that photo identification laws reduce fraud support them. Of course, racial resentment might well be moving these estimates: If racially-resentful White Americans are more likely to believe that fraud is an issue, they might be more likely to believe that it can be solved via voter ID laws. This seems to be the case: even after accounting for things like ideology and partisanship, racially-resentful White Americans were far more likely to believe that voter ID laws successfully stop fraud. In other words, racial resentment might be pushing up support for restrictive laws by heightening the perception of the threat of fraud, as we have seen all throughout this chapter.

But it does not seem that this is the only mechanism through which racial resentment increases support for strict voter identification laws. Figure 4.10 also shows support for voter ID laws among those who do *not* believe that they are effective at reducing fraud. While support for voter ID laws is relatively low among low-resentment White Americans who disagree that they prevent fraud, photo ID laws are extremely popular even among racially resentful who do disagree that they prevent fraud. Although most racially resentful White respondents at least somewhat agreed that photo ID laws reduce fraud (roughly 88% of those who scored 5 out of 5 on the resentment scale), even those who were not so sure about its efficacy still supported it at very high rates. While we cannot be sure whether they supported photo voter identification laws because they are likely to disproportionately harm voters of color, there is clearly something driving their support for voter ID laws aside from the belief that such laws reduce fraud.

Perhaps more than anywhere else in this chapter, Figure 4.10 shows the myth of voter fraud most actively at work — paradoxically, through those who are not convinced

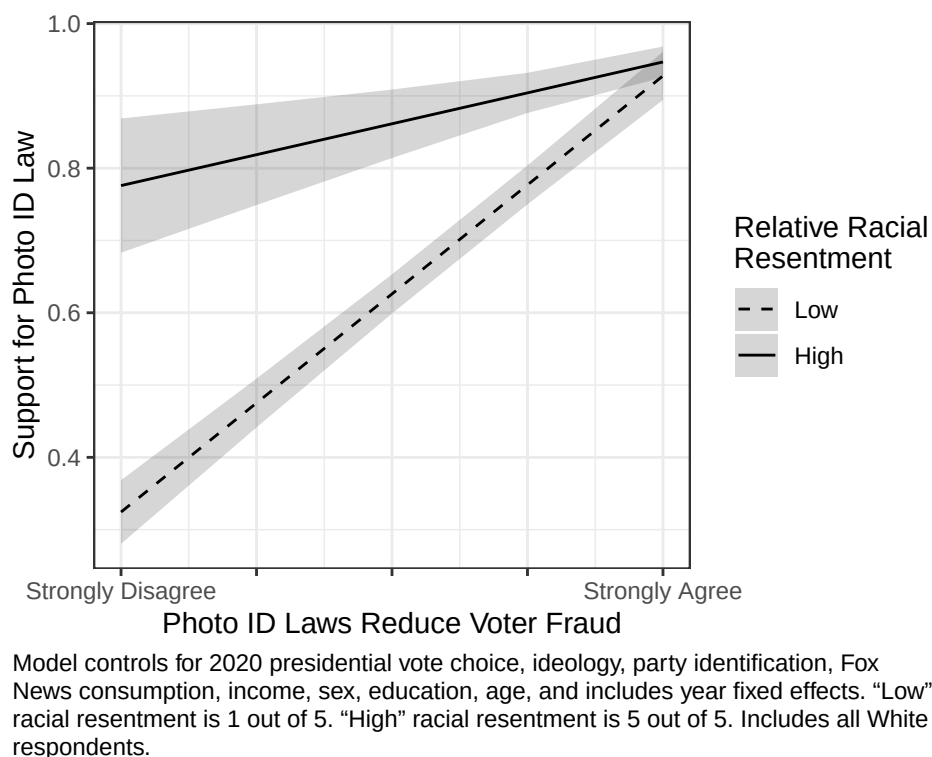
that fraud is a major problem (or that voter ID laws would fix it). As we have seen, beliefs in voter fraud are in no way neutral, and they are not responsive to objective facts on the ground. If they were, White respondents should have found the fake accusations against the Black Lancaster as convincing as against the White one. But here we see clearly that support for restrictive voting laws are at least partially independent of belief in fraud for racially-resentful White Americans. They do move together a bit — the racially-resentful White respondents who believe voter ID laws help combat fraud are slightly more supportive of the policy — but the relationship among this population is entirely different than among the less-resentful respondents. Yet, that those high in resentment support restricting access to the ballot box regardless of their belief in the efficacy of such policies for suppressing fraud, indicates that these restrictions might never have really been about fraud in the first place.



Chapters 2 and 3 showed that the elites producing the Big Lie did so in a manner sure to activate racial threat and racial resentment. Americans were told, repeatedly, that a Biden administration would pose an existential threat to “traditional” — that is, White — Americans. Black Lives Matter activists would run the nation, and White Americans would face a “genocide.” At the same time, these actors drew on tired tropes of Black criminality to make the accusations more believable and to delegitimize African Americans’ use of political power.

And, as this chapter has shown, White Americans received these messages along the

Figure 4.10: Efficacy of Voter ID Laws, Racial Resentment, and Support for Voter ID Laws



same lines. The massive Nationscape survey allowed us to identify exactly when different segments of the Trump-supporting White public bought into the idea that Trump had really won the 2020 election. I expected that racially-resentful White Americans would buy in first for two reasons: Not only were they in greater alignment with individuals like Alex Jones who were selling the Big Lie early on, but the threats to White political power and the credibility of accusations against Americans of color also should have lowered psychological barriers to accepting the lie for this population. And, in fact, that is just what we saw: Resentful White Trump supporters bought into the Big Lie *before* Fox News capitulated, while other White supporters of Trump only did so later. The confidence of racially-resentful White Trump supporters decreased more in the aftermath of the 2020 election, and a survey experiment demonstrated that they found accusations of voter fraud especially convincing when levied

against cities of color.

Meanwhile, we identified two mechanisms through which racial resentment likely increased support for restrictive voting laws. The most straightforward way was through an increase in belief in fraud: Stronger beliefs in fraud should increase support for new laws intended to prevent it. But we also saw that White Americans high in resentment supported voter identification laws even when they did not believe that such laws stopped fraud. While it thus seems that some of racially resentful White Americans’ support for restrictions to the franchise is “laundered” through higher beliefs in fraud, the high levels of support for such laws even among those who do not perceive them to be effective for preventing fraud is striking.

Taken as a whole, these results paint the contours of a totalizing worldview among racially resentful White Americans. Discrimination in voting systems is gone, and with it the continued need for the Voting Rights Act. But voter *fraud* is rampant, especially among Black Americans; it is “not a White thing.” Such beliefs push towards support for restrictive laws like voter ID — yes, because they can fight fraud, *but also when they do not*. While we cannot get inside the heads of White Americans, and even though some of these associations might well be subconscious even to themselves, the cumulative evidence paints the picture of an interlocking belief system working to exclude Black Americans from the polling booth.

As the 2021 legislative session got underway, lawmakers had a choice to make: Would they act as responsible elites, educating their constituents on the security of the 2020 election and assuring them that elections were safe and secure in the United States? Or would they leverage these beliefs and preferences (and, perhaps, their own sincerely-held beliefs about the theft of the 2020 election) to restrict access to the franchise? Chapter 5 will show that,

by and large, they took the second path: Lawmakers representing racially resentful White constituents, and in areas where racial threat ran hottest, were the most likely to sponsor bills making voting more difficult in the aftermath of the 2020 presidential election.

Chapter 5

My Rage Burns Just as Hot: Legislative Backlash

“It’s been said that these changes are needed because confidence in our elections was damaged after the November [2020] election. But my question is, ‘Damaged by who?’”
—Renitta Shannon, Representative from Georgia’s 84th House District¹

In the wee hours of May 7, 2021, Texas legislators in the state’s House of Representatives passed Senate Bill 7. SB7 promised to restrict voting in various ways by reducing access to mail voting, banning drive-through and 24-hour voting, and requiring large counties to redistribute their polling places away from Black and Latino neighborhoods.² And, although SB7 itself would fail after Democrats in the State Senate broke quorum by fleeing the state, many of these provisions would ultimately become law as part of Senate Bill 1, passed that summer during a special session called by the governor.³

The debate in the House was marked by an argument about a single phrase, used in the opening text of the bill. Senate Bill 7’s self-described purpose was to “detect and punish fraud and preserve the purity of the ballot box.” This phrase — “the purity of the ballot box” — has a long history in Texas. It was enshrined in the state’s 1876 Constitution and used to

¹Georgia General Assembly, House of Representatives, floor debate on H.B. 531, remarks by Rep. Renitta Shannon, March 1, 2021, video recording at 57:49.

²Ura (2021*a,b*).

³Ura, Essig and Dong (2021).

defend the state’s White Primary that effectively shut nonwhites out of the political process for decades.⁴ Democratic representative Rafael Anchía questioned the bill author’s use of this “specific set of words that has a lot of meaning in state history,”⁵ saying the constitutional provision “was drafted specifically to disenfranchise Black people.” The implication was clear: Texas legislators were tapping into language that helped kill Reconstruction to pass new legislation a century and a half later. The new law — just like the state’s 19th century constitution — would disproportionately harm voters of color. The phrase was dropped from the final version of Senate Bill 1, passed in August 2021, but the substance of the legislation remained largely unchanged. As we will see in Chapter 6, even the sanitized version of the omnibus bill would have racially discriminatory effects. The law had cleaned itself up: Gone were the explicit exclusions of non-Whites from primaries, and gone were the rhetorical references to the Redemption-Era Constitution. Yet the poison remained.

Texas was not the only state in the nation to see heated debates about voter access play out in legislative chambers throughout 2021. In fact, according to the *Washington Post*, the 2021 legislative session “potentially amount[ed] to the most sweeping contraction of ballot access in the United States since the end of Reconstruction.”⁶ With nearly a third of Americans buying into the Big Lie by April of 2021⁷ — a widespread belief that, as we saw in Chapter 4, was highly racialized — there was a broad well of public support for restrictive voting laws that state legislators could draw on.

This chapter moves from the views and attitudes of White Americans generally to the words and actions of elites with unique power in our federalized system of governance: State

⁴Knowles (2021); Morris and Pérez (2021).

⁵Quoted in Knowles (2021).

⁶Gardner, Rabinowitz and Stevens (2021).

⁷CNN (2021).

legislators. In the United States, the Constitution grants states and localities a tremendous amount of autonomy when it comes to the conduct of their elections.⁸ While the federal government provides some guardrails — notably in the 15th Amendment, what remains of the 1965 Voting Rights Act, and smaller programs like the “motor voter” program — legislators in capitols across the nation can shape access to the ballot box in myriad and consequential ways. Their relationship to the Big Lie and the legislative response to it is therefore an important part of the puzzle.

This chapter begins with a discussion of the rhetoric used by some of the key state-level players from around the nation. While many of them did not directly question the legitimacy of the 2020 election, the overwhelming majority also did not affirm that Joe Biden was the rightful winner in 2020. Rather than argue that the election system was secure as it was — indeed, as Donald Trump’s own Secretary of State assured the nation that it was⁹ — many instead argued that the only available means for restoring confidence democracy was for their states to pass new restrictive laws. But some gave away the game: Either by spreading misinformation in the weeks following the election, by supporting the insurrection on January 6, or by proposing legislation unrelated to the stated concerns of voters, it becomes clear that at least some legislative proposals were not good-faith attempts to restore voters’ confidence.

The second half of the chapter turns to an analysis of all the restrictive bills passed around the nation in the first legislative session following the 2020 presidential election. There, I focus specifically on the sorts of districts represented by lawmakers who sponsored

⁸Ewald (2009); Miller and Morris (2026)

⁹Balsamo (2022).

these bills that would make voting more difficult. A troubling picture emerges. I find that not all Republicans were equally likely to sponsor bills that made voting more difficult in the wake of the Big Lie; instead, lawmakers who represented White constituents for whom racial threat was the most salient exhibited considerably more policy entrepreneurship in this domain than other Republicans. While Chapter 2 showed that elites relied on racialized language to produce widespread distrust in the 2020 election and Chapter 4 showed that racially prejudiced Whites were the most likely to believe the Big Lie, this chapter argues that the legislative outputs of this process can similarly be explained by White racism in American politics.



On March 1, 2021, as Georgia’s House Bill 531 (HB 531) headed toward passage in the legislature’s lower chamber, Democratic Representative Bee Nguyen was upset with her colleagues on the other side of the aisle. In key ways, Representative Nguyen stood for much of what Nick Fuentes and other White supremacists might fear about a changing America. Her parents came to the United States as refugees from Vietnam, eventually settling in Athens, Georgia.¹⁰ Elected to the Georgia General Assembly in a special election in 2017 to fill the seat of Stacey Abrams (who resigned earlier that year to run for governor), Nguyen was the first Vietnamese-American elected to the state’s lower chamber. She represented the state’s racially diverse 89th district. Just over half the district’s population was African American, and over a third were were White. In the aftermath of the state’s fight in 2021

¹⁰Shoichet (2023).

over voting legislation she would run for Secretary of State in 2022, losing to the incumbent Brad Raffensperger.

As legislators prepared to vote for the House version of Georgia’s omnibus voting package in 2021 (it would later be superseded by Senate Bill 202), Nguyen took to the well to articulate what she viewed as the hypocrisy of her Republican colleagues. “We are legislating on lies,” she began,

Lies, misinformation, and conspiracy theories that have gone unchecked by many members of this body who stayed silent, who signed on to the Texas lawsuit, or who encouraged sham hearing in our General Assembly. Members of this body aided and abetted a deliberate misinformation campaign to sow seeds of doubt among Georgia voters with absolutely no facts or evidence.¹¹

For the most part, Representative Nguyen’s Republican colleagues did not address the underlying context in which the legislation was being debated. Although Republican sponsor Representative Barry Fleming noted that the bill was needed to “begin to bring back the confidence of our voters back into our election system,”¹² little attention was paid on the floor of the chamber that afternoon to the underlying causes of the lost confidence. Representative Fleming was hardly alone: Governor Brian Kemp, who had resisted President Trump’s demands to overturn Georgia’s election results the following fall, nonetheless told reporters that there “were many alarming issues with how the election was handled, and those problems, understandably, led to a crisis of confidence in the ballot box here in Georgia.”¹³ Others like Representative Buddy Carter echoed this language, arguing that “People in the state of Georgia have not had confidence in the voting process. Now, as a result of this

¹¹Georgia General Assembly, House of Representatives, floor debate on H.B. 531, remarks by Rep. Bee Nguyen, March 1, 2021, video recording at 2:28:28.

¹²Georgia General Assembly, House of Representatives, floor debate on H.B. 531, remarks by Rep. Barry Fleming, March 1, 2021, video recording at 8:34.

¹³Quoted in Niese (2021).

legislation, they will have confidence.”¹⁴ By and large, Republicans steered clear of endorsing the narrative about the stolen 2020 election outright, instead treating voters’ concerns as reasonable, valid, and demanding of a legislative response.

Such comments were not limited to Republican legislators in the Peach State. In Texas, for instance, Representative Briscoe Cain — the same representative asked about the inclusion of language about the “purity of the ballot box” during the debate over SB7 — defended the bill he sponsored by observing: “You know, when people do not have confidence in our electoral institutions, when political legitimacy is questioned, liberty is threatened.”¹⁵ Senator Jason Schultz of Iowa touted his proposed bill as “address[ing] the controversy that the country is going through right now,”¹⁶ while Governor Ron DeSantis of Florida took advantage of signing his state’s SB 90 into law to assure his constituents that “Floridians can rest assured that our state will remain a leader in ballot integrity.”¹⁷ In at least 33 states, lawmakers cited voters’ low confidence as a reason for needing to take action in the 2021 legislative session.¹⁸

But lawmakers did not always use their constituents’ confidence alone as justification for these newly-restrictive laws. In fact, some of the same individuals used racially-coded language when discussing their legislative proposals. In an op-ed shortly after the 2020 election, Georgia’s Representative Fleming compared mail ballots to “the shady part of town down near the docks you do not want to wander into because the chance of being

¹⁴Quoted in WJCL (2021).

¹⁵Quoted in Schneider (2021).

¹⁶Quoted in Murphy (2021).

¹⁷*Governor Ron DeSantis Signs Bill to Safeguard the Sanctity of Florida Elections*, press release, May 6, 2021, Executive Office of the Governor, State of Florida, <https://www.flgov.com/eog/news/press/2021/governor-ron-desantis-signs-bill-safeguard-sanctity-florida-elections>.

¹⁸Astor (2021).

shanghaied is significant,”¹⁹ and Iowa’s Senator Schultz said he believed “Iowans’ votes were disenfranchised by some shady dealings in five cities around the country,”²⁰ including Philadelphia. In Arizona, meanwhile, Representative John Fillmore argued for the “need to get back to 1958-style voting”²¹ — seven years before the enactment of the 1965 Voting Rights Act which, in the eyes of many scholars, finally transformed the U.S. into a democracy.²²

And at other times, state lawmakers fanned the flames of the Big Lie itself. Oklahoma State Representative Sean Roberts (sponsor of two restrictive voting bills) told a reporter “it was very clear that the [2020] election was stolen from President Trump. We must do everything we can to close those loopholes,”²³ despite no real claims of fraud in Oklahoma, debunked or otherwise. Similarly, writing just days after the 2020 election, Georgia state senator Jeff Mullis (who would sponsor the state’s SB 202 a few months later) wrote,

I have heard the concerns of my constituents from day one, issuing my first statement on this egregious attempted election theft by radical socialists on November 5th. I was one of the first Republican officials in the State of Georgia to speak out about the actions of the radical left and I will continue to lead the fight for President Trump and my constituents here in the 53rd Senate District. I know you are angry and I can assure you, my rage burns just as hot.²⁴

Others took it further still, though perhaps none quite so far as Pennsylvania Senator Doug Mastriano. On November 5th — before the state of Pennsylvania had even been called for Joe Biden — Mastriano had publicly called for the resignation of Kathy Boockvar, the

¹⁹Fleming (2020).

²⁰Quoted in Rodriguez (2021).

²¹House Government & Elections Committee, Arizona House of Representatives, remarks by Rep. Jeff Fillmore, January 26, 2022, video recording at 2:22:25.

²²See, for instance, Levitsky and Ziblatt (2018, pg. 204): “It was only after 1965 that the United States fully democratized;” Diamond (2019, pg. 18): “Every year I ask my first-year class, ‘When did the United States become a democracy?’...At some point, someone always volunteers the right answer: 1965;” Taub (2023).

²³Quoted in May (2022).

²⁴Mullis (2020).

state’s top election official, voicing “concerns that elections in Afghanistan are...more secure than in Pennsylvania”²⁵ He would go on to impanel one of the Giuliani “hearings” discussed in Chapter 2 in which witnesses were permitted to submit testimony alleging evidence of fraud without being sworn under oath. He spent thousands of dollars in campaign money to charter buses to Washington, D.C., on January 6, where he and twenty other Republican state legislators from around the nation took part in the insurrection at the Capitol that day.²⁶ One, Derrick Evans of the West Virginia House of Delegates, was arrested after live-streaming from inside the Capitol and would serve 90 days in prison.²⁷ All told, while “no Republican-controlled legislative majority in any disputed States...expressed an intention” to overturn the 2020 election,²⁸ state legislators nonetheless played an important role in Donald Trump’s attempt to overturn the 2020 election: The Trump campaign contacted nearly 200 swing-state legislators between November 30 and December 3 in pursuit of their “fake electors” plan.²⁹

Of course, the overwhelming majority of Republican state legislators did not participate in the attack on the U.S. Capitol on January 6. Many of them did not even publicly claim that the 2020 election had been stolen. The legislators most active in the session following the election, however, were involved in the production of the Big Lie. My colleagues at the Brennan Center reviewed public statements from the sponsors of some 68 restrictive voting bills from the 2021 legislative session, finding that “for the vast majority of

²⁵Doug Mastriano, *Open letter to Kathy Boockvar*, November 5, 2020, Facebook, November 5, 2020, photograph, <https://www.facebook.com/photo?fbid=1000083020403501&set=pcb.1000083483736788>.

²⁶Roebuck and Seidman (2021); Hounshell (2022).

²⁷Raby (2023). Like nearly all individuals convicted in relation to the January 6 insurrection, Representative Evans was pardoned by President Trump in early 2025.

²⁸John Eastman quoted in United States House Select Committee on the January 6 Attack (2022, pg. 447).

²⁹*Ibid.*, pg. 271.

bills...one or more legislative sponsors — and typically the chief sponsors — publicly rejected or questioned the integrity and legitimacy of the 2020 election.”³⁰ Others, like Iowa’s Representative Bobby Kaufmann (who was largely responsible for his state’s bill cutting early voting, shortening of polling place hours, and eliminating many drop boxes), obfuscated the real drivers of the loss of confidence. “The ultimate voter suppression is a very large swath of the electorate not having faith in our election systems and *for whatever reason, political or not*,” he said, “there are thousands upon thousands of Iowans that do not have faith in our election systems”³¹ Rather than seek to reassure their constituents that the election was fair and that Joe Biden was the rightful president, it appears state lawmakers capitalized on the lack of confidence in the electorate to enact their preferred legislation.

One indication this might have been so is that, in many cases, the proposed and passed legislation was not particularly responsive to the allegations of fraud that arose in the fall of 2020. Georgia’s eventual omnibus bill, SB 202, gained particular notoriety by outlawing “line warming” activities such as passing out water to voters waiting to cast a ballot, but other new restrictions seemingly unrelated to real concerns about security were also passed. Though the accusations of voter fraud were overwhelmingly focused on mail voting, more than a few states made *in-person* voting more difficult. Georgia, Iowa, and Texas, for instance, all cut early voting, while Iowa, Texas, and Montana reduced polling place availability on election day. At the same time, seven states introduced or tightened voter identification requirements despite no claims of in-person voter impersonation in the 2020 election. Even the restrictions that were related to absentee voting did not always make

³⁰Garber (2022).

³¹Quoted in Rodriguez (2021). Emphasis added.

sense. In 2020, for instance, Georgia law required that all drop boxes be under 24-hour-a-day video surveillance. SB 202, however, cut the number of drop boxes that counties could provide — presumably leading more voters to send their ballots from their home mail boxes, which provided far less security.³² Representative Nguyen explained the disconnect between the content of Georgia’s voting bill and the actual conspiracy theories from 2020: “Of the handful of voters that were referred to the attorney general [for investigation for fraud], zero of them are related to voters misusing mobile voting or misusing secure drop boxes. Zero cases related to weekend voting. Zero cases related to the use of provisional ballots.”³³

There is also the matter of what lawmakers in Florida said about their omnibus bill — some of these statements were public, and some were not. Senator Dennis Baxley was the chief sponsor of Senate Bill 90 (SB 90). Baxley had a long history of racially contentious action as a political leader. As the federal Northern District of Florida Judge Mark E. Walker explained in his district court opinion striking down parts of SB90, Baxley had “stopped a bill from being further considered which would have established a slavery memorial,...fought to keep the racial epithet, ‘darkie,’ in the state song, [and] opposed a bill that would ban the display of Confederate flags on state and local government property.”³⁴ He also knew that the law would hurt Black voters. It was of little import to him, however: “There’s a learning curve.”³⁵ Similarly, text messages between Representative Blaise Ingoglia and Senator Joe Gruters made plain that SB 90 made mail voting more difficult in order to harm Democrats

³²“Voting Laws Roundup: December 2021.” 2021. *Brennan Center for Justice*.

³³Georgia General Assembly, House of Representatives, floor debate on H.B. 531, remarks by Rep. Bee Nguyen, March 1, 2021, video recording at 2:31:03.

³⁴*League of Women Voters of Florida, Inc. v. Lee*, No. 4:21-cv-00186-MW-MAF (N.D. Fla. Mar. 31, 2022), 87.

³⁵Quoted in *Ibid.*, 88.

— and *not* to increase election security.³⁶ Judge Walker found that the legislature had *intended* to discriminate against Black voters: “SB 90 fits neatly within a historical pattern of discrimination against Black voters,” he wrote.³⁷ His opinion was also instructive in the arguments it rejected: SB 90 was not a good-faith response to specific concerns about fraud. Nor was it “motivated by the political zeitgeist,” a sense that “among a storm of election fraud claims, it had to do *something*.”³⁸ It was, rather, specifically designed to make voting more difficult for Black voters. While Judge Walker’s ruling would be later overturned by a split 2-1 panel at the 11th Circuit, that panel did not affirm that the legislature was sincerely motivated by concerns about fraud, but instead that lawmakers were entitled to the presumption of good faith.³⁹



All told, 2021 saw more restrictive voting legislation pass into law than any other year in modern American history — and maybe more than any year since the fall of Reconstruction in the 1800s, when states and the federal government walked away from enforcing the 15th Amendment’s prohibition on racial discrimination in voting. Table 5.1 summarizes the restrictive provisions that were either introduced or passed around the country in 2021.

How do we know? For more than a decade,⁴⁰ the Brennan Center for Justice at NYU has tracked every bill introduced in any legislature in the nation that touches on

³⁶Ibid., 84–85.

³⁷*League of Women Voters of Florida, Inc. v. Lee*, No. 4:21-cv-00186-MW-MAF (N.D. Fla. Mar. 31, 2022), 128.

³⁸Ibid., pgs. 125–126

³⁹*League of Women Voters of Florida, Inc. v. Florida Secretary of State*, 66 F.4th 905 (11th Cir. 2023).

⁴⁰The Voting Laws Roundup has been published in collaboration with the Goldman School of Public Policy at U.C. Berkeley since 2025.

Table 5.1: Restrictive Voting Provisions Introduced and Passed in the 2021 Legislative Session by Type

Type	Introduced	Passed
Absentee Voting	414	60
Voter ID	114	4
Registration	83	5
List Maintenance	79	14
Early Voting	36	2
Disability Access	35	7
Provisional Ballots	24	3
Administrative Standards	23	5
Student Voting	7	1
Felony Disenfranchisement	6	0
Challengers	2	0
Other	29	4
Total	852	105

Note:

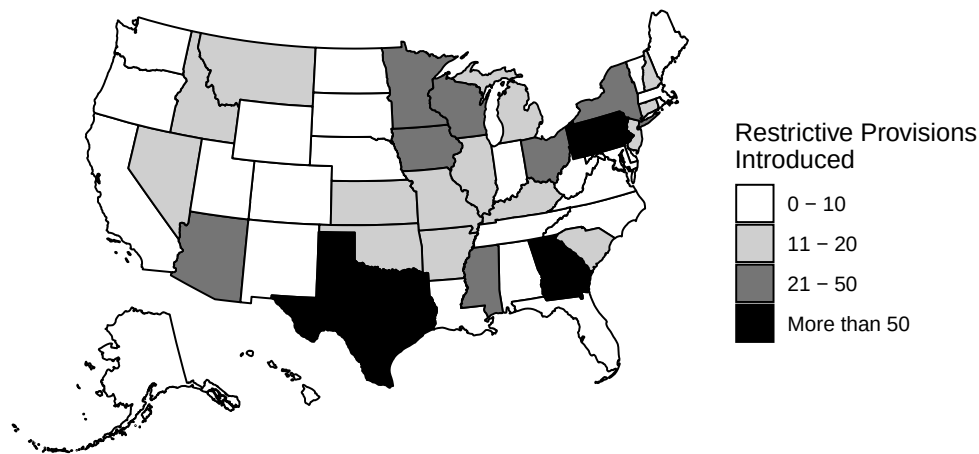
Provisions assigned to a single category.

the voting process. These proposals range from efforts to expand access to the franchise (like automatic voter registration), to neutral proposals (such as moving to electronic poll-books), to restrictive ones (like making it more difficult to vote by mail). Each voting bill that is introduced is assessed by two research assistants and broken down into its component provisions. While many bills change just one aspect of the voting procedure, others change many different aspects: Texas’s SB 1, for instance, made 19 different changes to the state’s election procedures. Breaking the bills down to their provisions makes it easier to compare large omnibus bills with smaller ones that tweak just a single piece of election law. Each of these provisions is then assessed independently to determine whether it is expansive, neutral, or restrictive.

Figure 5.1 makes clear just how widespread this effort was. Bills with restrictive provisions weren’t introduced only in the South, or only in states with Republican-controlled

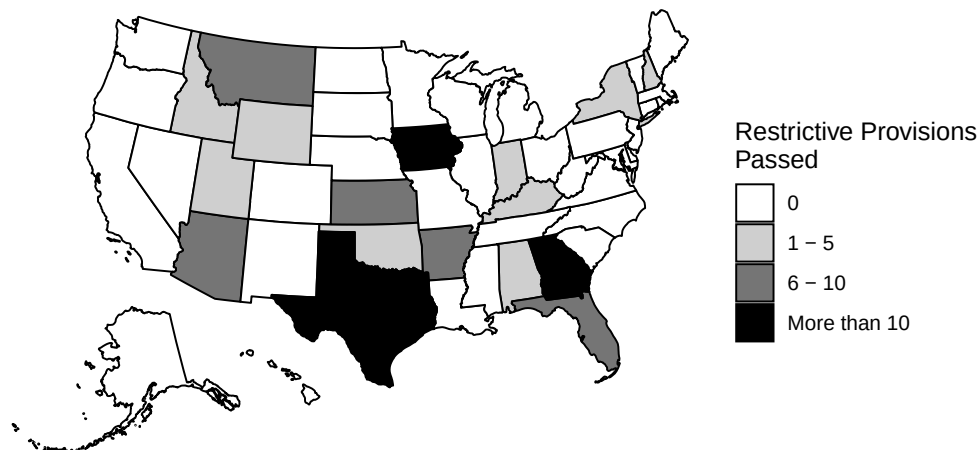
legislatures. In fact, with the lone exception of Vermont, at least one bill restricting access to the franchise was introduced by a legislator in *every single state*. Figure 5.2 that these provisions became law in 17 states — often, but by no means always, in Republican-controlled parts of the country.

Figure 5.1: Restrictive Provisions Introduced in 2021 by State



Given that fraud was not widespread, and that some of the restrictive legislation was not responsive even to the conspiracy theories about the 2020 election, what can explain the variation we see among the states in the 2021 legislative session on this topic? As we have seen, there is a potential explanation lurking: Fears about the growing political power of non-white Americans, and the racial resentment that often accompanies such fear. While we now know that the elites who manufactured the Big Lie relied on race in their own rhetoric, and that concerns about fraud were racialized in the mind of the mass White public, a question remains: Did such considerations also shape the legislative response to the

Figure 5.2: Restrictive Provisions Passed in 2021 by State



2020 election? Do individual-level, racialized beliefs about fraud and support for restrictive voting laws make the leap to the legislative level where power is held?

To answer these questions, I begin by looking at state level counts of introduced and passed bills. Consistent with existing work, I find racial threat at the population level plays an important role in the introduction and passage of these bills. Moreover, I show that, while states with unified Republican control were more likely than other states to introduce and pass these bills, restrictive legislative activity is *highly* concentrated in the least-White, Republican-dominated states.

But activity on restrictive voting legislation is not limited to the state level; legislators *within* states can also choose to be more or less active on this legislative topic. I thus also ask whether district characteristics predict lawmakers' sponsorships of restrictive voting bills. Here, I think about whether either *racial threat* or *racial resentment* among White individuals

are correlated with the behavior of their state representatives. I find that lawmakers from the Whitest parts of the least-white states were, by far, the most likely to serve as sponsors on restrictive voting legislation. This shows how the effects of racial threat are mediated geographically to produce contexts more fertile for restrictive laws. Lawmakers representing the most racially-resentful White constituents were also the most likely to sponsor these bills.

Like with the mass White public in the last chapter, here I uncover strong evidence that theories of racial threat predict where these bills are sponsored, introduced, and passed. The chapter makes several other contributions as well. For the first time, this chapter allows us to understand the *sub*-state factors influencing legislative behavior with respect to voting laws, moving beyond the state-level analyses most previous studies have engaged in. I also establish a link between district-level racial resentment scores and legislator behavior, raising important future questions about the extent to which lawmakers support bills reflective of their constituents' racism and anti-Black attitudes.



Over the past 15 years, scholars have explored the introduction and passage of restrictive voting laws across the country. While incredibly valuable, this work has almost exclusively focused on state-level factors, with a general consensus that these laws find the most fertile ground in states with large demographic change and a growing nonwhite electorate; where large numbers of Black Americans reside; and in electorally competitive states where Republicans hold a slight edge.⁴¹

⁴¹Behrens, Uggen and Manza (2003); Bentele and O'Brien (2013); Hicks et al. (2015).

The growing consensus of this literature makes sense given what we've demonstrated in previous chapters: individual belief in fraud and support for restrictive legislation maps on to racialized characteristics among White Americans. Sociologists Angela Behrens, Chris Uggen, and Jeff Manza use a historical approach to make this connection and to understand the passage of laws disenfranchising citizens convicted of felony offenses.⁴² As they note, all but two American states restrict voting rights for at least some incarcerated citizens. The two that do not (Maine and Vermont) are also the two Whitest states in the nation. Behrens and colleagues document the rise of these restrictive laws in the aftermath of the passage of the 14th and 15th Amendments, which expanded formal citizenship and granted voting rights to Black men. They draw on group threat theories and argue that White (male) Americans were threatened by the prospect that their sole control over the political domain was no longer secure. Of course, Whites' claims to racial political dominance were threatened proportionate to the number of potential Black voters. As such, states with larger Black populations had clear political incentives to develop new ways to disenfranchise Black men. Felony disenfranchisement would prove a means for keeping power in the hands of the dominant racial group.

Behrens, Uggen and Manza find strong support for the theory that the widespread adoption of felony disenfranchisement rules rose from this racial threat. "Our key finding can be summarized concisely and forcefully," they write. "The racial composition of state prisons is firmly associated with the adoption of state felon disenfranchisement laws. States with greater nonwhite prison populations have been more likely to ban convicted felons from

⁴²Behrens, Uggen and Manza (2003).

voting than states with proportionally fewer nonwhites in the criminal justice system.”⁴³ Their conclusions have been extended more recently: States that were subject to strict federal oversight under the 1965 Voting Rights Act’s Section 5 selectively increased the incarceration of Black Americans in response to federal attempts to root out racial discrimination in voting.⁴⁴ Increased political opportunities for racial minorities lead White majorities to seek other ways of restricting their electoral power.

This use of the criminal legal system is itself an inheritor of the original Lost Cause myth of the illegitimacy of Black political power. Political scientist Weaver makes the logic behind this plain:⁴⁵ her theory of “frontlash” describes how political elites who lost the fight over civil rights in the 1960s moved in the subsequent decade to a new policy domain: Criminal justice. Republican elites imbued crime, at the national level, with a new and racialized salience by strategically deploying myths about Black criminality. In so doing, they managed to claw back some of the political power that Black Americans won through the Civil and Voting Rights Acts — and it is a tactic that has been used by politicians ever since.⁴⁶

The incarceration of citizens and their subsequent legal disenfranchisement is only the most drastic example of curtailing ballot access.⁴⁷ Might less extreme attempts to limit the pool of eligible voters follow a similar pattern? And do such considerations structure legislative behavior in the modern era? Social scientists Keith Bentele and Erin O’Brien

⁴³Behrens, Uggen and Manza (2003, pg. 596).

⁴⁴Eubank and Fresh (2022).

⁴⁵Weaver (2007).

⁴⁶Beckett (2023); Stephens-Dougan (2020).

⁴⁷It bears noting, however, that being drastic does not mean it is uncommon. More than 6% of Black Americans were legally disenfranchised in 2020 due to a felony conviction. This number topped 10% in 7 of the 33 states where the Black voting age population exceeded 100,000 (Uggen et al., 2020).

consider the introduction and passage of multiple types of restrictive voting legislation over the 2006–2011 period,⁴⁸ They conclude that the strongest predictor of the introduction and passage of restrictive voting laws is the political power demonstrated by racial and ethnic minorities, arguing that “legislative developments in this policy area remain heavily shaped by racial considerations.”⁴⁹ At the same time, they find *no evidence* that the prevalence of voter fraud impacted the introduction of restrictive provisions.

A further insight from Bentele and O’Brien—that restrictive provisions are passed most frequently in electorally-competitive states—is corroborated by work looking specifically at the introduction and passage of restrictive voter identification laws in the early 2000s. States with more Republican legislators were considerably more likely to enact these provisions — but “Republicans have not pursued this scorched-earth policy in all states, nor have they done so consistently over time.”⁵⁰ Instead, Republicans were more likely to pass these bills where their electoral majorities were slim: “where elections are competitive, the furtherance of restrictive voter ID laws is a means of maintaining Republican support while curtailing Democratic electoral gains.”⁵¹ Other work also indicates that restrictive voting laws are passed by Republican-dominated legislatures to shore up flagging electoral majorities.⁵²

This scholarship sheds important light on *where* restrictive voting laws are the most likely to go into effect, and the conclusions are not encouraging. There is strong evidence

⁴⁸“Photo identification requirements, proof of citizenship requirements, laws that introduce restrictions on voter registration, restrictions on absentee and early voting, and restrictions on participation by felons” (Bentele and O’Brien, 2013, pg. 1,095).

⁴⁹Bentele and O’Brien (2013, pg. 1,089)

⁵⁰Hicks et al. (2015, pgs. 29–30).

⁵¹Hicks et al. (2015, pg. 18).

⁵²E.g., Biggers and Hanmer (2015); Wang (2012).

that racial threat predicts the passage of these restrictive bills across the country, even as legislators proclaim that the changes are needed to combat widespread fraud.⁵³ Important as this research has been, however, it's not clear that it can speak directly to the post-2020 era when such legislative efforts were thrust into the national limelight. The explosion in the introduction of restrictive voting laws in 2021 makes this clear, as The number of restrictive provisions introduced and passed in 2021 has little historical precedent. As Table 5.1 shows, hundreds of restrictive provisions were introduced, and scores were passed, in 2021. By way of comparison, the Bentele and O'Brien paper discussed above, which also used data from the Brennan Center, calls the roughly 20 passed provisions in 2011 a "dramatic increase."⁵⁴

With a restrictive bill being introduced in 49 of the 50 states, more than state-level factors are at play in the contemporary push to restrict voting rights. A pair of papers from Seth McKee and colleagues shed some light on the question. They look specifically at roll call votes on voter ID bills, focusing only on states where they were passed between 2010 and 2013, and between 2005 and 2013.⁵⁵ One finding in particular raises concern: Democratic legislators representing Black constituents were the most likely to vote *against* these bills, while Republican legislators with sizeable Black constituents voted *for* them at higher rates. Unfortunately, without looking at legislator behavior with respect to other sorts of restrictions, and without looking at states where restrictive bills fail to pass, understanding the full dynamics of sub-state legislator behavior is difficult. This chapters helps to fill those gaps by looking at laws beyond voter ID and by considering observations where bills both pass and where they fail.

⁵³See, for instance, Piven, Minnite and Groarke (2009); Minnite (2010).

⁵⁴Bentele and O'Brien (2013, pg. 1,088; see also their Figure 2).

⁵⁵McKee (2015); Hicks, McKee and Smith (2016), respectively.

By considering not only state-level factors but also examining the demographics of the districts represented by legislators who sponsor restrictive bills (whether they eventually pass or not), this chapter marks a significant step forward in our understanding of how racial threat’s influence on the policy-making process is mediated by factors at multiple geopolitical levels. The following section steps back to engage with the (racial) threat literature and, more specifically, consider how spatially-situated theories of threat help us to formulate expectations regarding the roles played by state and local factors in the introduction and passage of restrictive voting laws.



We’ve talked at length in previous chapters about how threat structures Americans’ — and, in particular, White Americans’ — views on all sorts of policy issues. Those chapters made clear that group status threat and racial resentment are strongly associated with the extent to which White Americans buy into the Big Lie. But do these threat-laden policy preferences go on to influence which bills are introduced, and which actually become law? As we move from thinking about how threat influences *individual beliefs* to how it shapes policy preferences and legislative behavior, we also need to take social geography into account. After all, lawmakers represent groups of people who share a common geography. How do social context and (perceived) threat inform how White Americans think about race?

There is something of a paradox in the literature. On the one hand, group status theories predict that increased exposure to racial and ethnic “others” will result in higher levels of prejudice. As White Americans encounter individuals speaking other languages,

eating other foods, and practicing other religions, they may feel their own identity is being threatened; this, in turn, can lead to a denigration of out-group members.⁵⁶ The political implications of this exposure-related threat activation have been widely cataloged: White Americans report being more likely to move when their neighborhoods and schools become more racially and ethnically diverse,⁵⁷ for instance, and ethnic and racial diversity can reduce public good provision and the number of successful bond elections.⁵⁸

Nowhere has the observation that local racial conditions influence political dynamics been made more convincingly than in the foundational *Southern Politics in State and Nation*, first published in 1949 by political scientist V. O. Key.⁵⁹ Key showed, using data from throughout the South, that White elites were most committed to preserving White supremacy in areas where the political threat posed by Black Americans was most acute in local politics. Racial conflict was centered in the Black Belt, the counties once reliant on chattel slavery and where Black residents still made up a large share of the population. “It is the whites of the black belts,” Key wrote, “who have the deepest and most immediate concern about the maintenance of white supremacy,”⁶⁰ and this concern spilled over into how power was used: “From the black belts there is most likely to come those legislators and leaders who are generally most reactionary — and most vocal about white supremacy.”⁶¹

But has this changed?

There is reason to think it may have. Intergroup contact theory indicates that contact

⁵⁶E.g., Branscombe and Wann (1994).

⁵⁷Zou (2021).

⁵⁸Beach and Jones (2017); Rugh and Trounstein (2011); Hopkins (2009).

⁵⁹Key ([1949] 1996).

⁶⁰Ibid., pg. 5 XXCONFIRM PAGE.

⁶¹Ibid., pg. 517 XXCONFIRM PAGE.

with members of other racial and ethnic groups can *reduce* prejudice.⁶² When individuals report more face-to-face interactions with Americans of other races, they also report higher levels of trust and acceptance of other those groups. These effects extend even to highly intolerant individuals: As Hodson argues, “Intergroup contact and friendships work well (and often best) among intolerant and cognitively rigid persons—*by reducing threat* and anxiety and increasing empathy, trust, and outgroup closeness.”⁶³

How can it be that the presence of racial and ethnic minorities activates threat and White racial backlash, even as intergroup contact theory indicates that rubbing elbows in public space reduces prejudice? One explanation for this “diversity paradox” might be how social geography structures these responses.⁶⁴ It is possible that White Americans can be *near enough* to ethnic and racial minorities to feel threatened by or in competition with them, and yet have too few actual interactions with them to reduce prejudice. State politics are just the sort of arena in which this schism might be most present.

Take, for instance, fights in states like California and Arizona over English-only curriculum. The two states passed English-only requirements by ballot initiative in 1998 and 2000, respectively, and researchers find that racial threat predicted support for such policies.⁶⁵ State bans on affirmative action programs in their university systems were similarly explained by racial threat, before affirmative action in college admissions were struck down nationwide by the US Supreme Court in 2023.⁶⁶

In racially-diverse states, conversations about policies with racial undercurrent might

⁶²Pettigrew (1998); Mutz (2002); Pettigrew et al. (2011); Christ et al. (2014); Hewstone (2015).

⁶³Hodson (2011, pg. 154, emphasis added.).

⁶⁴Craig, Rucker and Richeson (2018, pg. 188).

⁶⁵Barker and Giles (2004).

⁶⁶Baker (2019); *Students for Fair Admissions v. Harvard*, 600 U.S. 181 (2023).

activate threats to Whites living in segregated enclaves despite them being largely surrounded by diversity. Very White regions — regions in which little contact with racial and ethnic minorities occurs — can be influenced by policy supported and passed by lawmakers from other, less-White regions in the state. Something distinct is at play for White Americans in these areas. On the one hand, they do not have the daily interactions with minorities that can reduce prejudice. On the other hand, however, their lives are shaped by the policy preferences of racial and ethnic minorities more than the lives of White Americans living in states with very few nonwhite residents; they may also find themselves in direct competition with these voters of color in elections for statewide races. Some research indicates that this plays out at the local level: Political scientists Eric Oliver and Janelle Wong show that intergroup hostility can be high in cities with high levels of diversity — but *not* in the very diverse neighborhoods themselves, where daily contacts are more likely to be occurring.⁶⁷

Little scholarly attention has been paid, however, to the policy implications of “geographically mediated threat.” A notable exception to this are Andrews and Seguin, who explore how racial threat, group contact, and differential geographic levels structured legislative activity in the early 20th century.⁶⁸ They argue that “threat arises primarily from interactions between spatially proximate units at the local level... and therefore higher-level policy change at the state level is not reducible to the variables driving local policy.”⁶⁹ In short, examining local and state characteristics alone is not sufficient to understand legislator support for racially conservative policy changes; instead, racial threat is produced by the interaction between *local* and *supralocal* contexts.

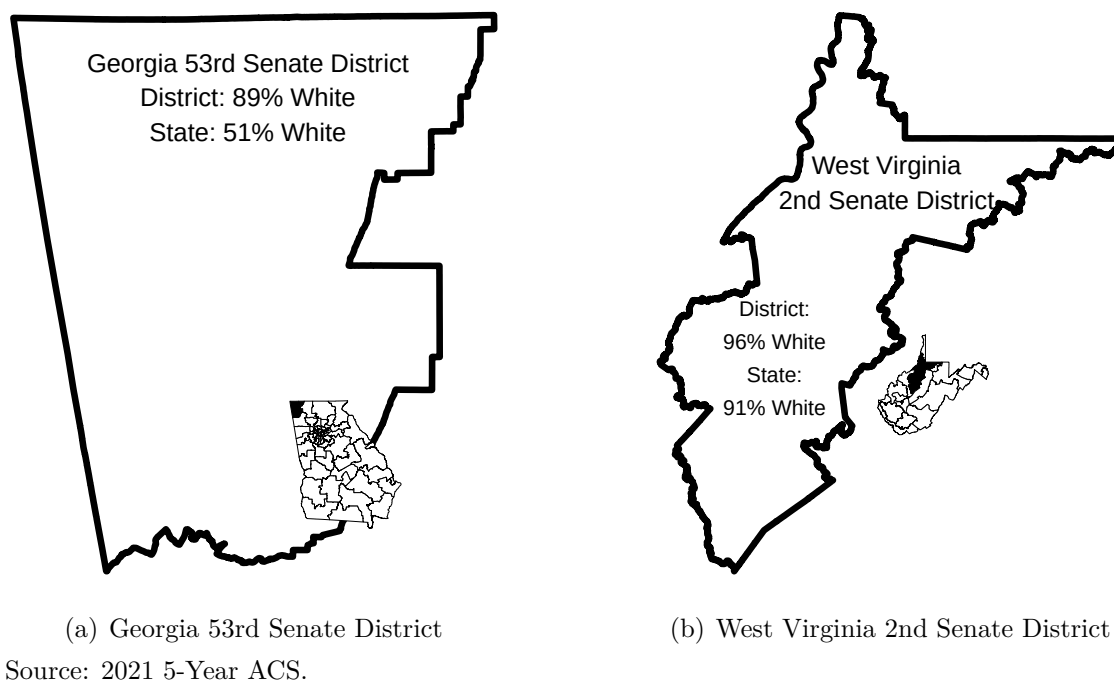
⁶⁷Oliver and Wong (2003).

⁶⁸Andrews and Seguin (2015).

⁶⁹Andrews and Seguin (2015, pg. 476).

An example might help illustrate how we expect geographically-mediated racial threat to operate (See Figure 5.3). For the purposes of this illustration, we’ll look at the 53rd Senate District in Georgia — represented in 2021 by Jeff Mullis, whose “rage burn[ed] just as hot” as that of his constituents in response to the 2020 election — and the socioeconomically-similar 2nd Senate District in West Virginia. These districts have important similarities and differences. In both districts, the population is overwhelmingly White (roughly 90%). Median income is about the same in both places (\$54k in the West Virginia 2nd and \$51k in the Georgia 53rd), as are education rates (just 19% with at least a Bachelor’s degree in both districts). Non-citizens make up less than 1% of the population in each district. Biden lost both districts badly, winning just 24% of votes in the West Virginia 2nd and 20% in the Georgia 53rd.

Figure 5.3: Local and State Context Both Matter



Thus, in many important ways, these two districts look similar when we only consider

them in their immediate context. Residents of both districts probably seldom interact with Black or other nonwhite Americans; they are steeped in the same education and partisan environments; and their economic fortunes are broadly similar.

When we consider them in the context of their *state* politics, however, they sharply diverge. When residents of West Virginia send their state senator to Charleston, that representative is not in conflict with senators representing large racial and ethnic minorities. In fact, White residents make up at least 80% of the population in each state senate district. Similarly, when US Senators are selected, or Electoral College votes are cast, West Virginians in the 2nd Senate District do not face much political competition from nonwhite voters. Thus, while residents in this area do not have the sorts of contact that can reduce racial animus, they also have little reason to feel politically threatened by them

The case could not be more different in Georgia. While the immediate context of the Georgia 53rd is similar to that of the West Virginia 2nd, the wider state politics are vastly different. Nonwhite Georgians comprise a majority in 20 of the state's 56 senate districts. The state is represented in the US Congress by two Democratic Senators — one of whom is Black — and the state was narrowly won by Joe Biden in 2020. Simply put, the overwhelmingly White residents of Georgia's 53rd Senate District likely feel threatened by nonwhite voters within their home state, but they do not have the regular interactions with minorities that can lessen such apprehensions.

Geographically-mediated racial threat would thus predict that residents of Georgia's 53rd would be considerably more hostile to racial and ethnic minorities than those in the West Virginia 2nd, *even though the districts superficially look similar to one another*. And, in fact, we estimate that racial resentment is considerably higher in the Georgia district (4.1

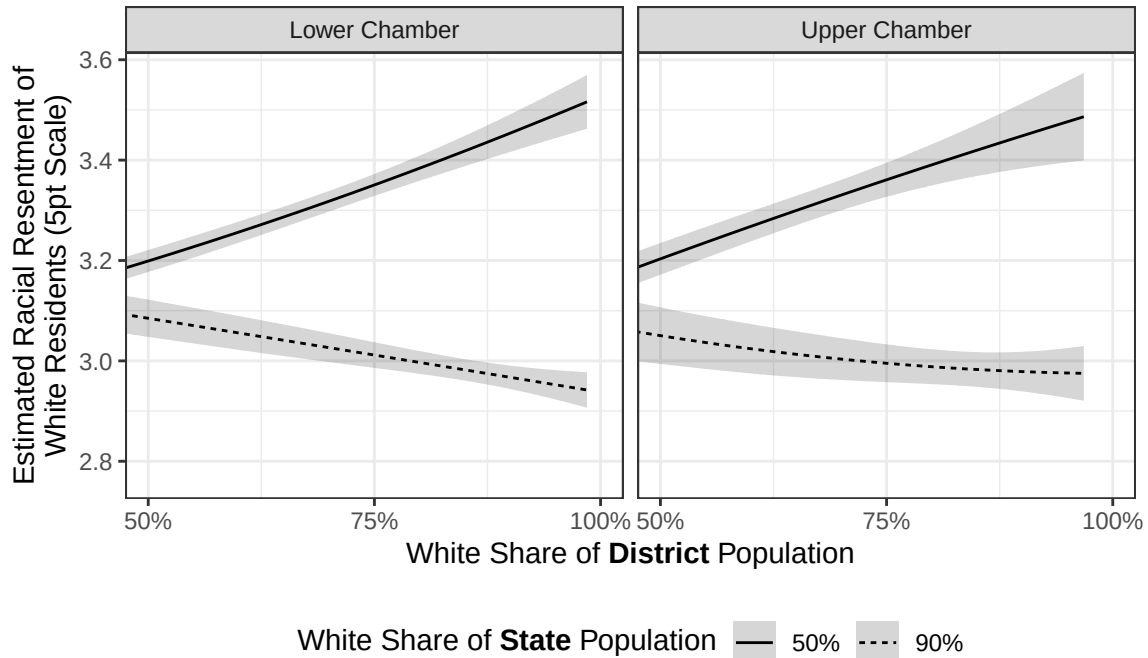
vs 2.9, on a 5-point scale). Adding more color to this illustration, the Georgia 53rd’s Senator Mullis sponsored the restrictive SB 202 in the Peach State, while the two state senators representing West Virginia’s 2nd Senate District sponsored no legislation relating to voting at all.

The generalizability of this beyond just the Georgia 53rd and West Virginia 2nd is empirically testable. If geographically-mediated racial threat really is higher in places where White Americans do not interact with many racial minorities yet compete with them at the state-level, these White Americans should also have higher racial antipathy more generally. Figure 5.4 demonstrates that this is in fact the case: District-level racial resentment is considerably higher in the Whitest parts of the least-White states.⁷⁰ This marks an important departure from how these dynamics played out during Jim Crow, when Key tells us that racial animus was concentrated in areas where Black Americans made up a large share of the population.

Can attention to the interplay of these different geographic levels help us better understand voting legislation? Threat is clearly a major driver not only of *individual beliefs* but also of *policy output* in the United States. As the research on voting laws makes clear, states pass more restrictive legislation when there are more racial minorities whose political power threatens the established power structure. However, geographically-mediated threat can help us think more clearly about where exactly the support for racially-restrictive legislation comes from. Specifically, racial threat should be most acute in the Whitest parts of the least White states: Where political competition between racial groups for governor’s man-

⁷⁰See below for more detail on the estimation of racial resentment at the state legislative district level using multilevel regression with poststratification. In previously published work on the relationship between geographically mediated racial threat and racial resentment, I estimated racial resentment using a raking approach. (Morris, 2023, 2024).

Figure 5.4: Geographically Mediated Threat Clearly Predicts Racial Resentment



Covariates include district median income (logged), median age, share with an Bachelor's degree or higher, population density (logged), and unemployment rate.

sions, US Senate seats, and on ballot initiatives is highest, but where White Americans do not interact regularly with nonwhites. Is that also where we see action on racially-regressive policymaking?

✱

We know from the previous two chapters that beliefs of ordinary White Americans about voter fraud are shaped in no small part by race; meanwhile, geographically-mediated racial threat indicates that these feelings of threat and resentment are likely to be especially high in predictable geographical areas. But do feelings of racial threat and resentment make the leap to the legislative arena? In other words, are legislators responsive to, and acting

upon, the racialized policy preferences of their constituents?

Despite the pile of research documenting how racial threat influences the policy preferences of White Americans, very little is known about whether these racialized preferences shape legislator behavior and the actual policy-making process.⁷¹ Nevertheless, the political science literature has a good sense of how constituents' views drive legislative activity more broadly. The "retrospective voting" model indicates that, if lawmakers fail to reflect the policy demands of the electorate, they will be out of a job when the next election rolls around.⁷² When voters cast their ballots, they reflect on how well the incumbent has performed and vote for the challenger should the incumbent come up short. The looming specter of being ousted from office, then, provides a powerful incentive for the representative to reflect the preferences of their voters.⁷³ Caughey and Warshaw show that, over time, legislators in state politics have been increasingly good at reflecting the preferences of their voters,⁷⁴ and other work underscores the importance of public opinion for policy-making.⁷⁵ Yet, as Jeffrey Lax and Phillips points out, there are still major "democratic deficits" in the states: Policies are only reflective of the majority's will about half the time.⁷⁶ Nevertheless, scholars argue that increasingly strong links between policy preferences and legislative behavior is probably a net positive; in most domains, it seems uncontroversial to prefer lawmakers who reflect their constituents well.

⁷¹An important exception to this is Garcia and Stout (2020), which explores the relationship between Congressional-district levels of racial resentment and the issuance of press releases attacking Obama on personal grounds. They find that Republican members of Congress who hail from highly resentful districts were considerably more likely to attack Obama's character—but were *not* more likely to attack the character of a White Democrat, Hillary Clinton.

⁷²E.g., Healy and Malhotra (2013).

⁷³Canes-Wrone, Brady and Cogan (2002); Mayhew (2004).

⁷⁴Caughey and Warshaw (2022).

⁷⁵E.g., Burstein (2003).

⁷⁶Lax and Phillips (2012).

But what about when the public wants to see racially discriminatory policy enacted, or when their preferences are steered by racial animus? Voting right fall into this category. When policy preferences are formed by racial resentment and threat, and acting upon them would restrict the political rights of nonwhite Americans, we would hope that legislators would push back against their constituents. Might that be the case here? Might lawmakers resist the push for restrictive voting rules where it is motivated by racial animosity, moving legislation forward only in cases where other considerations prevail? It is not likely.

Throughout the scholarship on the relationship between public opinion and legislator activity, one thing is clear: The more salient an issue is, the more likely a lawmaker is to act on it in ways that reflect her constituents' preferences.⁷⁷ Coming out of the 2020 election and the January 6 insurrection, the health of American democracy was top-of-mind for many Americans. Although their views differed substantially, Democrats and Republicans alike felt that democratic systems of governance were under unprecedented threat. Some felt the threat emanating from an election they were told was stolen; others, from attacks on voting rights. But for most Americans, the health of elections was and remains salient in ways it has not been in generations. This salience should make lawmakers responsive to public opinion. Put differently, theories of strategic politicians, retrospective voting, and the delegate model of representation all predict that legislators are likely to follow public opinion on democracy issues in the modern era.

It is possible that state legislators are leading, rather than shaping, their constituents' preferences on voting issues. After all, some state legislators like Doug Mastriano and Derrick

⁷⁷Burstein (2003); Canes-Wrone and Shotts (2004); Lax and Phillips (2012); Adler, Cayton and Griffin (2018).

Evans took highly-visible actions in the aftermath of the 2020 election that could have shaped how their constituents thought about election security. But at a national level, it seems unlikely that state legislators are leading their constituents for two different reasons. First, research from Barberá et al. explored this question with respect to members of Congress.⁷⁸ Although they consider the possibility that “members of Congress initiate debates about issues that are subsequently followed by the public,”⁷⁹ they find that this is not the case: Members of Congress follow, rather than lead, the conversations initiated by their supporters. Moreover, members of Congress are especially likely to follow their core supporters’ opinions on topics of high salience. In other words, legislators act as reflections of their constituents most often on high salience issues, and are more likely to parrot — and not guide — their core supporters on precisely these issues. If this is true with respect to members of Congress, who enjoy relatively high visibility and resources for communicating with constituents, it is even more likely to apply in the context of state legislators.

The second reason that state-level legislators are likely learning from, and not instructing, their constituents on the topic of voting rights is even simpler: Americans do not know much about their representatives. The majority of Americans cannot correctly name their Congressional representative; the share who can do so for their state legislative representatives is surely far lower. That “ideological policy representation comes *despite* the [low] knowledge levels of the public” is, as Jaeger, Lyons and Wolak explain, “a common refrain” among political scientists.⁸⁰ The literature thus indicates that legislators followed, and did not lead, the preferences of their constituents. Finally, and as discussed below, the measures

⁷⁸Barberá et al. (2019).

⁷⁹Barberá et al. (2019, pg. 885).

⁸⁰Jaeger, Lyons and Wolak (2017, pg. 908, emphasis in the original).

of constituents' racial views used in the remainder of this chapter were all collected before the 2020 election, and thus could not have been channeled by their legislators' responses to what happened that fall.

To be sure, acknowledging that lawmakers were unlikely to directly shape constituents' beliefs does not mean that they were *only* following them. As we have seen, many lawmakers actively bought into the Big Lie in much the same way as the broader White public. Lawmakers like Georgia's Jeff Mullis and Iowa's Jason Schultz may well have sought to restrict access to voting out of a sincere belief that fraud was a problem (though, as noted above, the specific restrictions proposed did not always map onto issues identified by the voter fraud conspiracies). Ultimately, it seems likely that state legislators were responding to their constituents' demands for action on the topic as well as taking the initiative on their own.



So far, we have looked at how some state legislators talked about the need for election reform in the aftermath of the 2020 election, as well as at the sorts of restrictive voting policies that were proposed and enacted around the country in 2021. I have also discussed how what I call geographically-mediated racial threat tells us where we should expect to see White voters most concerned about the political power of nonwhite Americans and, thus, most supportive of restrictive voting legislation. I now turn to a series of statistical analyses to ask whether this racial threat and resentment find expression in legislative behavior.

We turn first to models asking what state-level characteristics predict restrictive action on voting issues during the 2021 legislative session. I use the Brennan Center Voting

Laws Roundup, discussed above, to identify how many restrictive provisions were introduced or passed in each state. At the state-level, I am mostly interested in how partisanship and racial demographics intersect to influence legislative behavior. Specifically, I expect that restrictive action will be concentrated in states like Texas and Florida where Republicans have unified control over the lawmaking process and there are large nonwhite populations. Minority voters pose a larger “threat” to White residents of these states, and Republican control of the legislature and governor’s mansion gives them the power to restrict access to the ballot for these nonwhite groups.⁸¹

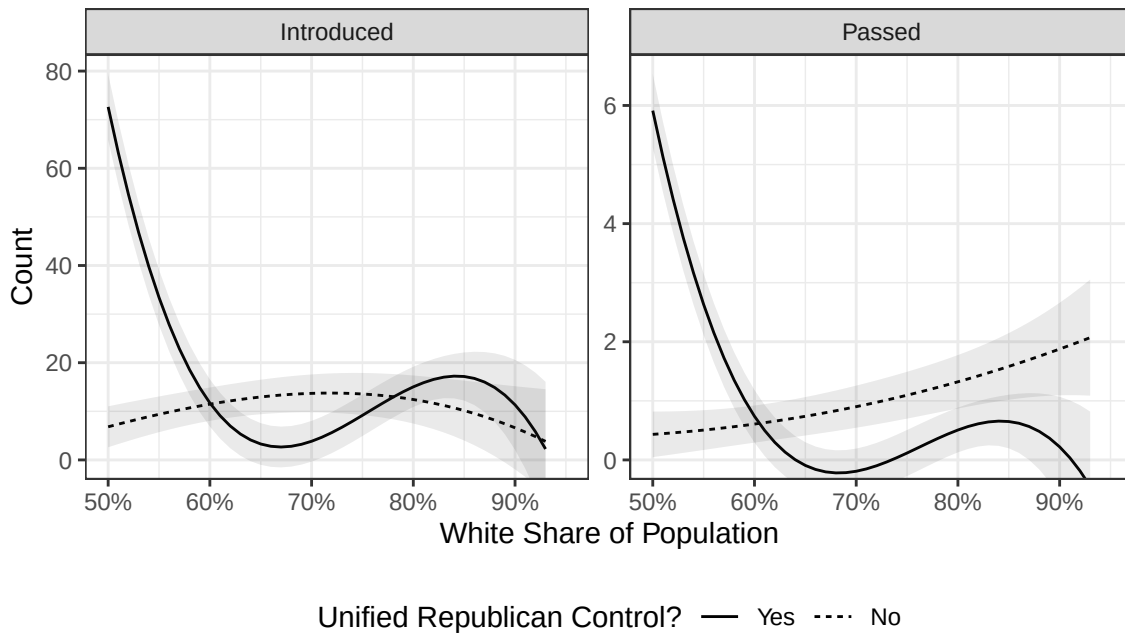
Of course, there are many differences between the legislative capacity, professionalism, and electoral context of the 50 different states. Each state also entered 2021 with a particular election regime already in place: States where voting was relatively easy in 2020, for instance, had more room to enact restrictive laws than those where voting was more difficult. Using regression analysis, I account for these state-level characteristics, as well as for states’ socioeconomic profile.⁸²

Figure 5.5 shows the relationship between partisan control, race, and the introduction (on the left-hand side) and passage (on the right-hand side) of restrictive voting provisions, after accounting for the relationship between those other characteristics and restrictive voting legislation (the full regression table can be found in the Appendix to this chapter). In these

⁸¹Although Nebraska’s unicameral state legislature is formally nonpartisan, they are considered to be under unified Republican control for the purposes of this study.

⁸²Measures of the pre-existing election regime come from the Cost of Voting Index (COVI) (Schraufnagel, Pomante II and Li, 2020). I measure and control for legislative professionalism using the Squire Index (Squire, 2017). Electoral competitiveness is measured using the 2020 election results published by MIT Election Data and Science Lab (2021), and states are considered competitive if the vote margin of the winning presidential candidate in 2020 was ten points or less. Data on partisan control comes from the National Conference of State Legislatures: https://www.ncsl.org/documents/elections/Legis_Control_2-2021.pdf. Following Hicks et al. (2015), I also include an interaction between unified Republican control and competitiveness.

Figure 5.5: Partisanship, Race, and Restrictive Provisions at the State Level



Covariates include: COVI, competitive, competitive $\times$ unified Republican control, change in Democratic presidential vote share 2016–2020, median age, median income (logged), share with a Bachelor's degree, population density (logged), and the Squire Index.

models, I use what is called a robust regression to keep outliers like Texas — where more than 200 restrictive provisions were introduced by legislators in 2021 — from skewing the results too dramatically (in the Appendix to this chapter I show that the results are substantively similar using OLS).

In the 26 states where Republicans did *not* hold unified control, there was no statistically significant relationship between racial demographics and the number of restrictive provisions introduced or passed. The median state without unified Republican control introduced 8 or 9 restrictive provisions, and passed 0. Simply put, there was not a lot of restrictive activity happening in these states, and what was occurring was not explained by race.

Taken as a whole, the 24 Republican-controlled states did not look all that differ-

ent. The average state only introduced and passed a few more provisions than the split or Democratic states. What is different, however, is the role that race clearly plays in these states. In states where Republicans hold all the levers of power there is a strong relationship between racial characteristics and restrictive activity. Lawmakers in less-White states where Republicans can enact new laws along party lines introduced and passed far more restrictive provisions. This is indicated by upper left hand corner of each model — showing that less-White, Republican-controlled states are where the lion’s share of activity is happening.

This relationship remains after controlling for other characteristics in the states with total Republican control, including competitiveness. Even uncompetitive racially-diverse Republican states saw significant legislative activity, especially when it came to the introduction of these bills. While the four Whitest uncompetitive Republican states (Wyoming, North Dakota, Montana, and West Virginia) collectively introduced 28 restrictive provisions in 2021, the four least-White uncompetitive Republican states (Mississippi, Alaska, South Carolina, and Oklahoma) introduced 63 restrictive provisions — more than twice as many. Thus, race seems to be a driving factor for voting rights backlash in Republican-dominated states *even when those states are not electorally competitive*.

These results corroborate past work highlighting the importance of race to restrictive voting laws, and provide strong evidence that race continues to matter at the state level: In states where the Republican party has total control, the presence of racial and ethnic minorities is strongly predictive of how many restrictive provisions were introduced and passed.

While the state-level results agree with what what racial threat leads us to expect — there is more activity where nonwhites make up a sizeable share of the population and where

Republicans can do something about it — they do not give us insight into what is happening at the sub-state level. We now turn to an examination of the behavior of individual state legislators, asking whether their constituents’ racial attitudes predict their behavior.

Here, in addition to the data from the Voting Laws Roundup, I also incorporate data from LegiScan, an organization that tracks all bills, of any sort, introduced in every state. Importantly, LegiScan records the legislator(s) who sponsor each bill. By merging the Voting Laws Roundup with the LegiScan data, I identify all districts represented by a lawmaker who sponsored at least one restrictive voting law.

Table 5.2 shows that, unsurprisingly, districts represented by lawmakers who sponsored restrictive voting bills are considerably different from the rest of the country. These districts are considerably Whiter, and especially less Black. Biden also won a considerably larger share of the vote in places where the representative sponsored no restrictive bills.⁸³ Interestingly, however, there were not substantively large differences between the districts when we look at income, education, or age. Roughly 20% of the country’s population was represented by a lower-chamber representative who sponsored a restrictive bill; the number was comparable for those with an upper-chamber who did the same.

Nevertheless, many of these characteristics are correlated and must be teased apart statistically using regression analysis. The first set of district-level analyses focus on the relationship between the White share of the *district* the White share of the *state*. Recall that geographically-mediated threat is a product of both the local and state racial context.

⁸³I estimate Trump’s two-party vote share in each district by aggregating up from precinct-level results published by the Voting and Election Science Team (2022). I assign each precinct to the upper- and lower-chamber district in which its geographical center is located. While this will not perfectly estimate vote share in chambers where precincts cross district lines, there is little reason to expect this will systematically distort vote share estimates.

Table 5.2: District Characteristics where Representative Did or Did Not Sponsor a Restrictive Voting Bill in 2021

Variable	Lower Chamber Districts		Upper Chamber Districts	
	Did not Sponsor	Sponsored	Did not Sponsor	Sponsored
Racial Resentment	3.20	3.30*†	3.20	3.30*†
Non-Hispanic White	65.7%	73.8%*†	65.8%	72.3%*†
Non-Hispanic Black	12.8%	9.1%*	11.9%	8.5%*
Latino	12.4%	9.8%*	12.3%	12.1%
Biden 2020 Vote Share	51.5%	43.3%*†	50.9%	42.0%*†
Median Age	39.10	40.30*†	38.70	40.20*†
Median Income	\$68,837	\$72,830*	\$69,298	\$71,248
Bachelor's Degree	32.3%	31.7%	32.7%	30.9%*
Population Density	2,503.30	1,801.20*†	2,131.60	1,647.90†
Unemployment Rate	5.4%	5.1%*	5.3%	5.0%*
Republican Legislator	48.5%	76.8%*†	47.7%	84.0%*†
White Legislator	77.2%	91.6%*†	81.3%	94.2%*†
Black Legislator	13.7%	4.4%*	10.8%	2.4%*
Female Legislator	31.3%	22.6%*†	26.9%	22.7%
N	3,571	1,036	1,537	370

Notes:

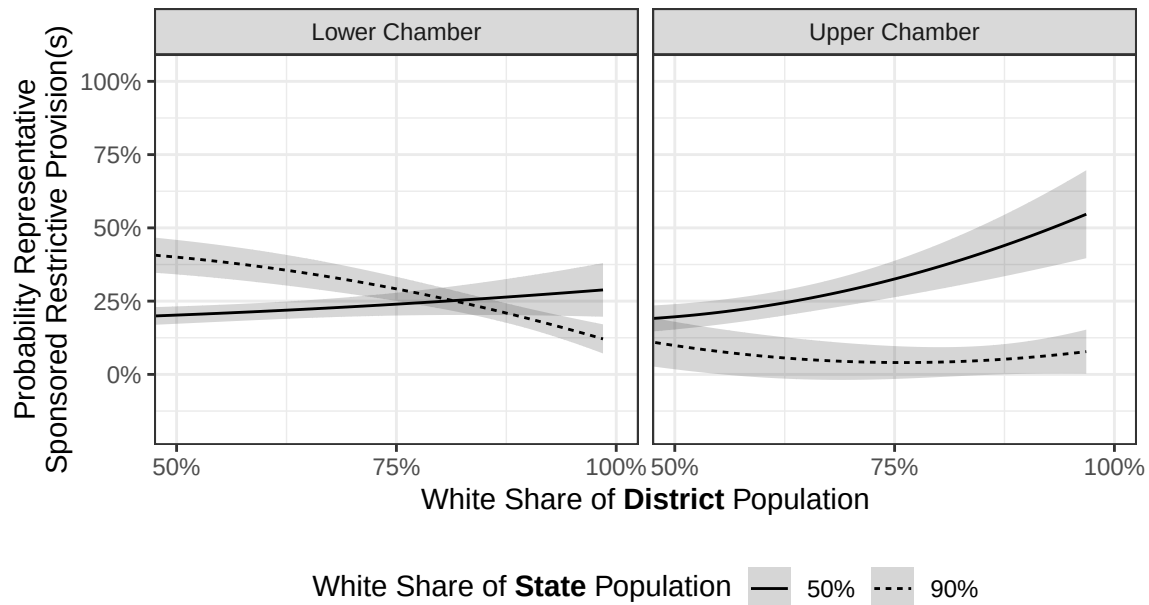
* Mean different from districts where representative did not sponsor a restrictive bill (t-test, $p < 0.05$).

† Distribution different from districts where representative did not sponsor a restrictive bill (Kolmogorov-Smirnov test, $p < 0.05$).

If racial threat is spilling into the legislative process, I expect to find that lawmakers representing the *Whitest districts* in the *least White states* will sponsor restrictive bills at the highest rate.

That is precisely what I find, especially states' upper chambers. Figure 5.6 I show the relationships between these state and district characteristics and bill sponsorship, after accounting for the other district- and state-level characteristics. These plots show the likelihood that a district was represented by a sponsor of a restrictive bill, and asks whether that relationship is influenced by state-level characteristics.

Figure 5.6: State and Local Characteristics and the Sponsorship of Restrictive Bills



Covariates include whether the lawmaker is Republican, female, Black, Latino, or another race; district median income (logged), median age, share with an Bachelor's degree or higher, population density (logged), unemployment rate, and Biden 2020 vote share; and state competitiveness in 2020, whether it has unified Republican control, and Squire index.

Figure 5.6 makes clear that this restrictive legislation was concentrated in Whitest parts of the states with the *most* racial diversity. As we can see, in a hypothetical state where 50% of the population was not White, the legislative action on restrictive voting bills is concentrated in the most segregated White districts. It is important to avoid reading too much into the lines for the racially-homogeneous states, as there is simply very little variation in the racial composition of their districts. For instance, of the nearly 800 lower chamber districts in states where the statewide population is at least 80% White, fewer than 2 dozen (2.6%) are majority-minority. The full regression table can be found in the Appendix to this chapter.

It thus seems that the patterns in the sponsorship of restrictive voting legislation follow the patterns predicted by geographically-mediated racial threat. Nevertheless, demo-

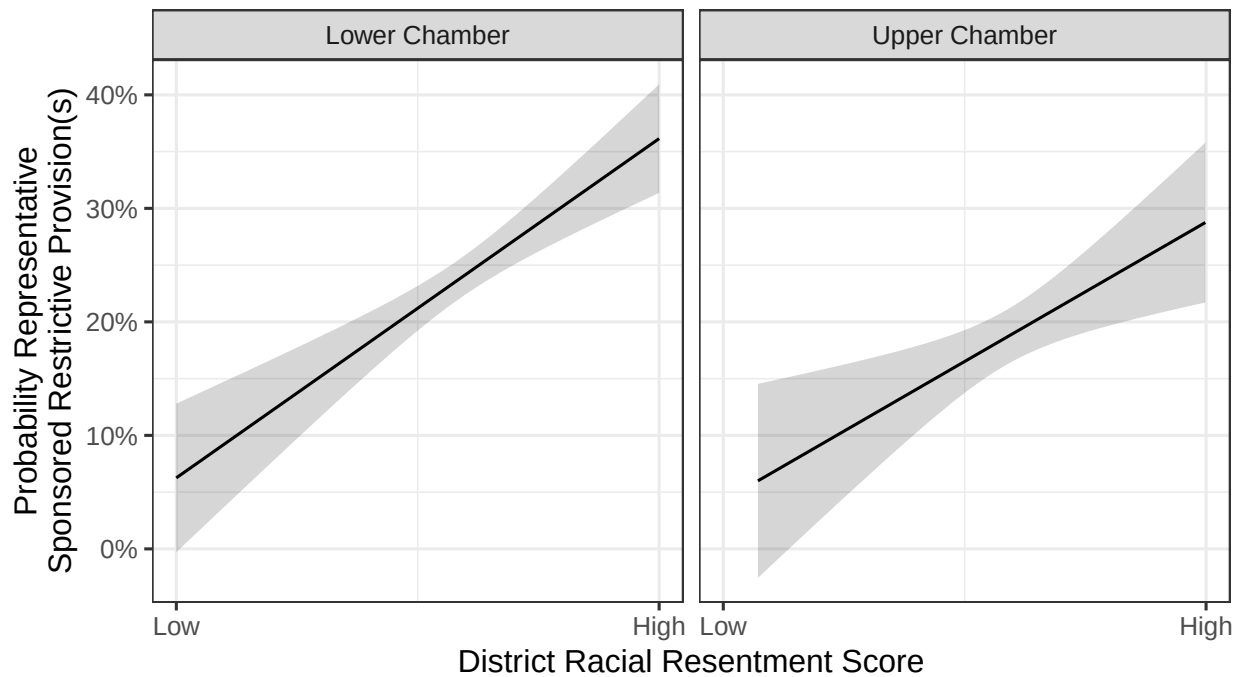
graphic data cannot give us direct insight into how White district residents actually think about racial issues. As such, we turn now to an investigation of whether White residents' racial resentment similarly predicts the sponsorship of these bills.

To measure residents' racial resentment, we turn once more to the Cooperative Election Study (CES). Unfortunately, we cannot use the Nationscape's massive sample for this (as we did to calculate racial resentment scores by Congressional district in Chapter 2), as those data do not include geographic indicators at a lower level than Congressional district. Chapter 4 used the CES to measure how individuals' confidence in the 2020 election changed from the pre-election to the post-election period. That chapter was interested in individual-level characteristics and shifts, and how racial resentment explained them. Here, the approach is going to be different since we are interested in the racial resentment of a group of individuals represented by a given lawmaker. As we saw in Figure 5.4, geographically-mediated racial threat and racial resentment are tightly correlated measures; nevertheless, testing whether they both explain patterns in bill sponsorship can help deepen our understanding of these processes.

As Chapter 4 explained, the CES features a sample of tens of thousands of Americans every even-numbered year that is widely relied upon by social scientists. In this chapter, as in the last, I keep only White respondents to the survey; their racial attitudes, after all, are what I expect move the antidemocratic needle. To make sure that the analysis includes enough respondents, I include the White respondents to the 2018 and 2020 waves of the CES. All told, this results in about ninety thousand respondents.⁸⁴ Because some state legislative districts have few CES observations, I use an approach called multilevel regression with

⁸⁴ $N = 45,011$ in 2018; $N = 44,128$ in 2020.

Figure 5.7: District Racial Resentment and the Sponsorship of Restrictive Bills



Covariates include whether the lawmaker is Republican, female, Black, Latino, or another race; district share white, income (logged), median age, share with a bachelor's degree or higher, population density (logged), and Biden 2020 vote share; and state competitiveness in 2020, whether it has unified Republican control, and Squire index.

poststratification to estimate district-level racial resentment.

As Table 5.2 made clear, the racial resentment among White residents of districts where a lawmaker sponsored a restrictive voting bill was significantly higher than in other districts. That said, there were also other important differences (like Biden's vote share in 2020) that are correlated with resentment scores. To test whether White constituents' racial resentment has a relationship with whether a lawmaker sponsored a restrictive voting bill above-and-beyond what can be explained by these other characteristics, I once again use regression analysis. The regression incorporates all the same control variables as those used in the models testing geographically-moderated racial threat above (see Figure 5.6). Interested readers can learn more about this in the Appendix to this chapter.

Figure 5.7 shows the relationship between White residents’ estimated racial resentment scores and the likelihood that their lawmaker sponsored a restrictive voting bill, net of these other factors. Even after accounting for these other potential explanations, district-level estimates of racial resentment have a strong, statistically significant relationship with the likelihood of being represented by a lawmaker who sponsored a restrictive bill. Importantly, as I show in the Methodological Appendix, the relationship between racial resentment and the sponsorship of restrictive voting legislation, net of other characteristics holds — and in fact is *stronger* — when I limit the analysis to districts represented by Republican lawmakers.

These relationships are very different when considering *expansive* voting laws: There is a negative bivariate relationship between White residents’ resentment and the sponsorship of these bills, which becomes statistically insignificant with the inclusion of the other controls. Other things being equal, lawmakers representing the most resentful White residents were more than 10 points more likely to sponsor a restrictive voting bill than those representing the least resentment constituents. As in the previous section exploring the relationship between geographically-mediated threat and bill sponsorship, the relationship is especially strong in states’ upper chambers. Regression tables can be found in this chapter’s Appendix.

These results make clear that legislators’ behaviors are responsive to the racial threat experienced, and racial resentment felt, by their White constituents. Where threat and resentment are higher, lawmakers are more likely to sponsor bills that would make voting more difficult. And it is important to note that this relationship is specific to *restrictive* voting bills: in bivariate terms, racial threat and racial resentment are *negatively* associated with the sponsorship of both expansive and neutral voting provisions. These associations do

not survive the inclusion of controls — only restrictive sponsorship is robustly predicted by constituents’ racial attitudes.⁸⁵



There is little doubt that Americans — and, especially, Republican voters — were concerned about the health of American democracy in 2021. A year after the 2020 election, a third of Americans believed that Joe Biden was not the legitimate president, and just one in five reported being “very confident” in the integrity of American elections.⁸⁶ While fears about a stolen 2020 election were almost exclusively confined to Republican voters, skepticism about the health of American democracy was shared across the political spectrum in the aftermath of 2020, January 6, and the legislative session that followed.

Faced with such widespread disillusionment and concern, state legislators could pursue one of two avenues. On the one hand, they could choose to criticize the Trump campaign’s efforts to undermine the election and make clear their commitments to democratic norms, an important feature of a healthy political system.⁸⁷ They could educate their constituents on the lack of evidence supporting the claims of fraud in the 2020 election and confirm that the elections in their home states had been run fairly.

Or they could follow their constituents where they led, treating their lack of confidence — and not the rhetoric that gave rise — as the real issue that needed to be addressed by the legislature. Some might simply follow their party’s lead, while others could take

⁸⁵See the Methodological Appendix.

⁸⁶News (2021).

⁸⁷Clayton et al. (2021); Hobolt and Osnabrügge (2025).

legislative action to signal to their constituents that they took their concerns about election security especially seriously by sponsoring a restrictive bill. This chapter shows that, by and large, Republican lawmakers took the second path. They often framed their decisions to support restrictive voting bills as an attempt to respond to the concerns of their constituents, though many also voiced their own (unsubstantiated) concerns about irregularities in the 2020 election. Overwhelmingly, this was a partisan effort: Republican state legislators voted in favor of restrictive bills that passed in 2021 more than 98% of the time; Democrats, meanwhile, voted in favor of them just 25% of the time. Across the four big omnibus bills from Iowa, Georgia, Florida, and Texas, there were only two Republicans in opposition (a state senator in Florida, and a state representative in Texas); these bills each received zero votes from Democratic legislators.⁸⁸

But did patterns in the introduction and sponsorship of these bills follow the same racialization earlier chapters showed was present in the production and mass adoption of beliefs about voter fraud? The answer is a resounding yes. In this analysis, I approached the question in two different ways. The empirical section of this chapter began by extending existing work, considering what theories of racial threat predict about where racially regressive policies find support. The restrictive legislation introduced in the 2021 legislative sessions around the nation were not sponsored by representatives from racially diverse districts where White voters are directly competing with voters of color over whom they send to the statehouse. They also are not being sponsored by lawmakers in overwhelmingly White states, where voters of color are too few in number to pose immediate political, economic, or social threat. Instead, the lawmakers most likely to sponsor these bills come from the White

⁸⁸Morris and Wilder (2022).

enclaves of diverse and diversifying states. In these states — states like Georgia and Texas and Arizona — White districts might not face *internal* competition from racial and ethnic minorities, but *do* compete with them in statehouses, Senate races, and Electoral College votes. These electoral threats need not be real to motivate behavior: take Arkansas, for instance. Despite high racial diversity (only about two-thirds of residents are non-Hispanic white), the state was not competitive in 2020: Trump won by nearly 30 points. Yet only three states (Iowa, Georgia, and Texas) passed more restrictive provisions into law in 2021.

Of course, demographic data does not tell us how constituents think about racial and ethnic minorities. To get a sense of whether constituents' racial animus was related to whether lawmakers supported these bills, I used survey responses from some 90,000 White Americans in 2018 and 2020. The results are clear: Lawmakers from more resentful districts sponsor restrictive voting legislation at considerably higher rates, and these relationships cannot be explained away by partisanship, competition, or district-level demographics like income and education.

“The hard core of the political South,” wrote V.O. Key in 1949, “...is made up of those counties and sections of the southern states in which Negroes constitute a substantial proportion of the population. In these areas a real problem of politics, broadly considered, is the maintenance of control by a white minority.”⁸⁹ This is no longer the case. Today, both the racial dispositions of White Americans and the ways their elected represent wield political power on at least this one racially-charged issue is most uniformly negative in very *White* areas. There is an important wrinkle here, however, that is not so far from Key's observation after all. Racial competition for power still seems to shape political life, but the

⁸⁹Key ([1949] 1996), pg. 5.

level has shifted. The combination of *low* daily exposure to racial and ethnic minorities and *high* statewide competition seem to drive these forces today. Yet the fact that racial threat is now mediated by both local- *and* state-level racial characteristics, as we have seen, has not reduced the policymaking in this domain.

State lawmakers have continued to introduce and to pass new voting restrictions since the 2021 legislative session, though in no year (at least through 2025) have quite so many been introduced. And, although the number of laws enacted in 2025 came close to the 2021 numbers, just one of the laws that year was an omnibus bill as sweeping as those from 2021 in Iowa, Georgia, Florida, and Texas.⁹⁰ It is worth pointing out that, in most of these years, the number of bills that were passed that made voting *easier* actually outnumbered the number of restrictive bills; as political scientist Jacob Grumbach has shown, American states are really on two tracks when it comes to their commitment to democracy.⁹¹ Nevertheless, that racial threat and racial resentment explain the introduction and the passage of restrictive voting laws provides troubling evidence that lawmakers are not serving as bulwarks against the racialized antidemocratic tendencies of their constituents. Indeed, they are often times stoking these fires themselves. In short, state legislators are picking up what their aggrieved White constituents are putting down.

And, importantly, their actions become self-reinforcing. The myth of the Big Lie was invoked to justify the passage of restrictive voting laws — even, at least in the case of Florida, by lawmakers who knew the Big Lie was false. These laws became self-justifying: If laws were passed to combat voter fraud, then surely voter fraud existed. But the implications

⁹⁰“State Voting Laws Roundup: 2025 in Review.” 2025. *Brennan Center for Justice*.

⁹¹Grumbach (2023).

potentially run even deeper. Lawmakers' rhetoric may well have undermined the confidence of their constituents *even as* they restricted access to the ballot box, sowing the ground for future restrictive voting policies. In the words of Judge Walker in Florida, the creation of a ghost-hunting team was used to prove the existence of ghosts.⁹²

Earlier chapters showed that national elites relied on racial tropes to make their claims of voter fraud and a stolen election more believable. This was absorbed by the mass public: those White Americans who are higher in racial resentment, and exposed to racially-charged accusations of fraud, were more likely to believe that voter fraud is undermining the American electoral system. But it was not known whether the orientations of *individual* White Americans were reflected in the actual legislative process. We now know that they are. Lawmakers representing racially-threatened and racially-resentful constituents pushed these bills forward with alarming frequency. In the final empirical chapter of this book, I turn to the *outputs* of these laws, showing that these racially-charged bills have racially-disparate effects on the electorate — and that the legal system is not up to the task of protecting the electorate.

⁹²*League of Women Voters of Florida, Inc. v. Lee*, No. 4:21-cv-00186-MW-MAF (N.D. Fla. Mar. 31, 2022), 70.

Chapter 6

A Mockery of the Rule of Law: Discriminatory Laws and the Growth of the Racial Turnout Gap

“One dot of paint on the canvas is meaningless, but when thousands of dots are viewed together, they create something recognizable. So too here, one piece of evidence says little, but when all of the evidence is viewed together, a coherent picture emerges.”

—Judge Mark E. Walker, Northern District of Florida¹

As dawn broke on election day, 1920, Black Floridians had reason to be cautiously hopeful.² Organizers with the young NAACP had transformed personal desires for freedom into a collective movement powerful enough to threaten the region’s racial apartheid, and November 2 found the state’s Black voters “poised at the brink of a great victory against one-party rule in the South.”³

But the Black men and (following the ratification of the 19th amendment a few months earlier) women planning to cast their ballot knew the stakes: The police had recently conducted a violent sweep through Black neighborhoods of Miami, and the KKK had posted signs warning that “The Ku Klux Klan is again alive! And every Negro who approaches

¹*League of Women Voters of Florida, Inc. v. Lee*, No. 4:21-cv-00186-MW-MAF (N.D. Fla. Mar. 31, 2022), 39.

²The descriptions of what follows come from Paul Ortiz’s *Emancipation Betrayed: The Hidden History of Black Organizing and White Violence in Florida from Reconstruction to the Bloody Election Of 1920*, and a 2020 story in the *Orlando Sentinel* (Hudak, 2020).

³[pg. 205]Ortiz (2005)

a polling place next Tuesday will be a marked man. This is a white man's country, boys, save your own life next Tuesday.”⁴ Similarly, in the city of Ocoee, the KKK signaled that they would let no Black men cast a ballot. The Klan was aided by Democratic officials, who sought to intimidate Black Floridians and purged them from the voter lists. County leaders in Gadsden County, meanwhile, outlawed African Americans from holding public meetings. In case the message was not clear enough, Klan members kidnapped, tortured, and murdered NAACP organizer J.E. Foley just 4 days before the election.

The hopes harbored on the morning of November 2 did not last. Even on a day marked by widespread violence against Black voters around the state, the story of Ocoee stands out for its brutality. When Mose Norman arrived at his polling place he was immediately turned away. He left, and then came back later in the morning, only to once again be denied the opportunity to cast a ballot. Rather than silently accept this indignity, he began instead to collect testimony from other Black voters who were being turned away. Norman eventually left the polling place and, presumably fearing for his safety, sheltered in the home of July Perry. When White men stormed the house to capture Norman and Perry, the Black men fired on them. The White men called for reinforcements from nearby towns, and scores of carloads of White terrorists answered the call.

By morning, the Black neighborhood was in ashes. White attackers waged a bitter house-to-house campaign, torching houses through the night and “as late as 4:45 in the morning.”⁵ While Norman escaped, Perry was not so lucky: He would be brutalized and lynched, hanged in sight of the home of a federal judge who had advised the Black activists

⁴Quoted in *Ibid.*, pg. 205.

⁵*Ibid.*, pg. 221.

of their rights to vote in the lead up to the election. But Perry was not the only victim. The NAACP conservatively estimated that as many as 60 Black Floridians were murdered on election day, and the face of Ocoee was forever changed. Although the town was a third Black in 1920 (with more than 250 Black residents), the city was home to just 2 Black residents by 1930. Between 1940 and 1970, the U.S. Census recorded no Black Floridians living in Ocoee. The promise of the Grand Master of the Florida KKK was realized for decades in Ocoee: “We shall always enjoy WHITE SUPREMACY in this country,” he had written shortly before the election. “And he who interferes must face the consequences.”⁶

But history did not end in 1920, and it did not end in 1970. Lawmakers rely on myths of voter fraud and Black criminality to pass laws that undermine Black political power even today. Indeed, we saw as much in Chapter 5, when Texas lawmakers said the quiet part out loud by trying to incorporate language used to justify White primaries into a law in the 21st century.

Do these laws translate into real political consequences for Black Americans and other minority voters? Or does the legal infrastructure erected to make good on the promises of the 15th Amendment’s guarantees guard against backsliding? This chapter shows that there is little room for optimism in the current jurisprudential and political moment. I start with an analysis of the three most-litigated omnibus bills from the 2021 legislative session: Florida’s Senate Bill 90 (SB 90), Georgia’s Senate Bill 202 (SB 202), and Texas’s Senate Bill 1 (SB 1). Private plaintiffs and the federal government brought lawsuits against these bills, arguing — and presenting empirical evidence — that they had racially-disparate effects. In the case of

⁶Quoted in *Ibid.*, pg. 215.

each of the three major omnibus bills from 2021,⁷ the legal system failed to stop the bills from going into effect, though for different reasons: Florida’s law was re-imposed after the 11th Circuit overturned the District Court’s finding that the law was enacted with discriminatory intent. In Georgia, plaintiffs have still not been granted a trial five years after initiating their lawsuit. And in Texas — where the lawsuits were brought after the Supreme Court weakened the Voting Rights Act in the summer of 2021 — an alternative litigation strategy led to a much more complicated trial and opinion structure that was ultimately ineffective at striking down SB 1. In each state, research exists demonstrating that recent laws have disproportionately reduced Black voters’ turnout.

Getting clean causal leverage at the national level, however, is difficult. It is made substantially more so by the fact that the majority of likely discriminatory policymaking happens not at the state-level, but at the county-level.⁸ In other words, county-level election officials may have made further changes to how they run elections in ways that are not even visible to researchers. And the causal inference studies of specific, individual policies that can be cleanly identified support a larger and more damning finding: Across the country, the turnout of Black and other minority Americans is declining relative to White Americans. This is exactly what we would expect if thousands of diffuse policies around the country were collectively making it more difficult for voters of color to participate. I use 20 years’ worth of voter file data — 1.7 billion records — to show that the turnout gap in 2022 and 2024 was higher than at any other point in recent decades. By 2024, some 16 million more ballots would have been cast by voters of color if they voted at the same rate as White voters.

⁷Iowa was the fourth state to pass an omnibus voting bill in 2021, though the state is overwhelmingly White. There was considerably less litigation around IA SF 413, and no trial record or merits findings were ever issued.

⁸Miller and Morris (2026).

Previous chapters have shown that the myth of voter fraud led to a racialized belief system among the mass White public, and that this belief system mapped onto the passage of restrictive voting laws in the aftermath of 2020. Here, we see that the judicial system — just as in the aftermath of Reconstruction — is ill-equipped to deal with the racially discriminatory effects of this racialized system. The results have been disastrous for voters of color.



Tallahassee is a four-hour drive up I-75 from Ocoee, and in early 2022 its federal courthouse was the site of the legal challenge to the state’s Senate Bill 90 (SB 90; see also Chapter 5). SB 90 made numerous changes to the state’s election law: It shortened the length of time for which voters could sign up to automatically receive a mail ballot, reduced the number of drop boxes, and added requirements to third-party voter registration organizations (3PVROs), among other changes. But voting rights activists had reason for optimism upon learning that Chief Judge of the Northern District of Florida Mark E. Walker would be presiding, as he had been skeptical of other restrictive voting policies from the Sunshine State in earlier years.⁹

When Governor DeSantis signed SB 90 into law on May 6, 2021, plaintiffs were prepared: Within hours, multiple lawsuits had been filed challenging it.¹⁰ Of course, prior to 2013, such aggressive action from private plaintiffs would not have been necessary at

⁹On early voting restrictions, see *League of Women Voters of Florida v. Detzner*, 314 F. Supp. 3d 1205 (N.D. Fla. 2018).

¹⁰The lawsuits were eventually consolidated under *League of Women Voters of Florida, Inc. v. Lee*, No. 4:21-cv-00186 (N.D. Fla.).

this stage. Before the US Supreme Court’s *Shelby County v. Holder* decision, Florida was required to submit all statewide changes to their election policies to the federal government for “preclearance” before they could go into effect.¹¹ Under preclearance, the burden of proof fell on the state; covered jurisdictions seeking to implement a change were required to demonstrate to preclearance reviewers that the proposal would *not* have a discriminatory effect on racial, ethnic, or language minorities. When preclearance was suspended in *Shelby County*, private plaintiffs (and the Department of Justice) were instead required to litigate under Section 2. In order for a law to be struck down under Section 2, plaintiffs were required to prove that it did (or would likely have) a discriminatory effect. This is a much higher bar — especially when plaintiffs challenge a law *before* an election occurs under the new and potentially discriminatory law. Such was the case with the SB 90 litigation.

Despite this higher bar, the plaintiffs’ experts compiled a substantial evidentiary record. Over the course of the 14-day trial, a half-dozen highly respected academics presented analyses demonstrating that SB 90 would likely fall more heavily on Black than on White voters. These experts’ analyses made clear that SB 90 would make it more difficult for Black Floridians to register to vote. Michael Herron, a political scientist at Dartmouth College, used multiple empirical approaches to show that 3PVROs registered many more Black than White voters. Black voters were registered by 3PVROs at a higher rate than White voters in 62 out of the state’s 67 counties, and the difference was often substantial: In Miami-Dade County — the state’s largest county — one-in-four Black voters were registered by a 3PVRO, while the same was true for just one out of every 20 White voters.¹² In his own expert report,

¹¹While not all of Florida’s counties were covered under Section 5 of the Voting Rights Act, all statewide policies were subject to preclearance. See Miller and Morris (2026) for more.

¹²Michael C. Herron, *Expert Report of Michael C. Herron, Ph.D., League of Women Voters of Florida, Inc. v. Lee*, No. 4:21-cv-00186-MW-MAF (N.D. Fla. Sept. 1, 2021), pg. 97.

Dan Smith of the University of Florida summed up the statewide effect: Minority voters in Florida were “five times” more likely to rely on 3PvroOs than White voters.¹³

SB 90 did not only make it harder for Black voters to get on the rolls in Florida; the expert reports make clear that the new law would make it more difficult for those Black voters who did manage to register to subsequently cast a ballot that counted. Herron’s report demonstrated that in counties where individual-level data were available, Black voters used drop boxes at significantly higher rates than White voters.¹⁴ Herron’s report further made clear that these estimates were likely conservative; that the analysis was based on six relatively White counties made the results “even more compelling,”¹⁵ especially given that counties with larger Black populations faced more cuts to their drop boxes under SB 90 than Whiter ones. New identification requirements for requesting mail ballots imposed by SB 90, as well as the new requirement that voters re-request mail ballots each election cycle,¹⁶ also promised to disproportionately burden voters of color.¹⁷

But the question before Judge Walker was not simply *whether* SB 90 would disproportionately harm Black voters in Florida; on this, the evidence presented by Herron and Smith was clear. Judge Walker was tasked also with determining whether the legislature had *intentionally* discriminated against Black Floridians. This would prove more difficult; as Judge Walker wrote in his eventual opinion, “in this day and age, few would be so foolish as to openly admit their racial motivations”¹⁸ As Chapter 5 explained, Walker relied on texts

¹³Daniel A. Smith, *Expert Report of Daniel A. Smith, Ph.D., League of Women Voters of Florida, Inc. v. Lee*, No. 4:21-cv-00186-MW-MAF (N.D. Fla. Sept. 1, 2021), pg. 11.

¹⁴Herron, *Expert Report of Michael C. Herron*, pg. 60.

¹⁵*Ibid.*, pg 64.

¹⁶Previously, a single request for a mail ballot covered 2 general election periods.

¹⁷Smith, *Expert Report of Daniel A. Smith*, pgs. 67, 73.

¹⁸*League of Women Voters of Florida, Inc. v. Lee*, No. 4:21-cv-00186-MW-MAF (N.D. Fla. Mar. 31, 2022), 38.

sent by Florida Republican lawmakers, statements from legislators, and evidence that SB 90 did not respond to credible concerns about fraud in finding that the legislature intentionally discriminated. Indeed, in his opinion, legislators *had* no credible concerns of fraud.¹⁹

But he also relied on history. He summarized the history of discrimination against Black voters, including the change to the state's Constitution in 1865 and election law in 1888, intended to circumvent the 15th Amendment. He noted that "restrictive voting laws and racial violence made a brutally effective pair" in the pre-Voting Rights Act era.²⁰ He summarized recent litigation in Florida that consistently found disparate effects against Black voters, even if Courts had not determined that the legislature acted with racially discriminatory intent in those cases. Nevertheless, "once is an accident, twice is a coincidence, three times is a pattern," he wrote. "At some point, when the Florida Legislature passes law after law disproportionately burdening Black voters, this Court can no longer accept that the effect is incidental. Based on the indisputable pattern set out above, this Court finds that, in the past 20 years, Florida has repeatedly sought to make voting tougher for Black voters."²¹

And he also invoked Ocoee. Doctor Traci Burch had referenced the massacre in her own expert report painting Florida's long history of targeting Black voters. But the massacre held personal resonance for the Judge, too: He wrote in his opinion that he was born and raised in the neighboring town of Winter Garden. "The Ocoee Massacre," he wrote, "was an ugly secret that everyone knew about, but nobody discussed."²²

¹⁹"The evidence shows that SB 90 was not motivated by a desire to prevent voter fraud and ensure voter confidence. Not only is voter fraud extremely rare in Florida, but SB 90's proponents could not even explain how SB 90 would reduce voter fraud prophylactically." Ibid, pg. 131.

²⁰Ibid., pg. 44.

²¹Ibid., pg. 64.

²²Ibid.

Ordinarily, litigation occurring under Section 2 of the Voting Rights Act offers just one potential remedy: Striking down the law with racially-disparate effects. But in finding that Florida legislators had *intentionally* discriminated against Black voters in their passage of SB 90, Judge Walker made possible a second method for redressing harm. Under Section 3(c) of the VRA, a federal judge can “bail” a jurisdiction into preclearance. This preclearance is considerably narrower than that found in Section 5 of the VRA, which required jurisdictions with a history of discrimination to submit *all* changes for review and was suspended by *Shelby County*. Section 3(c) preclearance is instead limited to proposed changes linked in some way to the intentional discrimination, and is generally time-bound. Judge Walker nevertheless reached for this tool, determining that it was necessary to prevent Florida from continuing its pattern of enacting laws that fell hardest on Black voters while hiding (what he believed to be) their discriminatory intent; anything less, he wrote, would make “a mockery of the rule of law.”²³ For ten years, Florida would be required to preclear any changes to rules governing third party voter registration organizations, drop boxes, or comfort offered to voters waiting in line to cast a ballot (“line warming”). This was a monumental move by Judge Walker: It was only the twenty-first time this provision had been used in the history of the VRA, and the first time a full state had been bailed into preclearance in over 30 years.

A week after Judge Walker issued his ruling overturning much of SB 90, the state appealed to the 11th Circuit; on May 6, the 11th Circuit stayed the District Court’s ruling, pending appeal. The case became a national point of focus. The state of Georgia filed an amicus brief supporting the appellants, while 16 states and the District of Columbia filed a brief supporting the appellees; the US DOJ filed a separate brief in their support as well,

²³Ibid., pg. 279.

and other private groups jumped in on both sides of the lawsuit.

Judge Walker’s opinion did not stand. When the split 11th Circuit panel issued its ruling in April 2023, it overturned nearly each of Judge Walker’s conclusions.²⁴ In the United States, appellate court judges are directed to only overturn the conclusions of district court judges when there is evidence of “clear error.”²⁵ The reasons for this are clear: Trial court judges “live with a case for months or years, supervising discovery, ruling on the admission of expert opinions, and watching how the evidence unfolds...Chances are, then, that a trial court will do better factfinding than an appellate court parachuting in at the last moment. The clear-error standard is a recognition of comparative competence.”²⁶ So long as there are two reasonable ways of understanding the evidence, “the factfinder’s choice between them cannot be clearly erroneous” and the appellate court ought not overrule them.²⁷ Nevertheless, the 11th Circuit panel determined that the evidence presented by Herron, Smith, and others was not statistically sound. In some cases, expert findings were based on data from the few counties where data was available; the panel ruled that it was thus unclear whether such evidence of racially disparate effects would hold statewide.

In other cases, they ruled that the disparate effects the experts found were “hardly meaningful.”²⁸ With the exception of the disparities in 3PVROs, the 11th Circuit threw out all of Judge Walker’s findings of racially-disparate effects in the various provisions of SB 90. But even the finding that Black voters were more than 5 times as likely as White voters to use 3PVROs — a finding the panel characterized as “not clearly erroneous” — was “not

²⁴*League of Women Voters of Florida, Inc. v. Florida Secretary of State*, 66 F.4th 905 (11th Cir. 2023).

²⁵*Anderson v. City of Bessemer City*, 470 U.S. 564 (1985).

²⁶Justice Elena Kagan’s dissent in *Alexander v. South Carolina State Conference of the NAACP* (602 U.S. (2024)).

²⁷*Anderson v. City of Bessemer City*.

²⁸*League of Women Voters*, 66 F.4th at 905.

enough to meet section 2[of the Voting Rights Act]’s high standard.”²⁹ Although the panel did not cite the case when dismissing small differences, the 11th Circuit was likely thinking of the Supreme Court’s ruling two years earlier in *Brnovich* which held that laws with only “small” racially discriminatory effects do not violate the Voting Rights Act. The text of the Voting Rights Act, however, has no exception for “small” disparities, and this holding in *Brnovich* was viewed as a dramatic weakening of the VRA. The dismissal of, especially, the racially disparate effects of the 3PVRO restrictions make clear just how large a hole *Brnovich* created for other federal judges to walk through.

Walker’s findings of intentional discrimination fared no better. Although the standard for determining discriminatory intent under *Arlington Heights*³⁰ instructs judges to consider the historical context in which a law is passed, the 11th Circuit has also prohibited “allowing the old, outdated intentions of previous generations to taint...legislative action forevermore on certain topics.”³¹ Walker, as we have seen, did not merely point to decades-old facts in his opinion, but instead drew continuities between past, explicit and current, implicit discrimination. Nevertheless, the 11th Circuit ruled that he relied too much on historical circumstances. And while Walker contemplated a string of recent Florida statutes with racially disparate outcomes to infer a discriminatory intent, the Circuit Court threw this out as well: “In none of the cases from this century cited by the district court did a court determine that a challenged Florida election law resulted from intentional discrimination.”³²

While the 11th Circuit Court’s opinion stretched to 78 pages, Judge Jill Pryor’s dissent was a single paragraph. It is potent in its brevity: She felt no need to engage in

²⁹Ibid.

³⁰ *Village of Arlington Heights v. Metropolitan Housing Development Corp.*, 429 U.S. 252 (1977).

³¹ *Greater Birmingham Ministries v. Secretary of State for Alabama*, 992 F.3d 1299 (11th Cir. 2021).

³² *League of Women Voters*, 66 F.4th at 905.

discussion about the reasoning, because no one on the panel had the authority to do so. In her mind, the district court’s “thorough and well-reasoned order[] committed no reversible error.” Nevertheless, the full 11th Circuit declined to hear an appeal *en banc*, and the panel’s opinion stood. Courts could not step back for perspective, the 11th Circuit ruled. Historical examples like that of Ocoee must remain — at least from the Court’s perspective — “an ugly secret that everyone kn[o]w[s] about, but nobody discusse[s].”³³



Judge Walker’s pessimistic expectation that Florida would continue flouting democratic norms was also borne out in another way — this one, less than a month after he handed down his opinion in the SB 90 case. On April 25, 2022, Governor DeSantis signed Senate Bill 524 into law.³⁴ The law outlawed any municipality from adopting ranked choice voting, required local election officials to conduct routine voter list maintenance every year, and extended SB 90’s attacks on 3PVROs.³⁵ SB 524 also created the Office of Election Crimes and Security (OECS), a 25-person unit dedicated to “proactively identify[ing] and thwart[ing] those who seek to violate Florida election laws.”³⁶ The legislature was considering SB 524 at the same moment that Judge Walker was drafting his opinion in *League*

³³*League of Women Voters of Fla., Inc. v. Lee*, No. 4:21-cv-00186-MW-MAF.

³⁴Wilson (2022).

³⁵Although, as we have seen, Walker’s order required the state to pre-clear laws affecting 3PVROs, the state did not submit SB 524 to the Department of Justice. Instead, they informed the Northern District of Florida that they would not enforce the provisions covered under the bail-in order until they received “further guidance.” A promise to not enforce covered provisions is not compliant with the Voting Rights Act, but the point was made moot when the 11th Circuit stayed the bail-in order on May 6. Notice to the Court, *League of Women Voters of Fla., Inc. v. Lee*, No. 4:21-cv-00186-MW-MAF (N.D. Fla. Apr. 25, 2022), ECF No. 680.

³⁶Florida Department of State, “Election Crimes and Security,” Florida Department of State, accessed March 13, 2026, <https://dos.fl.gov/electionsecurity>.

of *Women Voters of Florida*. His March 31 opinion would address it directly, warning that allowing the establishment of such an office to prove that fraud was a problem was “akin to claiming the creation of a ghost hunting team proves the existence of ghosts.”³⁷

But the lack of fraud did not slake the political pressure to uncover fraud; the myth demanded to be fed. In the summer of 2022 the OECS turned to a population whose eligibility to vote the state had failed to ascertain — and, therefore, among whom officers might find evidence of voters who had (inadvertently) broken the law. On August 18, DeSantis held a press conference to announce that officers had arrested 20 formerly incarcerated individuals who had voted in 2020 despite being ineligible to do so.³⁸ Determining their eligibility to vote in 2020, however, was a uniquely challenging task given the evolution of law around the voting rights of formerly incarcerated individuals in the preceding years. In 2018, Florida voters passed Amendment 4 and restored voting rights to individuals with felony convictions “upon completion of all terms of sentence including parole or probation.”³⁹ Although the amendment passed by a wide margin (65% of voters approved it in, a year when both the governor and US Senate races were decided by less than half a percentage point), lawmakers moved quickly in the following session to legislatively re-define when a sentence had been completed. Following the passage of Senate Bill 7066, individuals were required to pay off fees and fines associated with their original sentence before their voting rights would be restored.

³⁷*League of Women Voters of Florida, Inc. v. Lee*, No. 4:21-cv-00186-MW-MAF (N.D. Fla. Mar. 31, 2022), 70.

³⁸Office of the Governor, State of Florida, “Governor DeSantis Announces the Arrest of 20 Elections Criminals,” August 18, 2022, <https://www.flgov.com/eog/news/press/2022/governor-desantis-announces-arrest-20-elections-criminals>.

³⁹Florida Department of State, Division of Elections, *Proposed Constitutional Amendments and Revisions for the 2018 General Election* (Tallahassee: Florida Department of State, 2018), <https://files.floridados.gov/media/699824/constitutional-amendments-2018-general-election-english.pdf>.

This immediately wreaked havoc, for a simple reason: Many individuals — and, as subsequent litigation revealed, *the state itself* — did not know how much money individuals owed, and who had successfully paid off their fees and fines. Ultimately, the district court judge found that “the State has shown a staggering inability to administer the system,” permanently enjoining it for being too vague to enforce (among other reasons).⁴⁰ Due to the racial disparities among formerly incarcerated individuals, and the legislature’s comfort with passing a law that introduced so much confusion into the registration and voting process, SB7066 was one of the laws Judge Walker discussed in his ruling in *League of Women Voters of Florida, Inc. v. Lee*. Although an *en banc* panel of the 11th Circuit would eventually overrule the district court’s opinion, they nevertheless affirmed that “no felon who honestly believes he has completed the terms of his sentence commits a crime by registering and voting.”⁴¹ Nevertheless, in her dissent from the *en banc* ruling Judge Jill Pryor argued that many formerly incarcerated individuals would be scared off from even trying to vote: “What greater disincentive could there be for someone who has served her time than the threat of returning to prison for trying to register to vote?”⁴²

The individuals arrested by OECS were not directly impacted by the confusion; they had been convicted of sexual offenses or murder, crimes explicitly “carved out” of voting rights restoration under the original Amendment 4 language. But the confusion over eligibility caused by SB7066 led to a situation in which state and local processes for identifying ineligible individuals had completely broken down.⁴³ Some county election administrators continued to distribute outdated voter registration forms printed before Amendment 4 had

⁴⁰ *Jones v. DeSantis*, No. 4:19-cv-300-RH-MJF (N.D. Fla. May 24, 2020) (opinion on the merits).

⁴¹ *Jones v. Governor of Florida*, 975 F.3d 1016 (11th Cir. 2020) (*en banc*).

⁴² *Ibid.*

⁴³ Philo (2023).

gone into effect — and, therefore, that did not include the legally-required notice of (in)eligibility. *The Appeal* acquired 12 of the 20 arrest documents, finding that multiple of these individuals had not been flagged by their home county as potentially ineligible until a year or more after the arrest. Each of them had also been sent registration cards by their county.⁴⁴

The breakdown caused by SB7066, in other words, created a situation in which county administrators were unable to identify even the individuals who were unambiguously ineligible to vote — and, therefore, could not communicate that to the voters. It was here that DeSantis’s election police turned when they needed to find evidence of “fraud:” Waters the state itself had muddied. And they were muddied indeed. A Republican state attorney in Lake County identified 6 formerly-incarcerated individuals under his jurisdiction who had similarly voted while ineligible, but declined to prosecute them: “Each appear to have been encouraged to vote by various mailings and misinformation.”⁴⁵

Following the arrests, the *Tampa Bay Times* released body camera footage of some of the arrests⁴⁶. Images of mostly Black, formerly incarcerated individuals spread through local and national news. Everyone seemed confused: When one individual asked why they were being arrested, the officer replied “I’m not sure, buddy. I don’t know.”⁴⁷ The election police — an office set up to root out voter fraud that did not exist in any meaningful quantity — was having real consequences, and the arrests were covered by local and national news outlets.⁴⁸ And interviews with organizers involved in get-out-the-vote efforts indicate that news about — and fear from — these arrests rippled widely through the community.⁴⁹ Quantitative

⁴⁴Ibid.

⁴⁵Cann (2023).

⁴⁶Mower (2022)

⁴⁷Quoted in Ibid.

⁴⁸Ibid.; Wines and Vigdor (2022).

⁴⁹These interviews were conducted as part of Morris et al. (2026).

evidence bears this out, too.

How can we know? By looking directly at the turnout records of formerly incarcerated Floridians. In the United States, each state is required by federal law to maintain electronic records of each registered voter, along with information about whether they cast a ballot in a given election (but not, of course, for *whom* they voted). These records have a tremendous amount of information in them, often including information about things like voters’ age, address, and gender.⁵⁰ In some states, like Florida, these records can then be merged with individual-level records of individuals who were imprisoned to identify formerly-incarcerated registrants.⁵¹ By comparing whether the turnout of individuals whose turnout could have been “chilled” by the arrest of these individuals in August to the turnout of other, similar voters (and comparing these changes across time), I can estimate the *causal* effect of the arrests. This approach is commonly used by social scientists and is called difference-in-differences.

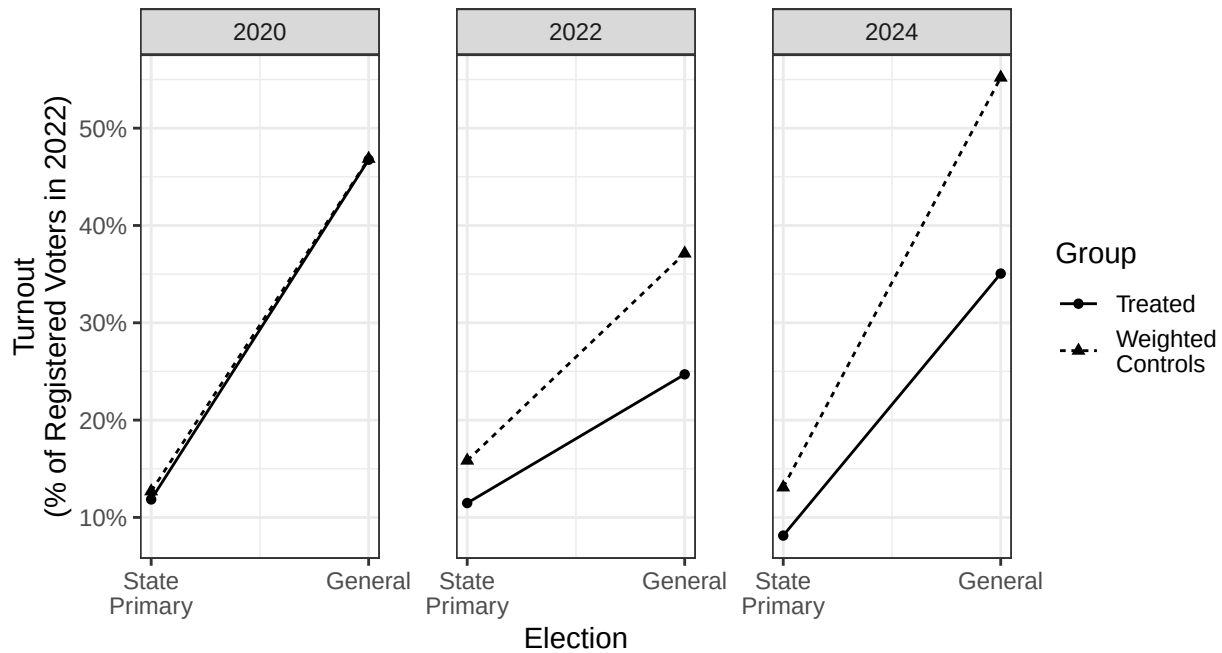
In the case at hand, I argue that individuals with a felony conviction in their past might have felt the stakes of voting rise in the aftermath of the arrests. These Floridians might not have been sure about their eligibility, and seeing others arrested could have made participating feel even riskier. They were thus, to use the language common among researchers, “treated” by the arrests. But just as in a medical experiment, where an individual might be “treated” with a pill whose efficacy is being studied, we need a “control” group

⁵⁰Throughout this chapter, I rely mostly on voter file snapshots from the vendor L2 Political, which geocodes voters to their home Census block groups. I use these geocodes to merge in other relevant information about their neighborhoods. In some states (AL, FL, GA, LA, NC, SC), most voters report their race when registering. In other states, I rely on a process called BIRDIE to estimate voters’ race (McCartan et al., 2025). See the appendix to this chapter for more information on racial estimates.

⁵¹The appendix to this chapter includes more information about the matching procedure, as well as the difference-in-differences models. See Morris et al. (2026) for more robustness checks and alternate models.

as well: Individuals whose behavior should not have been impacted by the arrests (akin to someone receiving a placebo pill in the hypothetical medical experiment). I use two different methods to identify good “controls,” and interested readers can find more about these approaches in the Appendix to this chapter.⁵²

Figure 6.1: Turnout Among Formerly Incarcerated Individuals and Their Controls, 2020 – 2024



Non-formerly-incarcerated population weighted to mirror formerly-incarcerated population using entropy balancing. Covariates include party, registration date, age, race / ethnicity. They also include block group median income, collegiate attainment, unemployment rate, and population density.

In Figure 6.1, I show the turnout rates of formerly incarcerated individuals in Florida, along with the turnout of similar Floridians who have not been to prison for a felony offense. I show their turnout in 2020 — *before* the arrests — as well as in 2022. In 2020, turnout among formerly incarcerated individuals was closely in line with the turnout of those similar voters, and moved in parallel between the primary election and the general election. This

⁵²Briefly, the two approaches involve using entropy balancing (Hainmueller, 2012) to weight the controls such that they look like the formerly incarcerated population and, separately, conditioning the parallel trends assumption on covariates (Callaway and Sant’Anna, 2021).

makes sense: Nothing happened during that period that should have uniquely influenced the turnout of formerly incarcerated individuals, and the fact that the groups moved in parallel is good news for our ability to infer whether the arrests had a causal effect on turnout in 2022. And it appears that they did: Turnout among the formerly-incarcerated individuals dropped, relative to the controls, a bit in the primary election in 2022. The primary occurred just 5 days after DeSantis’s news conference, but before the body camera footage was released. In the general election, however — after news of the arrests had time to travel — turnout among formerly incarcerated individuals was *much* lower than that of the controls. Importantly, there is not evidence that *national* forces pushed down the turnout of formerly incarcerated individuals in 2022. As I show in the appendix, the turnout of formerly incarcerated individuals in New York State and Pennsylvania (relative to their controls) did not drop at all that year. And this was no temporary disruption — the figure makes clear that turnout among this population remained depressed two years later in the 2024 election. This durable effect indicates that these voters may have been scared away from voting for good.

The OECS was created to solve a problem that did not exist; it was “a ghost hunting team,”⁵³ searching for widespread voter fraud that did not exist to justify the passage of SB 90. But the political moment demanded that they find evidence that fraud did exist, and the OECS knew the state had created a class of citizens whose eligibility to vote was unclear. Much as courts had determined that SB 7066 and SB 90 were racially discriminatory, so too were the effects I have uncovered here: While 61% of registered voters in Florida are White,

⁵³*League of Women Voters of Florida, Inc. v. Lee*, No. 4:21-cv-00186-MW-MAF (N.D. Fla. Mar. 31, 2022), 70.

the same is true for just 34% of formerly-incarcerated registrants. And Black Floridians make up 49% of the formerly-incarcerated registrants, but just 13% of the rest of the state's electorate.⁵⁴

Florida shows just how self-sustaining the New Lost Cause has become. Rooted as it was in the myth of voter fraud in the 2020 election, it spawned new enforcement mechanisms in the subsequent years. These enforcement mechanisms — the election police — then created new myths: That intentional voter fraud was *still* being committed. It turned administrative failure into proof of its thesis. This time, though, the move was less-subtle as the myth directly targeted a plurality-Black population that was already caught in the criminal legal system. Having generated “evidence” of willful voter fraud in Florida, where might it look next?

At the time of writing, litigation around these arrests remains ongoing; given the 11th Circuit's affirmation that no individual who “honestly believes he has completed the terms of his sentence commits a crime by registering and voting,” it is not clear where it will end up.⁵⁵ But the damage has been done: Lies about voter fraud, coupled with Florida's repeated passage of laws with racially discriminatory effects, have created a structure in which a marginalized and largely minority population can no longer feel safe engaging in the democratic process — created, in the words of one of the arrested men's attorney, “a culture of fear.”⁵⁶

The inability of the legal system to deal with racially discriminatory laws, however, was not limited to Florida. Though the pattern looked differently, voters of color in the

⁵⁴While there is no evidence that the turnout effects were especially large for Black Floridians, their over-representation in the treatment pool means these effects fall disproportionately on Black voters.

⁵⁵*Jones v. Governor of Florida*, 975 F.3d 1016 (11th Cir. 2020) (en banc).

⁵⁶Quoted in Squires and Garcia (2022).

state’s neighbor to the north would be similarly unprotected by a major voting bill from 2021.



On March 25, 2021, Governor Brian Kemp signed SB 202 into law, flanked by a number of White male lawmakers who had shepherded it through the legislature that session. Kemp was seated in front of a painting of a seemingly-bucolic Southern home; it was in fact a plantation where generations of Georgians had been enslaved in the 18th and 19th centuries.⁵⁷ But the governor’s celebration was interrupted: Seven minutes into the live-stream, it was abruptly cut-off. Just outside the room where the signing was taking place, state representative Park Cannon — a Black female lawmaker — was arrested as she sought to enter the room to observe the bill signing. Though the charges against Representative Cannon were eventually dropped, the story of SB 202’s birth quickly ricocheted around the state.⁵⁸

But the fight over SB 202 was just getting started. Three days later, a variety of groups including the Georgia State Conference of the NAACP and the Lower Muskogee Creek Tribe brought lawsuits alleging that SB 202 violated the Voting Rights Act as well as the 14th and 15th Amendments (among others). In the coming weeks, other plaintiffs would jump in as well. By June, the US Department of Justice had also entered the fray. The DOJ accused Georgia not only of passing a law that would disproportionately harm Black voters, but of *intentionally* doing so — relying on some of the same legislative comments discussed

⁵⁷Waldrop (2021).

⁵⁸Wang and Armus (2021).

in Chapter 5 to buttress their argument.⁵⁹ By the end of 2021, Judge Jean-Paul Boulee of the Northern District of Georgia had consolidated many of the lawsuits into a single large one, *In re Georgia Senate Bill 202*.⁶⁰

And then nothing happened.

Thanks to a series of procedural hurdles, the District Court would not issue its first ruling in the case until August 18, 2022.⁶¹ This was, of course, more than a full year after the lawsuits were brought, and this order related only to a preliminary injunction. Preliminary injunctions are often sought during the course of litigation when plaintiffs ask a judge to temporarily block a law from going into effect while the Court considers the legality of the law, an often-lengthy process. To receive a preliminary injunction, plaintiffs have to demonstrate that they are likely to eventually win the suit, and that the law would cause harm if it were allowed to stand in the meantime. In the case of Georgia’s SB 202, the plaintiffs met this bar for some of their challenges to SB 202. The judge agreed that parts of SB 202’s so-called “line-warming ban” likely violated the First Amendment of the Constitution. Nevertheless, he refused to enjoin (or stop) these provisions from being enforced under something called the “Purcell principle,” which directs federal courts to avoid issuing orders that would change election rules too close to an election to avoid confusing voters.⁶² Judge Boulee allowed the (in his opinion) likely unconstitutional law to stand for the midterms, however, to avoid confusing *poll workers*, a step removed from the justification originally offered by the Supreme Court.⁶³

⁵⁹Complaint, *United States v. Georgia*, No. 1:21-cv-02575-JPB (N.D. Ga. June 25, 2021).

⁶⁰*In re Georgia Senate Bill 202*, No. 1:21-mi-55555-JPB (N.D. Ga.).

⁶¹Order, *In re Georgia Senate Bill 202*, No. 1:21-mi-55555-JPB (N.D. Ga. Aug. 18, 2022), ECF No. 241.

⁶²*Purcell v. Gonzalez*, 549 U.S. 1 (2006).

⁶³See Hasen (2016) and Dodsworth (2022) for concerns about the growing use of the Purcell principle.

The delays did not end there. Following the 2022 and 2024 elections, the State pointed to high turnout as evidence that SB 202 was not really racially discriminatory; in at least one field hearing, a US Representative lied by arguing that White turnout went *down* in 2022 while nonwhite turnout was *up*, when exactly the opposite was true.⁶⁴ Even if the characterization were true, it would hardly serve as a defense: *Intentional* discrimination is illegal regardless of whether the would-be discriminators are successful, and a law can have racially disparate effects even when turnout is high. Nevertheless, the state was successful in their delay tactics, even as the Court was presented with expert testimony showing that SB 202 led to higher mail-ballot rejections for voters of color, that its cuts to drop-boxes fell hardest on Black voters, and that the law would increase already-long lines in Black neighborhoods.⁶⁵ And these delays matter: Even if the law *is* eventually struck down, it will have been good law for at least one midterm and one presidential election. The case of Georgia is no aberration here: The slow pace of litigation, coupled with expanding use of the Purcell principle, mean that lawmakers can be relatively confident that even the most discriminatory laws will remain on the books for at least one election cycle before being struck down. This has the potential to powerfully shape legislator’s incentives to pass illegal election laws.

Shortly after SB 202 turned four years old, the new Trump Administration Depart-

⁶⁴Kevin Morris, Sara Loving, and Maya Efrati, “Accurate Data from Georgia Shows Racial Turnout Gap,” Brennan Center for Justice, August 7, 2023, <https://www.brennancenter.org/our-work/research-reports/accurate-data-georgia-shows-racial-turnout-gap>.

⁶⁵Bernard L. Fraga, *Expert Report of Bernard L. Fraga, Ph.D., In re Georgia Senate Bill 202*, No. 1:21-mi-55555-JPB (N.D. Ga. Jan. 19, 2024), ECF No. 810-21; Consolidated Plaintiffs’ Brief in Opposition to Defendants’ Motions for Summary Judgment, *In re Georgia Senate Bill 202*, No. 1:21-mi-55555-JPB (N.D. Ga. Oct. 17, 2025), ECF No. 979; Barry C. Burden, *Declaration of Dr. Barry C. Burden, In re Georgia Senate Bill 202*, No. 1:21-mi-55555-JPB (N.D. Ga. Jan. 19, 2024), ECF No. 810-10; Stephen Pettigrew, *An Evaluation of SB202’s Impact on Election Wait Times in Georgia, In re Georgia Senate Bill 202*, No. 1:21-mi-55555-JPB (N.D. Ga. May 25, 2022), ECF No. 171-21.

ment of Justice withdrew their challenge against the law, calling the original lawsuit a “disgrace.” “There is nothing racist about protecting elections,” the Department said. “Baseless claims of Jim Crow-style discrimination are the real insult.”⁶⁶

Five years after the bill was signed into law, it has still not gone to trial. SB 202 remains fully in effect.



At 3:10 in the afternoon on July 12, 2021, most of Texas’s Democratic representatives found themselves on board a chartered plane headed for Washington, DC.⁶⁷ The regular legislative session had ended a few weeks earlier, and it had been a tough one for liberal politicians. The session started after a major winter storm that killed hundreds of Texans due to the failure of the state’s electrical grid; the legislature passed a law allowing for the permitless carry of handguns; and the governor had signed a six-week abortion ban that was enforced through private lawsuits and was intended to circumvent *Roe v. Wade* and drew national attention for its punitiveness. The Democrats, in short, had reason to be tired.

But the flight to DC did not mark the beginning of a leisurely vacation with colleagues. Instead, the Democrats were tactically breaking quorum from the special session that Governor Greg Abbott had called to strong-arm the legislature into passing a suite of new restrictions on voting. While the Republican majority had been foiled in their attempt

⁶⁶U.S. Department of Justice, Office of Public Affairs, “Attorney General Pamela Bondi Dismisses Biden-Era Lawsuit Against Commonsense Georgia Election Law,” March 31, 2025, <https://www.justice.gov/opa/pr/attorney-general-pamela-bondi-dismisses-biden-era-lawsuit-against-commonsense-georgia>.

⁶⁷Ura and Pollock (2021).

to pass Senate Bill 7 during the regular session, the special session’s Senate Bill 1 (SB 1) resurrected most of the provisions: SB 1 introduced new requirements for requesting and casting mail ballots; it ended drive-through and 24-hour voting options, popular during the pandemic; and it criminalized some of the routine actions regularly undertaken by election administrators and poll workers. The Democrats remained in DC for 38 days, the longest House quorum break in state history.⁶⁸ Nevertheless, on September 7, Governor Abbott affixed his signature to Texas’s omnibus restrictive voting law.

As with SB 90 in Florida, private parties wasted no time challenging the law in court. Multiple organizations sued the state on September 3 — four days after the legislature passed SB 1, but four days *before* the governor had even signed it into law. The federal government would soon jump in, too, with the Department of Justice suing the state in October. Ultimately, six different lawsuits were filed (before being consolidated into a single one known as *LUPE v. Texas*);⁶⁹. Challenges were brought against dozens of SB 1’s provisions under the Civil Rights Act of 1964, the Voting Rights Act, and other statutes, as well as the First, Fourteenth, and Fifteenth Amendments; in short, the lawsuit was massive. Some of this complexity can be explained by timing: Unlike the lawsuits against Florida’s SB 90 and Georgia’s SB 202, the lawsuit was filed *after* the Supreme Court’s *Brnovich* decision; as discussed above, that case dramatically weakened the Voting Rights Act’s protections against laws making voting more difficult. The new jurisprudential landscape undermined plaintiffs’ confidence that challenges brought under Section 2 alone would stand, pushing

⁶⁸Bernstein (2021).

⁶⁹The six suits were *La Unión del Pueblo Entero v. Abbott*, No. 5:21-cv-00844 (W.D. Tex.); *OCA-Greater Houston v. Esparza*, No. 1:21-cv-00780 (W.D. Tex.); *Houston Area Urban League v. Abbott*, No. 5:21-cv-00848 (W.D. Tex.); *LULAC Texas v. Esparza*, No. 1:21-cv-00786 (W.D. Tex.); *Mi Familia Vota v. Abbott*, No. 5:21-cv-00920 (W.D. Tex.); and *United States v. Texas*, No. 5:21-cv-01085 (W.D. Tex.)

them to challenge SB 1’s provision under both VRA and non-VRA statutes.

If the lawsuit was complicated, so too was the trial, which did not commence for two years after the law was enacted. The six-week trial before Judge Xavier Rodriguez in the Western District of Texas featured “hundreds of exhibits and a total of 66 witnesses.”⁷⁰ While the litigation in Florida was largely organized around the alleged violations of Section 2 of the Voting Rights Act, the multiplicity of challenges in Texas — many with their own legal theories — made litigation in the Lone Star State “protracted and complex.”⁷¹ Over the course of the 18 months following the trial, Judge Rodriguez would issue four separate opinions that collectively spanned more than 350 pages.⁷² In each of these rulings, Judge Rodriguez determined that SB 1 violated federal law in one way or another; ultimately, the plaintiffs won nearly every merits challenge that Rodriguez reached.

And, on each of these merits challenges, the 5th Circuit overruled Judge Rodriguez. By early 2026, the Fifth Circuit had issued final rulings that reversed 3 of the district court’s 4 orders; the remaining district court order had been stayed, with oral arguments scheduled for April 2026.⁷³ Like Florida’s SB 90, each provision of Texas’s SB 1 remains good law as of this writing.

⁷⁰LUPE Plaintiffs’ Proposed Findings of Fact and Conclusions of Law, *La Unión del Pueblo Entero v. Texas*, No. 5:21-cv-00844-XR (W.D. Tex. Jan. 19, 2024).

⁷¹Brennan Center for Justice, “LUPE v. State of Texas,” <https://www.brennancenter.org/our-work/court-cases/lupe-v-state-texas>.

⁷²Memorandum and Order Granting in Part and Denying in Part Motions for Summary Judgment Regarding Section 101 Materiality Provision Claims, *La Unión del Pueblo Entero v. Texas*, No. 5:21-cv-00844-XR (W.D. Tex. Nov. 29, 2023); Order Permanently Enjoining Section 7.04, *La Unión del Pueblo Entero v. Texas*, No. 5:21-cv-00844-XR (W.D. Tex. Sept. 28, 2024); Order Permanently Enjoining Restrictions on Voter Assistance, *La Unión del Pueblo Entero v. Texas*, No. 5:21-cv-00844-XR (W.D. Tex. Oct. 11, 2024); Order Permanently Enjoining Restrictions on Voter Assistance under the Americans with Disabilities Act and Section 504 of the Rehabilitation Act, *La Unión del Pueblo Entero v. Texas*, No. 5:21-cv-00844-XR (W.D. Tex. Mar. 14, 2025).

⁷³*La Unión del Pueblo Entero v. Abbott*, No. 23-50885, slip op. (5th Cir. Aug. 4, 2025); *La Unión del Pueblo Entero v. Abbott*, No. 24-50826, slip op. (5th Cir. Aug. 29, 2025); *La Unión del Pueblo Entero v. Abbott*, No. 24-50783, slip op. (5th Cir. Feb. 12, 2026).

Despite this extensive record, one major piece of this case has never been ruled upon by any judge. No court has ruled whether the laws have racially discriminatory effects, or were enacted with racially discriminatory intent. Some of this is timing: Plaintiffs requested a bifurcated trial, and asked Judge Rodriguez to postpone the claims of intentional race discrimination as they sought access in discovery to lawmakers' private communications. Such communications could have offered insights into the real motivations of the lawmakers for passing SB 1, much as the text messages Judge Walker relied on in the SB 90 litigation in Florida. The Fifth Circuit denied access to these documents, however, and at the time of writing it is unclear whether the intentional discrimination claims will be tried.⁷⁴

But plaintiffs did argue that SB 1 had racially discriminatory *effects* during the original trial — and presented evidence to support this position. Kenneth R. Mayer, a political scientist at the University of Wisconsin, testified in his expert report that Black and Latino Texans relied more than White ones on mail, drive-through, and 24-hour voting options, each of which were undermined or eliminated by SB 1.⁷⁵ Daniel Smith — the same expert whose testimony in the litigation of Florida's SB 90 undergirded much of Judge Walker's opinion in that state — testified that SB 1's cuts to drop boxes would disproportionately harm Latino voters, and that SB 1 as a whole would lead to longer wait times on election day for minority voters.⁷⁶ Dr. Allan J. Lichtman further testified that the law's new citizenship-verification requirements posed a greater risk of being accidentally kicked off the voter rolls for minority

⁷⁴*LULAC Texas v. Hughes*, No. 22-50435 (5th Cir. May 17, 2023) (reversing district court order compelling production of documents from state legislators); *La Unión del Pueblo Entero v. Bettencourt*, No. 23-50201 (5th Cir. Feb. 16, 2024) (reversing district court order compelling production of documents and testimony from Harris County Republican Party regarding communications with state legislators).

⁷⁵Kenneth R. Mayer, *Expert Report of Dr. Kenneth R. Mayer, Ph.D., LULAC Texas v. Scott*, No. 1:21-cv-00786-XR (W.D. Tex. Feb. 28, 2022).

⁷⁶Daniel A. Smith, *Supplemental Report Submitted in Houston Area Urban League v. Abbott*, No. 5:21-cv-00848-XR (W.D. Tex. Apr. 29, 2022), ECF No. 642-2.

Texas citizens.⁷⁷

My own research with my colleagues Michael G. Miller, Ian Shapiro, and Coryn Grange further corroborates the racially discriminatory effects of SB 1.⁷⁸ In the 2022 primary elections — the first statewide elections after SB 1 went into effect — more than 12% of mail ballots cast by Asian, Black, and Latino Texans were rejected for reasons newly-added by SB 1; for White Texans, the SB 1-related rejection rates were below 9%. It is hard to overstate how massive these rejection rates are, especially when we consider that primary election voters in midterm years tend to be very familiar with voting; in fact, 85% of the voters whose ballots were rejected in the 2022 primary participated in each of the 2016, 2018, and 2020 elections. SB 1, in other words, led to massive and racially disparate rejection rates among a highly active set of voters. But it gets worse: Having a ballot rejected in the 2022 primary made voters considerably less likely to vote in the 2022 general election, and even the 2024 primary election. These racially disparate effects of SB 1 clearly have ramifications far beyond the election in which they “directly” disenfranchised voters.

Despite this pile of research, Judge Rodriguez (and, by extension, the 5th Circuit) never ruled on the validity of any of it. Each of the provisions that were challenged as violating Section 2 of the Voting Rights Act due to racially discriminatory effects were *also* challenged by plaintiffs under other laws as well out of fear that Section 2 could no longer effectively strike down discriminatory voting laws in a post-*Brnovich* world. On each point, Judge Rodriguez found that the provisions violated those other, non-Section 2 related statutes. We of course cannot know whether Judge Rodriguez took this approach

⁷⁷Allan J. Lichtman, *Expert Report of Dr. Allan J. Lichtman, LULAC Texas v. Scott*, No. 1:21-cv-00786-XR (W.D. Tex. Feb. 28, 2022).

⁷⁸Miller et al. (2025); see also Miller and Morris (2026).

to avoid the complications of *Brnovich*, but it ultimately does not much matter. *Brnovich* clearly pushed the legal system to rely on nonracial arguments and statutes to invalidate discriminatory laws. But the federal court system ruled that these were as powerless to stop race discrimination as the explicitly race-related laws.

The end result in Texas looked very similar to that in Georgia and Florida: Senate Bills 1, 202, and 90 are all in effect, years after they were passed and years after experts testified about their discriminatory effects. But it bears repeating what was *distinct* about these states, too. In Florida, plaintiffs brought strong claims of intentional race discrimination and racially disparate effects, and drew a district court judge clearly committed to protecting Black voting rights. Despite clear evidence and a powerful district court opinion, a real win for opponents of SB 90, the Circuit Court reversed entirely. A race-forward, ambitious litigation approach under the VRA and 14th and 15th Amendments was unsuccessful. In Georgia, dilatory tactics have won the day; it is still unclear, a half-decade after SB 202 was challenged in Court, whether the judicial system finds the law illegal or not. There has simply been no trial, let alone a ruling.⁷⁹ And in Texas, the approach was different, as plaintiffs could shape their lawsuits in response to the Supreme Court's decision in *Brnovich*. It was in many ways the inverse of Florida, asking whether challenging racially discriminatory laws as violative of non-racial statutes could work (though of course, like in Georgia, the timeline on the intentional discrimination claims has stretched to the 5-year mark). This, too, failed. Taken together, these three cases lay bare the near-impossibility of using the legal system to strike down racially-discriminatory voting laws in the modern era. Three legal approaches;

⁷⁹It is worth noting that Georgia, like Florida, is in the 11th Circuit. As such, it seems unlikely that even a district court win against SB 202 would survive an appeal to the 11th Circuit.

three failure mechanisms; three omnibus voting laws created in the context of the myth of voter fraud that remain on the books harming voters of color.



As the litigation in Florida, Georgia, and Texas showed, new restrictive voting laws in the post-2020 era have fallen hardest on voters of color. But each American's decision to vote in a given election is driven by countless factors. How competitive are elections where they live? How excited are they about candidates on their ballots? Is it easy to get to their polling place, will the lines be long once they get there, and do they know where the photo identification they might need is? Even the weather can play an outsized role. All these competing forces make it almost impossible to determine what, exactly, caused a voter to turn out or to stay home on election day.

Nevertheless, the influence of the New Lost Cause can be plainly seen. In Florida, we saw that the myth created an election police force seeking to justify its own existence; it accused a plurality-Black population of extensive voter fraud, and reduced their turnout. In Texas, the myth raised unfounded concerns about mail voting, and it erected new barriers to this vote mode; these, too fell harder on voters of color and drove down their turnout for years to come.

When we zoom out — when we look at thousands of dots on a canvas, as Judge Walker put it in his Florida opinion — we can start to see patterns that are less visible when we look at an individual voter. But in this case, we do not just have thousands of dots but rather nearly 1.7 *billion* dots. All told, we observe one record for each registered

voter in each federal election year. My colleagues Coryn Grange, Arlyss Herzig, and I have collected and tracked voter files from around the country back to the 2008 election (these are the same sorts of files used in the Florida and Texas studies discussed above). These data allow us to observe individual voters across every federal election since 2008, representing a considerable advance on earlier aggregate analyses of voter files.⁸⁰ We saw these data earlier in the analysis of the effects of the Florida election police; they also undergird much of the expert work cited above, as well as my analysis of the impacts of Texas’s SB 1.

Most social science research on turnout relies on surveys, but when respondents inadvertently misreport their turnout, that can skew the conclusions that researchers draw.⁸¹ Voter file data, meanwhile, provide an unambiguous administrative record of whether someone really did cast a ballot; when these are collected shortly after an election, they provide the best insight available into the electorate in a given year.⁸² Although such data are not nationally available prior to the 2008 election, they are now the gold-standard when it comes to understanding the characteristics of the electorate in the social sciences.

Importantly, the voter files give us insight into what is happening at all different geographic levels; rather than rely on only a handful of observations in a given county or state, we have virtually the entire universe of voters. At the same time, the voter file records do not always tell us everything we might want to know. In only a handful of states, for instance, do voters provide their self-identified race when registering to vote; for all other

⁸⁰Most notably Fraga (2018).

⁸¹Ansolahehere, Fraga and Schaffner (2022); Enamorado and Imai (2019).

⁸²Voter files are never perfect, as voters are added to and removed from them every day. Nevertheless, we estimate that we have turnout records for more than 97% of all ballots cast by voters between 2008 and 2022 by comparing our totals to the number of ballots cast for the highest office in each state and year. McDonald, Michael P. 2008–2022. “Voting Statistics.” United States Elections Project. Accessed April 11, 2024.

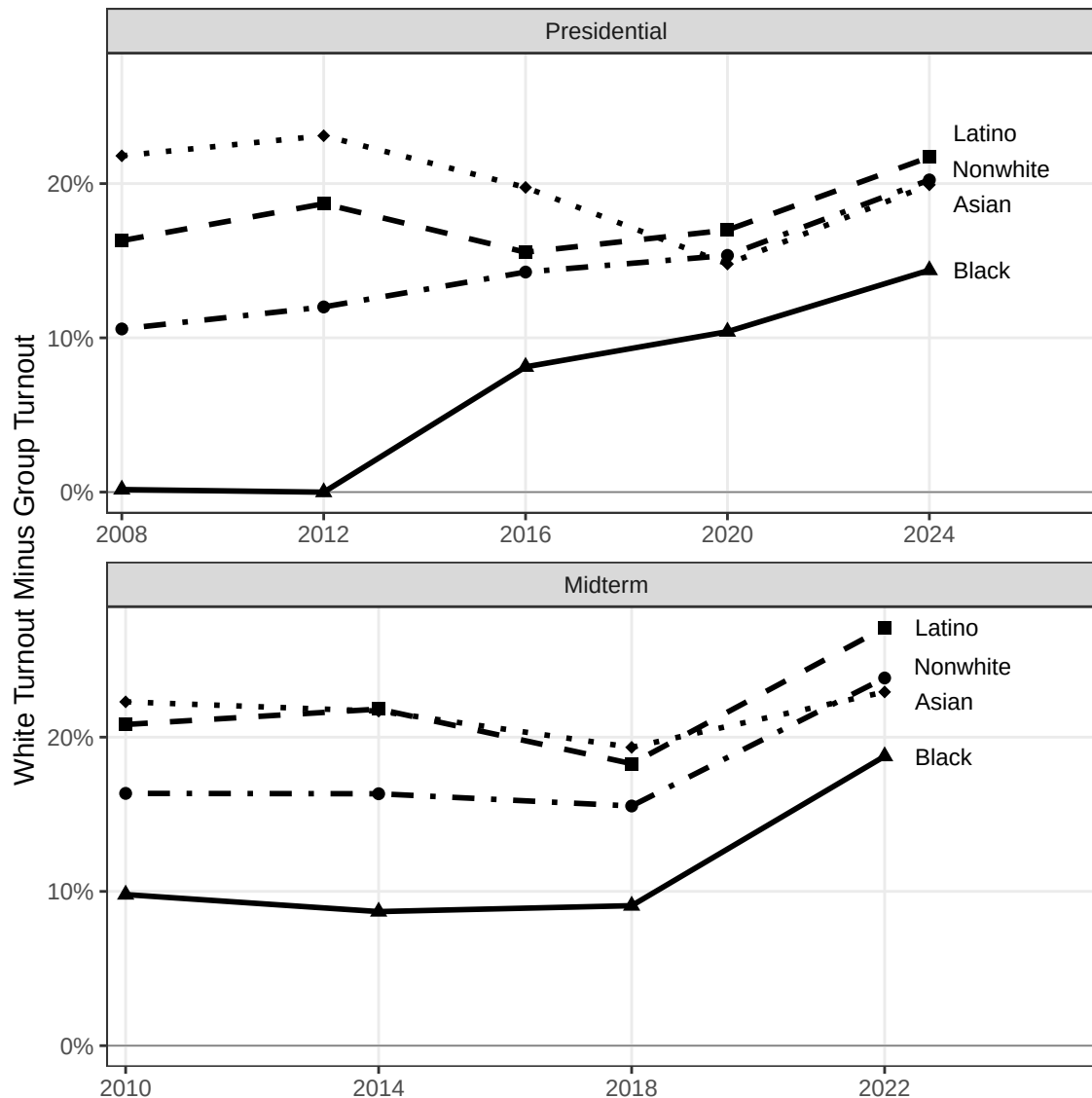
states, I have to rely on statistical estimates to determine voters' races, which I do using peer-reviewed methodologies.⁸³ Taken as a whole, then, we can get a very clear picture of how racial participation trends are shifting all around the nation.

What sort of picture do all these individual choices paint in the aggregate? A concerning one. In each presidential election since 2008, the racial turnout gap has grown — and in no period did it grow more quickly than between 2020 and 2024. As Figure 6.2 makes clear, the overall racial turnout gap jumped from about 14 percentage points to 19 percentage points, more than *twice as much* as in any other period in our data. This is especially striking given that the second-largest jump came between 2012 and 2016, the year following Barack Obama's departure from the presidential race. We would have expected that his departure would result in lower nonwhite turnout (and, in fact, clearly observe a decline in Black turnout), but relative minority turnout as a whole declined considerably more following 2020. While the gap in participation between White and Asian voters was lower in 2024 than it was in the late 2000s, the gap had grown for both Black and Latino voters — precisely the groups most often targeted by restrictive voting laws.

The patterns are even more alarming when we look at what has happened in midterm years. Between 2010 and 2018, the racial turnout gap was flat or even declining. This gap was smaller for each racial group in 2018 than it was in 2010, with especially large declines for Asian and Latino voters. But for each group, the gap in 2022 was larger than at any point in the preceding 12 years. Between 2018 and 2022, the gap grew by roughly *60 percent*, from 14.6 percentage points to more than 23 points. These midterm elections also provide

⁸³I estimate voters' race using Bayesian Instrumental Regression for Disparity Estimation (McCartan et al., 2025). Please see the Methodological Appendix for more information.

Figure 6.2: Racial Turnout Gaps in Federal Elections, 2008 – 2024



a bit more insight into the nuances of the White–Black turnout gap than the presidential timeseries. In presidential elections, we see a clear increase in the gap when Obama leaves office, which makes sense; Black candidates tend to increase Black turnout.⁸⁴ If Obama’s departure from office influenced midterm racial turnout gaps, it should have increased in 2018. It did not. In other words, it seems unlikely that the extraordinary increase in the

⁸⁴Philpot, Shaw and McGowen (2009).

White–Black turnout gap we see in 2022, from 9 to 19 percentage points, has much at all to do with Obama.

Figure 6.2 thus presents us with an uncomfortable but undeniable conclusion: Not only is the racial turnout gap larger today than at any point in modern history, it also grew *far* faster in the post-2020 era than in any of the cycles before it for which we have data. Clearly, something new is driving down relative nonwhite turnout in the 2020s. As we saw earlier in this chapter, some of this is attributable to omnibus bills recently passed in states like Florida, Georgia, and Texas. At the same time, my colleague Michael G. Miller and I have shown that the removal of the preclearance protections of the Voting Rights Act in 2013 led to an explosion of the racial turnout gap in parts of the country once subject to its protections, and that the discriminatory effects of these policies are growing and were especially high in 2022.⁸⁵ We also show that the bulk of potentially-discriminatory policies are actually arising not at the state level, but rather at the local level. That is because counties in the United States have a tremendous amount of discretion over how they run their elections; it means, however, that the laws like SB 90, SB 202, and SB 1 might be just the tip of the iceberg, with most of the policymaking happening out-of-sight at the county level. This is especially concerning given that the decline of local media might make it harder than ever to even *know* what is happening in small rural counties. But together, they seem to be driving up the turnout gap.

At the same time, this is almost surely not only a story of restrictive voting laws falling harder on Americans of color, important as that story is. Other factors, like alienation from the political process, might similarly be disproportionately pushing nonwhite voters out of

⁸⁵Morris and Miller (2025); Miller and Morris (2026).

the electorate. And who could blame them? When the Big Lie gave cover to so much rhetoric about the criminality of Black voters — and when it was subsequently turned on Latinos in a panic about noncitizen voting — these voters might well have gotten the clear message that they are not welcome in the body politic.⁸⁶ When the Democratic party was apparently unable or unwilling to fight back against the racialized Big Lie, voters of color may well have become less enthusiastic about the Democratic party, leading to underinvestment in GOTV efforts in these communities.⁸⁷ Some of these structural forces are downstream of the Big Lie. The New Lost Cause, of course, is not only an attempt to restrict formal access to the ballot box; as the case of the Florida election police shows, it is also about using myths to redefine who does and does not deserve political power. Other structural forces — like the impacts that the post-Covid moment, or the overturning of *Roe v. Wade*, or other novel features in American politics — might not be caused by the Big Lie. What we do know, however, is that the Big Lie has not been unleashed at a moment of relative racial equality in American political participation. What is not being *caused* by the Big Lie does not exculpate the Big Lie. Instead, it offers concerning context about the world in which it is being deployed.

Restrictive voting laws, from the statewide omnibus bills to the county polling place consolidations in rural Mississippi, are an output of the Big Lie. They are not the only ones, and not all of the growth in the turnout gap is attributable to the forces let loose by the 2020 election. Yet Figure 6.2 makes clear that 2020 marks an important inflection point in American politics. In the aggregate, these various outputs have collectively undermined nonwhite political participation.

⁸⁶Reny, Wilcox-Archuleta and Cruz Nichols (2018); Stout and Baker (2022); Nichols and Garibaldo Valdéz (2020).

⁸⁷Caughey et al. (2024).

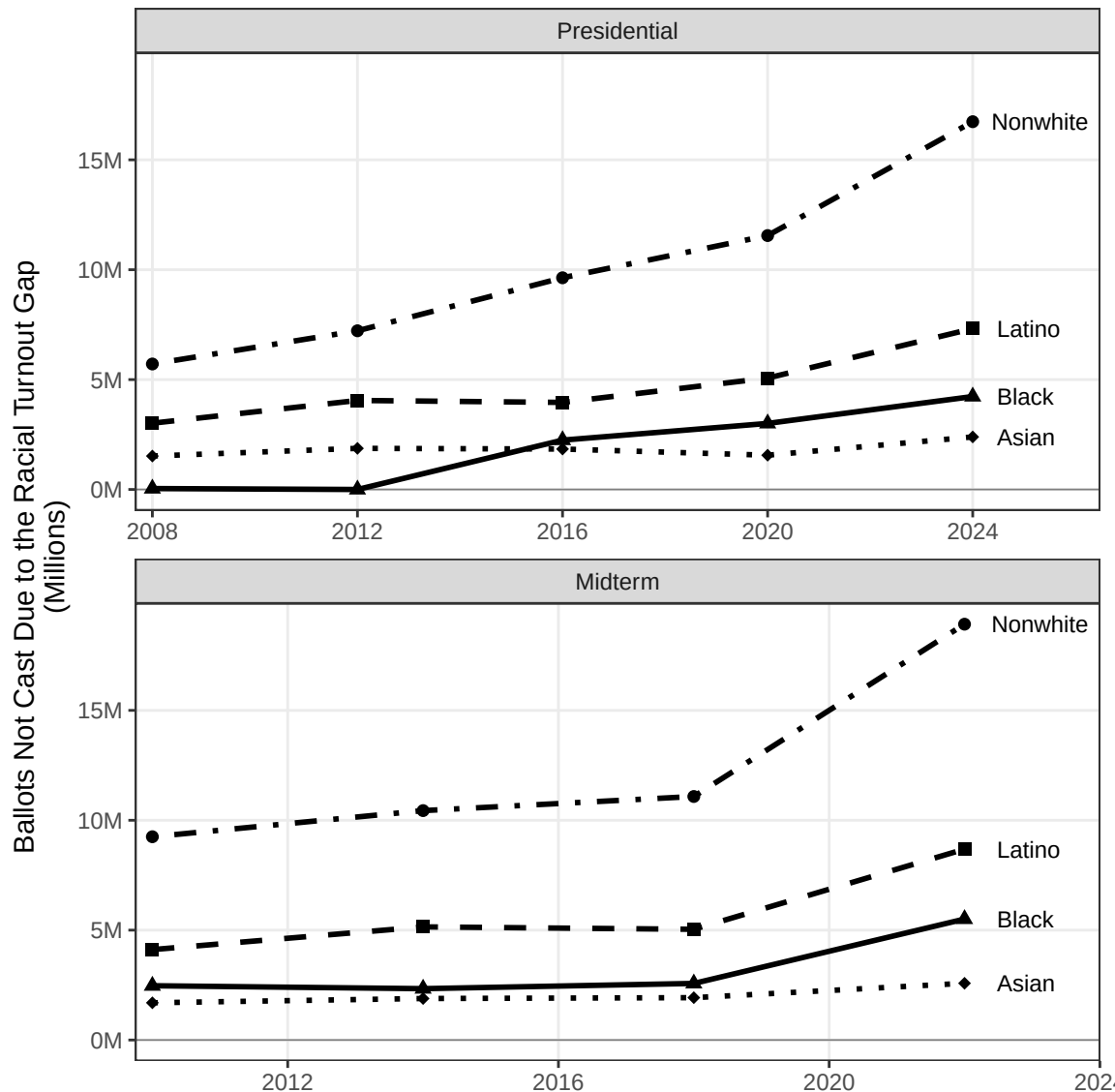
But how do these gaps translate into real political power?

One way of answering that question is to estimate how many more ballots each racial group *would* have cast if their turnout matched that of White voters. The math behind this is fairly straightforward: We multiply the size of the gap by the number of potential voters in that group. In other words, if we assume that the turnout of Black voters would have been 10 points higher if the turnout gap closed, and if there are 500 potential Black voters, we assume that 50 more would have voted if the gap closed ($10\% \times 500$). Figure 6.3 shows that these numbers are substantial — and have grown dramatically since 2020. Take, for instance, the presidential elections. In 2020, the racial turnout gap was “costing” just over 10 million ballots from voters of color. To put that in context, that was more than the entire potential electorate (the citizen voting age population) in all but the four largest states that year. In 2024, however, I estimate that this increased by *more than 50 percent*; if voters of color had turned out at the same rate as White voters in 2024, and additional 16 million ballots would have been cast. The numbers in the midterms are even more damning: After a period of relative flatness between 2010 and 2018, the number of missing ballots shot up by more than 75%, to 18 million ballots. This was no continuation of an existing trend; the post-2020 period growth rate is much higher than it was even as the nation’s first president of color left office. At no point in recent years has the racial turnout gap so skewed the American electorate as it does today in the aftermath of the Big Lie.



When Barack Obama was elected the 44th president of the United States of America,

Figure 6.3: “Missing” Ballots Due to the Racial Turnout Gap, 2008–2024



there was a sense of triumphalism in the air. Is “Race Over?”, wondered a headline in *The Atlantic*;⁸⁸ it is far from the only example in the genre. And in fact, there was some reason for optimism: As we just saw, Black and White turnout reached near-parity in 2008, a landmark achievement given the vast disenfranchisement of Black voters that had existed within living memory of many Americans.

⁸⁸Ambinder (2009)

But of course, a single election does not a history undo. Serious scholars of race and politics knew that no post-racial America had arrived, discourse to the contrary. It did not take long for social scientists and others to document how Obama’s presidency — far from *de-emphasizing* race — seemed to inject race into *everything*.⁸⁹ By the time 2016 rolled around, the widespread resentment that many White Americans felt about Black Americans’ “capture” of the White House was palpable; Donald Trump stoked those feelings and rode them all the way to Washington, DC.⁹⁰ Not content with simply winning the Electoral College (and, thus, the presidency), he lied consistently that he won the popular vote as well “if you deduct the millions of people who voted illegally.”⁹¹

The earlier chapters in this book demonstrate just how close to the surface all these sentiments remained. When Trump lost the 2020 election, when Barack Obama’s vice president was set to return to the White House once more, wild conspiracy theories rooted in fear of nonwhite political power and myths about Black criminality erupted onto the national scene. This rhetoric came from national elites; when Donald Trump could not convince mainstream Republicans to support him, he turned to other avenues. After passing through to the mass White public, state lawmakers around the country enacted new restrictions on voting that were meaningfully rooted in White racism. In echoes of the end of Reconstruction, arguments of corruption and fraud and criminality justified curtailment of the franchise. Though the language was not so explicit in the 2020s — a hundred and fifty years of practice had taught these actors to avoid saying the quiet part out loud — the system looks the same.

Yet the results did not have to be the same. In 2020, unlike in the final decades of

⁸⁹Tesler (2012, 2016).

⁹⁰Sides, Tesler and Vavreck (2018); Schaffner, Macwilliams and Nteta (2018).

⁹¹<https://x.com/realDonaldTrump/status/802972944532209664>.

the 19th century, there were laws on the books in the United States that in theory protected the voting rights of nonwhite Americans. While the heart of the Voting Rights Act, the preclearance condition, had been suspended during Obama's first term, the ability to bring litigation under the Voting Right Act remained in force that year. There was some reason to hope, then, that things would go differently in the aftermath of 2020 than the end of Reconstruction. While the federal government had abandoned Black voters by 1880s, the wins of the 20th century's civil rights movement still carried real weight in the early 21st century.

That hope was misplaced.

As this chapter has shown, private litigators and the US Department of Justice sought to use these tools — yes, the Voting Rights Act, but also the 14th and 15th Amendment, and other weapons as well — to overturn the new laws that were the most visible output of the New Lost Cause. The myth might still be defeated. Indeed, there were multiple paths available. As we saw, voting rights activists took the myth head-on in Florida. A frontal assault was mounted on SB 90 in the Sunshine State, with extensive evidence that the law would fall harder on voters of color — and that that was its *intent*. Judge Walker agreed, drawing the historical through-lines in American history. But it was to no avail: Using a dubious understanding of clear-error review, his opinion was reversed by the 11th Circuit on appeal. The enforcement tools available in Georgia have been no more effective; in that state, more than five years after the passage of SB 202, no trial has happened. The legal system has ground the process to a halt, and the Department of Justice abandoned its own challenge to the law after Donald Trump — the very progenitor of the Big Lie, which in turn birthed SB 202 — returned to power.

And Texas represents what might well be the future of these claims in the United States. On July 1, 2021, the US Supreme Court handed down its opinion in *Brnovich v. DNC*.⁹² The opinion, authored by Associate Justice Samuel Alito, substantially reduced the remaining powers of the Voting Rights Act. Suddenly, a litigation strategy relying on the VRA seemed shakier than ever before, leading plaintiffs against Texas’s SB 1 to pursue a wide variety of strategies; each claim against the law was brought under legal statutes that did not require them to prove the law was racially discriminatory. But this, too, was unsuccessful. Despite winning nearly every challenge against SB 1, the Fifth Circuit has left the law virtually unchanged. In short, the legal system at the circuit court level seems incapable of stopping the New Lost Cause. And, as Chapter 7 will show, this trend only seems to be accelerating.

The result is a substantially less equitable country. As recently as 2008, Black turnout was in line with White turnout; by 2024, the turnout gap meant more than 5 million ballots were uncast by Black Americans. And that is the optimistic story; that number stands at nearly 10 million ballots for Latinos. The laws that federal officials determined were intended to be racially discriminatory, and that remain on the books, stand starkly against the explosion of the racial turnout gap. To be sure, this is not only a story of the New Lost Cause; these turnout gaps have been drifting higher since 2008. The analysis this chapter presents, however, makes clear that the post-2020 era represents no continuation of a two-decade-long process. Instead, the wave of restrictive voting policies — those we know about at the state level, which number more than at any point since Reconstruction, and those thousands of county- and local-level policies we cannot see — have driven down the relative

⁹²*Brnovich v. Democratic National Committee*, 594 U.S. 647 (2021).

turnout of minority Americans.

In short, the Big Lie seems to have achieved its aims. It arose out of discomfort with the idea that the American state should grant political power to nonwhite Americans, and that age-old hierarchies ought to be maintained. It passed through the mass public, and expressed itself in the states' statute books. The system fed on racism, and now we know that its outputs are similarly racialized.

Chapter 7

A Brief Moment in the Sun: The End of the Second Reconstruction

“Nearly 50 years later, things have changed dramatically. Largely because of the Voting Rights Act, voter turnout and registration rates in covered jurisdictions now approach parity. Blatantly discriminatory evasions of federal decrees are rare.”

—Justice John Roberts, *Shelby County v. Holder*¹

On March 23, 2026, a strange scene played out at the Supreme Court of the United States during oral arguments for a case known as *Watson v. Republican National Committee*.

Mississippi Solicitor General Scott Stewart stood at the lectern. He was tasked with defending a Mississippi law that allowed ballots that were postmarked by election day to be counted so long as they were received by officials within five days of the election itself. He was supported by a number of national groups long associated with the fight for voting rights: The NAACP had signed onto an amicus brief supporting the state’s law, as had the Native American Rights Fund and the ACLU. Opposing him stood an array of the nation’s well-known conservative groups hoping to see the Supreme Court mandate that only ballots received by election day could count. Citizens United, whose name was synonymous with loosened restrictions on money in politics, filed a friend-of-the-court brief. So too

¹*Shelby County v. Holder*, 570 U.S. 529 (2013).

did the Claremont Institute’s Center for Constitutional Jurisprudence, whose director — John Eastman — was the principal architect of Trump’s legal effort to overturn the 2020 election; Eastman was also the counsel of record on the brief. The Republican National Committee had brought the lawsuit against Mississippi in the first place, of course, and the Trump Administration also jumped to attack the state’s law. Although the US Government’s argument largely turned on a narrow definition of “election day,” they did not pass up the opportunity to gesture to the Big Lie, writing that allowing for ballots to be received after election day “clearly created ample fodder for bad actors to continue to perpetrate...well-known types of fraud.”²

The strangeness of the morning was not, however, confined to the State of Mississippi’s bedfellows. Odder still was a refrain echoed by Justices Samuel Alito and Brett Kavanaugh. The legal question before the Court was really quite narrow: What, exactly, did Congress mean when it set election day as “The Tuesday next after the 1st Monday in November, in every even numbered year, is established as the day for the election?”³ In the United States, federal law “preempts” state law; that is, when they conflict, federal law wins. Determining whether Mississippi’s law could stand, then, was about nothing more than determining whether counting ballots received after election day violated this federal statute.

In other words, questions of voter fraud had nothing to do with the legal question before the Court. That amici like the US Government gestured toward fraud in their briefs was not especially surprising; such briefs often frame the larger stakes of questions the Court is considering. What *was* odd, however, was the relevance that two Supreme Court justices

²Brief for the United States as Amicus Curiae Supporting Respondents at 28, *Watson v. Republican Nat’l Comm.*, No. 24-1260 (U.S. Feb. 17, 2026), https://www.supremecourt.gov/DocketPDF/24/24-1260/396427/20260217134927549_24-1260bsacUnitedStates.pdf.

³2 U.S.C. §7.

seemed to ascribe to the threat of voter fraud. Alito voiced his concern first, speculating that “confidence in election outcomes can be seriously undermined if the apparent outcome of the election...is radically flipped by the acceptance later of a big stash of ballots.” Stewart — the conservative solicitor general from Mississippi — parried by pointing out to Alito that his opponents “haven’t cited a single example of fraud from post-Election Day ballot receipt in this century.” Standing before the justices, Stewart articulated that no evidence supported the myth of widespread fraud when it came to late-arriving mail ballots.

Despite Stewart’s response (and Justice Sonia Sotomayor’s subsequent attempt to refocus the argument), Justice Kavanaugh returned to the question posed by Alito. He pressed Stewart repeatedly on whether the Court should take “the appearance of fraud” into account when considering the legality of Mississippi’s law. Kavanaugh, like Alito before him, appeared unbothered by the fact that such fears were entirely unfounded. Neither the RNC nor any party to the case had offered any evidence of fraudulent ballots received after election day. Instead, Kavanaugh took a lack of confidence in the election as a given, not as something that (as we have seen) was specifically cultivated using anti-Black racism to undermine the legitimacy of American elections.

This extended discussion of voter fraud in *Watson* built on — and departed from — a 2008 Supreme Court case called *Crawford v. Marion County Election Board*.⁴ In *Crawford*, the Court upheld the constitutionality of Indiana’s voter identification law. Although Indiana presented *no evidence* of in-person voter impersonation, the Court nevertheless held that the state’s fear of *potential* fraud could justify what it saw as a modest burden on the right to

⁴553 U.S. 181 (2008).

vote.⁵ *Crawford* thus looms large over the wave of restrictive voting legislation passed in the 2021 session around the nation when lawmakers justified their actions by appealing to fears of fraud. These fraud claims, of course, had been extensively litigated and proved baseless in the aftermath of the 2020 election. Nevertheless, the *Crawford* decision gave lawmakers reason to believe that they would not run afoul of the Courts for impermissibly burdening the right to vote.

But the oral arguments in *Watson* went further than *Crawford*. Justices Alito and Kavanaugh were not tasked with deciding whether fear of fraud justified state action. They were not tasked with assessing voter fraud *at all*, in fact, but simply with ascertaining what the federal statute meant when setting election day. What might have seemed like a routine digression during a court case, however, revealed something considerably more concerning. Two Supreme Court justices indicated their willingness to use the Big Lie to justify making mail voting more difficult — and to do so in a case where such a discussion was, legally speaking, entirely irrelevant. While *Crawford* saw the Court accept unsubstantiated fear of voter fraud as a valid state interest, *Watson* saw two justices offer fraud as an excuse for restricting the franchise when it was not legally applicable.

The myth of voter fraud had reached the highest court in the land, where two justices proffered it as a justification for restricting access to the ballot box. But *Watson* would be far from the court's most sweeping attack on the franchise in the aftermath of the 2020 election — or even in the 2026 term.



⁵See also *Anderson v. Celebrezze*, 460 U.S. 780 (1983); *Burdick v. Takushi*, 504 U.S. 428 (1992).

In other eras, lies rooted in White racism might not have done so much damage to our political system or wreaked so much havoc on the political power of minority Americans. The Second Reconstruction grounded its approach to enforcing the promises of the 15th Amendment in the knowledge that the forces of White racism would not dry up overnight. The Voting Rights Act of 1965 took this as a given. From America's largest states to its smallest counties, its drafters knew, the desire to attack a vibrant multiracial democracy lurked everywhere. Enforcement of the 15th Amendment required constant attention, lest poison as old as the nation reemerge. The promises of the Constitution, of course, ought to stand firm against the coordinated attacks of any single generation, and the first Reconstruction had fallen as the Supreme Court allowed just this to happen, with judicial retrenchment as reactionaries fought to undo this "second founding."⁶

The Second Reconstruction has fared little better. As we saw in Chapter 6 federal courts have not stopped the laws growing out of the Big Lie from undermining American elections. And the oral arguments in *Watson* indicate this reaches to the very top of the judicial system, where the Supreme Court has not been a passive bystander allowing the Big Lie to take root. Indeed, through a series of decisions stretching back a decade and a half, the Supreme Court has systematically dismantled the VRA — and, in so doing, created the conditions in which the Big Lie could burn through American election administration.

The Supreme Court has issued a number of opinions in recent years that make participation in American elections more difficult. *Crawford*, discussed above, opened the door to strict voter identification laws, while *Husted v. A. Philip Randolph Institute*⁷ made it easier

⁶Foner (2019).

⁷584 U.S. ____ (2018).

for election administrators to remove voters from the registration rolls. But nowhere has the Court’s action been more concentrated than on the ability to enforce the 15th Amendment to the United States Constitution.

The Court opened its broadside in a 2013 case called *Shelby County v. Holder*.⁸ As Michael G. Miller and I detail in *An American Problem*,⁹ *Shelby County* invalidated one of the central pillars of the VRA. Between 1965 and 2013, states and localities with a history of racial discrimination in their election systems were required to obtain permission from the federal government before they could change any election policies. During the half-century in which it was operative, thousands of policies were stopped from ever going into effect by this “preclearance” policy because jurisdictions could not prove they would not fall hardest on voters of color.

But in *Shelby County*, the Supreme Court rendered preclearance unenforceable. Arguing that “things [had] changed dramatically” in the parts of the country where preclearance was required, the Court struck down only the coverage formula. The effect of preclearance was not to provide oversight of known discriminators, wrote Roberts, but instead “to punish for the past.” It was therefore unconstitutional. By maintaining that “Congress may draft another formula based on current conditions,” Roberts could claim the opinion was narrow. Yet with a divided Congress, the Chief Justice surely knew this was unlikely.

Pointing to narrow racial turnout gaps in the years when Barack Obama — the nation’s first Black major-party presidential nominee — was on the ballot, the Court determined that preclearance was no longer justified; “Blatantly discriminatory evasions of

⁸570 U.S. 529 (2013).

⁹Miller and Morris (2026).

federal decrees [were] rare” by 2013. While the opinion stood on shaky doctrinal ground — one prominent conservative federal judge argued that it “rested on air”¹⁰ — the majority struck a celebratory tone. But the dissenting justices were far less sanguine: The very outcomes they agreed marked real progress were now at risk because of the Court’s decision. The years that followed would bear out the predictions of the dissenting justices, as *Shelby County* reduced turnout among nonwhite Americans — and diluted the power of ballots that *were* cast by voters of color.

Nevertheless, the Court made a promise in *Shelby County*: “Section 2” — the provision of the Voting Rights Act that allowed for discriminatory policies to be struck down once they were passed into law — “is permanent, applies nationwide, and is not at issue in this case.”

It would not be so. Eight years later, in 2021’s *Brnovich v. DNC*,¹¹ the Supreme Court would gut the ability of Section 2 of the Voting Rights Act to invalidate laws making it harder for voters of color to cast a ballot. In a case arising out of an Arizona law, Justice Alito penned an opinion that introduced a series of hurdles to Section 2 litigation nowhere to be found in the actual language of the statute. Most severe of these was a dismissal of laws whose discriminatory effects are “small,” at least in a judge’s opinion. “The mere fact there is some disparity in impact,” Alito wrote, “does not necessarily mean that a system is not equally open or that it does not give everyone an equal opportunity to vote.” In the case at hand, the Arizona policy led to the invalidation of 1% of all ballots cast by Black, Latino, and Native American voters, but only 0.5% of White voters. Pointing out that the

¹⁰Richard Posner, “The Supreme Court and the Voting Rights Act: Striking down the law is all about conservatives’ imagination,” *Slate*, June 26, 2013.

¹¹594 U.S. 647 (2021).

ballot rejection rate for each of the minority groups was double that of White voters was, in Alito’s view, “statistical manipulation.” The decision came down at the tail-end of the first legislative session following the 2020 election, when dozens of restrictive voting laws were passed around the nation — and whose passages were shaped by racial animus. The court did not just break the VRA’s remaining tool for striking down discriminatory voting laws; they had done so at the precise moment when that tool was more important than it had been in years. The impact of the opinion was immediate and uniform. Despite the raft of new restrictive laws, as of mid-2026 not a single vote denial lawsuit brought under Section 2 of the Voting Rights Act has been successful since *Brnovich* was handed down.¹²

Two of the Voting Rights Act’s three major pillars had been destroyed. *Shelby County* undid its power to stop discriminatory laws before they could be enacted, while *Brnovich* neutered Section 2’s power to knock down “vote denial” policies that made casting a ballot harder for voters of color. But the third major pillar — the ability to use Section 2 to strike down “vote dilution” policies like district maps that cracked or packed minority voters — still stood. In fact, the Supreme Court itself struck down a Congressional districting plan from Alabama as late as 2023 for violating Section 2’s protections on this front.¹³

But there was reason for voting rights activists to worry on this front as well beginning in 2019, when the Supreme Court ruled that federal courts could do nothing about partisan gerrymanders.¹⁴ While the case had nothing to do with racial vote dilution on its face, it set up a clear conflict: In the United States, where race and partisanship are tightly linked,

¹²See Justice Elena Kagan’s dissent in *Louisiana v. Callais*, 608 U.S. ____ (2026): “Since the Court ruled [in *Brnovich*], not a single Section 2 suit has successfully challenged such a restriction on voting, however discriminatory in operation.”

¹³*Allen v. Milligan*, 599 U.S. 1 (2023).

¹⁴*Rucho v. Common Cause*, 588 U.S. 684 (2019).

the permissiveness of partisan gerrymandering and illegality of racial gerrymandering would prove difficult to disentangle. Such entanglement handed mapdrawers seeking to dilute the voting power of minority voters a powerful tool. If they could convincingly cloak a *racial* gerrymander as a *partisan* one, it would be beyond the reach of federal courts to remedy.

This would come to a head in 2024’s *Alexander v. South Carolina State Conference of the NAACP*.¹⁵ In *Alexander*, Justice Alito (writing for the majority) cautioned that federal courts “must be wary of plaintiffs who seek to transform federal courts into weapons of political warfare that will deliver victories that eluded them in the political arena.”¹⁶ The Court held that legislatures were entitled to the presumption of good faith from Courts; if they said it was a partisan gerrymander, a partisan gerrymander it was. Anything that could be construed as a partisan gerrymander *or* a racial one, the Court held in *Alexander*, must now be considered a partisan one.

The majority opinion in *Louisiana v. Callais* finished the job.¹⁷ Though Alito — who once again had the pen — wrote that the Court was simply “updating” federal jurisprudence with respect to racial vote dilution, it eliminated the VRA’s final remaining protection for voters of color. Justice Elena Kagan, writing for the three dissenting justices, put it plainly: “Today’s decision renders Section 2 all but a dead letter.” The majority rendered it so, however, without formally overturning the Voting Rights Act. Instead, the justices narrowed its power to the point of obsolescence.

In addition to making a nullity of the VRA, Alito’s *Callais* opinion narrowed the 15th Amendment itself. Although the Court had long held that the 15th Amendment itself

¹⁵602 U.S. ____ (2024).

¹⁶*Ibid.* Internal quotations omitted.

¹⁷608 U.S. ____ (2026).

outlawed only *intentional* racial discrimination,¹⁸ it had — for just as long — maintained that “Congress may prohibit practices that, in and of themselves, do not violate § 1 of the Amendment, so long as the prohibitions attacking racial discrimination in voting are appropriate.”¹⁹ Alito’s opinion overturned this precedent without ever citing the case from which it came, arguing that Congress, under its 15th Amendment power, could pass laws invalidating election policy “only when circumstances give rise to a strong inference that intentional discrimination occurred.” *Callais* thus also foreclosed any *future* Congressional statute targeting laws with racially disparate effects unless intent could also be (nearly) proved.

Running through Alito’s recent jurisprudence — and, especially, the new intent requirement in *Callais* — is an assumption that racist intent is effectively a thing of the past. In 2025 he cautioned in a stay order that “litigants can easily use claims of racial gerrymandering for partisan ends,”²⁰ implying that claims were brought not out of a sincere concern that the 15th Amendment had been violated but instead (to quote again from his *Alexander* opinion) as “weapons of political warfare.” In *Callais*, he took this reasoning further, dismissing discrimination that occurred “some time ago” as irrelevant for understanding present conditions. Like Roberts in *Shelby County*, Alito implied that some parts of the country were being punished for the sins of their fathers.

As we have seen at each step in this volume, however, race and partisanship are not fully reducible. We’ve seen that the myth of a stolen 2020 election was deeply inflected with racism. We’ve seen that lawmakers whose constituents are more racially resentful seek

¹⁸ *City of Mobile v. Bolden*, 446 U.S. 55 (1980).

¹⁹ *City of Rome v. United States*, 446 U.S. 156 (1980). Internal quotations omitted.

²⁰ *Abbott v. League of United Latin American Citizens*, No. 25A608, 607 U.S. ____ (2025) (per curiam order granting stay).

to overturn elections and restrict access to the ballot — *even after* we account for their partisanship. We’ve seen that White Trump supporters bought into the Big Lie earlier if they held racist stereotypes. Alito — and by extension, the Supreme Court — think that racial conflict has been fully replaced by partisan conflict. The Big Lie and its effects show this is not so.

The Court’s long attack on the Voting Rights Act is complete. Thirteen years after *Shelby County*, the VRA remained on the statute books. But it had been so weakened that, as a matter of practical reality, no federal law exists that can be used to enforce the 15th Amendment’s prohibition on the abridgment of the right to vote on account of race. The VRA was built for just such an era as this one. Its proponents knew that the federal government — Congress and the Executive and the Courts — would need to keep watch over the Constitutional promises won during Reconstruction to keep the old demons at bay. Instead, it has been killed at the hour of its greatest need.



The nation has been here before.

Following the ratification of the 15th Amendment in 1870, Congress immediately exercised its powers under Section 2 “to enforce this article by appropriate legislation.” The 15th Amendment was ratified on February 3, 1870; the first Enforcement Act — “An Act to enforce the Right of Citizens of the United States to vote in the several States of this Union”²¹ — was signed into law by President Grant less than four months later. This first Enforcement

²¹Enforcement Act of 1870, ch. 114, 16 Stat. 140 (1870).

Act made racial discrimination in voting a criminal offense, and gave the president power to appoint federal officials with the power to bring lawsuits regarding 15th Amendment violations.²² The Second Enforcement Act and the Ku Klux Klan Act were passed within the year, and dramatically expanded the enforcement of the new Constitutional Amendment. Under the KKK Act, the federal government could directly prosecute *individual* citizens — like members of the Klan — for conspiracies to deprive Black Americans of their right to vote. The acts were widely if unevenly used to bring suits throughout the Southern United States. The message from the federal government was clear: If states would not prosecute racial terrorists for violating the 15th Amendment, Washington would.²³

Six short years after the ratification of the 15th Amendment and passage of the first Enforcement Act, however, the Supreme Court would drastically narrow their scope; in the words of historian J. Morgan Kousser, the court “was demonstrably potent in protecting white supremacy in the late nineteenth century.”²⁴ On March 27, 1876, the Waite Court handed down a pair of opinions that did to the Enforcement Act what the Roberts Court would do to the Voting Rights Act a century and a half later. In *United States v. Reese*,²⁵ the Court struck down Sections 3 and 4 of the Enforcement Acts on little more than a technicality. These two sections contained the real teeth of the Enforcement Acts, allowing federal prosecutors to bring criminal charges against those seeking to obstruct access to the

²²This discussion of the Enforcement Acts relies largely on Foner (2014) and Wang (1997).

²³The Voting Rights Act of 1965 would shift its focus from individual to state actors in its approach to enforcement of the 15th Amendment. Such a shift might not be so incongruous as it might seem: As Epperly et al. (2020) show, the mechanisms of vote suppression became increasingly bureaucratized in the late 19th and early 20th century, leading to less need for violence by private actors to drive Black voters away from the polls. Of course, as we will see, the Supreme Court also narrowed Congress’s ability to prosecute individuals for violating the 15th Amendment in *United States v. Cruikshank*.

²⁴Kousser (1999, pg. 49).

²⁵92 U.S. 214 (1876).

ballot box. But because they did not *explicitly* reference obstruction based on race (such explicit references were instead limited to sections 1 and 2 of the Act), the majority argued that the sections exceeded Congress's Fifteenth Amendment enforcement powers to police the action of state officials. In his dissent, Justice Ward Hunt called the reasoning "absurd;" both the legislative context and the language of the first two sections made clear what the Act was trying to do.²⁶ Nevertheless, the most powerful section of the Enforcement Act fell.

But the Court was not finished handing down opinions on that early spring day. Soon, the Court's opinion in *United States v. Cruikshank* would be made public.²⁷ In *Cruikshank*, the Waite Court dramatically narrowed the powers of the 14th and 15th Amendments, making it effectively impossible for the federal government to prosecute *individuals* for violating the civil rights of Black Americans. Before the bureaucratization of the Jim Crow period, widespread and private violence was the principal tool used to keep Black voters away from the polls.²⁸ In a single day the Supreme Court had overturned a federal statute criminalizing racial discrimination by public officials, and functionally invalidated the Constitution's protections against racial violence committed by individuals. The Fifteenth Amendment now had, as the *Nation* put it at the time, "only...the efficiency and vitality of a very perfect and muscular corpse."²⁹ While the Amendment remained on the books, it would there gather dust; no federal power existed to restrain acts of terror against Black Americans.³⁰

Even as the Waite Court struck down existing tools for enforcing the Reconstruction Amendments, it offered Congress a potential path forward.³¹ The Enforcement Act could

²⁶Katz (2003, pg. 2357).

²⁷92 U.S. 542 (1876). Wang (1997, pg. 129).

²⁸Epperly et al. (2020).

²⁹Quoted in Wang (1997, pg. 131).

³⁰Foner (2014, pg. 531).

³¹Benedict (1978); Katz (2003); Brandwein (2011).

be rewritten, with race made explicit in sections 3 and 4. The Fifteenth Amendment gave Congress room to protect against the violation of *some* voting rights. But the promises of the Waite Court along these lines would ring just as hollow as Roberts’s assurance that Congress could pass a new preclearance coverage formula a century and a half later. Legal scholar Ellen D. Katz’s observation about *Reese* and *Cruikshank* applies just as well to *Shelby County*: They each “preserve opportunities for future Congressional action of the sort the Court knew full well Congress would not pursue,”³² though even the disingenuous space left open by the Roberts Court in *Shelby County* was gone by 2026 when *Callais* narrowed Congress’s 15th Amendment enforcement powers to the point of near-unusability. Reconstruction faced intense headwinds by the time the Waite Court handed down its decisions: Democrats already controlled the House of Representatives, while the Compromise of 1877 and the removal of federal troops from the South was just months away. The importance of Black voters for the electoral success of national Republicans was waning. The decades that followed would see substantial backsliding. Then — like today — the Supreme Court’s action would worsen the political crises on the horizon.

Alongside this all was the original Lost Cause, “helping” — in the words of W.E.B. Du Bois — “to range mankind in ranks of mutual hatred and contempt, at the summons of a cheap and false myth.”³³ This foundational belief that Black political power was illegitimate and White supremacy was natural would further foreclose any possibility of Congressional action.



³²Katz (2003, pg. 2351).

³³Du Bois ([1935] 2021, pg. 868).

The same is true of the Big Lie. The Second Reconstruction is dying at the same hands that killed the first one, under the weight of a cheap and false myth. We have seen this play out at each stage of the development, deployment, and outcomes of the Big Lie in the 2020s. While attacks on the legitimacy of the 2016 election went nowhere — recall that the Pence-Kobach Commission was unceremoniously scrapped less than a year into Trump’s first term — the 2020 election was held under wholly different circumstances. A staggering multiracial coalition had spent five months in the streets demanding that America confront the anti-Black racism that has always undermined her claims to being the guardian of liberty. These protests provided fertile ground for the Trump Campaign to sow the seeds of racial discord; it wasted no time in doing so. Before ballots were finished being counted, the strategy was taking shape: Focus, relentlessly, on Black municipalities. Name minority counties in lawsuits alleging fraud. Use whatever bullhorn available, Twitter or podcasts or otherwise, to take them to the mass White public. Mix longstanding associations between Blackness and criminality with a desire to reject a democratic outcome to undermine the system. Though the specifics have changed — from Ben Tillman to Donald Trump, from the *Raleigh News and Observer* to the *Alex Jones Show* — the myths’ elite production and mass dissemination walk a familiar road.

White Americans got the message. In the weeks after the 2020 election, belief that the election had been stolen soared among White Americans. That number has hardly budged in the years since, with a supermajority of Republicans continuing to believe the election was stolen at the time of writing in mid-2026.³⁴ But the uptake followed the rhetoric. Racially-resentful White Trump supporters were the first to buy in, and they did so for more than

³⁴Layne and Lange (N.d.).

any other Americans. These were the true believers, and they remained that way: As late as 2024, they found accusations of voter fraud more believable when they were racially targeted.

The Big Lie — this new Lost Cause — is now firmly established. Widespread White fears of Black political power gave cover to elites reneging on the promises of the 15th Amendment in the nineteenth century and the same is true today. The Republican caucus capitulated to the Big Lie, yes, but this capitulation was concentrated among Republican lawmakers representing (and Republican candidates seeking the votes of) White voters resentful of Black Americans. In the 119th Congress, roughly 2 out of every 3 Republican members of the House maintain that the 2020 election was stolen.³⁵

But it was not just Congress. These processes reached deep into the heart of where the Constitution reserves most of the power for setting election rules: State capitols around the nation. In the 2021 legislative session, a nearly unprecedented wave of restrictive voting legislation was passed into law. Nearly, but not entirely, unprecedented. When the *Washington Post* wanted to contextualize the phenomenon for their readers, they had a ready comparator: It “potentially amount[ed] to the most sweeping contraction of ballot access in the United States since the end of Reconstruction.”³⁶ Again, White racism took center stage. White voters’ sense of threat and resentment were tightly linked with legislative efforts to restrict voting access that year. And when lawsuits were brought showing that the laws fell hardest on voters of color, the legal system would not or could not protect them. All this, against the biggest racial turnout gap in a generation — and the growth of the gap is only accelerating.

³⁵States United Action. (5/8/2026).The landscape of election denial in America. Replacing the Refs. Retrieved from <https://electiondeniers.org/>.

³⁶Gardner, Rabinowitz and Stevens (2021).

In short, this new Lost Cause is a cycle that feeds on itself. Racial animus birthed racially discriminatory policies. Individual policies fell harder on voters of color and stoked an expanding racial turnout gap. The result is a Whiter electorate — one that will be less able to withstand further racialized attacks. Myth begets political outcomes; political outcomes strengthen the myth.



Its work is not yet finished. Perhaps nowhere is the self-sealing, self-propulsive nature of the new Lost Cause more evident than in the dry corner of election law governing when, exactly, ballots are counted. Yet from the very beginning, this has been central to the Big Lie. Just ten hours after the final polls closed on the 2020 election, President Trump was on Twitter: “Last night I was leading, often solidly, in many key States, in almost all instances Democrat run & controlled. Then, one by one, they started to magically disappear as surprise ballot dumps were counted. VERY STRANGE.”³⁷ It was not strange. In many states, election officials’ hands are tied: They cannot begin processing mail ballots until after the polls are closed. Election officials in places like Pennsylvania *knew* this would delay reporting results as the Covid-19 pushed mail voting to new heights and spent months pleading with the legislature to allow them to “pre-canvass” mail ballots before election day. Nevertheless, Republicans in the state legislature refused to do so.³⁸ Despite pre-canvassing being a largely uncontroversial policy — 32 states, run by Democrats and Republicans alike, allowed officials in 2020 to process mail ballots ahead of election day — a similar fight played

³⁷<https://x.com/realDonaldTrump/status/1324004491612618752>.

³⁸Fernandez (2020).

out in Michigan and in Wisconsin.³⁹ When, as predicted, more Democrats than Republicans voted by mail in 2020, the result was a blue shift: ballots cast by Democrats were counted later, giving the appearance of a disappearing Trump victory. Detroit, Philadelphia, and Milwaukee would reap the ensuing accusations of fraud.

As we have seen throughout this volume, lawmakers across the nation claim to be concerned with voters' lack of confidence in the election system. Such concerns were constantly invoked in the 2021 legislative session to justify new restrictive voting laws. Nevertheless, in Pennsylvania and in Wisconsin, where Republicans control the state legislature, no pre-canvassing reform has occurred as of mid-2026; in Democratic-controlled Michigan, meanwhile, a ballot initiative passed and Democrats implemented legislation allowing for pre-canvassing. But why has the same not occurred in the other swing states? It is difficult to avoid the conclusion of Pennsylvania state Representative Scott Conklin in 2022: "If it runs, it takes away the conspiracy theories. It takes away the fact that what they're saying is nonsense and not true."⁴⁰ And as the oral arguments in *Watson v. RNC* made clear, such logic has now reached the Supreme Court. At least two justices appear poised to impose new restrictions on mail voting based on a lack of voter confidence that, it seems, has been strategically cultivated.



Pre-canvassing shows how the myth of voter fraud is self-propulsive, how lies and strategy and jurisprudence can all feed on one another to throw up barriers to the ballot

³⁹Smith (2020).

⁴⁰Quoted in Associated Press and Levy (2022).

box. The stakes in that fight are meaningful: According to an analysis by Votebeat, more than 750,000 ballots were received after election day in 2024 and would have been rejected under the new rules of the game.⁴¹ Many of these voters will likely shift their ballots earlier going forward. Some, however, will not; their ballots will be rejected.

But the aftermath of the Supreme Court’s decision in *Louisiana v. Callais* — the decision discussed above that finally killed the Voting Rights Act — shows just how transformational the myth can be. The Big Lie was born out of false claims of voter fraud in the 2020 election, but rested on something more powerful. After the presidency of Barack Obama and the BLM protests following the murder of George Floyd, Black political power *itself* became suspect. A generation of political elites has been weaned on this ideology. Even as the 2020 election recedes into the past, the forces it unleashed remain.

Within 60 days of *Callais* being handed down, three states had redrawn their Congressional maps. These changes were dramatic: The number of Black-majority districts in those three states fell from 5 to 2. It took a century for Black Americans to win districts where they could elect candidates of their choice in the South. Those wins were undone in a matter of weeks.

Take, for instance, South Carolina. In 1895, the Palmetto State ratified a new constitution intended to disenfranchise Black voters. Senator Ben Tillman — the same Tillman we met in Chapter 1 as he explained the virtue in his violent program of disenfranchisement — described the state’s new Constitution on the floor of the U.S. Senate in a similarly explicit manner: “We did not disfranchise the Negroes until 1895” he explained. “Then we had a constitutional convention convened which took the matter up calmly, deliberately, and avowedly

⁴¹Walker (2026).

with the purpose of disfranchising as many of them as we could under the Fourteenth and Fifteenth amendments.”⁴² George Washington Murray, the state’s lone Black representative in Congress, had no chance of being re-elected.

No Black South Carolinian would be elected until Jim Clyburn won election in 1992 after a federal court drew the state’s first majority-Black district. Clyburn has served in Congress ever since. But within weeks of *Callais*, the state moved to enact a new Congressional map — one in which voters of color made up a majority in no districts. Clyburn’s assessment of the new maps carried the full weight of history: “It’s a comprehensive approach to creating Jim Crow 2.0.”⁴³

The effects of the decision lay in the decimation of Black-majority Congressional districts throughout the South. But reporting from the weeks immediately following the decision also demonstrates just how central the myth of the new Lost Cause was to the case that would kill the Voting Rights Act. Six days after *Callais* was handed down, Democracy Docket published a report digging into the history of Phillip “Bert” Callais, the named plaintiff in the case.⁴⁴ Callais and his co-plaintiffs had been described simply as “non-African American voters” in their lawsuit and little was known about them.⁴⁵ The lawsuit was not, however, Callais’s first foray into political action. As the Democracy Docket piece made clear, he was a dyed-in-the-wool election denier. He had spent years promoting conspiracies about the 2020 election, and was present at the U.S. Capitol on January 6, 2021. To be sure, there is no evidence that Callais was recruited as the lead plaintiff in the case *because* of his conviction that the 2020 election was stolen; political myths do not need active conspirators

⁴²33 Cong. Rec. 3223–3224 (1900) (statement of Sen. Benjamin Tillman).

⁴³Quoted in Berman (2026).

⁴⁴Cohen and Rivas (2026).

⁴⁵But see VanSickle (2025).

to bloom. Nevertheless, given the power and pervasiveness of the racialized new Lost Cause, it should similarly come as no surprise that the named plaintiff in a case alleging that the Voting Rights Act discriminated against White voters is a true believer. And, of course, the justice who wrote the opinion that nullified the VRA was similarly bound by the myth: In the aftermath of the insurrection, an upside down flag — a central symbol of the Stop the Steal movement — flew outside Justice Alito’s home.⁴⁶

The rhetoric used by political elites in the aftermath of *Callais* further demonstrated just how rich the myth’s vocabulary had become. Following the Supreme Court’s first major attack against the Voting Rights Act in *Shelby County*, Republican lawmakers were nearly silent.⁴⁷ Republican House Speaker John Boehner said simply “We are reviewing the decision, and trying to determine what the proper steps going forward are,”⁴⁸ while Republican House Majority Leader Eric Cantor hoped Congress would “find a responsible path forward that ensures that the sacred obligation of voting in this country remains protected.”⁴⁹ Republican Senate Minority Leader Mitch McConnell had no statement at all.

Thirteen years later, things had changed dramatically. Republican Speaker of the House Mike Johnson said in a speech that in *Callais* “the court restored a simple but profound truth: Yes, the Constitution protects every American equally.”⁵⁰ He would go further in an interview on Fox News: “Nobody, no American citizen, should be discriminated against based on the color of their skin. And that’s what this [the VRA] did.”⁵¹ Just thirteen years

⁴⁶Kantor and VanSickle (2024).

⁴⁷See McAuliff (2013), published the day after the decision: “Nearly every Republican interviewed by The Huffington Post in the wake of the Supreme Court decision either had no answer about how they would respond, or said they hadn’t read it yet.”

⁴⁸Ibid.

⁴⁹Ibid.

⁵⁰“Speaker Johnson praises SCOTUS Callais decision on Voting Rights Act,” Fox News, May 2026, <https://www.youtube.com/watch?v=ejRKpm-ss1I>.

⁵¹“Speaker Johnson on Fox and Friends with Brian Kilmeade,” Speaker Mike Johnson YouTube channel,

after one Republican House Speaker demurred on the Voting Rights Act, another was ready to argue that the tool used to fight racial discrimination in voting was itself a means of racial discrimination. White Southerners had been the real victims at the hands of an overzealous federal government. Colorblind constitutionalism, or the theory that using race to *counter* racial discrimination is as pernicious as the original discrimination itself, had come for the Voting Rights Act. The Roberts Court has used it to dismantle other achievements of the Civil Rights Movement such as affirmative action using the same reasoning: “Eliminating racial discrimination means eliminating all of it.”⁵²

Other Republican elites would go further than the language of anodyne colorblind constitutionalism. Tate Reeves, the Republican Governor of Mississippi, named the political project: “First Dobbs,” he wrote on X (formerly Twitter), referring to the 2022 Supreme Court case that overturned the constitutional right to an abortion. “Now Callais. Just Mississippi and Louisiana down here saving our country!”⁵³ He later celebrated that Democrat Bennie Thompson, the state’s lone Black member of Congress and chair of the House committee tasked with investigating the attempt to overturn the 2020 election, would lose his seat. Bennie Thompson’s “reign of terror on MS-2 is over,” the governor wrote on X (formerly Twitter). “It is not a matter of ‘IF...’ Just a matter of ‘WHEN!’ ”⁵⁴

The 2020 census showed that African Americans made up a larger share of the population in Mississippi than in any other state in the country. The governor vowed that their Congressional representation — Thompson’s “reign of terror” — would be no more.⁵⁵

May 13, 2026, <https://www.youtube.com/watch?v=Br6nvw7Vo5c>.

⁵²*Students for Fair Admissions, Inc. v. President & Fellows of Harvard College*, 600 U.S. 181 (2023).

⁵³<https://x.com/tatereeves/status/2049557735302123924>.

⁵⁴<https://x.com/tatereeves/status/2054570406216978489>.

⁵⁵“Bennie Thompson’s reign of terror on the second congressional district is coming to an end. We’re going to make sure that we do it right. We’re going to be smart about it.” WLOX Staff (2026, 3:40).



In September 2024, one of Donald Trump’s chief allies in his attempt to overturn the 2020 election was back in Washington, DC. Cleta Mitchell was testifying before the House Judiciary Committee on the threat that voter fraud posed to American elections; she quoted a study estimating that “between one and nearly three million” fraudulent ballots would be cast in the 2024 presidential election.⁵⁶ And as in the attempt she helped to spearhead in 2020, she once again invoked specific places: The danger was most acute in “Democrat-controlled cities like San Francisco, New York, and Washington, DC.”

But in 2024, Mitchell was no longer talking about voter fraud in the nation’s cities most associated with Black political power. Instead, the new Lost Cause had mutated to target a new racial out-group: immigrants to the United States. Mitchell testified that, “with the borders opened on January 21, 2021, by the Biden-Harris Administration and illegals pouring across our borders by the millions,...the SAVE Act has become absolutely vital to protecting our elections from illegal voting by noncitizens.” This language — talk of “pouring” and (later) “swarming” and “illegals” — have a long history of being tied in American political discourse to the dehumanization of Latino immigrants.⁵⁷ Just as the BLM protests in 2020 provided cover for the specifically anti-Black strain of the new Lost Cause to undermine the presidential election, fears stoked by crises at the southern border now gave cover to a different sort of restrictive policy.

⁵⁶The Biden-Harris Border Crisis: Noncitizen Voting, Hearing Before the Subcomm. on the Constitution and Limited Government of the H. Comm. on the Judiciary, 118th Cong. (2024), <https://www.congress.gov/event/118th-congress/house-event/117612/text>. Mitchell was citing Agresti (2024) for these specific numbers.

⁵⁷Santa Ana (2002); Chavez (2025).

Although even the conservative Cato Institute acknowledges that “noncitizens don’t illegally vote in detectable numbers,”⁵⁸ the myth did not rely on facts to propel itself. It relied, instead, on a sense of racial threat — of, in Mitchell’s words, Democrats who “cannot persuade the American people to want their Marxist policies for America[] just import[ing] voters who don’t speak the language, don’t have a shared commitment to our country and our national principles.” Sometimes the fact-free nature of the whole project was made explicit: “We all know, intuitively, that a lot of illegals are voting in federal elections,” explained House Speaker Johnson. “But it’s not been something that is easily provable. We don’t have that number.”⁵⁹

That the myth had mutated to encompass a new racialized target did not mean that the original Big Lie had been dropped; far from it. But its meaning shifted. By 2025, with Donald Trump back in the White House, the Big Lie was hardly meaningful anymore from a political perspective. Its strategic functions had faded away. The persistence of the Big Lie points, then, to something deeper. It reveals that it was never, really, about sincere concerns about fraud, and the new Lost Cause is no longer about winning the 2020 election. Instead, it is about painting any power exercised by members of the Democratic Party — many of whom, of course, are not White — as fundamentally illegitimate. The Biden presidency was illegitimate, yes, but so too will be any Democratic administration going forward.

Trump himself never accepted that he lost the 2020 election, and today most Republicans in Congress believe the 2020 election was stolen.⁶⁰ And, upon returning to power in 2025, Trump imposed his views on the federal judiciary: According to a group called Demand

⁵⁸Nowrasteh (2020).

⁵⁹Quoted in Schnell (2024).

⁶⁰States United Action (2026).

Justice, *all* of Trump’s first 48 nominees to the federal bench in his second term “provided answers about the 2020 election and January 6, 2021 that were dishonest or misleading.”⁶¹

And in 2026, the Trump Administration returned to Fulton County, Georgia, the epicenter of the Big Lie and birthplace of the new Lost Cause. It was here that Shaye Moss and Ruby Freeman worked the polls in 2020 before becoming the nationally-known target of Stop-the-Steal activists, and that Trump pressured Republican officials to “find 11,780 votes” for him.⁶² It was here that Nick Fuentes would lead rallies of far-right actors demanding that state legislators overturn the 2020 election, and that those same lawmakers would enact a major voter suppression bill the following year.

In mid-January, 2026, Trump told the *New York Times* that he regretted not seizing Dominion voting machines following the 2020 election. Dominion machines had been the focus on many of the conspiracy theories in 2020, but they were baseless; recall from Chapter 3 that Fox News agreed to pay Dominion some \$800 million for their role in spreading the lies.⁶³ Trump’s continued endorsement of this theory was untethered from reality. But two weeks later, the President threw the weight of the Department of Justice behind the lie. On January 28, 2026 — more than five years after the 2020 election — the FBI raided the Fulton County Election Hub in Union City.⁶⁴ They seized 656 boxes of materials including ballots, tabular tapes, and voter registration rolls.

In the affidavit filed by the FBI seeking a warrant for the materials, Special Agent Hugh Raymond Evans made clear that the Big Lie enjoyed the full force of law. The FBI needed access to these documents, he wrote, to further its investigation into unlawful action.

⁶¹Demand Justice (2026).

⁶²Shear and Saul (2021).

⁶³Bauder, Chase and Mulvihill (2023).

⁶⁴Casiano (2026).

Federal law “makes it a crime,” he wrote, “to knowingly and willfully deprive the residents of a State of a fair and impartially conducted election process.”⁶⁵ Although the affidavit quoted a previous investigation requested by the state concluding it did “not see any evidence of fraud, intentional misconduct, or large systematic issues that would have affected the result of the November 2020 election,” the warrant was executed. Armed agents of the federal government descended on the election office in service to the new Lost Cause.



The new Lost Cause is alive and well in Fulton County, but not only there. Its continued potency has been evident since Donald Trump’s first campaign rally for the 2024 presidential election, seeking to return to the office he had tried to hold by force four years earlier. Trump stood at attention, right-hand over his heart, as a group of men sang the national anthem.⁶⁶

But the singers were not on stage that afternoon. They were not even in attendance. They were, instead, serving time in federal prisons for the role they played in the insurrection at the United States Capitol on January 6, 2021. Trump’s first campaign for the presidency in 2015 famously began by denigrating Mexican immigrants. This final campaign, meanwhile, bloomed from the new Lost Cause: Those Americans who violently stormed the Capitol in an attempt to stop the peaceful transfer of power — that bedrock of democratic governance — had been re-cast as patriotic political prisoners. But on that March afternoon, Donald

⁶⁵Affidavit of Special Agent Hugh Raymond Evans, Application & Affidavit for Search Warrant, Case No. 1:26-MC-0177 (N.D. Ga. Jan. 28, 2026) (unsealed as Document 22-2 in Case No. 1:26-mi-00012-JPB, filed Feb. 10, 2026).

⁶⁶Neukam (2023).

J. Trump was just a private citizen. His pronouncements about January 6 carried no legal weight.

It would not remain so. On the fifth anniversary of the attacks, the Trump Administration, now back in the presidency, added a new page to the White House’s website titled “January 6: A Date Which Will Live in Infamy.”⁶⁷ It was a full-throated celebration of that cold January morning, when Trump rallied his supporters and sought to steal the 2020 election. “It was the Democrats,” the page says, “who staged the real insurrection,” and the prosecution of those who stormed the Capitol marked “one of the darkest wrongs in modern American history.” The 2020 election, reads the White House website, was stolen.

This, then, marks the final transformation of the Big Lie into the New Lost Cause. The first Lost Cause was built atop specific claims — that corruption had taken root in South Carolina in the 1870s; that Black men regularly raped White women; that the Civil War was about states’ independence from the federal government. But it transformed from these discrete claims into the myth of the Lost Cause when elevated to an ideology: The White South was the victim of a system designed to punish it and to dethrone them from their rightful place atop a racial hierarchy. And it was under this banner that the South used the tools of government to undermine American democracy.

We have not come so far as we might like to hope. Today, specific claims circulate. Voting machines were hacked; fraud ran rampant in Detroit and Milwaukee and Atlanta; noncitizens are being imported into the nation to replace White Americans. But it is the elevation to ideology that marks its transformation into the New Lost Cause: From stolen

⁶⁷The White House, “January 6: A Date Which Will Live in Infamy,” accessed May 15, 2026, <https://www.whitehouse.gov/j6/>.

elections to the Voting Rights Act, from demands in the streets for protection against police violence to the election of a Black president, White Americans are the victims of 21st century America. The New Lost Cause no longer describes a single election, but an entire way of seeing the world. And today, like in the 19th and 20th centuries, it is providing cover for an extraordinary rollback of civil rights.

For the duration of the second Trump Administration, the New Lost Cause was the official policy of the federal government of the United States of America. Whether it remains that way is not yet known. Will the myth continue to mutate, to adapt, to exclude racial and ethnic minority from the political realm in the United States? Will we leave the 15th Amendment a “very perfect and muscular corpse” for a century, as we did before?⁶⁸

In perhaps the most quoted line of *Black Reconstruction*, W.E.B. Du Bois describes Reconstruction as a time in which “the slave went free, stood a brief moment in the sun, then moved back again toward slavery” as institutional support for the second founding collapsed amid a resurgence of White supremacy.⁶⁹ At the close of the Second Reconstruction, we might well make the same observation. The Voting Rights Act is gone, and Congress’s power to enforce the 15th Amendment — even should they decide to use it — has been narrowed by the Supreme Court.

The Second Reconstruction has been killed. We must build the third.

⁶⁸Quoted in Wang (1997, pg. 131).

⁶⁹Du Bois ([1935] 2021, pg. 40).

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